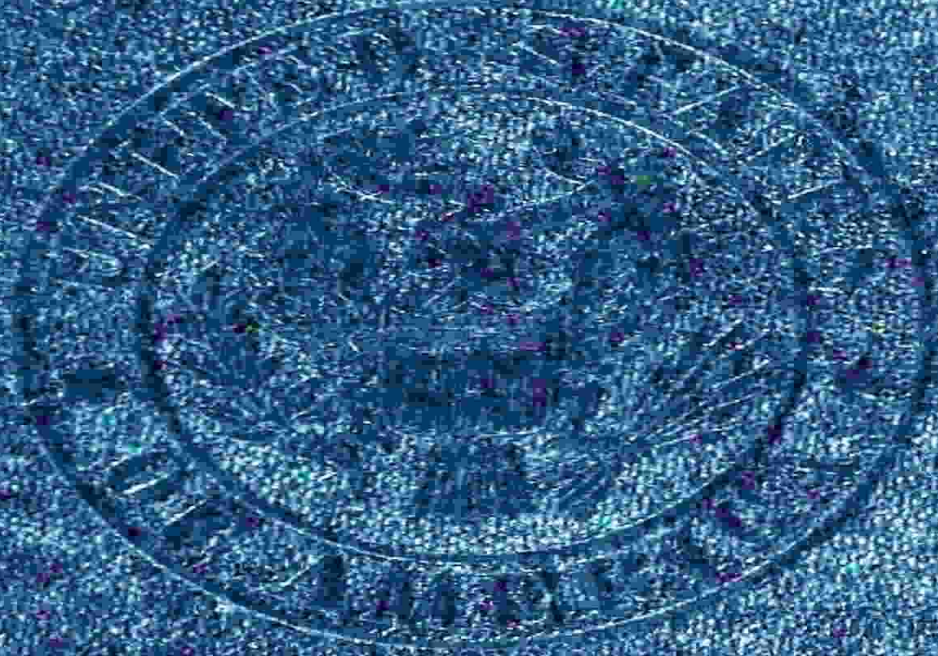


THE VOTER'S TEXT BOOK



BY
JAMES M. HIATT

**THE
VOTER'S TEXT BOOK**



**BY
JAMES M. HIATT**

The Project Gutenberg eBook of The voter's text book

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The voter's text book
comprising a collection of the most important documents and statistics connected with the political history of America

Author: James M. Hiatt

Release date: July 11, 2026 [eBook #79072]

Language: English

Original publication: Indianapolis: Asher, Adams & Higgins, 1868

Other information and formats: www.gutenberg.org/ebooks/79072

Credits: Charlene Taylor and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK THE VOTER'S
TEXT BOOK ***



GEORGE WASHINGTON.

**THE
VOTER'S TEXT BOOK,**

COMPRISING A COLLECTION OF THE MOST IMPORTANT
DOCUMENTS AND STATISTICS,
CONNECTED WITH THE
POLITICAL HISTORY OF AMERICA,

COMPILED FROM OFFICIAL RECORDS, WITH
BIOGRAPHICAL AND HISTORICAL SKETCHES.

BY JAMES M. HIATT.

INDIANAPOLIS, IND.:
ASHER, ADAMS & HIGGINS.
1868.

Entered, according to Act of Congress, in the year 1868, by

ASHER, ADAMS & HIGGINS,

In the Clerk's Office of the District Court of the United States,
for the District of Indiana.

STEREOTYPED AT THE FRANKLIN TYPE FOUNDRY, CINCINNATI.

CONTENTS.

	PAGE.
Formation of the Original Union	<u>5</u>
Population of the United States at Decennial Periods	<u>6</u>
Declaration of Independence	<u>7</u>
Articles of Confederation and Perpetual Union	<u>13</u>
Constitution of the United States, and Amendments	<u>23</u>
Washington's Addresses	<u>41</u>
Missouri Compromise of 1820	<u>65</u>
Fugitive Slave Law of 1850	<u>66</u>
Kansas and Nebraska Act of 1854	<u>73</u>
Ordinance of 1787	<u>86</u>
Amnesty Proclamation	<u>94</u>
Proposed Crittenden Compromise	<u>97</u>
Emancipation Proclamation	<u>99</u>
Letter Explaining the same	<u>101</u>
Proclamation of Andrew Jackson	<u>106</u>
History of each of the States	<u>130</u>
Life of Washington	<u>157</u>
Electoral Votes for 1st and 2d terms	<u>158</u>
Life of John Adams	<u>161</u>
Electoral Votes for 3d term	<u>162</u>
Life of Jefferson	<u>164</u>
Electoral Votes for 4th and 5th terms	<u>166</u>
Life of Madison	<u>168</u>
Electoral Votes for 6th and 7th terms	<u>170</u>
Life of Monroe	<u>172</u>
Electoral Votes for 8th and 9th terms	<u>174</u>
Life of John Q. Adams	<u>176</u>
Electoral Votes for 10th term	<u>178</u>
Life of Jackson	<u>179</u>
Electoral Votes for 11th and 12th terms	<u>181</u>
Life of Van Buren	<u>183</u>
Electoral Votes for 13th term	<u>185</u>
Life of Harrison	<u>186</u>

Electoral Votes for 14th term	<u>188</u>
Life of Tyler	<u>190</u>
Life of Polk	<u>192</u>
Electoral Votes for 15th term	<u>194</u>
Life of Taylor	<u>195</u>
Electoral Votes for 16th term	<u>197</u>
Life of Fillmore	<u>198</u>
Life of Pierce	<u>200</u>
Electoral Votes for 17th term	<u>202</u>
Life of Buchanan	<u>203</u>
Electoral Votes for 18th term	<u>207</u>
Life of Lincoln	<u>208</u>
Electoral Votes for 19th and 20th terms	<u>214</u>
Life of Johnson	<u>216</u>
Chronological Record of the Rebellion	<u>219</u>
Pay of Officers of the United States, Civil and Military	<u>269</u>
Schedule of Stamp Duty	<u>280</u>
The Civil Rights Bill	<u>289</u>
Constitutional Amendment (proposed)	<u>293</u>
The Military Government Bill	<u>295</u>
Supplement to the same, and Amendment	<u>297</u>
History of the National Banks	<u>301</u>
History of Finances, Loans, Bonds, Legal-Tender Notes, etc.	<u>318</u>
Statistical View of the States, etc.	<u>328</u>
Platforms of the Parties for 1860 and 1864	<u>331</u>
Life of General U. S. Grant	<u>341</u>
Tenure-of-Office Bill	<u>345</u>
Impeachment	<u>348</u>
Chicago Platform of 1868	<u>369</u>
Life of Schuyler Colfax	<u>371</u>
Democratic Platform	<u>375</u>
Hon. Horatio Seymour	<u>378</u>
Gen. Francis Preston Blair, Jr.	<u>380</u>

FORMATION OF THE ORIGINAL UNION.

On Monday, the 5th of September, 1774, there were assembled at Carpenter's Hall, in the city of Philadelphia, a number of men who had been chosen and appointed by the several colonies in North America to hold a Congress for the purpose of discussing certain grievances imputed against the mother country. This Congress resolved, on the next day, that each colony should have one vote only. On Tuesday, the 2d July, 1776, the Congress resolved, "That these United Colonies are, and of right ought to be, Free and Independent States," etc., etc.; and on Thursday, the 4th July, the whole Declaration of Independence having been agreed upon, it was publicly read to the people. Shortly after, on the 9th September, it was resolved that the words "United Colonies" should be no longer used, and that the "UNITED STATES OF AMERICA" should thenceforward be the style and title of the Union. On Saturday, the 15th November, 1777, "Articles of Confederation and Perpetual Union of the United States of America" were agreed to by the State delegates, subject to the ratification of the State legislatures severally. Eight of the States ratified these articles on the 9th July, 1778; one on the 21st July; one on the 24th July; one on the 26th November of the same year; one on the 22d February, 1779; and the last one on the 1st March, 1781. Here was a bond of union between thirteen independent States, whose delegates in Congress legislated for the general welfare, and executed certain powers so far as they were permitted by the articles aforesaid. The following are the names of the Presidents of the Continental Congress from 1774 to 1788:

Peyton Randolph, Virginia	5th Sept., 1774.
Henry Middleton, South Carolina	22d Oct., 1774.
Peyton Randolph, Virginia	10th May, 1775.
John Hancock, Massachusetts	24th May, 1776.
Henry Laurens, South Carolina	1st Nov., 1777.
John Jay, New York	10th Dec., 1778.
Samuel Huntington, Connecticut	28th Sept., 1779.
Thomas McKean, Delaware	10th July, 1781.

John Hanson, Maryland	5th	Nov.,	1781.
Elias Boudinot, New Jersey	4th	"	1782.
Thomas Mifflin, Pennsylvania	3d	"	1783.
Richard Henry Lee, Virginia	30th	"	1784.
Nathaniel Gorham, Massachusetts	6th	Jan.,	1786.
Arthur St. Clair, Pennsylvania	2d	Feb.,	1787.
Cyrus Griffin, Virginia	22d	Jan.,	1788.

The seat of government was established as follows: At Philadelphia, Pa., commencing September 5, 1774, and May 10, 1775; at Baltimore, Md., December 20, 1776; at Philadelphia, Pa., March 4, 1777; at Lancaster. Pa., September 27, 1777; at York, Pa., September 30, 1777; at Philadelphia, Pa., July 2, 1778; at Princeton, N. J., June 30, 1783; at Annapolis, Md., November 26, 1783; at Trenton, N. J., November 1, 1784; and at New York City, N. Y., Jan. 11, 1785.

On the 4th March, 1789, the present Constitution, which had been adopted by a convention and ratified by the requisite number of States, went into operation.

POPULATION OF THE UNITED STATES AT DECENNIAL PERIODS.

Cens's Years.	White Persons.	Colored Persons.			Total Population.
		Free.	Slave.	Total.	
1790	3,172,464	59,466	697,897	757,363	3,929,827
1800	4,304,489	108,395	893,041	1,001,436	5,305,925
1810	5,862,004	186,446	1,191,364	1,377,810	7,239,814
1820	7,861,937	238,156	1,538,038	1,776,194	9,638,131
1830	10,537,378	319,599	2,009,043	2,328,642	12,866,020
1840	14,195,695	386,303	2,487,455	2,873,758	17,069,453
1850	19,553,068	434,495	3,204,313	3,638,808	23,191,876
1860	26,964,930	487,970	3,953,760	4,441,730	31,443,322

DECLARATION OF INDEPENDENCE.

IN CONGRESS, TUESDAY, JULY 4, 1776.

Agreeably to the order of the day, the Congress resolved itself into a committee of the whole, to take into their further consideration the Declaration; and, after some time, the President resumed the chair, and Mr. Harrison reported that the committee had agreed to a declaration, which they desired him to report. (The committee consisted of Jefferson, Franklin, John Adams, Sherman, and R. R Livingston.)

The Declaration being read, was agreed to, as follows:

A DECLARATION

BY THE REPRESENTATIVES OF THE
UNITED STATES OF AMERICA,
IN CONGRESS ASSEMBLED.

When, in the course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another, and to assume among the powers of the earth the separate and equal station to which the laws of nature and of nature's God entitle them, a decent respect for the opinions of mankind requires that they should declare the causes which impel them to the separation.

We hold these truths to be self-evident: that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness. That, to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed; that, whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to abolish it, and to institute a new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness. Prudence, indeed, will dictate that governments long established should not be

changed for light and transient causes; and, accordingly, all experience hath shown that mankind are more disposed to suffer, while evils are sufferable, than to right themselves by abolishing the forms to which they are accustomed. But, when a long train of abuses and usurpations, pursuing invariably the same object, evinces a design to reduce them under absolute despotism, it is their right, it is their duty, to throw off such government, and to provide new guards for their future security. Such has been the patient sufferance of these colonies, and such is now the necessity which constrains them to alter their former systems of government. The history of the present King of Great Britain is a history of repeated injuries and usurpations, all having, in direct object, the establishment of an absolute tyranny over these States. To prove this, let facts be submitted to a candid world:

He has refused his assent to laws the most wholesome and necessary for the public good.

He has forbidden his Governors to pass laws of immediate and pressing importance, unless suspended in their operation till his assent should be obtained; and, when so suspended, he has utterly neglected to attend to them.

He has refused to pass other laws for the accommodation of large districts of people unless those people would relinquish the right of representation in the legislature—a right inestimable to them, and formidable to tyrants only.

He has called together legislative bodies at places unusual, uncomfortable, and distant from the depository of their public records, for the sole purpose of fatiguing them into compliance with his measures.

He has dissolved representative houses repeatedly for opposing, with manly firmness, his invasions on the rights of the people.

He has refused, for a long time after such dissolutions, to cause others to be elected; whereby the legislative powers, incapable of annihilation, have returned to the people at large for their exercise, the State remaining, in the meantime, exposed to all the danger of invasion from without, and convulsions within.

He has endeavored to prevent the population of these States; for that purpose, obstructing the laws for naturalization of foreigners; refusing to pass others to encourage their emigration hither, and raising the conditions of new appropriations of lands.

He has obstructed the administration of justice, by refusing his assent to laws for establishing judiciary powers.

He has made judges dependent on his will alone for the tenure of their offices and the amount and payment of their salaries.

He has erected a multitude of new offices, and sent hither swarms of officers to harass our people, and eat out their substance.

He has kept among us, in times of peace, standing armies, without the consent of our legislature.

He has affected to render the military independent of, and superior to, the civil power.

He has combined, with others, to subject us to a jurisdiction foreign to our constitution, and unacknowledged by our laws; giving his assent to their acts of pretended legislation:

For quartering large bodies of armed troops among us;

For protecting them, by mock trial, from punishment, for any murders which they should commit on the inhabitants of these States;

For cutting off our trade with all parts of the world;

For imposing taxes on us without our consent;

For depriving us, in many cases, of the benefits of trial by jury;

For transporting us beyond seas to be tried for pretended offenses;

For abolishing the free system of English laws in a neighboring province, establishing therein an arbitrary government, and enlarging its boundaries, so as to render it at once an example and fit instrument for introducing the same absolute rule into these colonies;

For taking away our charters, abolishing our most valuable laws, and altering, fundamentally, the powers of our governments;

For suspending our own legislature, and declaring themselves invested with power to legislate for us in all cases whatsoever.

He has abdicated government here, by declaring us out of his protection, and waging war against us.

He has plundered our seas, ravaged our coast, burnt our towns, and destroyed the lives of our people.

He is, at this time, transporting large armies of foreign mercenaries to complete the works of death, desolation, and tyranny, already begun, with circumstances of cruelty and perfidy scarcely paralleled in the most barbarous ages, and totally unworthy the head of a civilized nation.

He has constrained our fellow-citizens, taken captive on the high seas, to bear arms against their country, to become the executioners of their friends and brethren, or to fall themselves by their hands.

He has excited domestic insurrections amongst us, and has endeavored to bring on the inhabitants of our frontiers, the merciless Indian savages, whose known rule of warfare is an undistinguished destruction, of all ages, sexes, and conditions.

In every stage of these oppressions, we have petitioned for redress, in the most humble terms; our repeated petitions have been answered only by repeated injury. A prince, whose character is thus marked by every act which may define a tyrant, is unfit to be the ruler of a free people.

Nor have we been wanting in attention to our British brethren. We have warned them, from time to time, of attempts made by their legislature to extend an unwarrantable jurisdiction over us. We have reminded them of the circumstances of our emigration and settlement here. We have appealed to their native justice and magnanimity, and we have conjured them, by the ties of our common kindred, to disavow these usurpations, which would inevitably interrupt our connections and correspondence. They, too, have been deaf to the voice of justice and consanguinity. We must, therefore, acquiesce in the necessity, which denounces our separation, and hold them, as we hold the rest of mankind, enemies in war—in peace, friends.

We, therefore, the representatives of the UNITED STATES OF AMERICA, in GENERAL CONGRESS assembled, appealing to the Supreme Judge of the World for the rectitude of our intentions, do, in the

name, and by the authority of the good people of these colonies, solemnly publish and declare, That these United Colonies are, and of right ought to be, FREE AND INDEPENDENT STATES; that they are absolved from all allegiance to the British crown, and that all political connections between them and the State of Great Britain, is, and ought to be, totally dissolved; and that, as *FREE AND INDEPENDENT STATES*, they have full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which INDEPENDENT STATES may of right do. And for the support of this Declaration, with a firm reliance on the protection of DIVINE PROVIDENCE, we mutually pledge to each other, our lives, our fortunes, and our sacred honor.

The foregoing Declaration was, by order of Congress, engrossed, and signed by the following members:

JOHN HANCOCK.

New Hampshire.

JOSIAH BARTLETT,
WILLIAM WHIPPLE,
MATTHEW THORNTON.

Rhode Island.

STEPHEN HOPKINS,
WILLIAM ELLERY.

Massachusetts Bay.

SAMUEL ADAMS,
JOHN ADAMS,
ROBERT TREAT PAYNE,
ELBRIDGE GERRY.

New York.

WILLIAM FLOYD,
PHILIP LIVINGSTON,
FRANCIS LEWIS,
LEWIS MORRIS.

Connecticut.

ROGER SHERMAN,
SAMUEL HUNTINGTON,
WILLIAM WILLIAMS,
OLIVER WOLCOTT.

New Jersey.

RICHARD STOCKTON,
JOHN WITHERSPOON,
FRANCIS HOPKINSON,
JOHN HART,
ABRAHAM CLARK.

Pennsylvania.

ROBERT MORRIS,
BENJAMIN RUSH,

Virginia.

GEORGE WYTHE,
RICHARD HENRY LEE,

BENJAMIN FRANKLIN,
JOHN MORTON,
GEORGE CLYMER,
JAMES SMITH,
GEORGE TAYLOR,
JAMES WILSON,
GEORGE ROSS.

THOMAS JEFFERSON,
BENJAMIN HARRISON,
THOMAS NELSON, JUN.,
FRANCIS LIGHTFOOT LEE,
CARTER BRAXTON.

North Carolina.

WILLIAM HOOPER,
JOSEPH HEWES,
JOHN PENN.

Delaware.

CÆSAR RODNEY,
GEORGE READ,
THOMAS M'KEAN.

South Carolina.

EDWARD RUTLEDGE,
THOMAS HEYWARD, JUN.,
THOMAS LYNCH, JUN.,
ARTHUR MIDDLETON.

Maryland.

SAMUEL CHASE,
WILLIAM PACA,
THOMAS STONE,
CHARLES CARROLL,
OF CARROLL'N.

Georgia.

BUTTON GWINNETT,
LYMAN HALL,
GEORGE WALTON.



JOHN ADAMS.

ARTICLES OF CONFEDERATION

AND PERPETUAL UNION BETWEEN THE STATES.

The Articles of Confederation reported July 12, '76, and debated from day to day, and time to time, for two years; were ratified July 9, '78, by 10 States; by New Jersey, on the 26th of November of the same year; and by Delaware, on the 23d of February following. Maryland, alone, held off two years more, acceding to them March 1, '81, and thus closing the obligation. The following are the Articles:

*To all whom these Presents shall come, We, the undersigned Delegates of the States affixed to our names, send greeting—*Whereas, the Delegates of the United States of America, in Congress assembled, did, on the 15th day of November, in the year of our Lord, 1777, and in the Second Year of the Independence of America, agree to certain Articles of Confederation and Perpetual Union between the States of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia, in the words following, viz.:

*“Articles of Confederation and Perpetual Union
between the States of New Hampshire,
Massachusetts Bay, Rhode Island and
Providence Plantations, Connecticut, New York,
New Jersey, Pennsylvania, Delaware,
Maryland, Virginia, North Carolina, South
Carolina, and Georgia.”*

ARTICLE 1. The style of this Confederacy shall be “The United States of America.”

ARTICLE 2. Each State retains its sovereignty, freedom, and independence, and every power, jurisdiction, and right, which is not by this confederation expressly delegated to the United States in Congress assembled.

ARTICLE 3. The said States hereby severally enter into a firm league of friendship with each other, for their common defense, the security of their liberties, and their mutual and general welfare, binding themselves to assist each other against all force offered to, or attacks made upon them, or any of them, on account of religion, sovereignty, trade, or any other pretense whatever.

ARTICLE 4. The better to secure and perpetuate mutual friendship and intercourse among the people of the different States in this Union, the free inhabitants of each of these States—paupers, vagabonds, and fugitives from justice excepted—shall be entitled to all privileges and immunities of free citizens in the several States; and the people of each State shall have free ingress and regress to and from any other State, and shall enjoy therein all the privileges of trade and commerce, subject to the same duties, impositions, and restrictions, as the inhabitants thereof respectively, provided that such restriction shall not extend so far as to prevent the removal of property, imported into any State, to any other State of which the owner is an inhabitant; provided, also, that no imposition, duties or restriction shall be laid by any State on the property of the United States, or either of them.

If any person guilty of or charged with treason, felony, or other high misdemeanor in any State, shall flee from justice, and be found in any of the United States, he shall, upon demand of the Governor, or executive power of the State from which he fled, be delivered up and removed to the State having jurisdiction of his offense.

Full faith and credit shall be given in each of these States, to the records, acts, and judicial proceedings of the courts and magistrates of every other State.

ARTICLE 5. For the more convenient management of the general interest of the United States, Delegates shall be annually appointed, in such manner as the legislature of each State shall direct, to meet in Congress on the first Monday in November, in every year, with a power reserved to each State, to

recall its Delegates, or any of them, at any time within the year, and to send others in their stead, for the remainder of the year.

No state shall be represented in Congress by less than two, nor by more than seven members; and no person shall be capable of being a Delegate for more than three years in any term of six years; nor shall any person, being a Delegate, be capable of holding any office under the United States, for which he, or another for his benefit, receives any salary, fees or emolument of any kind.

Each State shall maintain its own Delegates in any meeting of the States, and while they act as members of the Committee of the States.

In determining questions in the United States, in Congress assembled, each State shall have one vote.

Freedom of speech and debate in Congress shall not be impeached or questioned in any court or place, out of Congress, and the members of Congress shall be protected in their persons from arrests and imprisonments, during the time of their going to and from, and attendance on Congress, except for treason, felony, or breach of the peace.

ARTICLE 6. No State, without the consent of the United States in Congress assembled, shall send an embassy to, or receive an embassy from, or enter into any conference, agreement, alliance or treaty with any King, Prince, or State; nor shall any person holding any office of profit or trust under the United States, or any of them, accept of any present, emolument, office or title of any kind whatever from any King, Prince, or Foreign State; nor shall the United States in Congress assembled, or any of them, grant any title of nobility.

No two or more States shall enter into any treaty, confederation or alliance whatever between them, without the consent of the United States in Congress assembled, specifying accurately the purposes for which the same is to be entered into, and how long it shall continue.

No State shall lay any imposts or duties which may interfere with any stipulations in treaties, entered into by the United States in Congress assembled, with any King, Prince or State, in pursuance of any treaties already proposed by Congress, to the Courts of France and Spain.

No vessels of war shall be kept up in time of peace by any State except such number only, as shall be deemed necessary by the United States in Congress assembled, for the defense of such State, or its trade; nor shall any body of forces be kept up by any State, in time of peace, except such number only, as in the judgment of the United States in Congress assembled, shall be deemed requisite to garrison the forts necessary for the defense of such State; but every State shall always keep up a well-regulated and disciplined militia, sufficiently armed and accoutred, and shall provide and have constantly ready for use, in public stores, a due number of field-pieces and tents, and a proper quantity of arms, ammunition, and camp equipage.

No State shall engage in any war without the consent of the United States in Congress assembled, unless such State be actually invaded by enemies, or shall have received certain advice of a resolution being formed by some nation of Indians to invade such a State, and the danger is so imminent as not to admit of a delay, till the United States in Congress assembled can be consulted: nor shall any State grant commissions to any ships or vessels of war, nor letters of marque or reprisal, except it be after a declaration of war by the United States in Congress assembled, and then only against the Kingdom or State, and the subjects thereof, against which war has been so declared, and under such regulations as shall be established by the United States in Congress assembled, unless such State be infested by pirates, in which case vessels of war may be fitted out for that occasion, and kept so long as the danger shall continue, or until the United States in Congress assembled shall determine otherwise.

ARTICLE 7. When land forces are raised by any State for the common defense, all officers of, or under the rank of colonel, shall be appointed by the legislature of each State respectively, by whom such forces shall be raised, or in such manner as such State shall direct, and all vacancies shall be filled up by the State which first made the appointment.

ARTICLE 8. All charges of war, and all other expenses that shall be incurred for the common defense or general welfare, and allowed by the United States in Congress assembled, shall be defrayed out of a common treasury, which shall be supplied by the several States, in proportion to the value of all land within each State, granted to or surveyed for any person, as such land and the buildings and improvements thereon shall be estimated

according to such mode as the United States in Congress assembled, shall, from time to time, direct and appoint. The taxes for paying that proportion shall be laid and levied by the authority and direction of the legislatures of the several States within the time agreed upon by the United States in Congress assembled.

ARTICLE 9. The United States in Congress assembled shall have the sole and exclusive right and power of determining on peace and war, except in the cases mentioned in the 6th article—of sending and receiving ambassadors—entering into treaties and alliances, provided that no treaty of commerce shall be made whereby the legislative power of the respective States shall be restrained from imposing such imposts and duties on foreigners, as their own people are subjected to, or from prohibiting the exportation or importation of any species of goods or commodities whatsoever—of establishing rules for deciding in all cases what captures on land or water shall be legal, and in what manner prizes taken by land or naval forces in the service of the United States shall be divided or appropriated—of granting letters of marque and reprisal in times of peace—appointing courts for the trial of piracies and felonies committed on the high seas and establishing courts for receiving and determining finally appeals in all cases of captures, provided that no member of Congress shall be appointed a judge of any of the said courts.

The United States in Congress assembled shall also be the last resort on appeal in all disputes and differences now subsisting or that hereafter may arise between two or more States concerning boundary, jurisdiction, or any other cause whatever; which authority shall always be exercised in the manner following:—Whenever the legislative or executive authority or lawful agent of any State in controversy with another shall present a petition to Congress, stating the matter in question, and praying for a hearing, notice thereof shall be given by order of Congress, to the legislative or executive authority of the other State in controversy, and a day assigned for the appearance of the parties by their lawful agents, who shall then be directed to appoint, by joint consent, commissioners or judges to constitute a court for hearing and determining the matter in question: but if they can not agree, Congress shall name three persons out of each of the United States, and from the list of such persons each party shall alternately strike out one, the petitioners beginning, until the number shall be reduced

to thirteen; and from that number not less than seven, nor more than nine names, as Congress shall direct, shall in the presence of Congress be drawn out by lot, and the persons whose names shall be so drawn or any five of them, shall be commissioners or judges, to hear and finally determine the controversy, so always as a major part of the judges who shall hear the cause shall agree in the determination: and if either party shall neglect to attend at the day appointed, without showing reasons which Congress shall judge sufficient, or being present shall refuse to strike, the Congress shall proceed to nominate three persons out of each State, and the Secretary of Congress shall strike in behalf of such party absent or refusing; and the judgment and sentence of the court to be appointed, in the manner above prescribed, shall be final and conclusive; and if any of the parties shall refuse to submit to the authority of such court, or to appear or defend their claim or cause, the court shall, nevertheless, proceed to pronounce sentence or judgment, which shall in like manner be final and decisive, the judgment or sentence and other proceedings being in either case transmitted to Congress and lodged among the acts of Congress for the security of the parties concerned: provided that every commissioner, before he sits in judgment, shall take an oath, to be administered by one of the judges of the Supreme or Superior Court of the State where the cause shall be tried, “well and truly to hear and determine the matter in question, according to the best of his judgment, without favor, affection, or hope of reward:” provided also that no State shall be deprived of territory for the benefit of the United States.

All controversies concerning the private right of soil claimed under different grants of two or more States, whose jurisdictions as they may respect such lands, and the States which passed such grants, are adjusted; the said grants or either of them being at the same time claimed to have originated antecedent to such settlement of jurisdiction, shall, on the petition of either party to the Congress of the United States, be finally determined as near as may be in the same manner as is before prescribed for deciding disputes respecting territorial jurisdiction between different States.

The United States in Congress assembled shall also have the sole exclusive right and power of regulating the alloy and value of coin struck by their own authority, or by that of the respective States—fixing the standard of weights and measures throughout the United States—regulating

the trade and managing all affairs with the Indians, not members of any of the States; provided that the legislative right of any State within its own limits be not infringed or violated—establishing or regulating post-offices from one State to another, throughout all the United States, and exacting such postage on the papers passing through the same as may be requisite to defray the expenses of the said office—appointing all officers of the land forces, in the service of the United States, excepting regimental officers—appointing all the officers of the naval forces, and commissioning all officers whatever in the service of the United States—making rules for the government and regulation of the said land and naval forces, and directing their operations.

The United States in Congress assembled shall have authority to appoint a committee, to sit in the recess of Congress, to be denominated “A Committee of the States,” and to consist of one delegate from each State; and to appoint such other committees and civil officers as may be necessary for managing the general affairs of the United States, under their direction—to appoint one of their number to preside; provided that no person be allowed to serve in the office of president more than one year in any term of three years—to ascertain the necessary sums of money to be raised for the service of the United States, and to appropriate and apply the same for defraying the public expenses—to borrow money, or emit bills on the credit of the United States, transmitting every half year to the respective States an account of the sums of money so borrowed or emitted—to build and equip a navy—to agree upon the number of land forces, and to make requisitions from each State for its quota, in proportion to the number of white inhabitants in such State; which requisition shall be binding; and thereupon the legislatures of each State shall appoint the regimental officers, raise the men, and clothe, arm, and equip them in a soldier-like manner, at the expense of the United States; and the officers and men so clothed, armed, and equipped, shall march to the place appointed, and within the time agreed on by the United States in Congress assembled; but if the United States in Congress assembled shall, on consideration of circumstances, judge proper that any State should not raise men, or should raise a smaller number than its quota, and that any other State should raise a greater number of men than the quota thereof, such extra number shall be raised, officered, clothed, armed, and equipped in the same manner as the quota of such State, unless the legislature of such state shall judge that such extra

number can not be safely spared out of the same; in which case they shall raise, officer, clothe, arm, and equip as many of such extra number as they judge can be safely spared. And the officers and men so clothed, armed, and equipped, shall march to the place appointed, and within the time agreed on by the United States in Congress assembled.

The United States in Congress assembled shall never engage in a war, nor grant letters of marque and reprisal in time of peace, nor enter into any treaties or alliances, nor coin money, nor regulate the value thereof, nor ascertain the sums and expenses necessary for the defense and welfare of the United States, or any of them, nor emit bills, nor borrow money on the credit of the United States, nor appropriate money, nor agree upon the number of vessels of war to be built or purchased, or the number of land or sea forces to be raised, nor appoint a commander-in-chief of the army or navy unless nine States assent to the same; nor shall a question on any other point, except for adjourning from day to day, be determined, unless by the votes of a majority of the United States in Congress assembled.

The Congress of the United States shall have power to adjourn to any time within the year, and to any place within the United States, so that no period of adjournment be for a longer duration than the space of six months, and shall publish the journal of their proceedings monthly, except such parts thereof relating to treaties, alliances, or military operations, as in their judgment require secrecy and the yeas and nays of the delegates of each State on any question shall be entered on the journal when it is desired by any delegate; and the delegates of a State, or any of them, at his or their request, shall be furnished with a transcript of the said journal, except such parts as are above excepted, to lay before the legislatures of the several States.

ARTICLE 10. The committee of the States, or any nine of them shall be authorized to execute, in the recess of Congress, such of the powers of Congress as the United States in Congress assembled, by the consent of nine States, shall, from time to time, think expedient to vest them with; provided that no power be delegated to the said committee; for the exercise of which, by the Articles of Confederation; the voice of nine States in the Congress of the United States assembled is requisite.

ARTICLE 11. Canada, acceding to this confederation and joining in the measures of the United States, shall be admitted into, and entitled to all the advantages of this union; but no other colony shall be admitted into the same unless such admission be agreed to by nine States.

ARTICLE 12. All bills of credit emitted, moneys borrowed, and debts contracted by, or under the authority of Congress, before the assembling of the United States, in pursuance of the present confederation, shall be deemed and considered as a charge against the United States—for payment and satisfaction whereof, the said United States and the public faith are hereby solemnly pledged.

ARTICLE 13. Every State shall abide by the determinations of the United States in Congress assembled on all questions which, by this confederation, are submitted to them. And the articles of this confederation shall be inviolably observed by every State, and the union shall be perpetual; nor shall any alteration at any time hereafter be made in any of them, unless such alteration be agreed to in a Congress of the United States, and be afterward confirmed by the legislatures of every State.

And Whereas, It hath pleased the Great Governor of the World to incline the hearts of the legislatures we respectively represent in Congress, to approve of and to authorize us to ratify the said Articles of Confederation and perpetual union. Know Ye that we, the undersigned delegates, by virtue of the power and authority to us given for that purpose, do, by these presents, in the name and in behalf of our respective constituents, fully and entirely ratify and confirm each and every of the said Articles of Confederation and perpetual Union, and all and singular the matters and things therein contained. And we do further solemnly plight and engage the faith of our respective constituents, that they shall abide by the determinations of the United States in Congress assembled on all questions which, by the said confederation, are submitted to them. And that the articles thereof shall be inviolably observed by the States we respectively represent, and that the union shall be perpetual. In witness whereof we have hereunto set our hands in Congress. Done at Philadelphia, in the State of Pennsylvania, the 9th day of July, in the year of our Lord 1778, and in the 3d year of the Independence of America.

CONSTITUTION OF THE UNITED STATES OF AMERICA

We, the People of the United States, in order to form a more perfect Union, establish justice, insure domestic tranquillity, provide for the common defense, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this Constitution for the United States of America:

ARTICLE I.

SECTION 1. All the legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

SEC. 2. The House of Representatives shall be composed of members chosen every second year by the people of the several States; and the electors in each State shall have the qualifications requisite for electors of the most numerous branch of the State Legislature.

No person shall be a Representative who shall not have attained to the age of twenty-five years, and been seven years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State in which he shall be chosen.

Representatives and direct taxes shall be apportioned among the several States which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons. The actual enumeration shall be made within three years after the first meeting of the Congress of the United States, and within every subsequent term of ten years, in such manner as they shall by law direct. The number of

Representatives shall not exceed one for every thirty thousand, but each State shall have at least one Representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to choose three, Massachusetts eight, Rhode Island and Providence Plantations one, Connecticut five, New York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, South Carolina five, and Georgia three.

When vacancies happen in the representation from any State, the Executive authority thereof shall issue Writs of Election to fill such vacancies.

The House of Representatives shall choose their Speaker and other officers; and shall have the sole power of impeachment.

SEC. 3. The Senate of the United States shall be composed of two Senators from each State, chosen by the Legislature thereof, for six years; and each Senator shall have one vote.

Immediately after they shall be assembled in consequence of the first election, they shall be divided as equally as may be into three classes. The seats of the Senators of the first class shall be vacated at the expiration of the second year, of the second class at the expiration of the fourth year, and of the third class at the expiration of the sixth year, so that one-third may be chosen, every second year; and if vacancies happen by resignation, or otherwise, during the recess of the Legislature of any State, the Executive thereof may make temporary appointments until the next meeting of the Legislature, which shall then fill such vacancies.

No person shall be a Senator who shall not have attained to the age of thirty years, and been nine years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State for which he shall be chosen.

The Vice-President of the United States shall be President of the Senate, but shall have no vote, unless they be equally divided.

The Senate shall choose their other officers, and also a President *pro tempore*, in the absence of the Vice-President, or when he shall exercise the office of President of the United States.

The Senate shall have the sole power to try all impeachments. When sitting for that purpose, they shall be on oath or affirmation. When the President of the United States is tried, the Chief Justice shall preside; and no person shall be convicted without the concurrence of two-thirds of the members present.

Judgment in cases of impeachment shall not extend further than to removal from office, and disqualification to hold and enjoy any office of honor, trust or profit under the United States; but the party convicted shall nevertheless be liable and subject to indictment, trial, judgment and punishment, according to law.

SEC. 4. The times, places, and manner of holding elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may, at any time, by law make or alter such regulations, except as the places of choosing Senators.

The Congress shall assemble at least once in every year, and such meeting shall be on the first Monday in December, unless they shall by law appoint a different day.

SEC. 5. Each House shall be the judge of the elections, returns, and qualifications of its own members, and a majority of each shall constitute a quorum to do business; but a smaller number may adjourn from day to day, and may be authorized to compel the attendance of absent members, in such manner and under such penalties as each House may provide.

Each House may determine the Rules of its Proceedings, punish its members for disorderly behavior, and with the concurrence of two-thirds, expel a member.

Each House shall keep a Journal of its Proceedings, and from time to time publish the same, excepting such parts as may, in their judgment, require secrecy; and the yeas and nays of the members of either House on any question shall, at the desire of one-fifth of those present, be entered on the journal.

Neither House, during the session of Congress, shall, without the consent of the other, adjourn for more than three days, nor to any other place than that in which the two Houses shall be sitting.

SEC. 6. The Senators and Representatives shall receive a compensation for their services, to be ascertained by law and paid out of the treasury of the United States. They shall in all cases, except treason, felony, and breach of the peace, be privileged from arrest during their attendance at the session of their respective Houses, and in going to and returning from the same; and for any speech or debate in either House, they shall not be questioned in any other place.

No Senator or Representative shall, during the time for which he was elected, be appointed to any civil office under the authority of the United States, which shall have been created, or the emoluments whereof shall have been increased during such time, and no person holding any office under the United States shall be a member of either House during his continuance in office.

SEC. 7. All bills for raising revenue shall originate in the House of Representatives; but the Senate may propose or concur with amendments as on other bills.

Every bill which shall have passed the House of Representatives and the Senate, shall, before it becomes a law, be presented to the President of the United States: If he approve, he shall sign it; but if not, he shall return it, with his objections, to that House in which it shall have originated, who shall enter the objections at large on their Journal, and proceed to reconsider it. If, after such reconsideration, two-thirds of that House shall agree to pass the bill, it shall be sent, together with the objections, to the other House, by which it shall likewise be reconsidered, and if approved by two-thirds of that House, it shall become a law. But in all such cases the votes of both Houses shall be determined by yeas and nay, and the names of the persons voting for and against the bill shall be entered on the Journal of each House respectively. If any bill shall not be returned by the President within ten days (Sundays excepted) after it shall have been presented to him, the same shall be a law, in like manner as if he had signed it, unless the Congress, by their adjournment, prevent its return; in which case it shall not be a law.

Every order, resolution, or vote to which the concurrence of the Senate and House of Representatives may be necessary (except on a question of adjournment) shall be presented to the President of the United States; and before the same shall take effect, shall be approved by him; or, being

disapproved by him, shall be repassed by two-thirds of the Senate and House of Representatives, according to the rules and limitations prescribed in the case of a bill.

SEC. 8. The Congress shall have Power—

To lay and collect Taxes, Duties, Imposts and Excises, to pay the debts and provide for the common defense and general welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

To borrow money on the credit of the United States;

To regulate commerce with foreign nations, and among the several States, and with the Indian tribes;

To establish an uniform rule of naturalization, and uniform laws on the subject of bankruptcies throughout the United States;

To coin money, regulate the value thereof and of foreign coin, and fix the standard of weights and measures;

To provide for the punishment of counterfeiting the securities and current coin of the United States;

To establish post-offices and post-roads;

To promote the progress of science and useful arts, by securing for limited times to authors and inventors the exclusive right to their respective writings and discoveries;

To constitute tribunals inferior to the Supreme Court;

To define and punish piracies and felonies committed on the high seas, and offenses against the law of nations;

To declare war, grant letters of marque and reprisal, and make rules concerning captures on land and water;

To raise and support armies, but no appropriation of money to that use shall be for a longer term than two years;

To provide and maintain a navy;

To make rules for the government and regulation of the land and naval forces;

To provide for calling forth the militia to execute the laws of the Union, suppress insurrections, and repel invasions;

To provide for organizing, arming, and disciplining the militia, and for governing such part of them as may be employed in the service of the United States, reserving to the States respectively the appointment of the officers, and the authority of training the militia according to the discipline prescribed by Congress;

To exercise exclusive legislation, in all cases whatsoever, over such district (not exceeding ten miles square) as may, by cession of particular States, and the acceptance of Congress, become the Seat of the Government of the United States, and to exercise like authority over all places purchased by the consent of the Legislature of the State in which the same shall be, for the erection of forts, magazines, arsenals, dock-yards, and other needful buildings; and

To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the Government of the United States, or in any department or officer thereof.

SEC. 9. The migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the year one thousand eight hundred and eight, but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.

The privilege of the Writ of Habeas Corpus shall not be suspended, unless when, in cases of rebellion or invasion, the public safety may require it.

No bill of attainder or ex post facto law shall be passed.

No capitation, or other direct tax shall be laid, unless in proportion to the census or enumeration hereinbefore directed to be taken.

No tax or duty shall be laid on articles exported from any State.

No preference shall be given by any regulation of commerce or revenue to the ports of one State over those of another; nor shall vessels bound to or from one State, be obliged to enter, clear, or pay duties in another.

No money shall be drawn from the treasury but in consequence of appropriations made by law; and a regular statement and account of the receipts and expenditures of all public money shall be published from time to time.

No title of nobility shall be granted by the United States: And no person holding any office of profit or trust under them shall, without the consent of the Congress, accept of any present, emolument, office, or title, of any kind whatever, from any king, prince, or foreign State.

SEC. 10. No State shall enter into any treaty, alliance, or confederation; grant letters of marque or reprisal; coin money; emit bills of credit; make any thing but gold and silver coin a tender in payment of debts; pass any bill of attainder, ex post facto law, or law impairing the obligation of contracts, or grant any title of nobility.

No State shall, without the consent of the Congress, lay any imposts or duties on imports or exports, except what may be absolutely necessary for executing its inspection laws; and the net produce of all duties and imposts, laid by any State on imports or exports, shall be for the use of the treasury of the United States; and all such laws shall be subject to the revision and control of the Congress.

No State shall, without the consent of Congress, lay any duty of tonnage, keep troops, or ships of war in time of peace, enter into any agreement or compact with another State, or with a foreign power, or engage in war, unless actually invaded, or in such imminent danger as will not admit of delay.

ARTICLE II.

SECTION 1. The Executive Power shall be vested in a President of the United States of America. He shall hold his office during the term of four years, and, together with the Vice-President, chosen for the same term, be elected as follows:

Each State shall appoint, in such manner as the Legislature thereof may direct, a number of electors equal to the number of Senators and Representatives to which the State may be entitled in the Congress; but no Senator or Representative, or person holding an office of trust or profit under the United States, shall be appointed an elector.

(The electors shall meet in their respective States, and vote by ballot for two persons—of one at least shall not be an inhabitant of the same State with themselves. And they shall make a list of all the persons voted for, and of the number of votes for each; which list they shall sign and certify, and transmit, sealed, to the seat of the Government of the United States, directed to the President of the Senate. The President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted. The person having the greatest number of votes shall be the President, if such number be a majority of the whole number of electors appointed; and if there be more than one who have such majority, and have an equal number of votes, then the House of Representatives shall immediately choose by ballot one of them for President; and if no person have a majority, then from the five highest on the list the said House shall, in like manner, choose the President. But, in choosing the President, the votes shall be taken by States, the representation from each State having one vote. A quorum for this purpose shall consist of a member or members from two-thirds of the States, and a majority of all the States shall be necessary to a choice. In every case, after the choice of the President, the person having the greatest number of votes of the electors shall be the Vice-President. But if there should remain two or more who have equal votes, the Senate shall choose from them by ballot the Vice-President.^[1])

The Congress may determine the time of choosing the electors, and the day on which they shall give their votes; which day shall be the same throughout the United States.

No person, except a natural born citizen, or a citizen of the United States at the time of the adoption of this Constitution, shall be eligible to the office of President; neither shall any person be eligible to that office who shall not have attained to the age of thirty-five years, and been fourteen years a resident within the United States.

In case of the removal of the President from office, or of his death, resignation, or inability to discharge the powers and duties of the said office, the same shall devolve on the Vice-President; and the Congress may by law provide for the case of removal, death, resignation, or inability, both of the President and Vice-President, declaring what officer shall then act as President; and such officer shall act accordingly until the disability be removed, or a President shall be elected.

The President shall, at stated times, receive for his services a compensation, which shall neither be increased nor diminished during the period for which he shall have been elected; and he shall not receive within that period any other emolument from the United States, or any of them.

Before he enter on the execution of his office, he shall take the following oath or affirmation:

“I do solemnly swear (or affirm) that I will faithfully execute the office of President of the United States, and will, to the best of my ability, preserve, protect, and defend the Constitution of the United States.”

SEC. 2. The President shall be Commander-in-Chief of the Army and Navy of the United States, and of the militia of the several States when called into the actual service of the United States; he may require the opinion, in writing, of the principal officer in each of the Executive Departments, upon any subject relating to the duties of their respective offices; and he shall have power to grant reprieves and pardons for offenses against the United States, except in cases of impeachment.

He shall have power, by and with the advice and consent of the Senate, to make treaties, provided two-thirds of the Senate present concur; and he shall nominate, and by and with the advice and consent of the Senate, shall appoint Embassadors, other public Ministers and Consuls, Judges of the Supreme Court, and all other officers of the United States whose appointments are not herein otherwise provided for, and which shall be established by law; but the Congress may by law vest the appointment of such inferior officers as they think proper in the President alone, in the Courts of Law, or in the Heads of Departments.

The President shall have power to fill up all vacancies that may happen during the recess of the Senate, by granting commissions, which shall expire at the end of their next session.

SEC. 3. He shall, from time to time, give to the Congress information of the state of the Union, and recommend to their consideration such measures as he shall judge necessary and expedient; he may, on extraordinary occasions, convene both Houses, or either of them; and, in case of disagreement between them with respect to the time of adjournment, he may adjourn them to such time as he shall think proper; he shall receive Ambassadors and other public Ministers; he shall take care that the laws be faithfully executed, and shall commission all the officers of the United States.

SEC. 4. The President, Vice-President, and all Civil Officers of the United States, shall be removed from office on impeachment for, and conviction of, Treason, Bribery, or other high Crimes and Misdemeanors.

ARTICLE III.

SECTION 1. The judicial power of the United States shall be vested in one Supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the Supreme and inferior courts, shall hold their offices during good behavior, and shall, at stated times, receive for their services a compensation, which shall not be diminished during their continuance in office.

SEC. 2. The judicial power shall extend to all cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their authority; to all cases affecting Ambassadors, other public Ministers, and Consuls; to all cases of admiralty and maritime jurisdiction; to controversies to which the United States shall be a party; to controversies between two or more States; between a State and citizens of another State; between citizens of different States; between citizens of the same State claiming lands under grants of different States; and between a State, or the citizens thereof, and foreign States, citizens, or subjects.

In all cases affecting Embassadors, other public Ministers and Consuls, and those in which a State shall be a party, the Supreme Court shall have original jurisdiction. In all the other cases before mentioned, the Supreme Court shall have appellate jurisdiction, both as to law and fact, with such exceptions and under such regulations as the Congress shall make.

The trial of all crimes, except in cases of Impeachment, shall be by jury; and such trial shall be held in the State where the said crimes shall have been committed; but when not committed within any State, the trial shall be at such place or places as the Congress may by law have directed.

SEC. 3. Treason against the United States shall consist only in levying war against them, or adhering to their enemies, giving them aid and comfort. No person shall be convicted of treason unless on the testimony of two witnesses to the same overt act, or on confession in open Court.

The Congress shall have power to declare the punishment of treason, but no Attainder of Treason shall work corruption of blood, or forfeiture, except during the life of the person attainted.

ARTICLE IV.

SECTION 1. Full faith and credit shall be given in each State to the public acts, records, and judicial proceedings of every other State. And the Congress may by general laws prescribe the manner in which such acts, records, and proceedings shall be proved, and the effect thereof.

SEC. 2. The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States.

A person charged in any State with treason, felony, or other crime, who shall flee from justice, and be found in another State, shall, on demand of the executive authority of the State from which he fled, be delivered up, to be removed to the State having jurisdiction of the crime.

No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on claim of the party to whom such service or labor may be due.

SEC. 3. New States may be admitted by the Congress into this Union; but no new State shall be formed or erected within the jurisdiction of any other State; nor any State be formed by the junction of two or more States or parts of States without the consent of the Legislatures of the States concerned, as well as of the Congress.

The Congress shall have power to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States; and nothing in this Constitution shall be so construed as to prejudice any claims of the United States, or any particular State.

SEC. 4. The United States shall guarantee to every State in this Union a republican form of Government, and shall protect each of them against invasion; and on application of the Legislature, or of the Executive (when the Legislature can not be convened), against domestic violence.

ARTICLE V.

The Congress, whenever two-thirds of both Houses shall deem it necessary, shall propose amendments to the Constitution, or, on the application of the Legislatures of two-thirds of the several States, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of this Constitution, when ratified by the Legislatures of three-fourths of the several States, or by conventions in three-fourths thereof, as the one or the other mode of ratification may be proposed by the Congress; *Provided*, that no amendment which may be made prior to the year one thousand eight hundred and eight shall in any manner affect the first and fourth clauses in the ninth section of the first article; and that no State, without its consent, shall be deprived of its equal suffrage in the Senate.

ARTICLE VI.

All debts contracted and engagements entered into before the adoption of this Constitution, shall be as valid against the United States, under this Constitution, as under the Confederation.

This Constitution and the laws of the United States which shall be made in pursuance thereof; and all Treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the Judges in every State shall be bound thereby, any thing in the Constitution or laws of any State to the contrary notwithstanding.

The Senators and Representatives before mentioned, and the members of the several State Legislatures, and all executive and judicial officers, both of the United States and of the several States, shall be bound by oath or affirmation to support this Constitution; but no religious test shall ever be required as a qualification to any office or public trust under the United States.

ARTICLE VII.

The ratification of the conventions of nine States shall be sufficient for the establishment of this Constitution between the States so ratifying the same.

DONE in convention, by the unanimous consent of the States present, the seventeenth day of September, in the year of our Lord one thousand seven hundred and eighty-seven, and of the Independence of the United States of America the twelfth. In Witness whereof, we have hereunto subscribed our names.

GEO. WASHINGTON,
Pres't and Deputy from Virginia.

New Hampshire.

JOHN LANGDON, NICHOLAS GILMAN.

Massachusetts.

NATHANIEL GORHAM, RUFUS KING.

Connecticut.

WM. SAML. JOHNSON, ROGER SHERMAN.

New York.

ALEXANDER HAMILTON.

New Jersey.

WIL. LIVINGSTON, DAVID BREARLEY,

WM. PATERSON, JONA. DAYTON.

Pennsylvania.

B. FRANKLIN,
ROBT. MORRIS,
THO. FITZSIMONS,
JAMES WILSON,

THOMAS MIFFLIN,
GEO. CLYMER,
JARED INGERSOLL,
GOUV. MORRIS.

Delaware.

GEO. READ,
JOHN DICKINSON,
JACO. BROOM,

GUNNING BEDFORD, JUN'R,
RICHARD BASSETT.

Maryland.

JAMES M'HENRY,
DANL. CARROLL,

DAN. OF ST. THOS. JENIFER.

Virginia.

JOHN BLAIR,

JAMES MADISON, JR.

North Carolina.

WM. BLOUNT,
HU. WILLIAMSON,

RICH'D DOBBS SPAIGHT.

South Carolina.

J. RUTLEDGE,
CHARLES PINCKNEY,

CHARLES COTESWORTH PINCKNEY,
PIERCE BUTLER.

Georgia.

WILLIAM FEW,

ABR. BALDWIN.

Attest: WILLIAM JACKSON, *Secretary.*



THOMAS JEFFERSON.

ARTICLES,

In addition to, and amendment of, the Constitution of the United States of America, proposed by Congress, and ratified by the Legislatures of the several States, pursuant to the fifth article of the original Constitution.

ARTICLE I.

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

ARTICLE II.

A well-regulated Militia being necessary to the security of a free State, the right of the people to keep and bear arms shall not be infringed.

ARTICLE III.

No soldier shall, in time of peace, be quartered in any house, without the consent of the owner, nor in time of war, but in a manner to be prescribed by law.

ARTICLE IV.

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no warrant shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

ARTICLE V.

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the militia, when in actual service in time of war or public danger; nor shall any person be subject for the same offense to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use without just compensation.

ARTICLE VI.

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law and to be informed of the nature and cause of the accusation to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the assistance of counsel for his defense.

ARTICLE VII.

In suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved, and no fact tried by a jury shall be otherwise reexamined in any Court of the United States, than according to the rules of the common law.

ARTICLE VIII.

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

ARTICLE IX.

The enumeration in the Constitution of certain rights, shall not be construed to deny or disparage others retained by the people.

ARTICLE X.

The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

ARTICLE XI.

The judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the

United States by citizens of another State, or by citizens or subjects of any foreign State.

ARTICLE XII.

The Electors shall meet in their respective States, and vote by ballot for President and Vice-President, one of whom, at least, shall not be an inhabitant of the same State with themselves; they shall name in their ballot the person voted for as President, and in distinct ballots the person voted for as Vice-President, and they shall make distinct lists of all persons voted for as President, and all persons voted for as Vice-President, and of the number of votes for each, which lists they shall sign and certify, and transmit sealed to the seat of government of the United States, directed to the President of the Senate:—The President of the Senate shall, in presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted; The person having the greatest number of votes for President shall be the President, if such number be a majority of the whole number of Electors appointed; and if no person have such majority, then from the persons having the highest numbers, not exceeding three, on the list of those voted for as President, the House of Representatives shall choose immediately by ballot the President. But in choosing the President, the votes shall be taken by States, the representation from each State having one; a quorum for this shall consist of a member or members from two-thirds of the States, and a majority of all the States shall be necessary to a choice. And if the House of Representatives shall not choose a President, whenever the right of choice shall devolve upon them, before the fourth day of March next following, then the Vice-President shall act as President, as in the case of the death or other constitutional disability of the President. The person having the greatest number of votes as Vice-President, shall be the Vice-President, if such number be a majority of the whole number of electors appointed; and if no person have a majority, then, from the two highest numbers on the list, the Senate shall choose the Vice-President; a quorum for the purpose shall consist of two-thirds of the whole number of Senators, and a majority of the whole number shall be necessary to a choice. But no person constitutionally ineligible to the office of President, shall be eligible to that of Vice-President of the United States.

ARTICLE XIII.

“SECTION 1. Neither slavery nor involuntary servitude, except as a punishment for crime, whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

“SECTION 2. Congress shall have power to enforce this Article by appropriate legislation, approved February 1, 1863.”

The Constitution was adopted on the 17th of September, 1787, by the convention appointed in pursuance of the Resolution of the Congress of the Confederation, of the 21st February, 1787, and ratified by the conventions of the several States, as follows:

By	Convention of	Delaware	7th December, 1787
”	”	Pennsylvania	12th December, 1787
”	”	New Jersey	18th December, 1787
”	”	Georgia	2d January, 1788
”	”	Connecticut	9th January, 1788
”	”	Massachusetts	6th February, 1788
”	”	Maryland	28th April, 1788
”	”	South Carolina	28th May, 1788
”	”	New Hampshire	21st June, 1788
”	”	Virginia	26th June, 1788
”	”	New York	26th July, 1788
”	”	North Carolina	21st November, 1789
”	”	Rhode Island	29th May, 1790

The first ten of the Amendments were proposed on the 25th September, 1789, and ratified by the constitutional number of States on the 15th December, 1791; the eleventh, on the 8th January, 1798; and the twelfth, on the 25th September, 1804; and the thirteenth, on the —, 186-.

WASHINGTON'S ADDRESSES.

There were not many occasions during his public career that Washington was called upon to exercise his abilities as a writer or an orator; but when such occasion did occur, he always acquitted himself with a degree of perspicuity and modesty which may be said to have been characteristic of himself alone. The addresses which follow mark, as it were, four distinct epochs in the history of this unexampled man: the first, when he accepted the command of the armies by which our national independence was achieved; the second, when he surrendered his commission, after having driven the foes of freedom from his beloved country; the third, when he assumed the responsible duties of President, in which office his high qualities for civil government were as conspicuous as had been his military talents in the field; and fourth, when he resigned his great trust and took leave of the people in his imperishable "Farewell Address," an inestimable legacy, which can not be too frequently conned by every American who values his birthright.

WASHINGTON'S ELECTION AS COMMANDER-IN-CHIEF.

On the 15th of June, 1775, Washington was unanimously elected by Congress to "command all the Continental forces raised, or to be raised, for the defense of American liberty," and when he appeared in his place the next day, the President of that body acquainted him with his election, in a well-timed address, "and requested that he should accept of that employment;" to which Washington replied as follows:

"MR. PRESIDENT: Though I am truly sensible of the high honor done me, in this appointment, yet I feel great distress, from consciousness that my abilities and military experience may not be equal to the extensive and important trust: However, as the Congress desire it, I will enter upon the momentous duty, and exert every power I possess in their service, and for support of the glorious

cause. I beg they will accept my most cordial thanks for this distinguished testimony of their approbation.

“But lest some unlucky event should happen, unfavorable to my reputation, I beg it may be remembered, by every gentleman in the room, that I, this day, declare, with the utmost sincerity, I do not think myself equal to the command I am honored with.

“As to pay, sir, I beg leave to assure the Congress, that, as no pecuniary consideration could have tempted me to accept this arduous employment, at the expense of my domestic ease and happiness, I do not wish to make any profit from it. I will keep an exact account of my expenses. Those, I doubt not, they will discharge, and that is all I desire.”

WASHINGTON’S RESIGNATION OF HIS COMMISSION.

The War of the Revolution having terminated auspiciously, Washington took leave of his officers and army at New York, and repaired to Annapolis, Md., where Congress was then in session. On the 20th of December, 1783, he transmitted a letter to that body, apprising them of his arrival, with the intention of resigning his commission, and desiring to know whether it would be most agreeable to receive it in writing or at an audience. It was immediately resolved that a public entertainment be given him on the 22d, and that he be admitted to an audience on the 23d, at 12 o’clock. Accordingly, he attended at that time, and, being seated, the President informed him that Congress were prepared to receive his communications. Whereupon he arose, and spoke as follows:

“MR. PRESIDENT: The great events on which my resignation depended having at length taken place, I have now the honor of offering my sincere congratulations to Congress, and of presenting myself before them, to surrender into their hands the trust committed to me, and

to claim the indulgence of retiring from the service of my country.

“Happy in the confirmation of our independence and sovereignty, and pleased with the opportunity afforded the United States of becoming a respectable nation, I resign with satisfaction the appointment I accepted with diffidence: a diffidence in my abilities to accomplish so arduous a task; which, however, was superseded by a confidence in the rectitude of our cause, the support of the supreme power of the Union, and the patronage of Heaven.

“The successful termination of the war has verified the most sanguine expectations; and my gratitude for the interposition of Providence, and the assistance I have received from my countrymen, increases with every review of the momentous contest.

“While I repeat my obligations to the army in general, I should do injustice to my own feelings not to acknowledge, in this place, the peculiar services and distinguished merits of the gentlemen who have been attached to my person during the war. It was impossible the choice of confidential officers to compose my family should have been more fortunate. Permit me, sir, to recommend, in particular, those who have continued in the service to the present moment, as worthy of the favorable notice and patronage of Congress.

“I consider it an indispensable duty to close this last act of my official life by commending the interests of our dearest country to the protection of Almighty God, and those who have the superintendence of them to his holy keeping.

“Having now finished the work assigned me, I retire from the great theater of action, and bidding an affectionate farewell to this august body, under whose

orders I have so long acted, I here offer my commission, and take my leave of all the employments of public life.”

WASHINGTON’S INAUGURAL ADDRESS.

In accordance with previous arrangements, General Washington met Congress in New York, on the 30th of April, 1789, for the purpose of being inaugurated as the first President of the United States. The oath of office having been administered by the Chancellor of the State of New York, in presence of the Senate and House of Representatives, the President delivered the following Inaugural Address:

“Fellow-citizens of the Senate and of the House of Representatives:

“Among the vicissitudes incident to life, no event could have filled me with greater anxieties than that of which the notification was transmitted by your order, and received on the 14th day of the present month. On the one hand, I was summoned by my country, whose voice I can never hear but with veneration and love, from a retreat which I had chosen with the fondest predilection, and, in my flattering hopes, with an immutable decision, as the asylum of my declining years—a retreat which was rendered every day more necessary, as well as more dear to me, by the addition of habit to inclination, and of frequent interruptions in my health, to the gradual waste committed on it by time. On the other hand, the magnitude and difficulty of the trust to which the voice of my country called me, being sufficient to awaken, in the wisest and most experienced of her citizens, a distrustful scrutiny into his qualifications, could not but overwhelm with despondency one who, inheriting inferior endowments from nature, and unpracticed in the duties of civil administration, ought to be peculiarly conscious of his own deficiencies. In this conflict of emotion, all I dare aver is, that it has been my faithful study to collect my duty from a just appreciation of every circumstance by

which it might be affected. All I dare hope is, that if, in executing this task, I have been too much swayed by a grateful remembrance of former instances, or by an affectionate sensibility to this transcendent proof of the confidence of my fellow-citizens, and have thence too little consulted my incapacity as well as disinclination for the weighty and untried cares before me, my error will be palliated by the motives which misled me, and its consequences be judged by my country, with some share of the partiality in which they originated.

“Such being the impressions under which I have, in obedience to the public summons, repaired to the present station, it would be peculiarly improper to omit, in this first official act, my fervent supplications to that Almighty Being who rules over the universe—who presides in the councils of nations—and whose providential aids can supply every human defect, that his benediction may consecrate to the liberties and happiness of the people of the United States—a government instituted by themselves for these essential purposes—and may enable every instrument employed in its administration to execute with success the functions allotted to his charge. In tendering this homage to the Great Author of every public and private good, I assure myself that it expresses your sentiments not less than my own; nor those of my fellow-citizens at large, less than either. No people can be bound to acknowledge and adore the invisible hand which conducts the affairs of men more than the people of the United States. Every step by which they have advanced to the character of an independent nation seems to have been distinguished by some token of providential agency; and in the important revolution just accomplished in the system of their united government, the tranquil deliberations, and voluntary consent of so many distinct communities, from which the event has resulted, can not be compared with the means by which most governments have been established

without some return of pious gratitude, along with an humble anticipation of the future blessings which the past seem to presage. These reflections, arising out of the present crisis, have forced themselves too strongly on my mind to be suppressed. You will join with me, I trust, in thinking that there are none under the influence of which the proceedings of a new and free government can more auspiciously commence.

“By the article establishing the executive department, it is made the duty of the President ‘to recommend to your consideration such measures as he shall judge necessary and expedient.’ The circumstances under which I now meet you, will acquit me from not entering into that subject farther than to refer to the great constitutional charter under which you are assembled, and which, in defining your powers, designates the objects to which your attention is to be given. It will be more consistent with those circumstances, and far more congenial with the feelings which actuate me, to substitute, in place of a recommendation of particular measures, the tribute that is due to the talents, the rectitude, and the patriotism which adorn the characters selected to devise and adopt them. In these honorable qualifications I behold the surest pledges that as, on one side, no local prejudices or attachments, no separate views, nor party animosities, will misdirect the comprehensive and equal eye which ought to watch over this great assemblage of communities and interests; so, on another, that the foundations of our national policy will be laid in the pure and immutable principles of private morality; and the preëminence of free government be exemplified by all the attributes which can win the affections of its citizens, and command the respect of the world. I dwell on this prospect with every satisfaction which an ardent love for my country can inspire; since there is no truth more thoroughly established than that there exists in the economy and course of nature an indissoluble union between virtue and happiness—

between duty and advantage—between the genuine maxims of an honest and magnanimous policy and the solid rewards of public prosperity and felicity; since we ought to be no less persuaded that the propitious smiles of Heaven can never be expected on a nation that disregards the eternal rules of order and right, which Heaven itself has ordained; and since the preservation of the sacred fire of liberty and the destiny of the republican model of government are justly considered as deeply, perhaps as finally, staked on the experiment intrusted to the hands of the American people.

“Besides the ordinary objects submitted to your care, it will remain with your judgment to decide how far an exercise of the occasional power delegated by the fifth article of the Constitution is rendered expedient at the present juncture by the nature of objections which have been urged against the system, or by the degree of inquietude which has given birth to them. Instead of undertaking particular recommendations on this subject, in which I could be guided by no lights derived from official opportunities, I shall again give way to my entire confidence in your discernment and pursuit of the public good; for, I assure myself, that while you carefully avoid every alteration which might endanger the benefits of an united and effective government, or which ought to await the future lessons of experience, a reverence for the characteristic rights of freemen, and a regard for the public harmony, will sufficiently influence your deliberations on the question, how far the former can be more impregably fortified, or the latter be safely and advantageously promoted.

“To the preceding observations I have one to add, which will be most properly addressed to the House of Representatives. It concerns myself, and will, therefore, be as brief as possible: When I was first honored with a call into the service of my country, then on the eve of an

arduous struggle for its liberties, the light in which I contemplated my duty required that I should renounce every pecuniary compensation. From this resolution I have in no instance departed, and, being still under the impressions which produced it, I must decline, as inapplicable to myself, any share in the personal emoluments which may be indispensably included in a permanent provision for the executive department, and must accordingly pray that the pecuniary estimates for the station in which I am placed may, during my continuance in it, be limited to such actual expenditures as the public good may be thought to require.

“Having thus imparted to you my sentiments, as they have been awakened by the occasion which brings us together, I shall take my present leave, but not without resorting once more to the benign Parent of the human race, in humble supplication, that since he has been pleased to favor the American people with opportunities for deliberating in perfect tranquillity, and dispositions for deciding with unparalleled unanimity on a form of government for the security of their Union and the advancement of their happiness, so his Divine blessing may be equally conspicuous in the enlarged views, the temperate consultations, and the wise measures, on which the success of this government must depend.”

WASHINGTON'S FAREWELL ADDRESS.

Friends and Fellow-Citizens:

The period for a new election of a citizen to administer the Executive Government of the United States being not far distant, and the time actually arrived when your thoughts must be employed in designating the person who is to be clothed with that important trust, it appears to me proper, especially as it may conduce to a more distinct expression of the public voice, that I should now apprise you of the resolution I have formed, to decline being considered among the number of those out of whom a choice is to be made.

I beg you, at the same time, to do me the justice to be assured that this resolution has not been taken without a strict regard to all the considerations appertaining to the relation which binds a dutiful citizen to his country; and that, in withdrawing the tender of service, which silence in my situation might imply, I am influenced by no diminution of zeal for your future interest; no deficiency of grateful respect for your past kindness, but am supported by a full conviction that the step is compatible with both.

The acceptance of, and continuance hitherto in, the office to which your suffrages have twice called me, have been a uniform sacrifice of inclination to the opinion of duty, and to a deference for what appeared to be your desire. I constantly hoped that it would have been much earlier in my power, consistently with motives which I was not at liberty to disregard, to return to that retirement from which I had been reluctantly drawn. The strength of my inclination to do this, previous to the last election, had even led to the preparation of an address to declare it to you; but mature reflection on the then perplexed and critical posture of our affairs with foreign nations, and the unanimous advice of persons entitled to my confidence, impelled me to abandon the idea.

I rejoice that the state of your concerns, external as well as internal, no longer renders the pursuit of inclination incompatible with the sentiment of duty or propriety; and am persuaded, whatever partiality may be retained for my services, that, in the present circumstances of our country, you will not disapprove my determination to retire.

The impressions with which I undertook the arduous trust were explained on the proper occasion. In the discharge of this trust, I will only say that I have with good intentions contributed toward the organization and administration of the Government the best exertions of which a very fallible judgment was capable. Not unconscious in the outset of the inferiority of my qualifications, experience, in my own eyes—perhaps still more in the eyes of others—has strengthened the motives to diffidence of myself; and every day the increasing weight of years admonishes me more and more, that the shade of retirement is as necessary to me as it will be welcome. Satisfied that if any circumstances have given peculiar value to my services, they were temporary, I have the consolation to believe that, while choice and prudence invite me to quit the political scene, patriotism does not forbid it.

In looking forward to the moment which is intended to terminate the career of my public life, my feelings do not permit me to suspend the deep acknowledgment of that debt of gratitude which I owe to my beloved country for the many honors it has conferred upon me; still more for the steadfast confidence with which it has supported me; and for the opportunities I have thence enjoyed of manifesting my inviolable attachment, by services faithful and persevering, though in usefulness unequal to my zeal. If benefits have resulted to our country from these services, let it always be remembered to your praise, and as an instructive example in our annals that, under circumstances in which the passions, agitated in every direction, were liable to mislead; amid appearances sometimes dubious, vicissitudes of fortune often discouraging; in situations in which, not unfrequently, want of success has countenanced the spirit of criticism—the constancy of your support was the essential prop of the efforts, and a guarantee of the plans, by which they were effected. Profoundly penetrated with this idea, I shall carry it with me to my grave, as a strong incitement to unceasing vows, that Heaven may continue to you the choicest tokens of its beneficence; that your union and brotherly affection may be perpetual; that the free Constitution, which is the work of your hands, may be sacredly maintained; that its administration, in every department, may be stamped with wisdom and virtue; that, in fine, the happiness of the people of these States, under the auspices of liberty, may be made complete by so careful a preservation and so prudent a use of this blessing as will acquire to them the glory of recommending it to the

applause, the affection, and the adoption of every nation which is yet a stranger to it.

Here, perhaps, I ought to stop; but a solicitude for your welfare, which can not end but with my life, and the apprehension of danger natural to that solicitude, urge me, on an occasion like the present, to offer to your solemn contemplation, and to recommend to your frequent review, some sentiments which are the result of much reflection, of no inconsiderable observation, and which appear to me all-important to the permanency of our felicity as a people. These will be afforded to you with the more freedom, as you can only see in them the disinterested warnings of a parting friend, who can possibly have no personal motive to bias his counsel; nor can I forget, as an encouragement to it, your indulgent reception of my sentiments on a former and not dissimilar occasion.

Interwoven as is the love of liberty with every ligament of your hearts, no recommendation of mine is necessary to fortify or confirm the attachment.

The unity of government which constitutes you one people, is also now dear to you. It is justly so; for it is a main pillar in the edifice of your real independence—the support of your tranquillity at home, your peace abroad, of your safety, of your prosperity, of that very liberty which you so highly prize. But as it is easy to foresee that, from different causes and from different quarters, much pains will be taken, many artifices employed, to weaken in your minds the conviction of this truth; as this is the point in your political fortress against which the batteries of internal and external enemies will be most constantly and actively (though often covertly and insidiously) directed, it is of infinite moment that you should properly estimate the immense value of your National Union to your collective and individual happiness; that you should cherish a cordial, habitual, and immovable attachment to it; accustoming yourselves to think and speak of it as of the palladium of your political safety and prosperity; watching for its preservation with jealous anxiety; discountenancing whatever may suggest even a suspicion that it can, in any event, be abandoned; and indignantly frowning upon the first dawning of every attempt to alienate any portion of our country from the rest, or to enfeeble the sacred ties which now link together the various parts.

For this you have every inducement of sympathy and interest. Citizens by birth or choice, of a common country, that country has a right to concentrate your affections. The name of *American*, which belongs to you in your national capacity, must always exalt the just pride of patriotism, more than any appellation derived from local discriminations. With slight shades of difference, you have the same religion, manners, habits, and political principles. You have, in a common cause, fought and triumphed together; the independence and liberty you possess are the work of joint counsels and joint efforts—of common dangers, sufferings and successes.

But these considerations, however powerfully they address themselves to your sensibility, are greatly outweighed by those which apply more immediately to your interest; here every portion of our country finds the most commanding motives for carefully guarding and preserving the union of the whole.

The North, in an unrestrained intercourse with the South, protected by the equal laws of a common government, finds, in the productions of the latter, great additional resources of maritime and commercial enterprise, and precious materials of manufacturing industry. The South, in the same intercourse, benefiting by the agency of the North, sees its agriculture grow and its commerce expand. Turning partly into its own channels the seamen of the North, it finds its particular navigation invigorated; and while it contributes, in different ways, to nourish and increase the general mass of the national navigation, it looks forward to the protection of a maritime strength to which itself is unequally adapted. The East, in like intercourse with the West, already finds—and in the progressive improvement of interior communication by land and water, will more and more find—a valuable vent for the commodities which it brings from abroad or manufactures at home. The West derives from the East supplies requisite to its growth and comfort; and what is, perhaps, of still greater consequence, it must, of necessity, owe the secure enjoyment of indispensable outlets for its own productions, to the weight, influence, and the future maritime strength of the Atlantic side of the Union, directed by an indissoluble community of interest as one nation. Any other tenure by which the West can hold this essential advantage, whether derived from its own separate strength, or from an apostate and unnatural connection with any foreign power, must be intrinsically precarious.

While, then, every part of our country thus feels an immediate and particular interest in UNION, all the parts combined can not fail to find, in the united mass of means and efforts, greater strength, greater resource, proportionately greater security from external danger, a less frequent interruption of their peace by foreign nations; and what is of inestimable value, they must derive from union an exemption from those broils and wars between themselves, which so frequently afflict neighboring countries, not tied together by the same government; which their own rivalry alone would be sufficient to produce, but which opposite foreign alliances, attachments, and intrigues would stimulate and embitter. Hence, likewise, they will avoid the necessity of those overgrown military establishments, which, under any form of government, are inauspicious to liberty, and which are to be regarded as particularly hostile to republican liberty; in this sense it is that your union ought to be considered as a main prop of your liberty, and that the love of the one ought to endear to you the preservation of the other.

These considerations speak a persuasive language to every reflecting and virtuous mind, and exhibit the continuance of the Union as a primary object of patriotic desire. Is there a doubt, whether a common government can embrace so large a sphere? Let experience solve it. To listen to mere speculation, in such a case, were criminal. We are authorized to hope, that a proper organization of the whole, with the auxiliary agency of governments for the respective subdivisions, will afford a happy issue to the experiment. It is well worth a fair and full experiment. With such powerful and obvious motives to Union, affecting all parts of our country, while experience shall not have demonstrated its impracticability, there will always be reason to distrust the patriotism of those who, in any quarter, may endeavor to weaken its bands.

In contemplating the causes which may disturb our Union, it occurs, as a matter of serious concern, that any ground should have been furnished for characterizing parties by geographical discriminations—Northern and Southern, Atlantic and Western—whence designing men may endeavor to excite a belief that there is a real difference of local interests and views. One of the expedients of party to acquire influence within particular districts, is to misrepresent the opinions and aims of other districts. You can not shield yourself too much against the jealousies and heart-burnings

which spring from these misrepresentations; they tend to render alien to each other those who ought to be bound together by fraternal affection. The inhabitants of our western country have lately had a useful lesson on this head; they have seen in the negotiation of the Executive, and in the unanimous ratification by the Senate, of the treaty with Spain, and in the universal satisfaction at that event throughout the United States, a decisive proof how unfounded were the suspicions propagated among them of a policy in the General Government, and in the Atlantic States, unfriendly to their interests in regard to the Mississippi; they have been witnesses to the formation of two treaties—that with Great Britain, and that with Spain—which secure to them every thing they could desire in respect to our foreign relations, toward confirming their prosperity. Will it not be their wisdom to rely for the preservation of these advantages on the Union by which they were procured? Will they not henceforth be deaf to those advisers, if such there be, who would sever them from their brethren, and connect them with aliens?

To the efficacy and permanency of your Union, a Government for the whole is indispensable. No alliance, however strict between the parts, can be an adequate substitute; they must inevitably experience the infractions and interruptions which all alliances, in all time, have experienced. Sensible of this momentous truth, you have improved upon your first essay, by the adoption of a Constitution of Government better calculated than your former for an intimate Union, and for the efficacious management of your common concerns. This Government, the offspring of our own choice, uninfluenced and unawed, adopted upon full investigation and mature deliberation, completely free in its principles, in the distribution of its powers, uniting security with energy, and containing within itself a provision for its own amendment, has a just claim to your confidence and your support. Respect its authority, compliance with its laws, acquiescence in its measures, are duties enjoined by the fundamental maxims of true liberty. The basis of our political systems, is the right of the people to make and to alter their constitutions of Government; but the Constitution which at any time exists, till changed by an explicit and authentic act of the whole people, is sacredly obligatory upon all. The very idea of the power and the right of the people to establish Government, presupposes the duty of every individual to obey the established Government.

All obstructions to the execution of the laws, all combinations and associations, under whatever plausible character, with the real design to direct, control, counteract, or awe the regular deliberation and action of the constituted authorities, are destructive to this fundamental principle, and of fatal tendency. They serve to organize faction, to give it an artificial and extraordinary force, to put in the place of the delegated will of the nation the will of a party, often a small but artful and enterprising minority of the community; and, according to the alternate triumphs of different parties, to make the public administration the mirror of the ill-concerted and incongruous projects of faction, rather than the organ of consistent and wholesome plans, digested by common counsels, and modified by mutual interests.

However combinations and associations of the above description may now and then answer popular ends, they are likely, in the course of time and things, to become potent engines, by which cunning, ambitious, and unprincipled men, will be enabled to subvert the power of the people, and to usurp for themselves the reins of Government; destroying, afterward, the very engines which had lifted them to unjust dominion.

Toward the preservation of your Government, and the permanency of your present happy state, it is requisite, not only that you steadily discountenance irregular oppositions, to its acknowledged authority, but also that you resist, with care, the spirit of innovation upon its principles, however specious the pretexts. One method of assault may be to effect, in the forms' Constitution, alterations which will impair the energy of the system, and thus to undermine what can not be directly overthrown. In all the changes to which you may be invited, remember that time and habit are at least as necessary to fix the true character of Governments as of other human institutions; that experience is the surest standard by which to test the real tendency of the existing constitution of a country; that facility in changes, upon the credit of mere hypothesis and opinion, exposes to perpetual change, from the endless variety of hypothesis and opinion; and remember, especially, that for the efficient management of your common interests, in a country so extensive as ours, a Government of as much vigor as is consistent with the perfect security of liberty, is indispensable. Liberty itself will find in such a Government, with powers properly distributed and adjusted, its surest guardian. It is, indeed, little else than a name, where the

Government is too feeble to withstand the enterprises of faction, to confine each member of the society within the limits prescribed by the laws, and to maintain all in the secure and tranquil enjoyment of the rights of person and property.

I have already intimated to you the danger of parties in the State, with particular reference to the founding of them on geographical discriminations. Let me now take a more comprehensive view, and warn you, in the most solemn manner, against the baneful effects of the spirit of party generally.

This spirit, unfortunately, is inseparable from our nature, having its root in the strongest passions of the human mind. It exists under different shapes, in all Governments, more or less stifled, controlled, or repressed; but in those of the popular form it is seen in its greatest rankness, and is truly their worst enemy.

The alternate domination of one faction over another, sharpened by the spirit of revenge, natural to party dissension, which, in different ages and countries, has perpetrated the most horrid enormities, is itself a frightful despotism. But this leads, at length, to a more formal and permanent despotism. The disorders and miseries which result, gradually incline the minds of men to seek security and repose in the absolute power of an individual; and, sooner or later, the chief of some prevailing faction, more able or more fortunate than his competitors, turns this disposition to the purposes of his own elevation on the ruins of public liberty.

Without looking forward to an extremity of this kind, (which, nevertheless, ought not to be entirely out of sight,) the common and continual mischiefs of the spirit of party are sufficient to make it the interest and duty of a wise people to discourage and restrain it.

It serves always to distract the public councils, and enfeeble the public administration. It agitates the community with ill-founded jealousies and false alarms; kindles the animosities of one part against another; foment, occasionally, riot and insurrection. It opens the door to foreign influence and corruption, which find a facilitated access to the Government itself, through the channels of party passions. Thus the policy and the will of one country are subjected to the policy and will of another.

There is an opinion that parties, in free countries, are useful checks upon the administration of the Government, and serve to keep alive the spirit of liberty. This, within certain limits, is probably true; and in Governments of a monarchical cast, patriotism may look with indulgence, if not with favor, upon the spirit of party. But in those of the popular character, in Governments purely elective, it is a spirit not to be encouraged. From their natural tendency, it is certain there will always be enough of that spirit for every salutary purpose. And there being constant danger of excess, the effort ought to be, by force of public opinion, to mitigate and assuage it. A fire not to be quenched, it demands a uniform vigilance to prevent its bursting into a flame, lest, instead of warming, it should consume.

It is important, likewise, that the habits of thinking, in a free country, should inspire caution in those intrusted with its administration to confine themselves within their respective constitutional spheres, avoiding in the exercise of one department, to encroach upon another. The spirit of encroachment tends to consolidate the powers of all the departments in one, and thus to create, whatever the form of Government, a real despotism. A just estimate of that love of power, and proneness to abuse it which predominates in the human heart, is sufficient to satisfy us of the truth of this position. The necessity of reciprocal checks in the exercise of political power, by dividing and distributing it into different depositories, and constituting each the guardian of public weal, against invasions by the others, has been evinced by experiments, ancient and modern, some of them in our own country, and under our own eyes. To preserve them must be as necessary as to institute them. If, in the opinion of the people, the distribution or modification of the constitutional powers be, in any particular, wrong, let it be corrected by an amendment in the way which the Constitution designates. But let there be no change by usurpation; for though this, in one instance, may be the instrument of good, it is the customary weapon by which free Governments are destroyed. The precedent must always greatly overbalance, in permanent evil, any partial or transient benefit which the use can, at any time, yield.

Of all the dispositions and habits which lead to political prosperity, religion and morality are indispensable supports. In vain would that man claim the tribute of patriotism, who should labor to subvert these great pillars of human happiness, these firmest props of the duties of men and

citizens. The mere politician, equally with the pious man, ought to respect and to cherish them. A volume could not trace all their connections with private and public felicity. Let it simply be asked, Where is the security for property, for reputation, for life, if the sense of religious obligation *desert* the oaths which are the instruments of investigation in the courts of justice? And let us with caution indulge the supposition, that morality can be maintained without religion. Whatever may be conceded to the influence of refined education on minds of peculiar structure, reason and experience both forbid us to expect that national morality can prevail in exclusion of religious principles.

It is substantially true, that virtue or morality is a necessary spring of popular Government. The rule, indeed, extends with more or less force to every species of free Government. Who, that is a sincere friend to it, can look with indifference upon attempts to shake the foundation of the fabric?

Promote, then, as an object of primary importance, institutions for the general diffusion of knowledge. In proportion as the structure of a Government gives force to public opinion, it is essential that public opinion should be enlightened.

As a very important source of strength and security, cherish public credit. One method to preserve it is to use it as sparingly as possible; avoiding occasions of expense by cultivating peace, but remembering also that timely disbursements, to prepare for danger, frequently prevent much greater disbursements to repel it; avoiding, likewise, the accumulation of debt, not only by shunning occasion of expense, but by vigorous exertions in time of peace to discharge the debts which unavoidable wars may have occasioned, not ungenerously throwing upon posterity the burden which we ourselves ought to bear. The execution of these maxims belong to your representatives, but it is necessary that public opinion should coöperate. To facilitate to them the performance of their duty, it is essential that you should practically bear in mind, that toward the payment of debts there must be revenue; that to have revenue there must be taxes; that no taxes can be devised which are not more or less inconvenient and unpleasant; that the intrinsic embarrassment inseparable from the selection of the proper objects (which is always a choice of difficulties) ought to be a decisive motive for a candid construction of the conduct of the Government in making it, and for

a spirit of acquiescence in the measures for obtaining revenue, which the public exigencies may at that time dictate.

Observe good faith and justice toward all nations; cultivate peace and harmony with all; religion and morality enjoin this conduct: and can it be that good policy does not equally enjoin it? It will be worthy of a free, enlightened, and, at no distant period, a great nation, to give to mankind the magnanimous and too novel example of a people always guided by an exalted justice and benevolence. Who can doubt that, in the course of time and things, the fruits of such a plan would richly repay any temporary advantages which might be lost by a steady adherence to it? Can it be that Providence has not connected the permanent felicity of a nation with its virtue? The experiment, at least, is recommended by every sentiment which ennobles human nature. Alas! is it to be rendered impossible by its vices?

In the execution of such a plan, nothing is more essential than that permanent inveterate antipathies against particular nations, and passionate attachment for others, should be excluded; and that, in place of them, just and amicable feelings toward all should be cultivated. The nation which indulges toward another an habitual hatred, or an habitual fondness, is, in some degree, a slave. It is a slave to its animosity or its affection, either of which is sufficient to lead it astray from its duty and its interest. Antipathy in one nation against another, disposes each more readily to offer insult and injury, to lay hold of slight causes of umbrage, and to be haughty and intractable when accidental or trifling occasions of dispute occur. Hence frequent collisions, obstinate, envenomed, and bloody contests. The nation, prompted by ill-will and resentment, sometimes impels to war the Government contrary to the best calculations of policy. The Government sometimes participates in the national propensity, and adopts, through passion, what reason would reject; at other times it makes the animosity of the nation subservient to projects of hostility, instigated by pride, ambition, and other sinister and pernicious motives. The peace often, sometimes perhaps the liberty, of nations has been the victim.

So, likewise, a passionate attachment of one nation to another produces a variety of evils. Sympathy for the favorite nation, facilitating the illusion of an imaginary common interest, in cases where no real common interest exists, and infusing into one the enmities of the other, betrays the former into a participation in the quarrels and wars of the latter, without adequate

inducement or justification. It leads also to concessions to the favorite nation of privileges denied to others, which is apt doubly to injure the nation making the concessions; by unnecessarily parting with what ought to have been retained, and by exciting jealousy, ill-will, and a disposition to retaliate in the parties from whom equal privileges are withheld; and it gives to ambitious, corrupted, or deluded citizens (who devote themselves to the favorite nation) facility to betray, or sacrifice the interest of their own country, without odium, sometimes even with popularity; gilding with the appearance of virtuous sense of obligation, a commendable deference for public opinion, or a laudable zeal for public good the base or foolish compliances of ambition, corruption, or infatuation.



JAMES MADISON.

As avenues to foreign influence, in innumerable ways, such attachments are particularly alarming to the truly enlightened and independent patriot. How many opportunities do they afford to tamper with domestic factions, to practice the art of seduction, to mislead public opinion, to influence or awe the public councils! Such an attachment of a small or weak, toward a great and powerful nation, dooms the former to be the satellite of the latter.

Against the insidious wiles of foreign influence (I conjure you to believe me, fellow-citizens) the jealousy of a free people ought to be *constantly* awake; since history and experience prove that foreign influence

is one of the most baneful foes of Republican Government. But that jealousy, to be useful, must be impartial, else it becomes the instrument of the very influence to be avoided, instead of a defense against it. Excessive partiality for one foreign nation, and excessive dislike for another, cause those whom they actuate to see danger only on one side, and serve to veil, and even second the arts of influence on the other. Real patriots, who may resist the intrigues of the favorite, are liable to become suspected and odious; while its tools and dupes usurp the applause and confidence of the people to surrender their interests.

The great rule of conduct for us, in regard to foreign nations, is, in extending our commercial relations, to have with them as little political connection as possible. So far as we have already formed engagements, let them be fulfilled with perfect good faith. Here let us stop.

Europe has a set of primary interests, which to us have none, or a very remote relation. Hence she must be engaged in frequent controversies, the causes of which are essentially foreign to our concerns. Hence, therefore, it must be unwise in us to implicate ourselves, by artificial ties, in the ordinary vicissitudes of her politics, or the ordinary combinations and collisions of her friendships or enmities.

Our detached and distant situation invites and enables us to pursue a different course. If we remain one people, under an efficient Government, the period is not far off when we may defy material injury from external annoyance; when we may take such an attitude as will cause the neutrality we may at any time resolve upon, to be scrupulously respected; when belligerent nations, under the impossibility of making acquisitions upon us, will not lightly hazard the giving us provocation; when we may choose peace or war, as our interest, guided by justice, shall counsel.

Why forego the advantages of such a peculiar situation? Why quit our own to stand upon foreign ground? Why, by interweaving our destiny with that of any part of Europe, entangle our peace and prosperity in the toils of European ambition, rivalship, interest, humor, or caprice?

It is our true policy to steer clear of permanent alliances with any portion of the foreign world; so far, I mean, as we are now at liberty to do it; for let me not be understood as capable of patronizing infidelity to existing engagements. I hold the maxim no less applicable to public than to private

affairs, that honesty is always the best policy. I repeat it, therefore, let those engagements be observed in their genuine sense. But, in my opinion, it is unnecessary, and would be unwise to extend them.

Taking care always to keep ourselves, by suitable establishments, on a respectable defensive posture, we may safely trust to temporary alliances for extraordinary emergencies.

Harmony and a liberal intercourse with all nations, are recommended by policy, humanity, and interest. But even our commercial policy should hold an equal and impartial hand; neither seeking nor granting exclusive favors or preferences; consulting the natural course of things; diffusing and diversifying, by gentle means, the streams of commerce, but forcing nothing; establishing, with powers so disposed, in order to give trade a stable course, to define the rights of our merchants, and to enable the Government to support conventional rules of intercourse, the best that present circumstances and mutual opinions will permit, but temporary, and liable to be, from time to time, abandoned or varied, as experience and circumstances shall dictate; constantly keeping in view, that it is folly in one nation to look for disinterested favors from another; that it must pay, with a portion of its independence, for whatever it may accept under that character; that by such acceptance it may place itself in the condition of having given equivalents for nominal favors, and yet of being reproached with ingratitude for not giving more. There can be no greater error than to expect, or calculate upon, real favors from nation to nation. It is an illusion which experience must cure, which a just pride ought to discard.

In offering to you, my countrymen, these counsels of an old and affectionate friend, I dare not hope they will make the strong and lasting impression I could wish—that they will control the usual current of the passions, or prevent our nation from running the course which has hitherto marked the destiny of nations—but if I may even flatter myself that they may be productive of some partial benefit, some occasional good, that they may now and then recur to moderate the fury of party spirit, to warn against the mischief of foreign intrigues, to guard against the impostures of pretended patriotism, this hope will be a full recompense for the solicitude for your welfare by which they have been dictated.

How far, in the discharge of my official duties, I have been guided by the principles which have been delineated, the public records, and other evidences of my conduct, must witness to you and the world. To myself the assurance of my own conscience is, that I have at least believed myself to be guided by them.

In relation to this still subsisting war in Europe, my proclamation of the 22d of April, 1793, is the index to my plan. Sanctioned by your approving voice, and by that of your Representatives in both Houses of Congress, the spirit of that measure has continually governed me, uninfluenced by any attempts to deter or divert me from it.

After deliberate examination, with the aid of the best lights I could obtain, I was well satisfied that our country, under all the circumstances of the case, had a right to take—and was bound in duty and interest to take—a neutral position. Having taken it, I determined, as far as should depend upon me, to maintain it with moderation, perseverance, and firmness.

The considerations which respect the right to hold this conduct, it is not necessary on this occasion to detail. I will only observe that, according to my understanding of the matter, that right, so far from being denied by any of the belligerent powers, has been virtually admitted by all.

The duty of holding a neutral conduct may be inferred, without any thing more, from the obligation which justice and humanity impose on every nation, in cases in which it is free to act, to maintain inviolate the relations of peace and amity toward other nations.

The inducements of interest, for observing that conduct, will best be referred to your own reflections and experience. With me, a predominant motive has been to endeavor to gain time to our country to settle and mature its yet recent institutions, and to progress, without interruption, to that degree of strength and consistency which is necessary to give it, humanly speaking, the command of its own fortunes.

Though in reviewing the incidents of my administration, I am unconscious of intentional error, I am, nevertheless, too sensible of my defects not to think it probable that I may have committed many errors. Whatever they may be, I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope, that

my country will never cease to view them with indulgence; and that, after forty-five years of my life dedicated to its service with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the mansions of rest.

Relying on its kindness in this, as in other things, and actuated by that fervent love toward it which is so natural to a man who views in it the native soil of himself and his progenitors, I anticipate, with pleasing expectation, that retreat in which I promise myself to realize, without alloy, the sweet enjoyment of partaking, in the midst of my fellow-citizens, the benign influence of good laws under a free Government—the ever-favorite object of my heart—and the happy reward, as I trust, of our mutual cares, labors, and dangers.

GEORGE WASHINGTON.

UNITED STATES, 17th September, 1796.

MISSOURI COMPROMISE OF 1820.

When Missouri applied for admission into the Union, a proposition was started in Congress to prohibit the introduction of slavery into the new State. This had the effect of arraying the South against the North—the slaveholding against the non-slaveholding States—and the whole subject of slavery became the exciting topic of debate throughout the country. The question was finally settled by a *Compromise*, which tolerated slavery in Missouri, but otherwise prohibited it in all the territory of the United States north and west of the northern limits of Arkansas.

As the principle then settled has often since been the prolific source of much sectional controversy and angry debate, and as it is desirable that every one should be familiar with the *real* provisions of the act by which Missouri was admitted, we have concluded to insert here so much of the law as is necessary to a full understanding of the subject. All the sections, except the following, relate entirely to the formation of the Missouri territory, in the usual form of territorial bills:

“SEC. 8. That in all that territory ceded by France to the United States, under the name of Louisiana, which lies north of thirty-six degrees and thirty minutes north latitude, not included within the limits of the State contemplated by this act, slavery and involuntary servitude, otherwise than in the punishment of crimes, whereof the parties shall be duly convicted, shall be, and is hereby, forever prohibited. *Provided always*, That any person escaping into the same, from whom labor or service is lawfully claimed, in any State or Territory of the United States, such fugitive may be lawfully reclaimed and conveyed to the person claiming his or her labor or service as aforesaid.”

FUGITIVE SLAVE LAW OF 1850.

An Act to amend, and supplementary to, the Act entitled, "An Act respecting Fugitives from Justice, and persons escaping from the Service of their Masters," and approved February 12, 1793.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the persons who have been, or may hereafter be, appointed Commissioners, in virtue of any Act of Congress, by the Circuit Courts of the United States, and who, in consequence of such appointment, are authorized to exercise the powers that any justice of the peace, or other magistrate of any of the United States, may exercise in respect to offenders for any crime or offense against the United States, by arresting, imprisoning, or bailing the same, under, and by virtue of, the thirty-third section of the act of the twenty-fourth of September, seventeen hundred and eighty-nine, entitled, "An Act to establish the judicial courts of the United States," shall be, and are hereby, authorized and required to exercise and discharge all the powers and duties conferred by this Act.

SEC. 2. That the Superior Court of each organized Territory of the United States shall have the same power to appoint Commissioners to take acknowledgments of bail and affidavits, and to take depositions of witnesses in civil causes, which is now possessed by the Circuit Court of the United States; and all Commissioners who shall hereafter be appointed for such purposes by the Superior Court of any organized Territory of the United States shall possess all the powers, and exercise all the duties, conferred by law upon the Commissioners appointed by the Circuit Courts of the United States for similar purposes, and shall moreover exercise and discharge all the powers and duties conferred by this Act.

SEC. 3. That the Circuit Courts of the United States, and the Superior Courts of each organized territory of the United States, shall, from time to time, enlarge the number of Commissioners with a view to afford

reasonable facilities to reclaim fugitives from labor, and to the prompt discharge of the duties imposed by this Act.

SEC. 4. That the Commissioners above named shall have concurrent jurisdiction with the Judges of the Circuit and District Courts of the United States, in their respective circuits and districts within the several States, and the Judges of the Superior Courts of the territories severally and collectively; in term time and vacation; and shall grant certificates to such claimants, upon satisfactory proof being made, with authority to take and remove such fugitives from service or labor, under the restrictions herein contained, to the State or Territory from which such persons may have escaped or fled.

SEC. 5. That it shall be the duty of all marshals and deputy marshals to obey and execute all warrants and precepts issued under the provisions of this act when to them directed; and should any marshal or deputy marshal refuse to receive such warrant, or other process, when tendered, or to use all proper means diligently to execute the same, he shall, on conviction thereof, be fined in the sum of one thousand dollars, to the use of such claimant, on the motion of such claimant, by the Circuit or District Court for the district of such marshal; and after the arrest of such fugitive, by such marshal or his deputy, or while at any time in his custody, under the provisions of this act, should such fugitive escape, whether with or without the assent of such marshal or his deputy, such marshal shall be liable, on his official bond, to be prosecuted, for the benefit of such claimant, for the full value of the service or labor of said fugitive in the State, Territory, or district whence he escaped; and, the better to enable said Commissioners, when thus appointed, to execute their duties faithfully and efficiently, in conformity with the requirements of the Constitution of the United States, and of this Act, they are hereby authorized and empowered, within their counties respectively, to appoint, in writing under their hands, any one or more suitable persons, from time to time, to execute all such warrants and other process as may be issued by them in the lawful performance of their respective duties; with authority to such Commissioners, or the persons to be appointed by them, to execute process as aforesaid, to summon and call to their aid the bystanders, or *posse commitatus* of the proper county, when necessary to insure a faithful observance of the clause of the Constitution referred to, in conformity with the provisions of this Act; and all good

citizens are commanded to aid and assist in the prompt and efficient execution of this law whenever their services may be required, as aforesaid, for that purpose; and said warrants shall run, and be executed by said officers, anywhere in the State within which they are issued.

SEC. 6. That when a person held to service or labor in any State or Territory of the United States has heretofore or shall hereafter escape into another State or Territory of the United States, the person or persons to whom such service or labor may be due, or his, her, or their agent or attorney, duly authorized by power of attorney, in writing acknowledged and certified under the seal of some legal officer or Court of the State or Territory in which the same may be executed, may pursue and reclaim such fugitive person, either by procuring a warrant from some one of the Courts, Judges, or Commissioners aforesaid, of the proper circuit, district, or county, for the apprehension of such fugitive from service or labor, or by seizing and arresting such fugitive where the same can be done without process, and by taking or causing such person to be taken forthwith before such Court, Judge, or Commissioner, whose duty it shall be to hear and determine the case of such claimant in a summary manner; and, upon satisfactory proof being made, by deposition or affidavit in writing, to be taken and certified by such Court, Judge, or Commissioner, or by other satisfactory testimony, duly taken and certified by some Court, Magistrate, Justice of the Peace, or other legal officer authorized to administer an oath and take depositions under the laws of the State or Territory from which such person owing service or labor may have escaped, with a certificate of such magistracy, or other authority as aforesaid, with the seal of the proper Court or officer thereto attached, which seal shall be sufficient to establish the competency of the proof, and with proof, also by affidavit, of the identity of the person whose service or labor is claimed to be due as aforesaid, that the person so arrested does in fact owe service or labor to the person or persons claiming him or her, in the State or Territory from which such fugitive may have escaped as aforesaid, and that said person escaped, to make out and deliver to said claimant, his or her agent or attorney, a certificate setting forth the substantial facts as to the service or labor due from such fugitive to the claimant, and of his or her escape from the State or Territory in which such service or labor was due to the State or Territory in which he or she was arrested, with authority to such claimant, or his or her agent or attorney, to use such reasonable force and restraint as may be

necessary, under the circumstances of the case, to take and remove such fugitive person back to the State or Territory whence he or she may have escaped as aforesaid. In no trial or hearing under this Act shall the testimony of such alleged fugitive be admitted in evidence; and the certificates in this and the first [fourth] section mentioned shall be conclusive of the right of the person or persons in whose favor granted to remove such fugitive to the State or Territory from which he escaped, and shall prevent all molestation of such person or persons by any process issued by any Court, Judge, Magistrate, or other person whomsoever.

SEC. 7. That any person who shall knowingly and willingly obstruct, hinder, or prevent such claimant, his agent or attorney, or any person or persons lawfully assisting him, her, or them, from arresting such a fugitive from service or labor, either with or without process as aforesaid, or shall rescue or attempt to rescue such fugitive from service or labor from the custody of such claimant, his or her agent or attorney, or other person or persons lawfully assisting as aforesaid, when so arrested pursuant to the authority herein given and declared, or shall aid, abet, or assist such person so owing service or labor as aforesaid, directly or indirectly, to escape from such claimant, his agent or attorney, or other person or persons legally authorized as aforesaid; or shall harbor or conceal such fugitive so as to prevent the discovery and arrest of such person, after notice or knowledge of the fact that such person was a fugitive from service or labor as aforesaid, shall, for either of said offenses, be subject to a fine not exceeding one thousand dollars, and imprisonment not exceeding six months, by indictment and conviction before the District Court of the United States for the district in which such offense may have been committed, or before the proper court of criminal jurisdiction, if committed within any one of the organized Territories of the United States, and shall moreover forfeit and pay, by way of civil damages to the party injured by such illegal conduct, the sum of one thousand dollars for each fugitive so lost as aforesaid, to be recovered as aforesaid, to be recovered by action of debt in any of the District or Territorial Courts aforesaid, within whose jurisdiction the said offense may have been committed.

SEC. 8. That the marshals, their deputies, and the clerks of the said District and Territorial Courts, shall be paid for their services the like fees as may be allowed to them for similar services in other cases; and where

such services are rendered exclusively in the arrest, custody, and delivery of the fugitive to the claimant, his or her agent or attorney, or where such supposed fugitive may be discharged out of custody for the want of sufficient proof as aforesaid, then such fees are to be paid in the whole by such claimant, his agent or attorney; and in all cases where the proceedings are before a Commissioner, he shall be entitled to a fee of ten dollars in full for his services in each case, upon the delivery of the said certificate to the claimant, his or her agent or attorney; or a fee of five dollars in cases where the proof shall not, in the opinion of such Commissioner, warrant such certificate and delivery, inclusive of all services incident to such arrest and examination, to be paid in either case by the claimant, his or her agent or attorney. The person or persons authorized to execute the process to be issued by such Commissioner for the arrest and detention of fugitives from service or labor as aforesaid shall also be entitled to a fee of five dollars each for each person he or they may arrest and take before any such Commissioner, as aforesaid, at the instance and request of such claimant, with such other fees as may be deemed reasonable by such Commissioners for such other additional services as may be necessarily performed by him or them, such as attending at the examination, keeping the fugitive in custody, providing him with food and lodging during his detention and until the final determination of such Commissioner; and, in general, for performing such other duties as may be required by such claimant, his or her attorney or agent, or Commissioner in the premises. Such fees to be made up in conformity with the fees usually charged by the officers of the courts of justice within the proper district or county, as near as may be practicable, and paid by such claimants, their agents or attorneys, whether such supposed fugitives from service or labor be ordered to be delivered to such claimants by the final determination of such Commissioner or not.

SEC. 9. That, upon affidavit made by the claimant of such fugitive, his agent or attorney, after such certificate has been issued, that he has reason to apprehend that such fugitive will be rescued by force from his or her possession before he can be taken beyond the limits of the State in which the arrest is made, it shall be the duty of the officer making the arrest to retain such fugitive in his custody, and to remove him to the State whence he fled, and there to deliver him to said claimant, his agent or attorney. And, to this end, the officer aforesaid is hereby authorized and required to employ so many persons as he may deem necessary to overcome such

force, and to retain them in his service so long as circumstances may require. The said officer and his assistants, while so employed, to receive the same compensation and to be allowed the same expenses as are now allowed by law for transportation of criminals, to be certified by the Judge of the district within which the arrest is made, and paid out of the treasury of the United States.

SEC. 10. That when any person held to service or labor in any State or Territory, or in the District of Columbia, shall escape therefrom, the party to whom such service or labor may be due, his, her, or their agent or attorney, may apply to any court of record therein, or Judge thereof in vacation, and make satisfactory proof to such court, or Judge in vacation, of the escape aforesaid, and that the person escaping owed service or labor to such party. Whereupon the court shall cause a record to be made of the matters so proved, and also a general description of the person so escaping, with such convenient certainty as may be; and a transcript of such record authenticated by the attestation of the clerk and of the seal of the said court, being produced in any other State, Territory, or District in which the person so escaping may be found, and, being exhibited to any Judge, Commissioner, or other officer authorized by the law of the United States to cause persons escaping from service or labor to be delivered up, shall be held and taken to be full and conclusive evidence of the fact of the escape, and that the service or labor of the person escaping is due to the party in such record mentioned. And upon the production, by the said party, of other and further evidence, if necessary, either oral or by affidavit, in addition to what is contained in the said record of the identity of the person escaping, he or she shall be delivered up to the claimant. And the said Court, Commissioner, Judge, or other person authorized by this Act to grant certificates to claimants of fugitives, shall, upon the production of the record and other evidences aforesaid, grant to such claimant a certificate of his right to take any such person identified and proved to be owing service or labor as aforesaid, which shall authorize such claimant to seize or arrest and transport such person to the State or Territory from which he escaped: *Provided*, That nothing herein contained shall be construed as requiring the production of a transcript of such record as evidence as aforesaid. But, in its absence, the claim shall be heard and determined upon other satisfactory proofs competent in law.

Approved September 18, 1850.

[The above law was repealed by the 38th Congress, 1864.]

KANSAS AND NEBRASKA ACT OF 1854.

An Act to Organize the Territories of Nebraska and Kansas.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That all that part of the territory of the United States included within the following limits, except such portions thereof as are hereinafter expressly exempted from the operations of this Act, to wit: beginning at a point on the Missouri River where the fortieth parallel of north latitude crosses the same; thence west on said parallel to the east boundary of the Territory of Utah on the summit of the Rocky Mountains; thence on said summit northward to the forty-ninth parallel of north latitude; thence east on said parallel to the western boundary of the Territory of Minnesota; thence southward on said boundary to the Missouri River; thence down the main channel of said river to the place of beginning, be, and the same is hereby, created into a temporary government by the name of the Territory of Nebraska; and when admitted as a State or States, the said Territory, or any portion of the same, shall be received into the Union with or without slavery, as their Constitution may prescribe at the time of their admission: *Provided,* That nothing in this Act contained shall be construed to inhibit the Government of the United States from dividing said Territory into two or more Territories, in such manner and at such times as Congress shall deem convenient and proper, or from attaching any portion of said Territory to any other State or Territory of the United States: *Provided, further,* That nothing in this Act contained shall be construed to impair the rights of person or property now pertaining to the Indians in said Territory, so long as such rights shall remain unextinguished by treaty between the United States and such Indians, or to include any Territory which, by treaty with any Indian tribe, is not, without the consent of said tribe, to be included within the Territorial limits or jurisdiction of any State or Territory; but all such Territory shall be excepted out of the boundaries, and constitute no part of the Territory of Nebraska, until said tribe shall signify their assent to the President of the United States to be included within the said Territory of Nebraska, or to affect the authority of

the Government of the United States to make any regulations respecting such Indians, their lands, property or other rights, by treaty, law, or otherwise, which it would have been competent to the Government to make if this Act had never passed.

SEC. 2. That the executive power and authority in and over said Territory of Nebraska shall be vested in a Governor, who shall hold his office for four years, and until his successor shall be appointed and qualified, unless sooner removed by the President of the United States. The Governor shall reside within said Territory, and shall be commander-in-chief of the militia thereof. He may grant pardons and respites for offenses against the laws of said Territory, and reprieves for offenses against the laws of the United States, until the decision of the President can be made known thereon; he shall commission all officers who shall be appointed to office under the laws of the said Territory, and shall take care that the laws be faithfully executed.

SEC. 3. That there shall be a Secretary of said Territory, who shall reside therein, and hold his office for five years, unless sooner removed by the President of the United States; he shall record and preserve all the laws and proceedings of the Legislative Assembly hereinafter constituted, and all the acts and proceedings of the Governor in his executive department; he shall transmit one copy of the laws and journals of the Legislative Assembly within thirty days after the end of each session, and one copy of the executive proceedings and official correspondence semi-annually, on the first days of January and July in each year, to the President of the United States, and two copies of the laws to the President of the Senate and to the Speaker of the House of Representatives, to be deposited in the libraries of Congress; and, in case of the death, removal, resignation, or absence of the Governor from the Territory, the Secretary shall be, and he is hereby duly authorized and required to execute and perform all the powers and duties of the Governor during such vacancy or absence, or until another Governor shall be duly appointed and qualified to fill such vacancy.

SEC. 4. That the legislative power and authority of said Territory shall be vested in the Governor and a Legislative Assembly. The Legislative Assembly shall consist of a Council and House of Representatives. The Council shall consist of thirteen members, having the qualifications of voters, as hereinafter prescribed, whose term of service shall continue two

years. The House of Representatives shall, at its first session, consist of twenty-six members, possessing the same qualifications as prescribed for members of the Council, and whose term of service shall continue one year. The number of Representatives may be increased by the Legislative Assembly, from time to time, in proportion to the increase of qualified voters: *Provided*, That the whole number shall never exceed thirty-nine; an apportionment shall be made as nearly equal as practicable, among the several counties or districts, for the election of the Council and Representatives, giving each section of the Territory representation in the ratio of its qualified voters as nearly as may be. And the members of the Council and of the House of Representatives shall reside in, and be inhabitants of, the district or county, or counties, for which they may be elected respectively. Previous to the first election, the Governor shall cause a census or enumeration of the inhabitants and qualified voters of the several counties and districts of the Territory, to be taken by such persons and in such mode as the Governor shall designate and appoint; and the persons so appointed shall receive a reasonable compensation therefor. And the first election shall be held at such times and places, and be conducted in such manner, both as to the persons who shall superintend such election and the returns thereof, as the Governor shall appoint and direct; and he shall at the same time declare the number of members of the Council and House of Representatives to which each of the counties or districts shall be entitled under this Act. The persons having the highest number of legal votes in each of said Council districts for members of the Council, shall be declared by the Governor to be duly elected to the Council; and the persons having the highest number of legal votes for the House of Representatives, shall be declared by the Governor to be duly elected members of said House: *Provided*, That, in case two or more persons voted for shall have an equal number of votes, and in case a vacancy shall otherwise occur in either branch of the Legislative Assembly, the Governor shall order a new election; and the persons thus elected to the Legislative Assembly shall meet at such place and on such day as the Governor shall appoint; but thereafter, the time, place, and manner of holding and conducting all elections by the people, and the apportioning the representation in the several counties or districts to the Council and House of Representatives, according to the number of qualified voters, shall be prescribed by law, as well as the day of the commencement of the regular sessions of the

Legislative Assembly: *Provided*, That no session in any one year shall exceed the term of forty days, except the first session, which may continue sixty days.

SEC. 5. That every free white male inhabitant, above the age of twenty-one years, who shall be an actual resident of said Territory, and shall possess the qualifications hereinafter prescribed, shall be entitled to vote at the first election, and shall be eligible to any office within the said Territory; but the qualifications of voters, and of holding office, at all subsequent elections, shall be such as shall be prescribed by the Legislative Assembly: *Provided*, That the right of suffrage and of holding office shall be exercised only by citizens of the United States and those who shall have declared on oath their intention to become such, and shall have taken an oath to support the Constitution of the United States and the provisions of this act: *And provided, further*, That no officer, soldier, seaman, or marine, or other person in the army or navy of the United States, or attached to troops in the service of the United States, shall be allowed to vote or hold office in said Territory, by reason of being on service therein.

SEC. 6. That the legislative power of the Territory shall extend to all rightful subjects of legislation consistent with the Constitution of the United States and the provisions of this Act; but no law shall be passed interfering with the primary disposal of the soil; no tax shall be imposed upon the property of the United States; nor shall the lands or other property of non-residents be taxed higher than the lands or other property of residents. Every bill which shall have passed the Council and House of Representatives of said Territory, shall, before it become a law, be presented to the Governor of the Territory; if he approve, he shall sign it; but if not, he shall return it, with his objections, to the House in which it originated, who shall enter the objections at large on their journal, and proceed to reconsider it. If, after such reconsideration, two-thirds of that House shall agree to pass the bill, it shall be sent, together with the objections, to the other House, by which it shall likewise be reconsidered, and if approved by two-thirds of that House, it shall become a law. But in all such cases the votes of both Houses shall be determined by yeas and nays, to be entered on the journal of each House respectively. If any bill shall not be returned by the Governor within three days (Sundays excepted) after it shall have been presented to him, the same shall be a law in like manner as if he had signed it, unless the

Assembly, by adjournment, prevent its return, in which case it shall not be a law.

SEC. 7. That all township, district, and county officers, not herein otherwise provided for, shall be appointed or elected, as the case may be, in such manner as shall be provided by the Governor and Legislative Assembly of the Territory of Nebraska. The Governor shall nominate, and, by and with the advice and consent of the Legislative Council, appoint all officers not herein otherwise provided for; and in the first instance the Governor alone may appoint all said officers, who shall hold their offices until the end of the first session of the Legislative Assembly; and shall lay off the necessary districts for members of the Council and House of Representatives, and all other officers.

SEC. 8. That no member of the Legislative Assembly shall hold, or be appointed to any office which may have been created, or the salary or emoluments of which shall have been increased, while he was a member, during the term for which he was elected, and for one year after the expiration of such term; but this restriction shall not be applicable to members of the first Legislative Assembly; and no person holding a commission or appointment under the United States, except postmasters, shall be a member of the Legislative Assembly, or shall hold any office under the government of said Territory.

SEC. 9. That the judicial power of said Territory shall be vested in a Supreme Court, District Courts, Probate Courts, and in Justices of the Peace. The Supreme Court shall consist of a Chief Justice and two Associate Justices, any two of whom shall constitute a quorum, and who shall hold a term at the seat of government of said Territory annually, and they shall hold their offices during the period of four years, and until their successors shall be appointed and qualified. The said Territory shall be divided into three judicial districts, and a District Court shall be held in each of said districts by one of the Justices of the Supreme Court, at such times and places as may be prescribed by law; and the said Judges shall, after their appointments, respectively reside in the district which be assigned them. The jurisdiction of the several courts herein provided for—both appellate and original—and that of the Probate Courts and of Justices of the Peace, shall be limited by law: *Provided*, That Justices of the Peace shall not have jurisdiction of the matter in controversy when the title or

boundaries of lands may be in dispute, or where the debt or sum claimed shall exceed one hundred dollars; and the said Supreme and District Courts, respectively, shall possess chancery as well as common law jurisdiction. Each District Court, or the judge thereof, shall appoint its clerk, who shall also be the register in chancery, and shall keep his office at the place where the Court may be held. Writs of error, bills of exception, and appeals, shall be allowed in all cases from the final decisions of said District Courts to the Supreme Court, under such regulations as may be prescribed by law; but in no case removed to the Supreme Court shall trial by jury be allowed by said Court. The Supreme Court, or the Justices thereof, shall appoint its own clerk, and every clerk shall hold his office at the pleasure of the Court for which he shall have been appointed. Writs of error and appeals from the final decision of said Supreme Court shall be allowed, and may be taken to the Supreme Court of the United States in the same manner and under the same regulations as from the Circuit Courts of the United States, where the value of the property, or the amount in controversy, to be ascertained by the oath or affirmation of either party, or other competent witness, shall exceed one thousand dollars; except only that in all cases involving title to slaves, the said writs of error or appeals shall be allowed and decided by the said Supreme Court, without regard to the value of the matter, property, or title in controversy; and except also that a writ of error or appeal shall also be allowed to the Supreme Court of the United States, from the decisions of the said Supreme Court created by this act, or of any judge thereof, or of the District Courts created by this Act, or of any judge thereof, upon any writ of *habeas corpus*, involving the question of personal freedom: *Provided*, That nothing herein contained shall be construed to apply to or affect provisions of the “Act respecting fugitives from justice, and persons escaping from the service of their masters,” (approved February 12, 1793,) and the “Act to amend and supplementary to the aforesaid Act,” (approved September 18, 1850;) and each of the said District Courts shall have and exercise the same jurisdiction in all cases arising under the Constitution and laws of the United States as is vested in the Circuit and District Courts of the United States; and the said Supreme and District Courts of the said Territory, and the respective judges thereof, shall and may grant writs of *habeas corpus* in all cases in which the same are granted by the judges of the United States in the District of Columbia; and the first six days of every term of said courts, or so much thereof as shall be necessary, shall be appropriated to the trial of

causes arising under the said Constitution and laws; and writs of error and appeal in all such cases shall be made to the Supreme Court of said Territory, the same as in other cases. The said clerk shall receive, in all such cases, the same fees which the clerks of the District Courts of Utah Territory now receive for similar services.

SEC. 10. That the provisions of an Act entitled “an Act respecting fugitives from justice, and persons escaping from the service of their masters,” (approved February 12, 1793,) and the provisions of the Act entitled “an Act to amend, and supplementary to the aforesaid Act,” (approved September 18, 1850,) be, and the same are hereby, declared to extend to and be in full force within the limits of said Territory of Nebraska.

SEC. 11. That there shall be appointed an attorney for said Territory, who shall continue in office for four years, and until his successor shall be appointed and qualified, unless sooner removed by the President, and who shall receive the same fees and salary as the attorney of the United States for the present Territory of Utah. There shall also be a marshal for the Territory appointed, who shall hold his office for four years, and until his successor shall be appointed and qualified, unless sooner removed by the President, and who shall execute all processes issuing from the said courts when exercising their jurisdiction as Circuit and District Courts of the United States; he shall perform the duties, be subject to the same regulations and penalties, and be entitled to the same fees as the marshal of the District Court of the United States for the present Territory of Utah, and shall, in addition, be paid two hundred dollars annually as a compensation for extra services.

SEC. 12. That the Governor, Secretary, Chief Justice, and Associate Justices, Attorney, and Marshal, shall be nominated, and—by and with the advice and consent of the Senate—appointed by the President of the United States. The Governor and Secretary, to be appointed as aforesaid, shall, before they act as such, respectively take an oath or affirmation before the District Judge or some Justice of the Peace in the limits of said Territory, duly authorized to administer oaths and affirmations by the laws now in force therein, or before the Chief Justice or some Associate Justice of the Supreme Court of the United States, to support the Constitution of the United States, and faithfully discharge the duties of their respective offices, which said oaths, when so taken, shall be certified by the person by whom

the same shall have been taken; and such certificates shall be received and recorded by the said Secretary among the executive proceedings; and the Chief Justice, and Associate Justices, and all other civil officers in said Territory, before they act as such, shall take a like oath or affirmation before the said Governor or Secretary, or some Judge or Justice of the Peace of the Territory, who may be duly commissioned and qualified, which said oath or affirmation shall be certified and transmitted by the person taking the same to the Secretary, to be by him recorded as aforesaid; and afterward, the like oath or affirmation shall be taken, certified, and recorded in such manner and form as may be prescribed by law. The Governor shall receive an annual salary of two thousand five hundred dollars. The Chief Justice and Associate Justices shall receive an annual salary of two thousand dollars. The Secretary shall receive an annual salary of two thousand dollars. The said salaries shall be paid quarter-yearly, from the dates of the respective appointments, at the treasury of the United States; but no such payment shall be made until said officers shall have entered upon the duties of their respective appointments. The members of the Legislative Assembly shall be entitled to receive three dollars each per day during their attendance at the sessions thereof, and three dollars each for every twenty miles' travel in going to and returning from the said sessions, estimated according to the nearest usually traveled route; and an additional allowance of three dollars shall be paid to the presiding officer of each House for each day he shall so preside. And a chief clerk, one assistant clerk, a sergeant-at-arms, and door-keeper may be chosen for each House; and the chief clerk shall receive four dollars per day, and the said other officers three dollars per day, during the session of the Legislative Assembly; but no other officer shall be paid by the United States: *Provided*, That there shall be but one session of the Legislature annually, unless, on an extraordinary occasion, the Governor shall think proper to call the Legislature together. There shall be appropriated, annually, the usual sum, to be expended by the Governor, to defray the contingent expenses of the Territory, including the salary of a Clerk of the Executive Department; and there shall also be appropriated, annually, a sufficient sum, to be expended by the Secretary of the Territory, and upon an estimate to be made by the Secretary of the Treasury of the United States, to defray the expenses of the Legislative Assembly, the printing of the laws, and other incidental expenses; and the Governor and Secretary of the Territory shall, in the disbursement of all moneys intrusted

to them, be governed solely by the instructions of the Secretary of the Treasury of the United States, and shall, semi-annually, account to the said Secretary for the manner in which the aforesaid moneys shall have been expended; and no expenditure shall be made by said Legislative Assembly for objects not specially authorized by the Acts of Congress making the appropriations, nor beyond the sums thus appropriated for such objects.

SEC. 13. That the Legislative Assembly of the Territory of Nebraska shall hold its first session at such time and place in said Territory as the Governor thereof shall appoint and direct; and at said first session, or as soon thereafter as they shall deem expedient, the Governor and Legislative Assembly shall proceed to locate and establish the seat of government for said Territory at such place as they may deem eligible; which place, however, shall thereafter be subject to be changed by the said Governor and Legislative Assembly.

SEC. 14. That a delegate to the House of Representatives of the United States, to serve for the term of two years, who shall be a citizen of the United States, may be elected by the voters qualified to elect members of the Legislative Assembly, who shall be entitled to the same rights and privileges as are exercised and enjoyed by the delegates from the several other Territories of the United States to the said House of Representatives; but the delegate first elected shall hold his seat only during the term of the Congress to which he shall be elected. The first election shall be held at such time and places, and be conducted in such manner as the Governor shall appoint and direct; and at all subsequent elections the times, places, and manner of holding the elections shall be prescribed by law. The person having the greatest number of votes shall be declared by the Governor to be duly elected, and a certificate thereof shall be given accordingly. That the Constitution, and all the laws of the United States which are not locally inapplicable, shall have the same force and effect within the said Territory of Nebraska as elsewhere within the United States, except the eighth section of the act preparatory to the admission of Missouri into the Union, (approved March 6, 1820,) which, being inconsistent with the principle of non-intervention by Congress with slavery in the States and Territories—as recognized by the legislation of 1850, commonly called the Compromise Measures—is hereby declared inoperative and void; it being the true intent and meaning of this act not to legislate slavery into any Territory or State,

nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States: *Provided*, That nothing herein contained shall be construed to revive or put in force any law or regulation which may have existed prior to the act of March 6, 1820, either protecting, establishing, prohibiting, or abolishing slavery.

SEC. 15. That there shall hereafter be appropriated, as has been customary for the territorial governments, a sufficient amount, to be expended under the direction of the said Governor of the Territory of Nebraska, not exceeding the sums heretofore appropriated for similar objects, for the erection of suitable public buildings at the seat of government, and for the purchase of a library, to be kept at the seat of government, for the use of the Governor, Legislative Assembly, Judges of the Supreme Court, Secretary, Marshal, and Attorney of said Territory, and such other persons, and under such regulations, as shall be prescribed by law.

SEC. 16. That when the lands in said Territory shall be surveyed under the direction of the Government of the United States, preparatory to bringing the same into market, sections numbered sixteen and thirty-six, in each township in said Territory, shall be, and the same are hereby, reserved for the purpose of being applied to schools in said Territory, and in the States and Territories hereafter to be erected out of the same.

SEC. 17. That, until otherwise provided by law, the Governor of said Territory may define the judicial districts of said Territory, and assign the judges who may be appointed for said Territory to the several districts; and also appoint the times and places for holding courts in the several counties or subdivisions in each of said judicial districts by proclamation, to be issued by him; but the Legislative Assembly, at their first or any subsequent session, may organize, alter, or modify such judicial districts, and assign the judges, and alter the times and places of holding the courts, as to them shall seem proper and convenient.

SEC. 18. That all officers to be appointed by the President, by and with the advice and consent of the Senate, for the Territory of Nebraska, who, by virtue of the provisions of any law now existing, or which may be enacted during the present Congress, are required to give security for moneys that

may be intrusted with them for disbursements, shall give security, at such time and place, and in such manner as the Secretary of Treasury may prescribe.



JAMES MONROE.

SEC. 19. That all that part of the territory of the United States included within the following limits, except such portions thereof as are hereinafter expressly exempted from the operations of this act, to wit: beginning at a point on the western boundary of the State of Missouri, where the thirty-seventh parallel of north latitude crosses the same; thence west on said parallel to the eastern boundary of New Mexico; thence north on said boundary to latitude thirty-eight; thence following said boundary westward to the east boundary of the Territory of Utah, on the summit of the Rocky Mountains; thence northward on said summit to the fortieth parallel of latitude; thence east on said parallel to the western boundary of the State of

Missouri; thence south with the western boundary of said State to the place of beginning, be, and the same is hereby, created into a temporary government by the name of the Territory of Kansas; and when admitted as a State or States, the said Territory, or any portion of the same, shall be received into the Union with or without slavery, as the Constitution may prescribe at the time of their admission: *Provided*, That nothing in this Act contained shall be construed to inhibit the Government of the United States from dividing said Territory into two or more Territories, in such manner and at such times as Congress shall deem convenient and proper, or from attaching any portion of said Territory to any other State or Territory of the United States: *Provided, further*, That nothing in this Act contained shall be so construed as to impair the rights of persons or property now pertaining to the Indians in said Territory, so long as such rights shall remain unextinguished by treaty between the United States and such Indians, or to include any Territory which, by treaty with any Indian tribe, is not, without the consent of said tribe, to be included within the territorial limits or jurisdiction of any State or Territory; but all such territory shall be excepted out of the boundaries, and constitute no part of the Territory of Kansas, until said tribe shall signify their assent to the President of the United States to be included within the said Territory of Kansas, or to affect the authority of the Government of the United States to make any regulation respecting such Indians, their lands, property, or other rights, by treaty, law, or otherwise, which it would have been competent to the government to make if this act had never passed.

[With the single exception of the location of the seat of government for Kansas at Fort Leavenworth, provided for in section 31, the ensuing sixteen sections, relative to the organization and government of the Territory, are precisely similar to the sections already recited, providing for the government of Nebraska Territory. The final section of the act, which has a general reference to both Territories, is as follows:]

SEC. 37. *And be it further enacted*, That all treaties, laws, and other engagements made by the Government of the United States with the Indian tribes inhabiting the Territories embraced within this act, shall be faithfully and rigidly observed, notwithstanding any thing contained in this act; and that the existing agencies and superintendencies of said Indians be continued, with the same powers and duties which are now prescribed by

law, except that the President of the United States may, at his discretion, change the location of the office of superintendent.

ORDINANCE OF 1787.

IN CONGRESS, JULY 13, 1787.

An Ordinance for the government of the territory of the United States,
north-west of the river Ohio.

Be it ordained, by the United States in Congress assembled, that the said Territory, for the purpose of temporary government, be one district; subject, however, to be divided into two districts, as future circumstances may, in the opinion of Congress, make it expedient.

Be it ordained, by the authority aforesaid, that the estates both of resident and non-resident proprietors in the said Territory, dying intestate, shall descend to, and be distributed among their children, and the descendants of a deceased child in equal parts; the descendants of a deceased child or grand-child, to take the share of their deceased parent, in equal parts, among them, and where there shall be no children or descendants, then in equal parts to the next of kin, in equal degree; and among collaterals, the children of a deceased brother or sister of the intestate shall have, in equal parts, among them, their deceased parent's share; and there shall in no case be a distinction between kindred of the whole and half blood; saving in all cases to the widow of the intestate her third part of the real estate for life, and one-third part of the personal estate; and this law relative to descents and dower shall remain in full force until altered by the Legislature of the district. And until the Governor and judges shall adopt laws as hereinafter mentioned, estates in the said territory may be devised or bequeathed by wills in writing, signed and sealed by him or her, in whom the estate may be (being of full age), and attested by three witnesses; and real estates may be conveyed by lease or release, or bargain and sale, signed, sealed, and delivered by the person, being of full age, in whom the estate may, and attested by two witnesses, provided such wills be duly proved, and such conveyances be acknowledged, or the execution thereof duly proved, and be recorded within one year after proper magistrates, courts, and registers shall be appointed for that purpose, and personal property may be transferred by delivery, saving, however, to the

French and Canadian inhabitants, and other settlers of the Kaskaskias, Saint Vincents, and the neighboring villages, who have heretofore professed themselves citizens of Virginia, their laws and customs now in force among them, relative to descent and conveyance of property.

Be it ordained, by the authority aforesaid, that there shall be appointed, from time to time, by Congress, a Governor, whose commission shall continue in force for the term of three years, unless sooner revoked by Congress; he shall reside in the district and have a freehold estate therein, in one thousand acres of land, while in the exercise of his office. There shall be appointed, from time to time, by Congress, a Secretary, whose commission shall continue in force for four years, unless sooner revoked; he shall reside therein, and have a freehold estate therein, in five hundred acres of land, while in the exercise of his office; it shall be his duty to keep and preserve the acts and laws passed by the Legislature, and the public records of the district, and the proceedings of the Governor in his executive department, and transmit authentic copies of such acts and proceedings, every six months, to the Secretary of Congress. There shall also be appointed a court, to consist of three judges, any two of whom to form a court, who shall have a common law jurisdiction, and reside in the district, and have each therein a freehold estate in five hundred acres of land, while in the exercise of their offices; and their commissions shall continue in force during good behavior.

The Governor and judges, or a majority of them, shall adopt and publish in the district such laws of the original States, criminal and civil, as may be necessary, and best suited to the circumstances of the district, and report them to Congress, from time to time, which laws shall be in force in the district until the organization of the General Assembly therein, unless disapproved by Congress; but afterward, the Legislature shall have authority to alter them as they shall think fit.

The Governor, for the time being, shall be commander-in-chief of the militia, appoint and commission all officers in the same, below the rank of general officers. All general officers shall be appointed and commissioned by Congress.

Previous to the organization of the General Assembly, the Governor shall appoint such magistrates and other civil officers, in each county or

township, as he shall find necessary for the preservation of the peace and good order in the same. After the General Assembly shall be organized, the powers and duties of magistrates and other civil officers shall be regulated and defined by the said Assembly; but all magistrates and other civil officers, not herein otherwise directed, shall, during the continuance of this temporary government, be appointed by the Governor.

For the prevention of crimes and injuries, the laws to be adopted or made, shall have force in all parts of the district, and for the execution of process, criminal and civil, the Governor shall make proper divisions thereof; and shall proceed, from time to time, as circumstances may require, to lay out the parts of the district in which the Indian titles shall have been extinguished, into counties and townships, subject, however, to such alterations as may hereafter be made by the Legislature.

So soon as there shall be five thousand free male inhabitants, of full age, in the district, upon giving proof thereof to the Governor, they shall receive authority, with time and place, to elect representatives from their counties or townships, to represent them in the General Assembly; *Provided*, That for every five hundred free male inhabitants there shall be one representative, and so on progressively with the number of free male inhabitants, shall the right of representation increase, until the number of representatives shall amount to twenty-five, after which the number and proportion of representatives shall be regulated by the Legislature; *Provided*, That no person be eligible or qualified to act as a representative, unless he shall have been a citizen of one of the United States three years and be a resident in the district, or unless he shall have resided in the district three years, and in either case shall likewise hold in his own right, in fee simple, two hundred acres of land within the same; *Provided*, also, that a freehold in fifty acres of land in the district, having been a citizen of one of the States, and being resident in the district, or the like freehold and two years' residence in the district, shall be necessary to qualify a man as an elector of a representative.

The representative thus elected, shall serve for the term of two years, and in case of the death of a representative, or removal from office, the Governor shall issue a writ to the county or township for which he was a member, to elect another in his stead, to serve for the residue of the term.

The General Assembly, or Legislature, shall consist of the Governor, Legislative Council, and a House of Representatives. The Legislative Council shall consist of five members, to continue in office five years, unless sooner removed by Congress, any three of whom to be a quorum, and the members of the Council, shall be nominated and appointed in the following manner, to wit: as soon as representatives shall be elected, the Governor shall appoint a time and place for them to meet together, and, when met, they shall nominate ten persons, residents in the district, and each possessed of a freehold in five hundred acres of land, and return their names to Congress, five of whom Congress shall appoint and commission to serve as aforesaid; and whenever a vacancy shall happen in the Council, by death or removal from office, the House of Representatives shall nominate two persons qualified as aforesaid, for each vacancy, and return their names to Congress, one of whom Congress shall appoint and commission for the residue of the term; and every five years, four months at least before the expiration of the time of service of the Council, the said House shall nominate ten persons qualified as aforesaid, and return their names to Congress, five of whom Congress shall appoint and commission to serve as members of the Council five years, unless sooner removed. And the Governor, Legislative Council, and House of Representatives, shall have authority to make laws in all cases for the good government of the district, not repugnant to the principles and articles in this ordinance established and declared. And all bills having passed by a majority in the House, and by a majority in the Council, shall be referred to the Governor for his assent; but no bill or legislative act whatever, shall be of any force without his assent. The Governor shall have power to convene, prorogue, and dissolve the assembly, when in his opinion it shall be expedient.

The Governor, Judges, Legislative Council, Secretary, and such other officers as Congress shall appoint in the district, shall take an oath or affirmation of fidelity, and of office—the Governor before the President of Congress, and all other officers before the Governor. As soon as a Legislature shall be formed in the District, the Council and House, assembled in one room, shall have authority, by joint ballot, to elect a delegate to Congress, who shall have a seat in Congress, with the right of debating, but not of voting, during this temporary government.

And for extending the fundamental principles of civil and religious liberty, which form the basis whereon these republics, their laws and constitutions, are elected; *to fix and establish those principles as the basis of all laws, constitutions, and governments, which* FOREVER *hereafter shall be formed in the said Territory*; to provide also for the establishment of States, and for their admission to a share in the Federal Council on an equal footing with the original States, at as early periods as may be consistent with the general interest:

It is hereby ordained and declared, by the authority aforesaid, that the following articles shall be considered as articles of compact between the original States and the people and States in the said Territory, and forever remain unalterable, unless by common consent; viz.:

ARTICLE I. No person, demeaning himself in a peaceable and orderly manner, shall ever be molested on account of his mode of worship or religious sentiments in the said Territory.

ART. II. The inhabitants of the said Territory shall always be entitled to the benefit of the writ of *habeas corpus* and of the trial by jury; of a proportionate representation of the people in the Legislature, and of judicial proceedings according to the course of the common law; all persons shall be bailable unless for capital offenses, where the proof shall be evident, or the presumption great; all fines shall be moderate, and no cruel or unusual punishments shall be inflicted; no man shall be deprived of his liberty or property but by the judgment of his peers or the law of the land; and should the public exigencies make it necessary for the common preservation to take any person's property, or to demand his particular services, full compensation shall be made for the same; and, in the just preservation of rights and property, it is understood and declared, that no law ought ever to be made, or have force in the said territory, that shall, in any manner whatever, interfere with or affect private contracts or engagements, *bona fide*, and, without fraud, previously formed.

ART. III. Religion, morality, and knowledge being necessary to good government and the happiness of mankind, schools and the means of education shall forever be encouraged. The utmost good faith shall always be observed toward the Indians; their lands and property shall never be taken from them without their consent; and in their property, rights, and

liberty, they never shall be invaded or disturbed, unless in just and lawful wars authorized by Congress; but laws founded in justice and humanity shall, from time to time, be made, for preventing wrongs being done to them, and for preserving peace and friendship with them.

ART. IV. The said Territory, and the States which may be formed therein, shall forever remain a part of this Confederacy of the United States of America; subject to the Articles of Confederation,^[2] and to such alterations therein as shall be constitutionally made; and to all the acts and ordinances of the United States in Congress assembled, conformable thereto. The inhabitants and settlers in the said Territory shall be subject to pay a part of the Federal debts contracted, or to be contracted, and a proportional part of the expenses of government, to be apportioned on them by Congress, according to the same common rule and measure by which apportionments thereof shall be made on the other States; and the taxes for paying their proportion shall be laid and levied by the authority and direction of the Legislatures of the District, or Districts, or new States, as in the original States, within the time agreed upon by the United States in Congress assembled. The Legislatures of those Districts, or new States, shall never interfere with the primary disposal of the soil by the United States in Congress assembled, nor with any regulations Congress may find necessary for securing the title in such soil to the *bona fide* purchasers. No tax shall be imposed on lands the property of the United States; and in no case shall non-resident proprietors be taxed higher than residents. The navigable waters leading into the Mississippi and St. Lawrence, and the carrying places between the same, shall be common highways, and forever free, as well to the inhabitants of the said Territory as to the citizens of the United States, and those of any other States that may be admitted into the confederacy, without any tax, impost, or duty therefor.

ART. V. There shall be formed in the said Territory not less than three, nor more than five States; and the boundaries of the States, as soon as Virginia shall alter her act of session and consent to the same, shall become fixed and established as follows, to wit: The western State shall be bounded by the Mississippi, the Ohio, and Wabash Rivers; a direct line drawn from the Wabash and Post Vincents due north to the territorial line between the United States and Canada, and by the said territorial line to the Lake of the Woods and Mississippi. The middle State shall be bounded by the said

direct line, the Wabash from Post Vincents to the Ohio, by the Ohio, by direct line drawn due north from the mouth of the Great Miami to the said territorial line, and by said territorial line. The eastern State shall be bounded by the last mentioned direct line, the Ohio, Pennsylvania, and the said territorial line; *Provided*, however, and it is further understood and declared, that the boundaries of these three States shall be subject so far to be altered, and, if Congress shall hereafter find it expedient, they shall have authority to form one or two States in that part of the said Territory which lies north of an east and west line drawn through the southerly bend or extreme of Lake Michigan; and whenever any of the said States shall have sixty thousand free inhabitants therein, such States shall be admitted, by their delegates, into the Congress of the United States, on an equal footing with the original States in all respects whatsoever; and shall be at liberty to form a permanent constitution and State government; *Provided*, the constitution and government so to be formed shall be republican, and in conformity to the principles contained in these articles; and, so far as it can be consistent with the general interest of the confederacy, such admission shall be allowed at an earlier period, and when there may be a less number of free inhabitants in the State than sixty thousand.

ART. VI. There shall be neither slavery nor involuntary servitude in the said Territory, otherwise than in the punishment of crimes whereof the party shall have been duly convicted; *Provided*, always, that any person escaping into the same, from whom labor or service is lawfully claimed in any of the original States, such fugitive may be lawfully reclaimed and conveyed to the person claiming his or her labor or service as aforesaid.

Be it ordained, by the authority aforesaid, that the resolutions of the 23d of April, 1784, relative to the subject of this ordinance, be, and the same are hereby repealed, and declared null and void.

NOTE.—By this ordinance, Virginia ceded to the United States the territory now composing the States of Ohio, Indiana, Illinois, Wisconsin, and Michigan, making the ordinance the fundamental law of these States.

AMNESTY PROCLAMATION.

By the President of the United States of America:

WHEREAS, The President of the United States, on the 8th day of December, 1863, and on the 26th day of March, 1864, did, with the object of suppressing the existing rebellion, to induce all persons to return to their loyalty and to restore the authority of the United States, issued Proclamations offering amnesty and pardon to certain persons who had directly or by implication engaged in said rebellion, and

WHEREAS, Many persons who had so engaged in the said rebellion, have, since the issue of said Proclamation, failed or neglected to take the benefits offered thereby; and whereas, many persons who have been justly deprived of all claim to amnesty and pardon thereunder by reason of their participation directly or by implication in said rebellion, and continued hostile to the Government of the United States since the date of said Proclamation, now desire to apply for and obtain amnesty and pardon; to the end, therefore, that the authority of the Government of the United States may be restored, and that peace, order, and freedom may be established.

I, Andrew Johnson, President of the United States, do proclaim and declare that I hereby grant to all persons who have directly or indirectly participated in the existing rebellion, except as hereinafter excepted, amnesty and pardon, with the restoration of all the rights of property, except as to slaves, except in cases where legal proceedings under the laws of the United States, providing for the confiscation of property of persons engaged in the rebellion, have been instituted; but on the condition, nevertheless, that every such person shall take and subscribe the following oath, which shall be registered for permanent preservation, and shall be the tenor and effect of the following, to wit:

“I do solemnly swear or affirm, in the presence of Almighty God, that I will henceforth faithfully defend the Constitution of the United States and the Union of the States thereunder; and that I will in like manner abide by and faithfully support all laws and proclamations which have been made

during the existing rebellion, with reference to the emancipation of slavery, so help me God.”

The following classes of persons are excepted from the benefits of this proclamation:

First—All who are, or shall have been, pretended civil or diplomatic officers or otherwise, domestic or foreign agents of the pretended Confederate Government.

Second—All who left judicial stations under the United States to aid the rebellion.

Third—All who shall have been military or naval officers of said pretended Confederate Government above the rank of Colonel in the Army, or Lieutenant in the Navy.

Fourth—All who left seats in the Congress of the United States to aid the rebellion.

Fifth—All who resigned or tendered the resignation of their commissions in the Army or Navy of the United States, to evade the duty in resisting the rebellion.

Sixth—All who have engaged in any way in treating otherwise than lawfully as prisoners of war, persons found in the United States service, as officers, soldiers, seamen, or in other capacities.

Seventh—All persons who have been or are absentees from the United States for the purpose of aiding the rebellion.

Eighth—All military or naval officers in the rebel service who were educated by the Government in the military academy at West Point, or in the United States Naval Academy.

Ninth—All persons who hold the pretended offices of Governors of States in insurrection against the United States.

Tenth—All persons who left their homes within the jurisdiction and protection of the United States and passed beyond the Federal military lines into the so-called Confederate States for the purpose of aiding the rebellion.

Eleventh—All persons who have engaged in the destruction of the commerce of the United States upon the high seas, and all persons who

have made raids into the United States from Canada, or been engaged in destroying the commerce of the United States upon the lakes and rivers that separate the British Provinces from the United States.

Twelfth—All persons who, at the time when they seek to obtain the benefits hereof, by taking the oath prescribed, are in military, naval or civil confinement or custody, or under bond of the military or naval authorities, or agents of the United States, as prisoners of war, or persons detailed for offenses of any kind, either before or after the conviction.

Thirteenth—All persons who have voluntarily participated in said rebellion, and the estimate value of whose taxable property is over \$20,000.

Fourteenth—All persons who have taken the oath of Amnesty as prescribed in the President's Proclamation, December 28th, 1863, or the Oath of Allegiance to the Government of the United States since the date of said Proclamation, and who have not thenceforward kept and maintained the same inviolate. Provided that special application may be made to the President for pardon by any person belonging to the excepted class, and such clemency will be liberally extended as may be consistent with the facts, and the peace and dignity of the United States. The Secretary of State will establish rules and regulations for administering and recording said Amnesty Oath, so as to insure its benefits to the people, and guard the Government against fraud.



IN TESTIMONY WHEREOF, I have hereunto set my hand and caused the Seal of the United States to be affixed. Done at the City of Washington, this 29th day of May, A. D. 1865, and of the Independence of the United States, the eighty-ninth. (Signed.)

By the President:

ANDREW JOHNSON.

W. H. SEWARD, *Secretary of State*.

PROPOSED CRITTENDEN COMPROMISE.

At the commencement of the Congressional session of 1860, the portentous clouds of civil war, gathering and blackening in the southern horizon of our national sky, filled the hearts of the stoutest patriots with the most gloomy apprehensions, and cast a melancholy shadow over every Union-loving soul throughout the country, somewhat akin to that which hovers over an affectionate son or daughter, upon the approaching dissolution of a cherished, devoted mother. The following compromise, offered by Senator Crittenden, December 19, 1860, is one of the many measures proposed in Congress for adjusting the difficulties of that period:

Resolved, By the Senate and House of Representatives, That the following articles be proposed and submitted as an amendment to the Constitution, which shall be valid as a part of the Constitution, when ratified by the conventions of three-fourths of the people of the States:

1st. In all the territory now or hereafter acquired, north of 36° 30', slavery, or involuntary servitude, except for the punishment of crime, is prohibited; while in all the territory south of that, slavery is hereby recognized as existing, and shall not be interfered with by Congress, but shall be protected as property by all the departments of the territorial government during its continuance. All the territory north or south of said line, within such boundaries as Congress may prescribe, when it contains a population necessary for a member of Congress, with a Republican form of government, shall be admitted into the Union on an equality with the original States, with or without slavery, as the Constitution of the State shall prescribe.

2d. Congress shall have no power to abolish slavery in the State permitting it.

3d. Congress shall have no power to abolish slavery in the District of Columbia while 't exists in Virginia and Maryland, or either; nor shall Congress at any time prohibit the officers of Government, or members of Congress, whose duties require them to live in the District of Columbia, bringing slaves there and using them as such.

4th. Congress shall have no power to hinder the transportation of slaves from one State to another, whether by land, navigable river, or sea.

5th. Congress shall have the power, by law, to pay any owner the full value of any fugitive slave, in all cases where the marshal is prevented from discharging his duty by force or rescue, made after arrest. In all such cases the owner shall have the power to sue the county in which the rescue or violence was made; and the county shall have the right to sue the individuals who committed the wrong, in the same manner as the owner would sue.

6th. No future amendment or amendments shall affect the preceding article; and Congress shall never have power to interfere with slavery within the States where it is permitted.

EMANCIPATION PROCLAMATION.

Whereas, On the twenty-second day of September, in the year of our Lord, one thousand eight hundred and sixty-two, a proclamation was issued by the President of the United States, containing among other things the following, to wit:

That, on the first day of January, in the year of our Lord, one thousand eight hundred and sixty-three, all persons held as slaves within any State, or designated part of a State, the people whereof shall then be in rebellion against the United States, shall be then, thenceforth and forever free, and the Executive Government of the United States, including the military and naval authorities thereof, will recognize and maintain the freedom of such persons, or any of them, in any efforts they may make for their actual freedom.

That the Executive will, on the first day of January aforesaid, by proclamation, designate the States and parts of States, if any, in which the people therein respectively shall then be in rebellion against the United States, and the fact that any State, or the people thereof, shall on that day be in good faith represented in the Congress of the United States by members chosen thereto, at elections wherein a majority of the qualified voters of such States shall have participated, shall, in the absence of strong countervailing testimony, be deemed conclusive evidence that such State and the people thereof are not then in rebellion against the United States.

Now, therefore, I, Abraham Lincoln, President of the United States, by virtue of the power in me vested as Commander-in-Chief of the Army and Navy of the United States, in time of actual armed rebellion against the authority and Government of the United States, and as a fit necessary war measure for suppressing said rebellion, do, on this first day of January, in the year of our Lord, one thousand eight hundred and sixty-three, and in accordance with my purpose so to do, publicly proclaimed for the full period of one hundred days from the day of the first above-mentioned order, and designate, as the States and parts of States wherein the people thereof respectively are this day in rebellion against the United States, the

following, to wit: Arkansas, Texas, Louisiana, except the parishes of St. Bernard, Plaquemines, Jefferson, St. John, St. Charles, St. James, Ascension, Assumption, Terre Bonne, Lafourche, St. Mary, St. Martin and Orleans, including the city of New Orleans. Mississippi, Alabama, Florida, Georgia, South Carolina, North Carolina, and Virginia, except the forty-eight counties designated as West Virginia, and also the counties of Berkeley, Accomac, Northampton, Elizabeth City, York, Princess Ann, and Norfolk, including the cities of Norfolk and Portsmouth, and which excepted parts are, for the present, left precisely as if this proclamation were not issued.

And by virtue of the power, and for the purpose aforesaid, I do order and declare that all persons held as slaves within said designated States and parts of States are, and henceforward, shall be free; and that the Executive Government of the United States, including the military and naval authorities thereof, will recognize and maintain the freedom of said persons.

And I hereby enjoin upon the people so declared to be free to abstain from all violence, unless in necessary self-defense; and I recommend to them that, in all cases, when allowed, they labor faithfully for reasonable wages.

And I further declare and make known that such persons of suitable condition will be received into the armed service of the United States, to garrison forts, positions, stations, and other places, and to man vessels of all sorts in said service.

And upon this, sincerely believed to be an act of justice, warranted by the Constitution upon military necessity, I invoke the considerate judgment of mankind and the gracious favor of Almighty God.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.



Done at the City of Washington, this first day of January, in the year of our Lord one thousand eight hundred and sixty-three, and of the Independence of the United States of America the eighty-seventh.

By the President:

ABRAHAM LINCOLN.

WILLIAM H. SEWARD, *Secretary of State*.

LETTER FROM THE PRESIDENT EXPLAINING THE EMANCIPATION PROCLAMATION.

The following letter, written in August, 1863, in answer to an invitation to attend a meeting of unconditional Union men held in Illinois, gives at length the President's views at that time on his Emancipation Proclamation:

EXECUTIVE MANSION, WASHINGTON, August 26th, 1863.

MY DEAR SIR: Your letter inviting me to attend a mass-meeting of unconditional Union men, to be held at the capitol of Illinois on the third day of September, has been received. It would be very agreeable to me to thus meet my old friends at my own home, but I can not just now be absent from this city so long as a visit there would require. The meeting is to be of all those who maintain unconditional devotion to the Union; and I am sure my old political friends will thank me for tendering, as I do, the nation's gratitude to those other noble men whom no partisan malice or partisan hope can make false to the nation's life. There are those who are dissatisfied with me. To such I would say, You desire peace, and you blame me that you do not have it. But how can we attain it? There are but three conceivable ways: First, to suppress the rebellion by force of arms. This I am trying to do. Are you for it? If you are, so far we are agreed. If you are not for it, a second way is to give up the Union. I am against this. If you are, you should say so, plainly. If you are not for force, nor yet for dissolution, there only remains some imaginable compromise. I do not believe that any compromise, embracing the maintenance of the Union, is now possible. All that I learn leads to a directly opposite belief. The strength of the rebellion is its military—its army. The army dominates all the country and all the people within its range. Any offer of any terms made by any man or men within that range, in opposition to that army, is simply nothing for the present, because such man or men have no power whatever to enforce their side of a compromise, if one were made with them. To illustrate: Suppose refugees from the South and peace men of the North get together in convention, and frame and proclaim a compromise embracing a restoration of the Union; in what way can that compromise be used to keep General Lee's army out of Pennsylvania? General Meade's army can keep Lee's

army out of Pennsylvania, and, I think, can ultimately drive it out of existence. But no paper compromise, to which the controllers of Lee's army are not agreed, can at all affect that army. In an effort at such compromise we would waste time, which the enemy would improve to our disadvantage, and that would be all. A compromise, to be effective, must be made either with those who control the rebel army, or with the people, first liberated from the domination of that army by the success of our army. Now, allow me to assure you that no word or intimation from the rebel army, or from any of the men controlling it, in relation to any peace compromise, has ever come to my knowledge or belief. All charges and intimations to the contrary are deceptive and groundless. And I promise you that if any such proposition shall hereafter come, it shall not be rejected and kept secret from you. I freely acknowledge myself to be the servant of the people, according to the bond of service, the United States Constitution, and that, as such, I am responsible to them. But, to be plain: You are dissatisfied with me about the negro. Quite likely there is a difference of opinion between you and myself upon that subject. I certainly wish that all men could be free, while you, I suppose, do not. Yet I have neither adopted nor proposed any measure which is not consistent with even your view, provided you are for the Union. I suggested compensated emancipation; to which you replied that you wished not to be taxed to buy negroes. But I have not asked you to be taxed to buy negroes, except in such way as to save you from greater taxation, to save the Union exclusively by other means.

You dislike the Emancipation Proclamation, and perhaps would have it retracted. You say it is unconstitutional. I think differently: I think that the Constitution invests the Commander-in-Chief with the law of war in time of war. The most that can be said, if so much, is, that the slaves are property. Is there—has there ever been—any question that, by the law of war, property, both of enemies and friends, may be taken when needed? And is it not needed whenever taking it helps us, or hurts the enemy? Armies, the world over, destroy enemies' property when they can not use it; and even destroy their own to keep it from the enemy. Civilized belligerents do all in their power to help themselves or hurt the enemy, except a few things regarded as barbarous or cruel. Among the exceptions are the massacre of vanquished foes and non-combatants, male and female. But the proclamation, as law, is valid, or is not valid. If it is not valid, it needs no retraction; if it is valid, it can not be retracted, any more than the dead can

be brought to life. Some of you profess to think that its retraction would operate favorably for the Union. Why better after the retraction than before the issue? There was more than a year and a half of trial to suppress the rebellion before the proclamation was issued, the last one hundred days of which passed under an explicit notice that it was coming, unless averted by those in revolt returning to their allegiance. The war has certainly progressed as favorably for us since the issue of the proclamation as before. I know as fully as one can know the opinion of others, that some of the commanders of our armies in the field, who have given us our most important victories, believe the emancipation policy and the aid of colored troops to be the heaviest blows yet dealt to the rebellion, and that at least one of these important successes could not have been achieved when it was but for the aid of black soldiers. Among the commanders holding these views are some who have never had any affinity with what is called abolitionism or with "Republican party politics," but who hold them purely as military opinions. I submit their opinions as being entitled to some weight against the objections often urged, that emancipation and arming the blacks are unwise as military measures, and were not adopted as such in good faith. You say that you will not fight to free negroes. Some of them seem to be willing to fight for you—but no matter. Fight you, then, exclusively, to save the Union. I issued the proclamation on purpose to aid you in saving the Union. Whenever you shall have conquered all resistance to the Union, if I shall urge you to continue fighting, it will be an apt time then for you to declare that you will not fight to free negroes. I thought that, in your struggle for the Union, to whatever extent the negroes should cease helping the enemy, to that extent it weakened the enemy in his resistance to you. Do you think differently? I thought that whatever negroes can be got to do as soldiers, leaves just so much less for white soldiers to do in saving the Union. Does it appear otherwise to you? But negroes, like other people, act upon motives. Why should they do any thing for us if we will not do any thing for them? If they stake their lives for us, they must be prompted by the strongest motive, even the promise of freedom. And, the promise being made, must be kept. The signs look better. The Father of Waters again goes unvexed to the sea. Thanks to the great North-west for it. Not yet wholly to them. Three hundred miles up they met New England, Empire, Keystone, and Jersey, hewing their way right and left. The Sunny South, too, in more colors than one, also lent a hand. On the spot, their part of the history was

jotted down in black and white. The job was a great national one, and let none be blamed who bore an honorable part in it; and, while those who have cleared the great river may well be proud, even that is not all. It is hard to say that any thing has been more bravely or better done than at Antietam, Murfreesboro, Gettysburg, and on many fields of less note. Nor must Uncle Sam's web-fleet be forgotten. At all the waters' margins they have been present—not only on the deep sea, the broad bay, and the rapid river, but also up the narrow, muddy bayou; and, wherever the ground was a little damp, they have been, and made their tracks. Thanks to all. For the great republic—for the principles by which it lives and keeps alive—for man's vast future—thanks to all. Peace does not appear so far distant as it did. I hope it will come soon, and come to stay; and so come as to be worth keeping in all future time. It will then have proved that among freemen there can be no successful appeal from the ballot to the bullet, and that they who take such appeal are sure to lose their case and pay the cost. And then there will be some black men who can remember that, with silent tongue, and clenched teeth, and steady eye, and well-poised bayonet, they have helped mankind on to this great consummation; while I fear that there will be some white men unable to forget that, with malignant heart and deceitful speech, they have striven to hinder it. Still, let us not be over-sanguine of a speedy final triumph. Let us be quite sober. Let us diligently apply the means, never doubting that a just God, in His own good time, will give us the rightful result.

Yours, very truly,

A. LINCOLN.

PROCLAMATION OF ANDREW JACKSON.

*The President of the United States
to the nullifiers of South Carolina:*

WHEREAS, A convention assembled in the State of South Carolina have passed an ordinance, by which they declare, “that the several acts and parts of acts of the Congress of the United States, purporting to be laws for the imposing of duties and imposts on the importation of foreign commodities, and now having actual operation and effect within the United States, and more especially,” two acts for the same purposes passed on the 29th of May, 1828, and on the 14th of July, 1832, “are unauthorized by the Constitution of the United States, and violate the true meaning and intent thereof, and are null and void, and no law,” nor binding on the citizens of that State or its officers; and by the said ordinance, it is further declared to be unlawful for any of the constituted authorities of the State or of the United States to enforce the payment of the duties imposed by the said acts with the same State, and that it is the duty of the Legislature to pass such laws as may be necessary to give full effect to the said ordinance:

AND, WHEREAS, By the said ordinance, it is further ordained that in no case of law or equity decided in the courts of said State, wherein shall be drawn in question the validity of the said ordinance, or of the acts of the Legislature that may be passed to give it effect, or of the said laws of the United States, no appeal shall be allowed to the Supreme Court of the United States, nor shall any copy of the record be permitted or allowed for that purpose; and that any person attempting to take such appeal shall be punished as for a contempt of court:

And, finally, the said ordinance declares that the people of South Carolina will maintain the said ordinance at every hazard; and that they will consider the passage of any act, by Congress, abolishing or closing the ports of the said State, or otherwise obstructing the free ingress or egress of vessels to and from the said ports, or any other act of the Federal

Government to coerce the State, shut up her ports, destroy or harass her commerce, or to enforce the said act otherwise than through the civil tribunals of the country, as inconsistent with the longer continuance of South Carolina in the Union, and that the people of the said State will thenceforth hold themselves absolved from all further obligation to maintain or preserve their political connection with the people of the other States, and will forthwith proceed to organize a separate government and do all other acts and things which sovereign and independent States may of right do.

AND, WHEREAS, The said ordinance prescribes to the people of South Carolina a course of conduct in direct violation of their duty as citizens of the United States, contrary to the laws of their country, subversive of its Constitution, and having for its object the destruction of the Union—that Union, which, coeval with our political existence, led our fathers, without any other ties to unite them than those of patriotism and a common cause, through a sanguinary struggle to a glorious independence—that sacred Union, hitherto inviolate, which, perfected by our happy Constitution, has brought us, by the favor of Heaven, to a state of prosperity at home, and high consideration abroad, rarely, if ever, equaled in the history of nations. To preserve this bond of our political existence from destruction, to maintain inviolate this state of national honor and prosperity, and to justify the confidence my fellow-citizens have reposed in me, I, ANDREW JACKSON, President of the United States, have thought proper to issue this, my PROCLAMATION, stating my views of the Constitution and laws applicable to the measures adopted by the Convention of South Carolina, and to the reasons they have put forth to sustain them, declaring the course which duty will require me to pursue, and, appealing to the understanding and patriotism of the people, warn them of the consequences that must inevitably result from an observance of the dictates of the convention.

Strict duty would require of me nothing more than the exercise of those powers with which I am now, or may hereafter be invested, for preserving the peace of the Union, and for the execution of the laws. But the imposing aspect which opposition has assumed in this case, by clothing itself with State authority, and the deep interest which the people of the United States must all feel in preventing a resort to stronger measures, while there is a hope that any thing will be yielded to reasoning and remonstrance, perhaps

demand, and will certainly justify, a full exposition to South Carolina and the nation of the views I entertain of this important question, as well as a distinct enunciation of the course which my sense of duty will require me to pursue.

The ordinance is founded, not on the indefeasible right of resisting acts which are plainly unconstitutional, and too oppressive to be endured; but on the strange position that any one State may not only declare an act void, but prohibit its execution—that they may do this consistently with the Constitution—that the true construction of that instrument permits a State to retain its place in the Union, and yet be bound by no other of its laws than those it may choose to consider as constitutional. It is true, they add, that to justify this abrogation of law, it must be palpably contrary to the Constitution; but it is evident, that to give the right of resisting laws of that description, coupled with the uncontrolled right to decide what laws deserve that character, is to give the power of resisting all laws. For, as by the theory, there is no appeal, the reasons alleged by the State, good or bad, must prevail. If it should be said that public opinion is a sufficient check against the abuse of this power, it may be asked why it is not deemed a sufficient guard against an unconstitutional act of Congress? There is, however, a restraint in this last case, which makes the assumed power of a State more indefensible, and which does not exist in the other. There are two appeals from an unconstitutional act passed by Congress—one to the judiciary, the other to the people and the States. There is no appeal from the State decision in theory, and the practical illustration shows that the courts are closed against an application to review it, both judges and jurors being sworn to decide in its favor. But reasoning on this subject is superfluous, when our social compact, in express terms, declares that the laws of the United States, its Constitution, and treaties made under it, are the supreme law of the land; and, for the greater caution, adds “that the judges in every State shall be bound thereby, any thing in the Constitution or laws of any State to the contrary notwithstanding.” And it may be asserted, without fear of refutation, that no Federal Government could exist without a similar provision. Look for a moment to the consequence. If South Carolina considers the revenues unconstitutional, and has a right to prevent their execution in the port of Charleston, there would be a clear constitutional objection to their collection in every other port, and no revenue could be collected anywhere; for all imposts must be equal. It is no answer to repeat,

that an unconstitutional law is no law, so long as the question of its legality is to be decided by the State itself; for every law operating injuriously upon any local interest will be, perhaps, thought, and certainly represented, as unconstitutional; and, as has been shown, there is no appeal.



JOHN QUINCY ADAMS.

If this doctrine had been established at an earlier day, the Union would have been dissolved in its infancy. The excise law in Pennsylvania, the embargo and non-intercourse law in the eastern States, the carriage tax in Virginia, were all deemed unconstitutional, and were more unequal in their operation than any of the laws now complained of; but fortunately none of

those States discovered that they had the right now claimed by South Carolina. The war into which we were forced to support the dignity of the nation and the rights of our citizens, might have ended in defeat and disgrace instead of victory and honor, if the States who supposed it a ruinous and unconstitutional measure, had thought they possessed the right of nullifying the act by which it was declared, and denying supplies for its prosecution. Hardly and unequally as those measures bore upon several members of the Union, to the legislatures of none did this efficient and peaceable remedy, as it is called, suggest itself. The discovery of this important feature in our Constitution was reserved to the present day. To the statesmen of South Carolina belongs the invention, and upon the citizens of that State will unfortunately fall the evils of reducing it to practice.

If the doctrine of a State veto upon the laws of the Union carries with it internal evidence of its impracticable absurdity, our constitutional history will also afford abundant proof that it would have been repudiated with indignation had it been proposed to form a feature in our Government.

In our colonial state, although dependent on another power, we very early considered ourselves as connected by common interest with each other. Leagues were formed for common defense, and, before the Declaration of Independence, we were known in our aggregate character as the United Colonies of America. That decisive and important step was taken jointly. We declared ourselves a nation by a joint, not by several acts, and when the terms of our Confederation were reduced to form, it was that of a solemn league of several States, by which they agreed that they would collectively form one nation for the purpose of conducting some certain domestic concerns and all foreign relations. In the instrument forming that Union is found an article which declares that "every State shall abide by the determination of Congress on all questions which, by that Confederation, should be submitted to them."

Under the Confederation, then, no State could legally annul a decision of the Congress, or refuse to submit to its execution; but no provision was made to enforce these decisions. Congress made requisitions, but they were not complied with. The Government could not operate on individuals. They had no judiciary, no means of collecting revenue.

But the defects of the Confederation need not be detailed. Under its operation we could scarcely be called a nation. We had neither prosperity at home nor consideration abroad. This state of things could not be endured, and our present happy Constitution was formed, but formed in vain, if this fatal doctrine prevails. It was formed for important objects that are announced in the preamble made in the name and by the authority of the people of the United States, whose delegates framed, and whose conventions approved it. The most important among those objects, that which is placed first in rank, on which all others rest, is, “to form a more perfect Union.” Now, is it possible that even if there were no express provision giving supremacy to the Constitution and laws of the United States—can it be conceived, that an instrument made for the purpose of “forming a more perfect Union” than that of the Confederation, could be so constructed by the assembled wisdom of our country as to substitute for that Confederation a form of government dependent for its existence on the local interest, the party spirit of a State, or of a prevailing faction in a State? Every man of plain, unsophisticated understanding, who hears the question, will give such an answer as will preserve the Union. Metaphysical subtlety, in pursuit of an impracticable theory, could alone have devised one that is calculated to destroy it.

I consider, then, the power to annul a law of the United States, assumed by one State, incompatible with the existence of the Union, contradicted expressly by the letter of the Constitution, unauthorized by its spirit, inconsistent with every principle on which it was founded, and destructive of the great object for which it was formed.

After this general view of the leading principle, we must examine the particular application of it which is made in the ordinance.

The preamble rests its justification on these grounds: It assumes, as a fact, that the obnoxious laws, although they purport to be laws for raising revenue, were in reality intended for the protection of manufactures, which purpose it asserts to be unconstitutional; that the operation of these laws is unequal; that the amount raised by them is greater than is required by the wants of the Government; and, finally, that the proceeds are to be applied to objects unauthorized by the Constitution. These are the only causes alleged to justify an open opposition to the laws of the country, and a threat of seceding from the Union, if any attempt should be made to enforce them.

The first virtually acknowledges that the law in question was passed under a power expressly given by the Constitution to lay and collect imposts; but its constitutionality is drawn in question from the motives of those who passed it. However apparent this purpose may be in the present case, nothing can be more dangerous than to admit the position that an unconstitutional purpose, entertained by the members who assent to a law enacted under constitutional power, shall make the law void: for how is that purpose to be ascertained? How often may bad purposes be falsely imputed—in how many cases are they concealed by false professions—in how many is no declaration of motive made? Admit this doctrine, and you give to the States an uncontrolled right to decide, and every law may be annulled under this pretext. If, therefore, the absurd and dangerous doctrine should be admitted, that a State may annul an unconstitutional law, or one that it deems such, it will not apply to the present case.

The next objection is, that the laws in question operate unequally. This objection may be made with truth to every law that has been or may be passed. The wisdom of man never yet contrived a system of taxation that would operate with perfect equality. If the unequal operation of a law makes it unconstitutional, and if all laws of that description may be abrogated by any State for that cause, then indeed is the Federal Constitution unworthy the slightest effort for its preservation. We have hitherto relied on it as the perpetual bond of our Union. We have received it as the work of the assembled wisdom of the nation. We have trusted to it as the sheet anchor of our safety in the stormy times of conflict with a foreign or domestic foe. We have looked to it with sacred awe as the palladium of our liberties, and with all the solemnities of religion have pledged to each other our lives and fortunes here, and our hopes of happiness hereafter, in its defense and support. Were we mistaken, my countrymen, in attaching this importance to the Constitution of our country? Was our devotion paid to the wretched, inefficient, clumsy, contrivance which this new doctrine would make it? Did we pledge ourselves to the support of an airy nothing—a bubble, that must be blown away by the first breath of dissatisfaction? Was this self-destroying, visionary theory, the work of the profound statesmen, the exalted patriots, to whom the task of constitutional reform was intrusted? Did the name of Washington sanction, did the States deliberately ratify such an anomaly in the history of fundamental legislation? No. We were not mistaken. The letter of this great instrument is free from this radical fault;

its language directly contradicts the imputation; its spirit—its evident intent, contradicts it. No, we did not err! Our Constitution does not contain the absurdity of giving power to make laws, and another power to resist them. The sages whose memory will always be revered, have given us a practical, and, as they hoped, a permanent constitutional compact. The Father of his Country did not affix his revered name to so palpable an absurdity. Nor did the States, when they severally ratified it, do so under the impression that a veto on the laws of the United States, was reserved to them, or that they could exercise it by implication. Search the debates in all their conventions, examine the speeches of the most zealous opposers of federal authority, look at the amendments that were proposed; they are all silent—not a syllable uttered, not a vote given, not a motion made, to correct the explicit supremacy given to the laws of the Union over those of the States, or to show that implication, as is now contended, could defeat it. No, we have not erred! The Constitution is still the object of our reverence, the bond of our Union, our defense in danger, the source of our prosperity in peace; it shall descend as we received it, uncorrupted, by sophistical construction, to our posterity, and the sacrifices of local interest, of State prejudices, of personal animosities, that were made to bring it into existence, will again be patriotically offered for its support.

The two remaining objections made by the ordinance to these laws, are that the sums intended to be raised by them are greater than are required, and that the proceeds will be unconstitutionally employed.

The Constitution has given, expressly, to Congress the right of raising revenue, and of determining the sum the public exigencies will require. The States have no control over the exercise of this right, other than that which results from the power of changing the representatives who abuse it, and thus procure redress. Congress may, undoubtedly, abuse this discretionary power; but the same may be said of others with which they are vested. Yet this discretion must exist somewhere. The Constitution has given it to the representatives of all the people, checked by the representatives of the States and by the executive power. The South Carolina construction gives it to the legislature or the convention of a single State, where neither the people of the different States, nor the States in their separate capacity, nor the chief magistrate elected by the people, have any representation. Which is the most discreet disposition of the power? I do not ask you, fellow-

citizens, which is the constitutional disposition; that instrument speaks a language not to be misunderstood. But if you were assembled in general convention, which would you think the safest depository of this discretionary power in the last resort? Would you add a clause giving it to each of the States, or would you sanction the wise provisions already made by your Constitution? If this should be the result of your deliberations when providing for the future, are you, can you be ready to risk all that we hold dear to establish, for a temporary and a local purpose, that which you must acknowledge to be destructive, and even absurd, as a general provision? Carry out the consequences of this right vested in the different States, and you must perceive that the crisis your conduct presents at this day would recur whenever any law of the United States displeased any of the States, and that we should soon cease to be a nation.

The ordinance, with the same knowledge of the future that characterizes a former objection, tells you that the proceeds of the tax will be unconstitutionally applied. If this could be ascertained with certainty, the objection would, with more propriety, be reserved for the law so applying the proceeds, but surely can not be urged against the laws levying the duty.

These are the allegations contained in the ordinance. Examine them seriously, my fellow-citizens; judge for yourselves. I appeal to you to determine whether they are so clear, so convincing, as to leave no doubt of their correctness; and even if you should come to this conclusion, how far they justify the reckless, destructive course which you are directed to pursue. Review these objections, and the conclusions drawn from them, once more. What are they? Every law, then, for raising revenue, according to the South Carolina ordinance, may be rightfully annulled, unless it be so framed as no law ever will or can be framed. Congress has the right to pass laws for raising a revenue, and each State has a right to oppose their execution—two rights directly opposed to each other; and yet is this absurdity supposed to be contained in an instrument drawn for the express purpose of avoiding collisions between the States and the General Government, by an assembly of the most enlightened statesmen and purest patriots ever embodied for a similar purpose.

In vain have these sages declared that Congress shall have power to lay and collect taxes, duties, imposts, and excises; in vain have they provided that they shall have power to pass laws which shall be necessary and proper

to carry those powers into execution; that those laws and that Constitution shall be the “supreme law of the land, and that the judges in every State shall be bound thereby, any thing in the Constitution or laws of any State to the contrary notwithstanding.” In vain have the people of the several States solemnly sanctified these provisions, made them their paramount law, and individually sworn to support them whenever they were called on to execute any office. Vain provision! ineffectual restrictions! vile profanation of oaths! miserable mockery of legislation! if the bare majority of the voters in any one State may, on a real or supposed knowledge of the intent with which a law has been passed, declare themselves free from its operation—say here it gives too little, there too much, and operates unequally—here it suffers articles to be free that ought to be taxed—there it taxes those that ought to be free—in this case the proceeds are intended to be applied to purposes which we do not approve—in that the amount raised is more than is wanted. Congress, it is true, is invested by the Constitution with the right of deciding these questions according to their sound discretion; Congress is composed of the representatives of all the States, and of all the people of all the States; but we, part of the people of one State, to whom the Constitution has given no power on the subject, from whom it has expressly taken it away—we, who have solemnly agreed that this Constitution shall be our law—we, most of whom have sworn to support it—we now abrogate this law, and swear, and force others to swear that it shall not be obeyed; and we do this, not because Congress have no right to pass such laws—this we do not allege—but because they have passed them with improper views. They are unconstitutional from the motives of those who passed them, which we can never with certainty know; from their unequal operation, although it is impossible, from the nature of things, that they should be equal; and from the disposition which we presume may be made of their proceeds, although that disposition has not been declared. This is the plain meaning of the ordinance, in relation to laws which it abrogates for alleged unconstitutionality. But it does not stop there. It repeals, in express terms, an important part of the Constitution itself, and of laws passed to give it effect, which have never been alleged to be unconstitutional. The Constitution declares that the judicial powers of the United States extend to cases arising under the laws of the United States; and that such laws, the Constitution and treaties, shall be paramount to the State Constitutions and laws. The judiciary act prescribes the mode by which the case may be

brought before a court of the United States by appeal, when a State tribunal shall decide against this provision of the Constitution. The ordinance declares that there shall be no appeal, makes the State law paramount to the Constitution and laws of the United States, forces judges and jurors to swear that they will disregard their provisions, and even makes it penal in a suit to attempt relief by appeal. It further declares that it shall not be lawful for the authorities of the United States, or of that State, to enforce the payment of duties imposed by the revenue laws within its limits.

Here is a law of the United States, not even pretended to be unconstitutional, repealed by the authority of a small majority of the voters of a single State. Here is a provision of the Constitution, which is solemnly abrogated by the same authority.

On such expositions and reasonings, the ordinance grounds not only an assertion of the right to annul the laws, of which it complains, but to enforce it by a threat of seceding from the Union, if any attempt is made to execute them.

This right to secede is deduced from the nature of the Constitution, which they say is a compact between sovereign States, who have preserved their whole sovereignty, and therefore are subject to no superior; that because they made the compact, they can break it, when, in their opinion, it has been departed from by other States. Fallacious as this course of reasoning is, it enlists State pride, and finds advocates in the honest prejudices of those who have not studied the nature of our government sufficiently to see the radical error on which it rests.

The people of the United States formed the Constitution, acting through the State Legislatures in forming the compact, to meet and discuss its provisions, and acting in separate conventions when they ratified those provisions; but the terms used in its construction show it to be a government in which the people of all the States collectively are represented. We are *one people* in the choice of President and Vice-President. Here the States have no other agency than to direct the mode in which the votes shall be given. The candidates having a majority of all the votes are chosen. The electors of a majority of States may have given their votes for one candidate, and yet another may be chosen. The people, then, and not the States, are represented in the executive branch.

In the House of Representatives there is this difference: that the people of one State do not, as in the case of President and Vice-President, all vote for the same officers. The people of all the States do not vote for all the members, each State electing only its own Representatives. But this creates no national distinction. When chosen, they are all Representatives of the United States, not representatives of the particular State from whence they come. They are paid by the United States, not by the State; nor are they accountable to it for any act done in the performance of their legislative functions; and however they may, in practice, as it is their duty to do, consult and prefer the interests of their particular constituents, when they come in conflict with any other partial or local interest, yet it is the first and highest duty of a Representative of the United States to promote the general good.

The Constitution of the United States, then, forms a *government*, not a league; and whether it be formed by compact between the States, or in any other manner, its character is the same. It is a government in which all the people are represented, which operates directly on the people individually, not upon the States; they retained all the power they did not grant. But each State having expressly parted with so many powers, as to constitute jointly with the other States a single nation, can not, from that period, possess any right to secede, because such secession does not break a league, but destroys the unity of a nation; and any injury to that unity is not only a breach, which would result from the contravention of a compact, but it is an offense against the whole Union. To say that any State may at pleasure secede from the Union, is to say that the United States are not a nation; because it would be a solecism to contend, that any part of a nation might dissolve its connection with the other parts, to their injury or ruin, without committing any offense. Secession, like any other revolutionary act, may be morally justified by the extremity of oppression; but to call it a constitutional right is confounding the meaning of the terms; and can only be done through gross error, or to deceive those who are willing to assert a right, but would pause before they made a revolution, or incur the penalties consequent on a failure.

Because the Union was formed by compact, it is said the parties to that compact may, when they feel themselves aggrieved, depart from it; but it is precisely because it is a compact that they can not. A compact is an

agreement or binding obligation. It may, by its terms, have a sanction or penalty for its breach, or it may not. If it contains no sanction, it may be broken, with no other consequences than moral guilt; if it have a sanction, then the breach incurs the designated or implied penalty. A league between independent nations generally has no sanction other than a moral one; or, if it should contain a penalty, as there is no common superior, it can not be enforced. A government, on the contrary, always has a sanction, express or implied; and, in our case, it is both necessarily implied and expressly given. An attempt, by force of arms, to destroy a government, is an offense, by whatever means the constitutional compact may have been formed; and such government has the right, by the law of self-defense, to pass acts for punishing the offender, unless that right is modified, restrained, or resumed by the constitutional act. In our system, although it is modified in the case of treason, yet authority is expressly given to pass all laws necessary to carry its powers into effect; and, under this grant, provision has been made for punishing acts which obstruct the due administration of the laws.

It would seem superfluous to add any thing to show the nature of that Union which connects us; but as erroneous opinions on this subject are the foundation of doctrines the most destructive to our peace, I must give further development to my views on this subject. No one, fellow-citizens, has a higher reverence for the reserved rights of the States than the magistrate who now addresses you; no one would make greater personal sacrifices or official exertion to defend them from violation; but equal care must be taken to prevent, on their part, an improper interference with, or resumption of, the rights they have vested in the nation. The line has not been so distinctly drawn as to avoid doubts, in some cases, of the exercise of power. Men of the best intentions and soundest views may differ in their construction of some parts of the Constitution; but there are others on which dispassionate reflection can leave no doubt. Of this nature appears to be the assumed right of secession. It rests, as we have seen, on the alleged undivided sovereignty of the States, and on their having formed, in this sovereign capacity, a compact, which is called the Constitution, from which, because they made it, they have the right to secede. Both of these positions are erroneous, and some of the arguments to prove them so have been anticipated.

The States severally have not retained their entire sovereignty. It has been shown that, in becoming parts of a nation, not members of a league, they surrendered many of their essential parts of sovereignty. The right to make treaties, declare war, levy taxes, exercise exclusive judicial and legislative powers, were, all of them, functions of sovereign power. The States, then, for all these purposes, were no longer sovereign. The allegiance of their citizens was transferred, in the first instance, to the Government of the United States; they became American citizens, and owed obedience to the Constitution of the United States, and to laws made in conformity with the powers it vested in Congress. This last position has not been, and can not be, denied. How, then, can that State be said to be sovereign and independent whose citizens owe obedience to laws not made by it, and whose magistrates are sworn to disregard those laws when they come in conflict with those passed by another? What shows conclusively that the States can not be said to have reserved an undivided sovereignty is, that they expressly ceded the right to punish treason—not treason against their separate power, but treason against the United States. Treason is an offense against sovereignty, and sovereignty must reside with the power to punish it. But the reserved rights of the States are not less sacred because they have, for their common interest, made the General Government the depository of these powers.

The unity of our political character (as has been shown for another purpose) commenced with its very existence. Under the royal government we had no separate character; our opposition to its oppressions began as *united colonies*. We were the United States, under the Confederation, and the name was perpetuated, and the Union rendered more perfect by the Federal Constitution. In none of these stages did we consider ourselves in any other light than as forming one nation. Treaties and alliances were made in the name of all. Troops were raised for the joint defense. How, then, with all these proofs, that, under all changes of our position, we had, for designated purposes, and with defined powers, created national governments; how is it that the most perfect of those several modes of union should now be considered as a mere league, that may be dissolved at pleasure? It is from an abuse of terms. “Compact” is used as synonymous with “league,” although the true term is not employed, because it would at once show the fallacy of the reasoning. It would not do to say that our Constitution was only a league; but it is labored to prove it a compact

(which in one sense it is), and then to argue that, as a league is a compact, every compact between nations must, of course, be a league, and that from such an engagement every sovereign power has a right to recede. But it has been shown that, in this sense, the States are not sovereign, and that even if they were, and the national Constitution had been formed by compact, there would be no right in any one State to exonerate itself from its obligations.

So obvious are the reasons which forbid this secession, that it is necessary only to allude to them. The Union was formed for the benefit of all. It was produced by mutual sacrifices of interests and opinions. Can those sacrifices be recalled? Can the States, who magnanimously surrender their title to the territories in the West, recall the grant? Will the inhabitants of the inland States agree to pay the duties that may be imposed, without their assent, by those on the Atlantic or the Gulf for their own benefit? Shall there be a free port in one State, and onerous duties in another? No one believes that any right exists, in a single State, to involve the others in these and countless other evils contrary to the engagements solemnly made. Every one must see that the other States, in self-defense, must oppose it, at all hazards.

These are the alternatives that are presented by the convention: A repeal of all the acts for raising revenue, leaving the Government without the means of support, or an acquiescence in the dissolution of our Union by the secession of one of its members. When the first was proposed, it was known that it could not be listened to for a moment. It was known, if force was applied to oppose the execution of the laws, that it must be repelled by force; that Congress could not, without involving itself in disgrace and the country in ruin, accede to the proposition; and yet, if this is not done on a given day, or if any attempt is made to execute the laws, the State is, by the ordinance, declared to be out of the Union. The majority of a convention, assembled for the purpose, have dictated these terms, or rather this rejection of all terms, in the name of the people of South Carolina. It is true that the Governor of the State speaks of the submission of their grievances to a convention of all the States, which, he says, they “sincerely and anxiously seek and desire.” Yet this obvious and constitutional mode of obtaining the sense of the other States, on the construction of the Federal compact, and amending it if necessary, has never been attempted by those who have urged the State on to this destructive measure. The State might have

proposed to call for a general convention of the other States; and Congress, if a sufficient number of them concurred, must have called it. But the first magistrate of South Carolina, when he expressed a hope that, “on a review by Congress and the functionaries of the General Government of the merits of the controversy,” such a convention will be accorded to them, must have known that neither Congress, nor any functionary of the General Government, has authority to call such a convention, unless it be demanded by two-thirds of the States. This suggestion, then, is another instance of the reckless inattention to the provisions of the Constitution with which this crisis has been madly hurried on; or of the attempt to persuade the people that a constitutional remedy has been sought and refused. If the Legislature of South Carolina “anxiously desire” a general convention to consider their complaints, why have they not made application for it in the way the Constitution points out? The assertion that they “earnestly seek” it is completely negated by the omission.

This, then, is the position in which we stand. A small majority of the citizens of one State in the Union have elected delegates to a State convention; that convention has ordained that all the revenue laws of the United States must be repealed, or that they are no longer a member of this Union. The Governor of that State has recommended to the Legislature the raising of an army to carry the secession into effect, and that he may be empowered to give clearances to vessels in the name of the State. No act of violent opposition to the laws has yet been committed, but such a state of things is hourly apprehended; and it is the intent of this instrument to proclaim, not only that the duty imposed on me by the Constitution “to take care that the laws be faithfully executed,” shall be performed to the extent of the powers already vested in me by law, or of such others as the wisdom of Congress shall devise and intrust to me for that purpose, but to warn the citizens of South Carolina, who have been deluded into an opposition to the laws, of the danger they will incur by obedience to the illegal and disorganizing ordinance of the convention; to exhort those who have refused to support it to persevere in their determination to uphold the Constitution and laws of their country; and to point out to all the perilous situation into which the good people of that State have been led, and that the course they are urged to pursue is one of ruin and disgrace to the very State whose rights they affect to support.

Fellow-citizens of my native State, let me not only admonish you, as the First Magistrate of our common country, not to incur the penalty of its laws, but use the influence that a father would over his children whom he saw rushing to certain ruin. In that paternal language, with that paternal feeling, let me tell you, my countrymen, that you are deluded by men who are either deceived themselves, or wish to deceive you. Mark under what pretenses you have been led on to the brink of insurrection and treason, and on which you stand! First, a diminution of the value of your staple commodity, lowered by over-production in other quarters, and the consequent diminution in the value of your lands, were the sole effect of the tariff laws.

The effect of those laws was confessedly injurious, but the evil was greatly exaggerated by the unfounded theory you were taught to believe, that its burdens were in proportion to your exports, not to your consumption of imported articles. Your pride was roused by the assertion that a submission to those laws was a state of vassalage, and that resistance to them was equal, in patriotic merit, to the opposition our fathers offered to the oppressive laws of Great Britain. You were told that this opposition might be peaceably—might be constitutionally made; that you might enjoy all the advantages of the Union, and bear none of its burdens. Eloquent appeals to your passions, to your State pride, to your native courage, to your sense of real injury, were used, to prepare you for the period when the mask, which concealed the hideous features of disunion, should be taken off. It fell, and you were made to look with complacency on objects which, not long since, you would have regarded with horror. Look back to the arts which have brought you to this state—look forward to the consequences to which it must inevitably lead! Look back to what was first told you as an inducement to enter into this dangerous course. The great political truth was repeated to you, that you had the revolutionary right of resisting all laws that were palpably unconstitutional and intolerably oppressive; it was added that the right to nullify a law rested on the same principle, but that it was a peaceable remedy! This character which was given to it, made you receive, with too much confidence, the assertions that were made of the unconstitutionality of the law and its oppressive effects. Mark, my fellow-citizens, that, by the admission of your leaders, the unconstitutionality must be *palpable*, or it will not justify either resistance or nullification! What is the meaning of the word *palpable*, in the sense in which it is here used? that which is apparent to every one; that which no man of ordinary intellect will

fail to perceive. Is the unconstitutionality of these laws of that description? Let those among your leaders who once approved and advocated the principle of protective duties, answer the question; and let them choose whether they will be considered as incapable, then, of perceiving that which must have been apparent to every man of common understanding, or as imposing on your confidence, and endeavoring to mislead you now. In either case, they are unsafe guides in the perilous path they urge you to tread. Ponder well on this circumstance, and you will know how to appreciate the exaggerated language they address to you. They are not champions of liberty, emulating the fame of our revolutionary fathers; nor are you an oppressed people, contending, as they repeat to you, against worse than colonial vassalage.

You are free members of a flourishing and happy Union. There is no settled design to oppress you. You have, indeed, felt the unequal operation of laws which may have been unwisely, not unconstitutionally passed; but that inequality must necessarily be removed. At the very moment when you were madly urged on to the unfortunate course you have begun, a change in public opinion had commenced. The nearly approaching payment of the public debt, and the consequent necessity of a diminution of duties, had already produced a considerable reduction, and that, too, on some articles of general consumption in your State. The importance of this change was underrated, and you are authoritatively told that no further alleviation of your burdens were to be expected at the very time when the condition of the country imperiously demanded such a modification of the duties as should reduce them to a just and equitable scale. But, as if apprehensive of the effect of this change in allaying your discontents, you were precipitated into the fearful state in which you now find yourselves.

I have urged you to look back to the means that were used to hurry you on to the position you have now assumed, and forward to the consequences it will produce. Something more is necessary. Contemplate the condition of that country of which you still form an important part. Consider its Government, uniting in one bond of common interest and general protection so many different States—giving to all their inhabitants the proud title of American citizens; protecting their commerce; securing their literature and their arts; facilitating their intercommunication; defending their frontiers, and making their names respected in the remotest parts of the earth.

Consider the extent of its territory; its increasing and happy population; its advance in arts, which render life agreeable; and the sciences, which elevate the mind! See education spreading the lights of religion, morality, and general information into every cottage in this wide extent of our Territories and States! Behold it as the asylum where the wretched and the oppressed find a refuge and support! Look on this picture of happiness and honor, and say: "*We, too, are citizens of America!*" Carolina is one of these proud States—her arms have defended—her best blood has cemented this happy Union!" And then add, if you can, without horror and remorse, "this happy Union we will dissolve; this picture of peace and prosperity we will deface; this free intercourse we will interrupt; these fertile fields we will deluge with blood; the protection of that glorious flag we renounce; the very name of Americans we discard." And for what, mistaken men—for what do you throw away these inestimable blessings? for what would you exchange your share in the advantages and honor of the Union? For the dream of separate independence—a dream interrupted by bloody conflicts with your neighbors, and a vile dependence on a foreign power. If your leaders could succeed in establishing a separation, what would be your situation? Are you united at home—are you free from the apprehension of civil discord, with all its fearful consequences? Do our neighboring republics, every day suffering some new revolution, or contending with some new insurrection—do they excite your envy? But the dictates of a high duty obliges me solemnly to announce that you can not succeed. The laws of the United States must be executed. I have no discretionary power on the subject—my duty is emphatically pronounced in the Constitution. Those who told you that you might peaceably prevent their execution, deceived you—they could not have been deceived themselves. They know that a forcible opposition could alone prevent the execution of the laws, and they know that such opposition must be repelled. Their object is disunion; but be not deceived by names; disunion, by armed force, is *treason*. Are you really ready to incur its guilt? If you are, on the heads of the instigators of the act be the dreadful consequences—on their heads be the dishonor, but on yours may fall the punishment; on your unhappy State will inevitably fall all the evils of the conflict you force upon the government of your country. It can not accede to the mad project of disunion, of which you would be the first victims—its First Magistrate can not, if he would, avoid the performance of his duty; the consequences must be fearful to you, distressing to your

fellow-citizens here, and to the friends of good government throughout the world. Its enemies have beheld our prosperity with a vexation they could not conceal—it was a standing refutation of their slavish doctrines, and they will point to our discord with the triumph of malignant joy. It is yet in your power to disappoint them. There is yet time to show that the descendants of the Pinckneys, the Sumters, the Rutledges, and of the thousand other names, which adorn the pages of your revolutionary history, will not abandon that Union, to support which so many of them fought, and bled, and died.

I adjure you, as you honor their memory—as you love the cause of freedom, to which they dedicated their lives—as you prize the peace of your country, the lives of its best citizens, and your own fair fame, to retrace your steps. Snatch from the archives of your State the disorganizing edict of its convention—bid its members to re-assemble, and promulgate the decided expressions of your will to remain in the path which alone can conduct you to safety, prosperity, and honor. Tell them that, compared to disunion, all other evils are light, because that brings with it an accumulation of all. Declare that you will never take the field unless the star-spangled banner of your country shall float over you; that you will not be stigmatized when dead, and dishonored and scorned while you live, as the authors of the first attack on the Constitution of your country. Its destroyers you can not be. You may disturb its peace—you may interrupt the course of its prosperity—you may cloud its reputation for stability; but its tranquillity will be restored, its prosperity will return, and the stain upon its national character will be transferred, and remain an eternal blot on the memory of those who caused the disorder.

Fellow-citizens of the United States! The threat of unhallowed disunion—the names of those once respected, by whom it is uttered—the array of military force to support it—denotes the approach of a crisis in our affairs, on which the continuance of our unexampled prosperity, our political existence, and perhaps that of all free governments, may depend. The conjuncture demanded a free, a full, and explicit enunciation, not only of my intentions, but of my principles of action: and as the claim was asserted of a right by a State to annul the laws of the Union, and even to secede from it at pleasure, a frank exposition of my opinions in relation to the origin and form of our government, and the construction I give to the instrument by which it was created, seemed to be proper. Having the fullest confidence in

the justness of the legal and constitutional opinion of my duties, which has been expressed, I rely, with equal confidence, on your undivided support in my determination to execute the laws—to preserve the Union by all constitutional means—to arrest, if possible, by moderate but firm measures, the necessity of a recourse to force; and, if it be the will of Heaven, that the recurrence of its primeval curse on man for the shedding of a brother's blood should fall upon our land, that it be not called down by any offensive act on the part of the United States.

Fellow-citizens! the momentous case is before you. On your undivided support of your Government depends the decision of the great question it involves, whether your sacred Union will be preserved, and the blessings it secures to us as one people shall be perpetuated. No one can doubt that the unanimity with which that decision will be expressed, will be such as to inspire new confidence in republican institutions, and that the prudence, the wisdom, and the courage which it will bring to their defense will transmit them unimpaired and invigorated to our children.

May the Great Ruler of Nations grant that the signal blessings with which He has favored ours, may not, by the madness of party or personal ambition, be disregarded and lost; and may His wise providence bring those who have produced this crisis to see their folly, before they feel the misery of civil strife, and inspire a returning veneration for that Union, which, if we may dare to penetrate His designs, He has chosen as the only means of attaining the high destinies to which we may reasonably aspire.

In testimony whereof, I have caused the seal of the United States to be hereunto affixed, having signed the same with my hand.

Done at the city of Washington, this 10th day of December, in the year of our Lord one thousand eight hundred and thirty-two, and of the Independence of the United States the fifty-seventh.

By the President:

ANDREW JACKSON.

EDWD. LIVINGSTON, *Secretary of State*.

HISTORY OF THE STATES.

VIRGINIA.

“The Old Dominion,” so distinguished as being the native State of the Father of American Liberty, and the “Mother of Presidents,” really seemed at one time, to be peculiarly favorable to the birth and development of statesmen. It has furnished no less than five Presidents, among whom are Washington, Monroe, Madison, and Jefferson. It was the first Colony, on the Continent, settled by the English. In 1607, a company formed under the patronage of James I, obtained a grant to make settlements in America, between the 34th and 38th degrees of north latitude. In May, 1607, a colony of one hundred and five persons, under direction of this company, arrived off the coast of South Virginia. Their intention had been to form a settlement on Roanoke, now in North Carolina; but being driven north by a violent storm, they discovered and entered the mouth of Chesapeake Bay. Passing up this bay they named its capes—Henry and Charles—in honor of the king’s two sons. They were commanded by Capt. Christopher Newport, an experienced and distinguished navigator. Passing up James River, they arrived at a peninsula, upon which they landed and established Jamestown.

After promulgating a code of laws which had been formed by the London company, Capt. Newport sailed for England, leaving the colony under the care of Capt. John Smith, whose subsequent relations to the settlement became so important, and without whose efforts the enterprise would doubtless have proved a failure. The colonists seem to have been very poorly adapted to the labor required at their hands. Too many of them were *gentlemen*, and came, it appears, only to enrich themselves by gathering gold, which, they had heard, was very abundant.

Through a series of difficulties, which it is rarely the lot of man to encounter, this colony progressed; the settlers awhile quarreling among themselves, and awhile contending against savages and famine, for bare existence, until the period of the Revolution, in which it was one of the first colonies to take active part, furnishing to the young republic many of its

most efficient military chieftains and statesmen. It ratified the Constitution June 26, 1788. After the Revolution its course was for many years one of great prosperity. But, unfortunately, the year 1861 found the majority of its statesmen arrayed against the Government, on the side of secession, and on the 15th of April, 1861, she seceded from the Union. On the 17th of June, 1861, all the counties lying between the Alleghany Mountains and the Ohio River, were, by a convention held at Wheeling, declared independent of the old State government, and were organized into a new State, called West Virginia, which remains loyal. The capital of the old State was selected as the seat of government of the so-called Confederate States of America.

MASSACHUSETTS.

Massachusetts was settled in the year 1620, by the Puritans. These people, having been severely persecuted in England, had previously taken refuge in Holland; but for various reasons they determined, after remaining in Holland a season, to emigrate to the New World. Unfortunately, they started at a very unpropitious season of the year, arriving at New England in the winter. The severity of the climate, their scarcity of food at times, operated seriously against their comfort and progress. It is said that they were frequently threatened with starvation. At one time the entire company had but one pint of Indian corn, which being divided equally among them, allowed to each person eight grains. But, unlike the early settlers of Virginia, they were all working men, and good economists. From the time of the landing at Plymouth, up to 1691, this first settlement was known as the Plymouth Colony. Meantime, another settlement had been formed, styled the Massachusetts Colony. Both were for some years under the control of a London company. In 1691, Massachusetts and Plymouth Colonies were united, and thenceforward their history is one. The people of Massachusetts were, during the early part of their colonial existence, sorely vexed, at times, by the Indians, especially by the Pequods. They, unfortunately, had imbibed, during their own persecutions, too much of the spirit of conscription, and, although themselves refugees from religious bigotry, sullied much of their history prior to the Revolution by punishing what they called heresy in the Quakers and Baptists. During 1774 and 1775, Massachusetts took a very prominent part in favor of colonial rights, and was the first State to manifest the spirit of resentment toward Great Britain.

Its history during the War for Independence is one of glory. It adopted the Constitution June 6, 1788.

NEW HAMPSHIRE.

This State was a part of Massachusetts up to the year 1680. It was, however, settled in 1624, the first settlement being formed at Dover by the English. In 1680, it was erected into a separate colony, and its first legislative assembly met this year. John Mason was its first Governor. It suffered severely from Indian wars, and its progress, during the first years of its existence, was slow. In 1742 it contained only six hundred persons liable to taxation. Its first Constitution was formed in 1683. It suffered from the effects of an insurrection in 1686, although prior and subsequent to this affair, it seems to have been one of the most peaceful and quiet of the colonies. It is distinguished for its excellent pastures, towering hills, and fine cattle. The White Mountains are the highest in New England. It took a prominent and active part in the Revolution. It ratified the Constitution June 21, 1788, since which time it has been highly prosperous. Its present population is 326,073. Its course during the rebellion has been highly commendable.



ANDREW JACKSON.

MARYLAND.

In 1632, Sir George Calvert (Lord Baltimore) visited America, explored a tract of country lying on the Chesapeake Bay, belonging to what was then called South Virginia, and returned to England to procure a grant for it. But before the patent was made out, he died, and it was given to his son Cecil. The province was named by King Charles I, in the patent, in honor of his Queen, Henrietta Maria. A part of the province appears to have been included in the grant made some time afterward to William Penn, and to have caused much contention between the successors of Penn and Baltimore.

In March, 1634, Leonard Calvert, the brother of Cecil, arrived at the mouth of the Potomac River, bringing with him two hundred emigrants, most of whom were Roman Catholic gentlemen. Leaving the vessel, he ascended in a pinnace as far as Piskataqua, an Indian village nearly opposite Mount Vernon. The Indian Sachem gave him full liberty to settle there if he chose; but not deeming it safe, he began a settlement lower down on a branch of the Potomac, at the Indian town of Yoacomoco. The settlement was called St. Mary's.

Maryland made a very fortunate beginning. The colonists arrived in time to make a crop for that year. Their neighbors in Virginia supplied them with cattle, and protected them in great part from the Indians, while their own kind and consistent course materially promoted their happy relations with the savages.

The charter which had been granted them was very liberal—ceding to them the full power of legislation, without any interference on the part of the Crown. In 1635, they made laws for their government, which were somewhat modified in 1639. In 1650, they had an upper and lower legislative assembly, as had their Virginia neighbors.

Ten or twelve years after its settlement, Maryland was disturbed by an insurrection, headed by one Clayborne; but this difficulty was soon settled. It played a conspicuous part in the Revolution, and adopted the Constitution April 28, 1788. Its progress has been fair, its present population being 687,049. Its geographical position and the mixed political character of its people caused it to assume a rather dubious attitude at the commencement of the rebellion of 1861. Some of its best statesmen, however, were among the most uncompromising friends of the Union.

NEW YORK.

Captain Henry Hudson, the famous voyager, discovered what is now New York, together with a considerable extent of territory contiguous to it, in the year 1609. Although an Englishman by nativity, Hudson was at this time employed by the Dutch, (Hollanders) who, consequently, claimed the territory. Meantime the English set up a claim to it, as being part of North Virginia. They also claimed it on account of Hudson being an Englishman. The Dutch, however, determined to hold it, and in 1610 opened a trade with

the natives at Manhattan Island, on the spot where the city of New York now stands. They erected a fort on or near the site of Albany, named the country in general, New Netherlands, and the station at Manhattan, New Amsterdam. The Dutch retained the country until the year 1664.

It seems that, up to this time, they claimed not only the present territory of New York, but also that of Connecticut and New Jersey. The liberal governments of the surrounding colonies stood in great contrast with the despotic one imposed by the Dutch Government upon their American colonists. And when, in 1664, the English squadron dispatched by James, Duke of York, with instructions to take possession of the province of New Netherlands, appeared before New Amsterdam, the inhabitants were willing to capitulate without resistance. Peter Stuyvesant, their Governor, and an able executive, made vain efforts to rouse them to defense, and was forced to surrender. The English Government was now acknowledged over the whole of New Netherlands, the capital receiving the name of New York, as well as the province. From this time forward to the Revolutionary War, New York remained in the hands of the English, and was under the control of a very arbitrary succession of Governors. The progress of the colony was steady, in numbers, wealth, and civilization. It took an active part in the Revolution, and adopted its Constitution July 26, 1788. After this it outstripped every other State in the Union in every thing pertaining to wealth and greatness, save education, in which matter no State can compare with Massachusetts. At the commencement of the great Rebellion, this noble State showed herself truly worthy to be ranked as the Empire State. She has furnished the Government more money than any other State. Her population is 3,880,735.

CONNECTICUT.

In the year 1633, the Puritans of Massachusetts, having heard very flattering reports of the valley of Connecticut, resolved to make an effort to settle it. Accordingly, a company of them sailed for the Connecticut River, taking with them the frame of a house. Meantime the Dutch, claiming the territory as theirs, built a fort on the river where Hartford now stands, to prevent the emigrants from passing up. The Yankees, however, with that steady perseverance which has always marked their course, proceeded on

their way, paying no attention to the Dutch fort, whose only demonstration was an unexecuted threat to fire on the emigrants if they passed it. Landing where Farmington River enters the Connecticut, they founded the town of Windsor. Other settlements were subsequently formed at Westerfield, Hartford, and Watertown. The first general court was held at Hartford, in the year 1636. The province suffered severely from the depredations of the Pequod Indians, with which tribe a great and decisive battle was ultimately fought on the river Mystic, in the year 1636.^[3] During this year the towns of Windsor, Hartford, and Wethersfield, met in convention and formed a Government, electing John Haynes the first Governor of the colony.

Its course from this period forward was one of great prosperity. It stood in the front rank during the war for Independence, and in no case was ever known to flinch from duty. It ratified the Constitution June 9, 1788. Its present population is 460,147.

At the commencement of the Rebellion, in 1861, its voice was for the Union and the Government of the Fathers. Its aid in behalf of freedom has been earnest and efficient.

RHODE ISLAND.

In June, 1636, Roger Williams, an earnest, enthusiastic advocate of religious liberty in the broadest sense, having been banished by the Puritans of Massachusetts from that colony, went to what is now known as Rhode Island, purchased the present site of Providence of the Narragansett Indians, and founded a colony, of which he was at once pastor, teacher, and father. He donated land to any whom he thought worthy, and Providence Plantation, as it was long called, became an asylum for persecuted Christians of all denominations, especially the Baptists. The first settlement in Rhode Island proper, was formed by William Codrington, in the year 1636. Up to 1640, the citizens of Rhode Island made their own laws in general convention. But, in 1644, Roger Williams, with the aid of Gov. Vane, of Massachusetts, procured a charter for two settlements, under the name of Rhode Island and Providence Plantations. The Constitution framed under this charter was a good one; and lasted until the year 1818. For many years the legislative assembly of this colony met twice a year.

Rhode Island is distinguished as the smallest State in the Union. It did noble service in the war for Independence, but did not, for some reason, adopt the Constitution till the 29th of May, 1790. It has been a highly prosperous State; is distinguished for its good schools and large manufactories.

At the breaking out of the Rebellion in 1861, it stepped nobly forward in defense of the Government, sending its own Governor to Washington at the head of a regiment of volunteers. Its population is 174,620.

NEW JERSEY,

At first, formed a part of the Dutch province of New Netherlands. But soon after the latter came into the hands of the English, the Territory of New Jersey was transferred to Lord Berkley and Sir George Carteret, by the Duke of York. The first permanent settlement was formed at Elizabethtown, in 1664, by emigrants from Long Island. Philip Carteret arrived in the colony in 1665, and became its first Governor. The province had very little trouble with the Indians. Many emigrants from New England and New York soon arrived, and for a series of years the colony advanced in prosperity. It enjoyed the blessings flowing from a liberal form of government.

In the year 1685, the Duke of York became the King of England, under the title of James II, and disregarding his former pledges, assumed, in 1688, the government of New Jersey, placing it under the control of Sir Edmund Andros, whom he had already made Governor of New York and New England. This state of things was terminated by the revolution in England, but left New Jersey for years in a very precarious condition. In 1702, its proprietors having resigned their claims, it became a royal province, and was united to New York. In 1738 it became again a separate province, and so continued until the Revolution, in which it took a very active part in favor of liberty. It ratified the Constitution December 18, 1787. Thenceforward its career has been a highly prosperous one. Its strength has been put forth to aid in crushing the great Rebellion. Population 672,075.

DELAWARE.

Gustavus Adolphus, King of Sweden, formed a plan of establishing colonies in America as early as the year 1626. But as he died on the field of Leutzen, during the German war in 1633, without carrying his scheme into effect, his minister took it up, and employed Peter Minuets, the first Governor of New Netherlands, to carry it into effect. In 1638, a small Swedish colony arrived under the direction of Minuets, and settled on Christian Creek, near the present town of Wilmington. Notwithstanding the remonstrances of the Dutch Government of New Netherlands, who claimed the territory, the Swedes continued to extend their settlements from this time until they preëmpted all the territory from Cape Henlopen to the falls of the Delaware. At this time the colony was called New Sweden. In 1651, Governor Stuyvesant, to check the aggressive movements of the Swedes, built a fort near the present site of New Castle, of which the Swedes afterward obtained possession by stratagem. Enraged at this movement, the Government of Holland ordered Stuyvesant to reduce the Swedes to submission, which he speedily accomplished with six hundred men, in 1655. The province was soon after annexed to New Netherlands. Delaware was, after it fell into the hands of the English, included in the grant made to William Penn, in 1692. It remained attached to Pennsylvania till 1691, when it was allowed a separate government. It was reunited to Pennsylvania in 1692. In 1703, it was again separated, having its own legislature, though the same Governor presided over both colonies. The ancient forms of the government were preserved through the revolutionary struggle. It ratified the Constitution December 7, 1787.

Its position, at the commencement of the rebellion of 1861, was somewhat dubious. It being a northerly slave State, was somewhat divided as to where its interests lay. It, however, finally came out somewhat decidedly for the Union, although its entire strength has not been exerted against the rebellion. Its population is 112,216.

THE CAROLINAS.

In the year 1563, the coast of Carolina was explored, and named after Charles IX, of France. The first attempt to settle it was made by the celebrated and accomplished Sir Walter Raleigh, in 1585, twenty-two years before the settlement of Jamestown, and thirty-five years before the

Puritans landed at Plymouth. This effort failed, on account of the incapacity of the Governor appointed by Raleigh, and the ill-behavior of the colonists toward the natives.

The first successful attempt was made sometime between 1640 and 1650, under the direction of Governor Berkley. The settlement was made in Albemarle County, by a few Virginia planters. In 1663, a large tract of land, lying between the 30th and 36th degrees of north latitude, having the Atlantic Ocean for its eastern boundary, was conveyed by Charles II, to Lord Clarendon and associates, under whose auspices a settlement was made near the mouth of Cape Fear River, in the year 1665, by emigrants from Barbadoes. Sir James Yeomans was appointed Governor. A settlement was made at Port Royal, South Carolina, in 1670; and in 1671, a few persons located at what was then called Old Charleston, which place was abandoned in 1680, and the foundation of the present city of Charleston laid, several miles nearer the sea.

All the various settlements here mentioned went under the general name of Carolina, until 1571, when a division was made, and the northern and southern portions were called by their distinctive names, North and South Carolina. These States were the scenes of many revolutionary tragedies. South Carolina, in particular, although the home of Sumter, and Marion, and Rutledge, was replete with tories, (royalists) who spared no efforts to annoy the infant Republic, and play into the hands of the British Government. South Carolina ratified the Constitution May 23, 1788, but threatened to break the compact in 1832, and was only prevented by the stern will of President Jackson. After this the State did nothing worthy of note until December 20, 1860, when it seceded from the Union, taking the lead in the great Rebellion. Present population 703,708.

North Carolina ratified the Constitution November 21, 1789, and seceded from the Union May 21, 1861. Population 992,622.

PENNSYLVANIA.

The Old Keystone State, and one of the most wealthy and prosperous in the Union, was settled by the Quakers, under the direction of Wm. Penn, at Philadelphia, in the year 1682. The founder of this colony showed himself a philosopher, a philanthropist, a thorough political economist, at the very

commencement of his labors. He put the province under the government of a Council of Three and a House of Delegates, chosen by the freemen, who, according to his arrangement, were all those who acknowledged the existence of one God. He pursued such a course with the natives as won their confidence and esteem. No Quaker was ever murdered by an Indian; and to this day the “sons of Wm. Penn” are everywhere respected by the savage. The treaty Penn made with the Indians was never violated. In framing the colonial government, he provided for the largest religious liberty, allowing every one to worship according to the dictates of his own conscience. Up to 1684, Delaware, as before mentioned, was included in Penn’s grant. But about this time he procured a new charter, more strictly defining the rights and limits of Pennsylvania, and Delaware was detached. For seventy years prosperity smiled upon this colony, during much of which time Penn was, according to the historian, its governor, magistrate, preacher and teacher. It was troubled with no Indian wars till 1754, when Penn’s example and teachings began to be forgotten. The population, owing to a considerable influx from Sweden, Germany, and some other countries, began, at a later date, to assume a more varied aspect; and when the colonies rebelled against the mother country, Pennsylvania contained sufficient “fighting” material to lend valuable assistance to the cause of liberty.

She adopted the Constitution December 12th, 1787, since which time her increase in wealth, and advancement in general improvement has been almost without a parallel. Her vast coal fields and rich iron mines constitute a source of eternal wealth. Upon the breaking out of the rebellion of 1861, her position in favor of the Union was well defined.

Her population is 2,906,115.

GEORGIA.

General James Oglethorpe, and a company of twenty-one others, received, in the year 1732, from George II, of England, a grant for all the land between the Savannah and the Altamaha Rivers. In January, 1733, a company of one hundred and fourteen men, women, and children, arrived at Charleston, S. C., destined for Georgia. They were kindly treated by the Charlestonians, and were greatly assisted by them in their labor of forming

a colony. The first laws made for the province by the twenty-two grantees, prohibited the importation of rum, trade with the Indians, and the use of negroes. They also provided that lands should go back to the original owners in case the purchaser had no male heirs. Although the first, second, and third of these provisions were undoubtedly wholesome, the fourth was highly objectionable, and tended very much to retard the progress of the colony. In the year 1740, General Oglethorpe, as commander-in-chief of the forces in Georgia, at the head of two thousand men, invaded Florida with the intention of forcibly annexing it to Georgia; but he was soon repelled from the territory, and returned home bootless. The Spanish, in turn, with two sail of vessels and three thousand men, invaded Georgia in 1742, and were likewise forced to return home thwarted. The progress of this colony was for many years very slow; the people manifesting that indolence and indifference which is still too prominent a characteristic of Georgians. It was mainly on the side of freedom during the revolution.

It ratified the Constitution January 9th, 1788. Since the Revolution, the State has manifested but little life as compared with its sisters, and its secession from the Union, May 19th, 1861, was followed by speedy ruin.

VERMONT.

The territory of which this State is composed began to be settled in the year 1731, but was for some years considered as a part of New Hampshire. It was also claimed at one time by New York, and a contest arose between that State and New Hampshire, which was adjusted by the King of England in a manner by no means satisfactory to the settlers. The result was a quarrel between Vermont and the Crown, in which the Green Mountain Boys, led by Col. Ethan Allen, resisted the officers of justice, as well as the New York militia, who were called out to sustain them.

The province appears not to have had even a territorial government until 1777, at which time a convention of delegates met at Westminster, and declared themselves an independent State, under the name of New Connecticut. Previous to this time, however, they had rendered material aid to the Revolution. In May, 1755, Col. Allen, at the head of two hundred and seventy men, reduced Fort Ticonderoga and Crown Point, and thus became complete masters of Lake Champlain. During the whole period of the

Revolution the State did good service in the cause of liberty, although it remained independent. Some time subsequent to its declaration of independence its name was changed to Vermont. As it was not one of the original States, it did not ratify the Constitution, but, upon application, was admitted to the Union during the second session of Congress, in the year 1791. It has been a highly prosperous State, and added much to the luster of the Union in its palmy days of peace. It fully sustained its Revolutionary reputation at the commencement of the Rebellion of 1861. Its population is 315,098.

KENTUCKY

Was settled, in the year 1775, by Daniel Boone and a number of associates from North Carolina. The trials and adventures of these hardy pioneers, and especially those of Boone, constitute one of the most romantic leaves in the history of the West. For over two years, previous to 1775, Boone was busily employed in surveying Kentucky, building roads and forts. One of the latter he erected at Boonesborough; to which place he removed his family, in 1775. Boone said that his wife and daughter were the first white women who ever stood on the banks of the Kentucky River. For a number of years after Boone's settlement, he and his associates experienced many difficulties with the natives—Boone's daughter being at one time captured by the Indians, though shortly afterward rescued by her father. But, notwithstanding the difficulties with the savages, the young territory grew rapidly in population and wealth, and on June 1st, 1792, was admitted to the Union. Having a fertile soil, and affording excellent pasturage, she has far outstripped most of her slaveholding sisters in general improvement.

Her position for some time after the commencement of the Rebellion was by no means promotive of her prosperity. Owing to her attempt to observe strict neutrality, she became the scene of many guerrilla outrages, and has suffered, perhaps, more than any other State during the struggle.

Her population is 1,115,684.

TENNESSEE.

Was, for some time, a part of North Carolina. It was made a territorial government in the year 1790, and was admitted into the Union in 1796. The first permanent white inhabitants of Tennessee went there, in the year 1775, and built Fort Loudon, now in Blount County. They were, in 1760, attacked by the savages, and two hundred persons were massacred. But, in 1767, the natives were reduced to submission by Colonel Grant, and a treaty was made with them, which encouraged emigration. Settlements were formed on Holston River in 1765, which, although frequently attacked by the Indians, made very fair progress. Colonel John Sevier, with the Tennessee militia and a few Virginia soldiers, gained a decisive victory over the savages, and, from this time forward, though more or less harassed by the Indians, the progress of the State, in population and improvement, was rapid. North Carolina gave up the Territory in 1789, and, in 1790, Congress recognized it as a separate province. It has great extent of territory, and, up to 1861, was considered as among the greatest of the agricultural States. At this time, however, it was seduced by the voice of the siren, Secession, and on the 24th of June, 1861, formally seceded from the Union. It should be stated, however, in justice to the State, that the eastern portion of it was generally loyal, and was only dragged out of the Union by force. It has, since the Rebellion, been readmitted into the Union.

OHIO.

Ohio was admitted to the Union on the 29th of November, 1802, the State containing, at the time, 72,000 inhabitants—2,000 more than was required in order to its admission. It was settled in the spring of 1788, one year after it, with a vast additional extent of North-western territory, had been ceded, by Virginia, to the United States.

The year 1788 was a famous year for emigration. It witnessed the passage of no less than 20,000 persons down the Ohio River. The company which settled Ohio consisted of forty persons, under General Rufus Putnam. They built a stockade fort at Marietta, of sufficient strength to resist the attacks of the natives, cleared several acres of ground, and planted a crop. They were joined by twenty additional families in the autumn. Both these companies were New England people.

For a number of years they were not troubled by the savages, nor did any of their number trouble the Indians, except in one or two instances. The earliest settlers of Cincinnati arrived there, about twenty in number in 1790. Until the year 1795, the attempts made to settle most parts of Ohio were attended with great difficulties, on account of Indian wars. Marietta, however, formed an exception to this rule. After the great victory which General Wayne achieved over the savages during Washington's administration, the population increased rapidly. Unembarrassed by any centralizing or aristocratic institutions, possessed of the finest natural resources, and vitalized by an enterprising population, Ohio, after its admission into the Union, made an advancement of which any State might well be proud. In population it is the third State in the Union, numbering 2,390,502.

At the breaking out of the Rebellion, Ohio took its position staunchly for the Union, and has done much during the war for the restoration of the authority of the Government over the seceded States.

LOUISIANA.

Was ceded by Spain to France in the year 1802, and was bought by the United States of the latter power, in 1803, at a cost of \$15,000,000. Governor Clayborne took possession of it the same year. It was settled by the French, at Iberville, in 1699, and was admitted into the Union April 8th, 1812. It is an important State, in that it holds the keys of entrance to the mouth of the Mississippi. In the year 1860, nearly one-half of its population was slave. It seceded from the Union on the 26th of January, 1861. Its population in 1860 was 708,002. It has been a very forward State in the great Rebellion.

INDIANA.

About the year 1690, a French settlement, the first in Indiana, was made at Vincennes, that place being within the territory claimed, at that time, by the French, upon priority of discovery by La Salle. Indiana was long the residence of various Indian tribes, and the theater of Indian wars. By the terms of the treaty of the peace of 1763, it, with the rest of the North-

western Territory, was ceded to Great Britain. It was still claimed by the Indians, but, by various treaties, extensive tracts were obtained for settlement. The Indians, however, retained possession of many parts of the State up to the year 1812, and to that portion known as the Indian Reserve, even later. It was erected into a Territory in 1809, and on the 11th of December, 1816, was admitted into the Union. Its population—1,350,428, in the year 1860—is an indication of its progress. In the matter of education, Indiana is somewhat behind some of her Western sisters, but her efforts in behalf of the Government during the great Rebellion shall halo her future with glory.

MISSISSIPPI.

The territory comprising the present States of Mississippi and Alabama having been divided, that portion lying next the river was, in 1817, admitted into the Union as a State, under the name Mississippi, while the eastern portion was organized as a Territory, and named Alabama. The whole of this territory was explored, first by Ferdinand De Soto, and afterward by La Salle. It suffered greatly during the wars of the Natchez Indians. The Choctaws, for a long time, retained possession of the northern portion of it, and were, to some extent, civilized. Mississippi was settled by the French, in 1716, at Natchez. Its population—791,305—shows fair progress. On the 9th of January, 1861, it went the way of the seceding States, since which time, its course, like theirs, has been downward.

ILLINOIS.

This most thriving and prosperous State came into the Union on the 3d of December, 1818. Until 1809 it was a part of Indiana, at which time it became a separate territory, and so remained till received into the Union. This State has been little disturbed by civil divisions or by Indian wars. Its most serious troubles arose from the appearance, within its borders, of the Mormons, in 1838, and from attempts made to curb their irregularities. This singular people, believing themselves to be ill-treated, assembled to the number of 700, under their leaders, in a remote part of the State, and proposed fighting for their rights. But a body of three hundred troops marched against and captured them. The whole sect was ultimately reduced

to submission, and banished the State. It was explored by La Salle, and settled by the French at Kaskaskia,^[4] in 1720. Its growth has been immense. Its population, in 1860, was 1,711,951. Its history has been one of the most glorious of the loyal States during the great Rebellion.

ALABAMA

Was admitted to the Union on the 14th of December, 1819. It has a deep, rich soil, and in many places a healthful climate. It remained till the Revolution a mere hunting-ground of the savages. From the peace of 1783 to 1802 it was claimed by Georgia, and lands were sold to settlers and speculators accordingly. In the year 1802, Georgia ceded all her western territory to the United States for \$1,250,000. In 1800, the present State of Alabama became a part of Mississippi Territory, from which it was separated when Mississippi became a State. It was settled, in 1711, at Mobile, by the French, being a part of the territory explored by La Salle in his Mississippi tour. It formally seceded from the Union, January 11, 1861.

MAINE.

In the year 1638, the same year in which New Haven was settled, Ferdinand Gorges procured a charter of the King of England for all the lands from the borders of New Hampshire, on the south-west, to Sagadahoc, on the Kennebeck River, on the north-east, under the name of the Province of Maine. It remained a separate province till 1652, when it became a part of Massachusetts. Various attempts were made, between 1785 and 1802 to form it into an independent State; but these efforts failed. In 1819 a large majority of the people were in favor of separating from Massachusetts. A convention was called, a Constitution prepared and adopted, and, in 1820, Maine was received into the Union. It is, by no means, an agricultural State, but its extensive fisheries and great lumber trade have greatly enriched it, and its progress in morality has, perhaps, been superior to that of any other State. It is the only State in the Union that has an efficient prohibitory liquor law. It proved itself true to the Government in 1861, and there is no danger of its ever ceasing to be so.

It was settled in 1625, at Bristol, by the English. Its population is 628,279.

MISSOURI.

This great, though crippled, State was admitted into the Union on the 10th of August, 1821. It, with all the territory then belonging to the United States, west of the Mississippi, was included in the purchase of Louisiana, made in 1803. Louisiana afterward was divided into Orleans Territory, Louisiana proper, and Missouri Territory. In 1819, Missouri Territory was divided into Arkansas, on the south, and Missouri on the north; and it was about this time that the latter took the requisite steps toward framing a State Constitution. It will be remembered that this is the State, the discussion of the propriety of the admission of which raised such a storm in Congress in 1820.

Being a border slave State, it was nearly equally divided on the question of secession in 1861, and thus, like Kentucky, has been overrun by both Southern and Northern troops during the Rebellion, and has been the scene of much bloodshed and ruin. It was settled in 1764, at St. Louis, by the French. Its population is 1,182,012.

FLORIDA.

The Peninsular States, discovered and explored by Ponce de Leon, a voyager with Columbus, and whose name was suggested to the discoverer by the abundance and beauty of its wild flora, was, from 1512 to 1819, with the exception of the interval between 1763 and 1783, a province of Spain. The first attempt to settle it was made in the year 1565, at St. Augustine, which is said to be the oldest town in America, by the Spaniards. This effort was attended with many difficulties, the colonists contending, for the first few years, alternately with the horrors of savage warfare and famine, at times being forced to subsist on roots and acorns. In 1819 it was transferred to the United States by treaty, which treaty was, after much delay, ratified by Spain, and with still more delay by the United States. Possession of the colony was granted the Government in July, 1821. The territory contained, in 1840, a population of 54,477, and on the 3d of March, 1845, became a

State, and was received into the Union. Florida was the theater of the Seminole war, which cost the United States so much blood and treasure. It went the way of the seceding States, January 7th, 1861. Florida, like the Indian's gun, has "cost more than she has come to." Her population in 1860, was 140,425.

ARKANSAS.

This State lies South of Missouri, and was once attached to it. It has a fine climate and prolific soil. The first settlement of whites within its limits was made at Arkansas Post, in the year 1685. The earlier inhabitants were French. Its progress, for many years, was very slow. It was not till about the year 1829 that the tide of emigration began to flow from the Atlantic States in that direction. Little Rock, the early seat of government and the present capital, was laid out in the year 1820, during which year the first steamboat ascended the Arkansas River. The boat was eight days in going from New Orleans to the village of Arkansas—a distance of scarcely one hundred miles above the mouth of the Arkansas River. The State once contained the remnants of several powerful tribes of Indians. By a treaty made between the Cherokees and the United States, the former agreed to give up all their lands east of the Mississippi River, and to retire to a region guaranteed to them in the present State of Arkansas.

The State was admitted into the Union on the 15th of June, 1836. It seceded May 6th, 1861, and has since been the retreat of guerrillas, and the scene of some sanguinary battles.

MICHIGAN.

Was admitted into the Union January 26th, 1837. It had the requisite population (60,000) before this, but there were some difficulties in the way of its admission. In 1837 it contained 200,000; in 1840, 212,267, and in 1850, 851,470. The territory, when first discovered by the whites, contained a tribe of Indians called Hurons by the French, and Iroquois by the Indians themselves. Many of them were converted to Christianity, by the untiring labors of Catholic missionaries, as early as 1648. It was not, however, till 1670 that the French took possession of the territory. It was a portion of the

extensive tract explored by the assiduous, daring La Salle. Its progress, while it belonged to the French, was very slow. It was not until 1763, when, by treaty, it was ceded to Great Britain, that much was done in the way of civilizing and improving it. Comparatively little, in fact, was done until 1783, when the territory was ceded by England to the United States. Until 1800 it was, for purposes of Government, considered a part of the Great North-western Territory. After Ohio, Indiana, and Illinois had been severally detached, the remainder, in 1805, became a distinct territory, the first Governor of which was General Hull, by appointment of President Jefferson. Michigan suffered much from the war of 1812. For about two years nearly the whole territory was the theater of sanguinary conflicts. It was exposed to the barbarity of the enemy and their Indian allies. Since then, however, its enterprising inhabitants have brought it up to a degree of improvement which few States of its age can boast. Its strength was offered the Government in 1861, and it continues as well as it began. Its population, in 1860, was 749,113.

IOWA.

This State derives its name from the Indians. It was included in the Louisiana purchase. It was first settled at Dubuque, by the French, in the year 1686. This settlement, however, does not seem to have been permanent, nor productive of any real good to the territory. In 1833 Burlington was settled by emigrants from the eastern States. It formed a part of Missouri from 1804 to 1821, when it was included in Michigan Territory. It subsequently belonged to Wisconsin Territory. It was admitted into the Union March 3d, 1845. It is a highly prosperous State, having a vast extent of rich soil and excellent pasturage. It is faithful to the Union; placed itself in the front rank at the commencement of the Rebellion.

TEXAS.

The territory of Texas was explored by Ponce de Leon and La Salle. After Mexico became independent of Spain, a grant which had been made to Moses Austin, a native of Connecticut, comprising a large tract of this province, was confirmed by the new Republic; and, being transferred by Moses Austin, at his death, to his son, Stephen, was subsequently enlarged

by a further grant. Emigration from the United States was encouraged, and in 1830 nearly ten thousand Americans were settled in Texas. The prosperity of these inhabitants excited the jealousy of Mexico, and under the administration of Santa Anna, an unjust, oppressive policy was adopted toward Texas. Remonstrance proving useless, the people of the territory declared themselves independent. The revolution began in 1835, by a battle at Gonzales, in which five hundred Texans defeated over one thousand Mexicans. Other engagements followed, the result of which was the dispersion of the Mexican army. Santa Anna now redoubled his efforts, and appearing in March, 1835, with a force of eight thousand men, several bloody battles followed. On the 21st of April, having under his immediate command one thousand and five hundred men, he was met by General Sam. Houston, with eight hundred men, and totally defeated, on the banks of the San Jacinto. Santa Anna himself was captured the next day in the woods, when he acknowledged the independence of Texas, though the Mexican Congress refused to ratify the act. Active hostilities, however, were now abandoned, and the independence of Texas was acknowledged by the United States, Great Britain, and other European countries. It was in this condition of things that Texas was annexed to the United States. On the 24th of December, 1845, it was admitted into the Union, which act was ratified by the Texan Legislature, July 4th, 1846. But Mexico, still regarding Texas as a revolted province, refused to acknowledge the validity of this measure. The result was a war between Mexico and the United States, which terminated on the 2d of February, 1848, in a treaty by which the latter power, in consideration of the payment of a debt of \$3,500,000, due from Mexico to the citizens of Texas, acquired New Mexico, Texas, and California. The progress of Texas from this time till the eve of the great Rebellion, was almost unprecedented, no less than twenty-five thousand Germans having emigrated to that State in five years' time. These, however, owing to the jealousy aroused against them by their having demonstrated the superiority of free labor, even in a slave State, were obliged to migrate to Mexico in the year 1860. By this and other oppressive acts on the part of the advocates of slavery, Texas, purchased by the blood and treasure of the United States, was driven into the whirlpool of secession, March 4th, 1861. Its population, in 1860, was 604,215. The first settlement within its borders was made by the Spaniards, at St. Antonia de Bexar, in 1690.

WISCONSIN.

Was admitted into the Union May 29th, 1848. It was a part of the extensive territory ceded by France to Great Britain in the treaty of 1763. At the close of the Revolution it was given up by Great Britain to the United States. It was erected into a territory in 1836, the portion now forming the State of Iowa being detached in 1838. Its natural resources are extraordinary, the climate being very healthful, and the soil unsurpassed in fertility. It was settled in the year 1669, at Green Bay, by the French. It is thoroughly loyal to the Union. In 1860, it had a population of 775,881.

MINNESOTA.

Lies north of Iowa, and extends to the Canadian boundary. On the north-east it touches Lake Superior, and, to the west, is bounded by Dakota Territory. It comprises the head waters of the Mississippi, and abounds in rivers and lakes, teeming with fish. Its soil is highly prolific, and its forests are among the finest in the world. Its name is derived from Minnisotah, the Indian name of St. Peter's River. Primarily discovered by La Salle, it, for some years, belonged to the French, and at a very early period was traversed by their traders and soldiers. It was ceded to Great Britain by the treaty of 1763, and to the United States at the peace of 1783. It received a territorial government in 1849, and was admitted into the Union in May, 1858. It has still, within its borders, several bands of the Chippewas, with whom considerable trouble has been experienced since the breaking out of the rebellion. It is, however, a thrifty, growing State, and is thoroughly loyal. It was settled in 1846, at St. Paul, by emigrants from the eastern States.

OREGON.

Was admitted into the Union in the year 1859. It, primarily, included Washington Territory, and, with the latter, comprised the extensive tract lying between the British Possessions, on the north, and California, on the south; the Rocky Mountains, on the east, and the Pacific Ocean, on the west. The coasts of this region were discovered by the Spaniards in the 16th century. In 1792, Capt. Grey, of Boston, discovered and entered the

Columbia River, and thus the United States acquired the right of sovereignty over the territory. The exploration of the country from the Missouri to the Columbia, by Lewis and Clark, government appointees, in 1804-5-6, strengthened this claim. The British, however, laid claim to the northern part of the territory, which gave rise to a threatening dispute between Great Britain and the United States. But the difficulty was adjusted by a treaty in 1846, establishing the boundary of 49°, north latitude. The State still contains the Flathead, Pend Oreille, Spokane, Shoshane, and other tribes of Indians, who are, for the most part, in the savage state, though the Christian missionaries have done much in the way of civilizing a portion of them. The furs of this region, those of the badger, beaver, bear, fisher-fox, lynx, martin, mink, muskrat, etc., have long been a great source of revenue.

The American fur companies established trading posts in Oregon at an early period, that of Astoria being founded in 1810, under the auspices of the late John Jacob Astor, of New York. It was settled, at Astoria, by emigrants from the Eastern States, in the year 1811. Its population amounted to 52,465 in 1860.

KANSAS.

About the development of this young State cluster some of the most important events of American history. Its territorial organization, by the passage of the Kansas-Nebraska Bill, in 1854, reopened the agitation of the slavery question, which seeming to have acquired fresh vigor and virulence from the sleep it had enjoyed under the Missouri Compromise, thoroughly aroused the old animosities between the pro and antislavery elements of our national politics. From 1854 to 1857 it was the theater of political tragedies, the bare mention of which may well put the blush of shame upon even the most fool-hardy partisan; and the historian has well said that these dire afflictions might have been expected when the bill organizing Kansas Territory was passed. No sooner was it decided that this territory was open alike to the abolitionist and the slave-holder, than the Emigrant Aid Societies of New England and the pro-slavery organizations of the South began pouring streams of settlers into it of opposite political views, entertaining the most hostile feelings, each party toward the other; and, as

the legitimate result, came a civil war, which lasted about two years, and which, in some of its incidents would have shamed even savages.

The Territory made application to Congress, in 1857, for a place in the Union, but the Constitution under which it asked admission (the one framed at Lecompton) was known to be a fraudulent affair, and hence Kansas was rejected. The discussion of this Constitution caused a permanent division of the Democratic party. The Constitution was rejected by the people of Kansas by a majority of 10,000. Kansas was, however received into the Union, in 1861, under a free State Constitution, formed at Topeka.

CALIFORNIA.

Was admitted into the Union on the 7th of September, 1850. The alarming discussion which occurred upon the question of admission was what gave rise to the compromise measures of 1850, popularly styled the *Omnibus Bill*. The measures are presented in detail in another part of this work.

General Fremont, with a small but dauntless band of rangers, conquered California in 1846, having defeated, on frequent occasions, vastly superior forces of Mexicans. Its resources as a farming country early attracted attention. But when, in February, 1848, it was published that gold in quantities had been found on a branch of the Sacramento, the swarm of emigrants which rushed in, comprising representatives from every State in the Union, and from nearly all the nations of Europe, was almost incalculable. From a small village, San Francisco was rapidly inflated to a large city. In many places towns sprang up like mushrooms. Owing to the fact that its population had been thrown hastily together, from so many places, and in consequence of the want of a government, California was, for some time, the scene of many dark crimes and hideous outrages. Never was the want of wholesome legal restraint more keenly felt than here. The Constitution of California was framed by a convention of delegates in 1849. It took a firm stand for the Union in 1861. The first settlement, within its limits, was made at San Diego, by the Spanish, in 1764. It furnishes annually to the Government, seventy to eighty millions of dollars in gold.

WEST VIRGINIA.

On Virginia's passing the ordinance of secession, mass meetings were immediately held in West Virginia, to take into consideration the best means of preserving their allegiance to the United States. A convention of nearly five hundred delegates assembled there early in May, 1861, which declared the ordinance of secession to be null and void, and elected delegates to a general convention, to meet at Wheeling, to devise such measures as the welfare of the people might demand. On the 20th of August, 1861, the convention passed an ordinance to provide for the formation of a new State out of a portion of the territory of Virginia. In compliance with its provisions, delegates were elected to a constitutional convention, which assembled at Wheeling, November 26, 1861, which proceeded to draft a Constitution, which was submitted to the people on the first Thursday of April, 1862. The vote in favor was 18,862; that against 514. On the 31st of December, 1862, Congress passed an act admitting West Virginia into the Union on an equal footing with the original States, in all respects whatever, allowing them three members in the House of Representatives of the United States. On the 1st of November, 1862, the State had furnished to the Federal Army nearly 20,000 men.

NEVADA.

This Territory having formed a State Constitution, under an enabling act previously passed by Congress, was admitted as a member of the Federal Union, on an equal footing with the original States. The State convention was held at so late a period of the year, that it was necessary to telegraph the Constitution to Washington, in order that it might be received there in time to secure the admission of the State previous to the Presidential election. Immediately upon its reception, President Lincoln issued a proclamation, dated October 31st, A. D. 1864, in which he "declared and proclaimed that the said State of Nevada is admitted into the Union, on an equal footing with the original States," etc. The vote of the State at the Presidential election, in 1864, was 16,420—of which Mr. Lincoln received 9,826, and General McClellan 6,594. Majority for Mr. Lincoln, 3,232. This new State is probably the richest in the Union in respect to mineral resources. No region in the world is richer in argentiferous leads. Her silver mines are her great source of wealth. The Washoe region maintains the preëminence in these mineral resources.

NEBRASKA.

Nebraska was organized into a Territory in 1850. The first settlers were Americans. In the last few years it has increased in wealth and population more rapidly than any of the adjoining States or Territories. Probably the chief cause of this has been occasioned by the Pacific Railroad passing directly through the State from east to west. It is impossible, at the present time, to estimate the advantage it will be to the State in developing its resources. The value of its minerals in the western portion of the State is incalculable. It has fair prospects of becoming one of the richest mineral and agricultural States in the Union. Omaha, the capital, is a city of considerable commercial importance, being located at the junction of the Missouri River and the Pacific Railroad. In 1866, the Territory applied for admission into the Union, but, on account of the word “white” being used in its Constitution, it was rejected. The word was then stricken out, after which it was admitted, February, 1867—the bill for admission having been passed over the President’s veto.



MARTIN VAN BUREN.

GEORGE WASHINGTON,

THE FIRST PRESIDENT OF THE UNITED STATES.

The most exemplary character, perhaps, that ever adorned any era in history, and who received in his life-time the noble appellations of “the Founder of a Republic,” and “the Father of his Country,” was born in the county of Westmoreland, Virginia, on the 22d of February, 1732. His early instruction was domestic and scanty, but full of good discipline and sound principles; and as his father died when he was only ten years old, he had no subsequent opportunities for acquiring a thorough literary or scientific education. However, as his mind was naturally mathematical and philosophical, he prepared himself to be useful to his fellow-citizens as a civil engineer; and as the country was wild, and much of it then unsurveyed, he occasionally found agreeable and profitable employment in surveying different parts of his native State. He also directed much of his attention to the science of arms, in the use of which every young man was instructed, in order to repel the incursions of the Indians, who were often led on by skillful Frenchmen. At the age of nineteen, he was appointed one of the adjutant-generals of Virginia, which gave him the rank of major, and soon after he was advanced to a colonelcy, and sent by Governor Dinwiddie to the Ohio with dispatches to the French commander, who was erecting fortifications from Canada to New Orleans, in violation of existing treaties. The Governor was so much pleased with the faithful discharge of this duty, that he ordered his journal, which extended to only eighty days, to be printed; but, small as it was, it afforded evidence of great sagacity, fortitude, and a sound judgment, and firmly laid the foundation of his future fame.

In the spring of 1755, Washington was persuaded to accompany General Braddock as an aid, with the rank of Colonel, in his disastrous expedition against Fort Du Quesne; and had his advice been followed on that occasion, the result would have been different.

ELECTORAL VOTES FOR
PRESIDENT AND VICE-PRESIDENT OF THE UNITED STATES.

Election for the First Term, commencing March 4, 1789, and terminating March 3, 1793.

[illegible]

A	STATES.	B	C	D	E	F	G	H	J	K	L	M	N
10	Massachusetts	10	10										
7	Connecticut	7	5	2									
6	New Jersey	6	1		5								
10	Pennsylvania	10	8			2							
3	Delaware	3			3								
6	Maryland	6					6						
10	Virginia	10	5		1	1		3					
7	South Carolina	7				1			6				
5	Georgia	5								2	1	1	1
69	Whole No. Electors	69	34	2	9	4	6	3	6	2	1	1	1
	Majority 35												

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
- (B) = George Washington, of Virginia.
- (C) = John Adams, of Massachusetts.
- (D) = Samuel Huntington, of Connecticut.
- (E) = John Jay, of New York.
- (F) = John Hancock, of Massachusetts.
- (G) = F R. H. Harrison, Maryland.
- (H) = George Clinton, of New York.
- (J) = John Rutledge, of South Carolina.
- (K) = John Milton, of Georgia.
- (L) = James Armstrong, of Georgia.
- (M) = Edward Telfair, of Georgia.
- (N) = Benjamin Lincoln, of Massachusetts.

The first Congress under the Constitution was convened at the “Federal Hall,” situated at the head of Broad, fronting on Wall street, (where the Custom House now stands,) in the city of New York, on the first Wednesday, being March 4, 1789—Senators and Representatives having been elected from the eleven States which had ratified the Constitution; but, owing to the absence of a quorum, the House was not organized till the 1st of April, and, for a like reason, the Senate was not organized till the 6th; when the latter body “proceeded by ballot to the choice of a President, for the sole purpose of opening and counting the [electoral] votes for President of the United States.” John Langdon, of New Hampshire, was chosen President *pro tem.* of the Senate, and Samuel Alyn Otis, of Massachusetts, Secretary; after which, proper measures were taken to notify the successful individuals of their election.

George Washington took the oath of office, as President, and entered upon his duties April 30, 1789.

(For his Inaugural Address, [see p. 41.](#))

John Adams, Vice-President, entered upon his duties in the Senate April 21, 1789, and took the oath of office June 3, 1789.

*Election for the Second Term, commencing March 4, 1793,
and terminating March 3, 1797.*

A	STATES.	B	C	D	E	F
6	New Hampshire	6	6			
16	Massachusetts	16	16			
4	Rhode Island	4	4			
9	Connecticut	9	9			
3	Vermont	3	3			
12	New York	12		12		
7	New Jersey	7	7			
15	Pennsylvania	15	14	1		
3	Delaware	3	3			
8	Maryland	8	8			
21	Virginia	21		21		
4	Kentucky	4			4	
12	North Carolina	12		12		
8	South Carolina	8	7			1
4	Georgia	4		4		
132	Whole No. Electors	132	77	50	4	1
	Majority 67					

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
- (B) = George Washington, of Virginia.
- (C) = John Adams, of Massachusetts.
- (D) = George Clinton, of New York.
- (E) = Thomas Jefferson, of Virginia.
- (F) = Aaron Burr, of New York.

George Washington, re-elected President, took the oath of office for a second term, and entered upon his duties March 4, 1793.

John Adams, re-elected Vice-President, took the oath of office, and entered upon his duties in the Senate December 2, 1793.

After the expiration of his second Presidential term, Washington retired to the tranquil shades of Mount Vernon, fondly indulging the hope that the remainder of his days would be peacefully enjoyed in his much cherished home; but these pleasing anticipations were not allowed to remain long undisturbed. In 1798 the conduct of the French Directory and its emissaries led to frequent difficulties with this country, which were calculated to provoke a war; and the opinion was universally entertained that he who had formerly so well acquitted himself, must be again called to the command of our armies. Accordingly, early in July, the rank and title of "Lieutenant-General and Commander-in-Chief of all the armies raised, or to be raised, in the United States," was conferred upon him; and the Secretary of War, Mr. McHenry, immediately waited upon him to tender the commission. In a letter to President Adams, accepting this "new proof of public confidence", he makes a reservation that he shall not be called into the field until the army is in a situation to require his presence, and adds: "I take the liberty also to mention, that I must decline having my acceptance considered as drawing after it any immediate charge upon the public, and that I cannot receive any emoluments annexed to the appointment, before entering into a situation to incur expense."

Three years afterward (1758) Washington commanded the Virginians in another expedition against the fort, which terminated successfully. At the close of this campaign he left the army, and was soon after married to Mrs. Martha Custis (the widow of Colonel Daniel Parke Custis), whose maiden name was Dandridge, and whose intelligent and patriotic conduct, as wife and widow, will ever be gratefully remembered in American annals.

In 1759, he was elected to the House of Burgesses, and continued to be returned to that body, with the exception of occasional intervals, until 1774, when he was sent to represent Virginia in the Continental Congress. His well-tempered zeal and military skill, which enabled him to suggest the most proper means for national defense, if the country were urged to extremities, soon fixed all eyes upon him, as one well qualified to direct in the hour of peril; and accordingly, after the first scene of the revolutionary drama was opened at Lexington and Concord, and an army had concentrated at Cambridge, he was, on the 15th of June, 1775, unanimously appointed Commander-in-Chief of the American forces. The self-sacrificing spirit which governed his future course is too well known to require any elucidation.

After bringing the war to a successful termination, he hastened to Annapolis, where Congress was then in session, and on the 23d of December, 1783, formally resigned his commission.

In May, 1787, he was elected to the Convention which met at Philadelphia for the purpose of forming a Constitution, and was at once called upon to preside over its deliberations. After that admirable instrument was adopted by the people, he

was unanimously elected the first President of the United States for four years; at the expiration of which he was unanimously reëlected for a second term.

On the 12th of December, 1799, he was seized with an inflammation in the throat, which grew worse the next day, and terminated his life on the 14th, in the 68th year of his age.

JOHN ADAMS,

THE SECOND PRESIDENT OF THE UNITED STATES,

And whose fame as a patriot and statesman is imperishable, was born at Braintree, Massachusetts, October 19, 1735. He early displayed superior capacity for learning, and graduated at Cambridge College with great credit. After qualifying himself for the legal profession, he was admitted to practice in 1761, and soon attained that distinction to which his talents were entitled. From the commencement of the troubles with Great Britain, in 1769, he was among the most active in securing the freedom of his country. Being elected to the first Continental Congress, he took a prominent part in all the war measures that were then originated, and, subsequently, suggested the appointment of Washington as commander-in-chief of the army. He was one of the committee which reported the Declaration of Independence, in 1776, and the next year visited France, as commissioner, to form a treaty of alliance and commerce with that country. Although the object had been accomplished before his arrival, his visit had, otherwise, a favorable effect on the existing position of affairs; and he was afterward appointed to negotiate a treaty of peace with Great Britain, which, after many laborious and fruitless efforts, was finally accomplished in 1783. In 1785, he was sent to England as the first minister from this country, and, on his return, was elected first Vice-President, in which office he served two terms, and was then, in 1797, elected to succeed Washington as President. Many occurrences tended to embarrass his administration and to render it unpopular; but it is now generally admitted to have been characterized by patriotism and vigor equal to the emergencies which then existed. His political opponents, however, managed to defeat his reelection, and he was succeeded in the Presidency by Mr. Jefferson, in 1801; after which he retired to his farm at Quincy, where his declining years were passed in the gratification of his unabated love for reading and contemplation, and where he was constantly cheered by an interesting circle of friendship and affection. The semi-centennial anniversary of American Independence (July 4, 1826) was remarkable, not merely for the event which it commemorated, but for the decease of two of the most active participants in the measures by which independence was achieved. On that day, Adams and Jefferson were both gathered to their fathers, within about four hours of each other, "cheered by the benediction of their country, to whom they left the inheritance of their fame and the memory of their bright example."

Election for the Third Term, commencing March 4, 1797, and terminating March 3, 1801.

A	STATES.	B	C	D	E	F	G	H	J	K	L	M	N	O
6	New Hampshire	6					6							
16	Massachusetts	16		13			1			2				
4	Rhode Island	4					4							

A	STATES.	B	C	D	E	F	G	H	J	K	L	M	N	O
9	Connecticut	9		4				5						
4	Vermont	4		4										
12	New York	12		12										
7	New Jersey	7		7										
15	Pennsylvania	1	14	2	13									
3	Delaware	3		3										
11	Maryland	7	4	4	3									2
21	Virginia	1	20	1	1	15			3			1		
4	Kentucky		4		4									
12	North Carolina	1	11	1	6						3	1	1	
8	South Carolina		8	8									1	
4	Georgia		4						4					
3	Tennessee		3		3									
139	No. of Electors	71	68	59	30	15	11	5	7	2	3	2	1	2
	Majority 70													

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
- (B) = John Adams, of Massachusetts.
- (C) = Thomas Jefferson, of Virginia.
- (D) = Thos. Pinckney, of South Carolina.
- (E) = Aaron Burr, of New York.
- (F) = Samuel Adams, of Massachusetts.
- (G) = Oliver Ellsworth, of Connecticut.
- (H) = John Jay, of New York.
- (J) = George Clinton, of New York.
- (K) = S. Johnston, of North Carolina.
- (L) = James Iredell, of North Carolina.
- (M) = Geo. Washington, of Virginia.
- (N) = C. C. Pinckney, of South Carolina.
- (O) = John Henry, of Maryland.

John Adams, elected President, took the oath of office, and entered upon his duties, March 4, 1797.

Thomas Jefferson, elected Vice-President, took the oath of office, and entered upon his duties in the Senate, March 4, 1797.

The administration of Mr. Adams encountered the most virulent opposition, both domestic and foreign. France, still in the confusion following her revolution, made improper demands on our country, which not being complied with, she commenced seizing American property on the high seas. Our people, taking different sides, were about equally divided—some approving and others deprecating the course pursued by

France. Letters of marque and reprisal were issued by our government, and a navy was raised with surprising promptitude. This had the desired effect, peace being thereby secured; and the aggressor was taught that the Americans were friends in peace, but were not fearful of war when it could not be honorably averted.

The Indians on our western frontiers also caused much trouble; but at length, being severely chastised by General Wayne, they sued for peace, which was granted in 1795.

In 1800 the seat of government was removed from Philadelphia to Washington City, which had been designated by Washington, under a law of Congress, as the most central situation.

As has been noticed elsewhere, Mr. Adams deemed it prudent, in the early part of his administration, when impending difficulties with France seemed to render war inevitable, to offer Washington the commission of Lieutenant-General and Commander-in-Chief of the army, which he accepted as a matter of duty, and held until his death, but fortunately never found it necessary to take the field.

THOMAS JEFFERSON,

THE THIRD PRESIDENT OF THE UNITED STATES,

Was born at Shadwell, Albemarle County, Virginia (near Monticello, the seat where he died), April 13, 1743. He was educated at William and Mary's College, and graduated with distinction when quite young. He was a great lover of learning, and particularly of natural philosophy. With the celebrated George Wythe, he commenced the study of the law, and became a favorite pupil. Mr. Jefferson was never distinguished as an advocate, but was considered a good lawyer. Soon after he came to the bar he was elected a member of the House of Burgesses, and, in that body, was duly appreciated for his learning and aptitude for business. He at once took fire at British oppression, and, in 1774, he employed his pen in discussing the whole course of the British ministry. The work was admired, and made a text book by his countrymen. In June, 1775, he took his seat in the Continental Congress, from Virginia. In that body he soon became conspicuous, and was considered a firm friend of American liberty. In 1776, he was chosen chairman of the committee that drafted the Declaration of Independence. This instrument is nearly all his own, and was sanctioned by his coadjutors, with few alterations. In 1778, Mr. Jefferson was appointed ambassador to France, to form a treaty with that government, but ill-health prevented his accepting this office. He succeeded Patrick Henry, in 1779, as Governor of Virginia, and continued in that station two years. In 1781 he composed his notes on Virginia. In 1783 he was sent to France to join the ministers of our country, Mr. Adams and Dr. Franklin. In 1785 he succeeded Dr. Franklin as ambassador, and continued performing the duties of that office for two years, when he retired, and returned home. In 1789 he was made Secretary of State, under Washington, in which situation he was highly distinguished for his talents. This station he resigned in 1793, and retired to private life. In 1797 he was elected Vice-President of the United States, and took his seat as President of the Senate, on the following 4th of March. In 1801, he was President of the United States, which office he held for eight years. After completing his second term, he retired to private life, in which he spent his days in philosophical pursuits, until the 4th of July,

1826, when he expired, just fifty years after penning the Declaration of Independence. His course was one of his own. Never lived there a politician who did more than Thomas Jefferson to bring his fellow-citizens to his own opinions.

*Election for the Fourth Term, commencing March 4, 1801,
and terminating March 3, 1805.*

A	STATES.	B	C	D	E	F
6	New Hampshire			6	6	1
16	Massachusetts			16	16	
4	Rhode Island			4	3	
9	Connecticut			9	9	
4	Vermont			4	4	
12	New York	12	12			
7	New Jersey			7	7	
15	Pennsylvania	8	8	7	7	
3	Delaware			3	3	
10	Maryland	5	5	5	5	
21	Virginia	21	21			
4	Kentucky	4	4			
12	North Carolina	8	8	4	4	
3	Tennessee	3	3			
8	South Carolina	8	8			
4	Georgia	4	4			
138	No. of Electors	73	73	65	64	1
	Majority 70					

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = Thomas Jefferson, of Virginia.

(C) = Aaron Burr, of New York.

(D) = John Adams, of Massachusetts.

(E) = C. C. Pinckney, of South Carolina.

(F) = John Jay, of New York.

The electoral vote for Thos. Jefferson and Aaron Burr being equal, no choice was made by the people, and on the 11th of February, 1801, the

House of Representatives proceeded to the choice of President in the manner prescribed by the Constitution. On the first ballot eight States voted for Thos. Jefferson, six for Aaron Burr, and the votes of two States were divided. The balloting continued till the 17th of February, when the thirty-fifth ballot, as had all previously, resulted the same as the first. After the thirty-sixth ballot, the Speaker declared that the votes of ten States had been given for Thos. Jefferson, the votes of four States for Aaron Burr, and the votes of two States in blank; and that, consequently, Thomas Jefferson had been elected for the term of four years.

Thomas Jefferson, thus elected President, took the oath of office, and entered upon his duties, March 4, 1801.

In his inaugural address, Mr. Jefferson used the following memorable expression: "We have called by different names brethren of the same principle. We are all republicans: we are all federalists. If there be any among us who would wish to dissolve this Union, or to change its republican form, let them stand, undisturbed, as monuments of the safety with which ERROR OF OPINION MAY BE TOLERATED, WHERE REASON IS LEFT FREE TO COMBAT IT." Aaron Burr, elected Vice-President, took the oath of office, and entered upon his duties in the Senate, March 4, 1801.

*Election for the Fifth Term, commencing March 4, 1805,
and terminating March 3, 1809.*

A	STATES.	PRESID'T.		V. PRES'T.	
		B	C	D	E
7	New Hampshire	7		7	
19	Massachusetts	19		19	
4	Rhode Island	4		4	
9	Connecticut		9		9
6	Vermont	6		6	
19	New York	19		19	
8	New Jersey	8		8	
20	Pennsylvania	20		20	
3	Delaware		3		3
11	Maryland	9	2	9	2
24	Virginia	24		24	
14	North Carolina	14		14	

A	STATES.	PRESID'T.		V. PRES'T.	
		B	C	D	E
10	South Carolina	10		10	
6	Georgia	6		6	
5	Tennessee	5		5	
8	Kentucky	8		8	
3	Ohio	3		3	
176	Whole No. of Electors	162	14	162	14
	Majority 89				

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = Thomas Jefferson, of Virginia.

(C) = Charles C. Pinckney, of South Carolina.

(D) = George Clinton, of New York.

(E) = Rufus King, of New York.

Thomas Jefferson, elected President, took the oath of office for a second term, and entered upon his duties March 4, 1805.

George Clinton, elected Vice-President, took the oath of office, and entered upon his duties in the Senate, March 4, 1805.

Among the most important acts of Mr. Jefferson's administration was the purchase of Louisiana from France for \$15,000,000, which territory was surrendered to our Government in December, 1803.

In November, 1808, the celebrated "ORDERS IN COUNCIL" were issued by the British Government, which prohibited all trade with France and her allies; and, as a retaliatory measure, in December following Bonaparte issued his "MILAN DECREE," interdicting all trade with England and her colonies—thus subjecting almost every American vessel on the ocean to capture. In requital for these tyrannous proceedings, and that England and France might both feel their injustice, Congress decreed an embargo; but as this failed to obtain from either power an acknowledgment of our rights, and was also ruinous to our commerce with other nations, it was repealed in March, 1809.

JAMES MADISON,

THE FOURTH PRESIDENT OF THE UNITED STATES,

Was born in Orange County, Virginia, March 16, 1751. His studies, preparatory to entering Princeton College, were pursued under the most favorable circumstances, he being provided with the most accomplished instructors, and he graduated with high honor in 1771. On returning to Virginia, he zealously commenced the study of the law, which he subsequently abandoned for political life.

In 1776, he was elected to the General Assembly of Virginia, and from this period, for more than forty years, he was continually in office, serving his State and his country in various capacities, from that of a State Legislator to that of President.

In 1778, he was elected by the Legislature to the executive council of the State, where he rendered important aid to Henry and Jefferson, Governors of Virginia, during the time he held a seat in the council; and by his probity of character, faithfulness in the discharge of duty, and amiableness of deportment, he won the approbation of these great men. In the winter of 1779-80, he took his seat in the Continental Congress, and became immediately an active and leading member, as the journal of that body abundantly testifies.

In 1784-5-6, he was a member of the Legislature of Virginia. In 1787, he became a member of the Convention held in Philadelphia, for the purpose of preparing a Constitution for the Government of the United States. Perhaps no member of that body had more to do with the formation of that noble instrument, the Constitution of the United States of America, than Mr. Madison.

It was during the recess between the proposition of the Constitution by the Convention of 1787, and its adoption by the States, that that celebrated work, "The Federalist," made its appearance. This is known to be the joint production of Alexander Hamilton, John Jay, and James Madison. The same year he was elected to Congress, and held his seat until the Continental

Congress passed away among the things that were. He was a member of the State Convention of Virginia which met to adopt the Constitution, and on the establishment of the new Congress under the Constitution, he was chosen a member, retaining his seat until the close of Washington's administration.

In 1801, as one of the presidential electors, he had the gratification of voting for his illustrious friend Jefferson, who immediately offered him a place in his cabinet, which was accepted. Accordingly, he entered on the discharge of his duties as Secretary of State, which duties he continued to perform during the whole of Mr. Jefferson's administration, and on the retirement of that great statesman, in 1809, he succeeded to the Presidency, in which office he served two terms.

Mr. Madison then retired to his peaceful home in Virginia, where he passed the remainder of his days in favorite pastimes, loved by the many and respected by all, until the 28th of June, 1826, when the last survivor of the framers of our Constitution was gathered to his fathers, full of years and glory.

*Election for the Sixth Term, commencing March 4, 1809,
and terminating March 3, 1813.*

A	STATES.	PRESIDENT.			VICE-PRESIDENT.				
		B	C	D	E	F	G	H	J
7	New Hampshire			7					7
19	Massachusetts			19					19
4	Rhode Island			4					4
9	Connecticut			9					9
6	Vermont	6						6	
19	New York	13	6		13	3	3		
8	New Jersey	8			8				
20	Pennsylvania	20			20				
3	Delaware			3					3
11	Maryland	9		2	9				2
24	Virginia	24			24				
14	North Carolina	11		3	11				3
10	South Carolina	10			10				
6	Georgia	6			6				

A	STATES.	PRESIDENT.			VICE-PRESIDENT.				
		B	C	D	E	F	G	H	J
7	Kentucky	7			7				
5	Tennessee	5			5				
3	Ohio	3						3	
175	Whole No. of Electors	122	6	47	113	3	3	9	47
	Majority 88								

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = James Madison, of Virginia.

(C) = George Clinton, of New York.

(D) = C. C. Pinckney, of South Carolina.

(E) = George Clinton, of New York.

(F) = James Madison, of Virginia.

(G) = James Monroe, of Virginia.

(H) = John Langdon, of New Hampshire.

(J) = Rufus King, of New York.

James Madison took the oath of office, as President, and entered upon his duties March 4, 1809.

George Clinton, elected Vice-President, took the oath of office, and attended in the Senate, March 4, 1809.

Our national position, especially in regard to England and France, was certainly a very perplexing one when Mr. Madison came to the Presidency. We were not only threatened by enemies abroad, but were harassed by a savage foe on our western frontier, probably urged on by British influence, and led by the famous chief Tecumseh and his brother the Prophet. These last were finally subdued in 1811; but our European foes were more troublesome. After all peaceful means had failed to check the aggressions of England, and when at length "patience had ceased to be a virtue," war was declared against that country, June 19, 1812. The events of that war it is not within our province to record; and it is sufficient to say, that they greatly elevated the American character in the estimation of both friends and enemies.

*Election for the Seventh Term, commencing March 4, 1813,
and terminating March 3, 1817.*

A	STATES.	PRESID'T.		V. PRES'T.	
		B	C	D	E
8	New Hampshire		8	1	7
22	Massachusetts		22	2	20
4	Rhode Island		4		4
9	Connecticut		9		9
8	Vermont	8		8	
29	New York		29		29
8	New Jersey		8		8
25	Pennsylvania	25		25	
4	Delaware		4		4
11	Maryland	6	5	6	5
25	Virginia	25		25	
15	North Carolina	15		15	
11	South Carolina	11		11	
8	Georgia	8		8	
12	Kentucky	12		12	
8	Tennessee	8		8	
7	Ohio	7		7	
3	Louisiana	3		3	
217	Whole No. of Electors	128	89	131	86
	Majority 109				

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
- (B) = James Madison, of Virginia.
- (C) = De Witt Clinton, of New York.
- (D) = Elbridge Gerry, of Massachusetts.
- (E) = Jared Ingersoll, of Pennsylvania.

James Madison, elected President for a second term. [There is no notice on the Journals of Congress of his having taken the oath.]

Elbridge Gerry, elected Vice-President, attended in the Senate on the 24th of May, 1813, and exhibited a certificate of his having taken the oath

of office prescribed by law, which was read.

The war into which the country had been forced was brought to a close by the treaty of Ghent, which was signed December 24, 1814; but this treaty had scarcely been ratified, when it became necessary to commence another war for the protection of American commerce and seamen against Algerine piracies. In May, 1815, a squadron under Commodore Decatur sailed for the Mediterranean, where the naval force of Algiers was cruising for American vessels. After capturing two of the enemy's best frigates in that sea, Decatur proceeded to the Bay of Algiers, and there dictated a treaty which secured the United States from any further molestation from that quarter. Similar treaties were also concluded with the other Barbary powers.

JAMES MONROE,

THE FIFTH PRESIDENT OF THE UNITED STATES,

One of the few exalted characters that served his country in both a civil and military capacity, was born in Westmoreland county, Virginia, April 26, 1758, and was educated at William and Mary's College, whence he graduated in 1776, and commenced the study of the law. Anxious to aid in the struggle for independence, which had then just began, he abandoned his studies, and entered the army as a cadet—joining a corps under the gallant General Mercer. He soon distinguished himself in several well-fought battles, and rapid promotion followed, until he reached the rank of captain. He was at Harlem Heights, and White Plains, and shared the perils and fatigues of the distressing retreat of Washington through New Jersey, as well as the glory of the victory over the Hessians at Trenton, where he received a musket-ball in the shoulder; notwithstanding which, he valiantly “fought out the fight.” He subsequently accepted the post of an aid to Lord Stirling, with the rank of Major, in which position he saw much hard service—being engaged in almost every conflict for the two succeeding campaigns, and displaying great courage and coolness at the bloody battles of Brandywine, Germantown, and Monmouth.

Aspiring to a separate command, he obtained permission to raise a regiment in his native State; for which purpose he left the army, and returned to Virginia, where he encountered so many unexpected and discouraging obstacles, that he finally relinquished the enterprise, and resumed his law studies in the office of Mr. Jefferson.

In 1780, he was elected to the Virginia Legislature, and in the following year was made one of Governor Jefferson's council, in which he continued until 1783, when, at the age of twenty-four years, he became a member of the Continental Congress. After serving three years in that body, he was again returned to the State Legislature.

In 1788, while a member of the Convention to decide upon the adoption of the new Constitution, he voted in the minority against that instrument; but this vote did not at all affect his popularity. Two years afterward he was

elected United States Senator, and in 1794 he was sent envoy extraordinary and minister plenipotentiary to the Court of Versailles. After settling the cession of Louisiana to the United States, he went to England to succeed Mr. King as minister at the court of St. James. The affair of the frigate Chesapeake placing him in an uncomfortable situation, he returned to the United States, and, in 1810, was once more elected to the Virginia Legislature. He was soon after chosen Governor of that State, in which office he remained until Mr. Madison called him to assume the duties of Secretary of State in his cabinet. In 1817, he was elected President of the United States, and in 1821 was unanimously reëlected, with the exception of a single vote in New Hampshire. His administration was a prosperous and quiet one.

He united with Jefferson and Madison in founding the University of Virginia; and when the convention was formed for the revision of the Constitution of his State, he was called to preside over its action. Not long after this, he went to reside with a beloved daughter (the wife of Samuel L. Gouverneur, Esq.) in New York City, where he lived until the anniversary of Independence, in 1831, when, “amidst the pealing joy and congratulations of that proud day, he passed quietly and in glory away.”

*Election for the Eighth Term, commencing March 4, 1817,
and terminating March 3, 1821.*

A	STATES.	PRESID'T.		VICE-PRESIDENT.				
		B	C	D	E	F	G	H
8	New Hampshire	8		8				
22	Massachusetts		22		22			
4	Rhode Island	4		4				
9	Connecticut		9			5	4	
8	Vermont	8		8				
29	New York	29		29				
8	New Jersey	8		8				
25	Pennsylvania	25		25				
3	Delaware		3					3
8	Maryland	8		8				
25	Virginia	25		25				
15	North Carolina	15		15				

A	STATES.	PRESID'T.		VICE-PRESIDENT.				
		B	C	D	E	F	G	H
11	South Carolina	11		11				
8	Georgia	8		8				
12	Kentucky	12		12				
8	Tennessee	8		8				
8	Ohio	8		8				
3	Louisiana	3		3				
3	Indiana	3		3				
217	Whole No. of Electors	183	34	83	22	5	4	3
	Majority 109							

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = James Monroe, of Virginia.

(C) = Rufus King, of New York.

(D) = D. D. Tompkins, of New York.

(E) = John E. Howard, of Maryland.

(F) = James Ross, of Pennsylvania.

(G) = John Marshall, of Virginia.

(H) = Rob't G. Harper, of Maryland.

James Monroe took the oath of office, as President, and entered upon his duties March 4, 1817.

Daniel D. Tompkins, elected Vice-President, took the oath of office, and attended in the Senate, March 4, 1817.

The Seminole and a few of the Creek Indians commenced depredations on the frontiers of Georgia and Alabama towards the close of 1817, for which they were severely chastised by a force under General Jackson, and gladly sued for peace.

In February, 1819, a treaty was negotiated at Washington, by which Spain ceded to the United States East and West Florida and the adjacent Islands. In the same year the southern portion of Missouri Territory was set off under the name of Arkansas, for which a territorial government was formed; and Alabama was constituted a State, and admitted into the Union.

Early in 1820 the province of Maine, which had been connected with Massachusetts since 1652, was separated from it and was admitted into the Union as an independent State.

*Election for the Ninth Term, commencing March 4, 1821,
and terminating March 3, 1825.*

A	STATES.	PRESID'T.		VICE-PRESIDENT.				
		B	C	D	E	F	G	H
8	New Hampshire	7	1	7			1	
15	Massachusetts	15		7	8			
4	Rhode Island	4		4				
9	Connecticut	9		9				
8	Vermont	8		8				
29	New York	29		29				
8	New Jersey	8		8				
25	Pennsylvania	24		24				
4	Delaware	4						4
11	Maryland	11		10		1		
25	Virginia	25		25				
15	North Carolina	15		15				
11	South Carolina	11		11				
8	Georgia	8		8				
12	Kentucky	12		12				
7	Tennessee	7		7				
8	Ohio	8		8				
3	Louisiana	3		3				
3	Indiana	3		3				
2	Mississippi	2		2				
3	Illinois	3		3				
3	Alabama	3		3				
9	Maine	3		9				
3	Missouri	3		3				
236	No. of Electors	231	1	218	8	1	1	4
	Majority 118							

COLUMN HEADINGS:

(A) = No. of Electors from each State.

- (B) = James Monroe, of Virginia.
- (C) = John Quincy Adams, of Massachusetts.
- (D) = Daniel D. Tompkins, of New York.
- (E) = Richard Stockton, of New Jersey.
- (F) = Robert C. Harper, of Maryland.
- (G) = Richard Rush, of Pennsylvania.
- (H) = Daniel Rodney, of Delaware.

James Monroe was re-elected President, but there is no notice on the Journals of Congress that he again took the oath of office.

Daniel D. Tompkins was re-elected Vice-President, but there is no record of his having taken the oath of office.

Public attention was much occupied in 1824-5 by a visit from the venerable General Lafayette, who, after the lapse of nearly half a century from the period of his military career, was again welcomed with every token of respect that could be devised for honoring the "Nation's Guest." He landed in New York in August, 1824, and after remaining there a short time, set out on a tour through all the States. Upwards of a year was taken up in accomplishing this gratifying object; and in September, 1825, he sailed from Washington in the frigate Brandywine for his native home.

JOHN QUINCY ADAMS,

THE SIXTH PRESIDENT OF THE UNITED STATES,

Was born at Quincy, Massachusetts, July 11, 1767, and received the advantages of a pretty thorough education before entering Harvard College, which was not until the year 1786. After graduating with marked credit, he commenced the study of law at Newburyport, in the office of the Hon. Theophilus Parsons, for many years Chief Justice of Massachusetts. While pursuing his studies he found leisure to write several newspaper essays, which attracted much attention, and displayed a maturity of taste and judgment seldom attained so early in life. In 1794, Washington appointed him minister to the Netherlands, and subsequently transferred him to Portugal. He was afterward, at different periods, minister to Prussia, Russia, and England; and was one of the commissioners who negotiated the treaty of peace with Great Britain, at Ghent, in 1815. In 1817, he was appointed Secretary of State, in which office he continued during Mr. Monroe's administration, eight years; when he was elected by the House of Representatives President of the United States—the people having failed in making a choice. Like his father, he encountered strong opposition, and only served one term in this office, being defeated in a reelection by General Jackson. He then retired to his farm at Quincy, but did not remain long in private life; for, two years afterward, he was chosen Representative in Congress, and continued to be reelected until his death, which occurred in the Capitol, at Washington, February 23, 1848. Two days previous to this sad event, while engaged in his duties in the House of Representatives, he received a paralytic stroke, which apparently deprived him of all consciousness. He was borne to the Speaker's room, where he received every attention that could be bestowed by anxious and devoted friends, but all in vain—his hour was come. The last words he was heard to utter were, "This is the last of earth."

Mr. Adams was a man of rare gifts and rich acquisitions. A diligent student, and economical of his time, he found opportunity, amid all his public cares, to cultivate his tastes for literature and the sciences. He was one of the finest classical and belles-lettres scholars of his time, and filled the chair of

Professor of Rhetoric and Belles-lettres in Harvard College for several years. Even in his old age, he often astonished his hearers with the elegant classical allusions and rhetorical tropes with which he enriched and embellished his own productions.

*Election for the Tenth Term, commencing March 4, 1825,
and terminating March 3, 1829.*

A	STATES.	PRESIDENT.				VICE-PRESIDENT.					
		B	C	D	E	F	G	H	J	K	L
8	New Hampshire		8			7			1		
15	Massachusetts		15			15					
4	Rhode Island		4			4					
8	Connecticut		8						8		
7	Vermont		7			7					
36	New York	1	26	5	4	29	7				
8	New Jersey	8				8					
28	Pennsylvania	28				28					
3	Delaware		1	2		1					2
11	Maryland	7	3	1		10			1		
24	Virginia			24				24			
15	North Carolina	15				15					
11	South Carolina	11				11					
9	Georgia			9						9	
14	Kentucky				14	7	7				
11	Tennessee	11				11					
16	Ohio				16		16				
5	Louisiana	3	2			5					
5	Indiana	5				5					
3	Mississippi	3				3					
3	Illinois	2	1			3					
5	Alabama	5				5					
9	Maine		9			9					
3	Missouri				3				3		
261	Whole No. of Electors	99	84	41	37	183	30	24	13	9	2
	Majority 131										

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
- (B) = Andrew Jackson, of Tennessee.
- (C) = John Quincy Adams, of Massachusetts.
- (D) = Wm. H. Crawford, of Georgia.
- (E) = Henry Clay, of Kentucky.
- (F) = John C. Calhoun, of South Carolina.
- (G) = Nathan Sanford, of New York.
- (H) = Nathaniel Macon, of North Carolina.
- (J) = Andrew Jackson, of Tennessee.
- (K) = Henry Clay, of Kentucky.
- (L) = Martin Van Buren, of New York.

Neither candidate for the Presidency having received a majority of the electoral votes, it devolved upon the House of Representatives to choose a President from the three highest on the list of those voted for, which three were Andrew Jackson, John Quincy Adams, and William H. Crawford. Twenty-four tellers (one member from each State) were appointed, who, after examining the ballots, announced that the votes of thirteen States had been given for John Quincy Adams; the votes of seven States for Andrew Jackson; and the votes of four States for William H. Crawford. The Speaker then declared that John Quincy Adams, having received a majority of the votes of all the States, was duly elected President of the United States for four years, commencing on the 4th of March, 1825; on which day Mr. Adams took the oath of office, and entered upon his duties.

John C. Calhoun, having been elected Vice-President, took the oath of office, and attended in the Senate, March 4, 1825.

ANDREW JACKSON,

THE SEVENTH PRESIDENT OF THE UNITED STATES,

A statesman of rare integrity, and a general of invincible skill and courage, was born at Waxhaw, Lancaster County, South Carolina, in 1767, and while yet a mere lad, did something toward achieving the independence of his country. It is said that he commenced his military career at the age of fourteen years, and was soon after taken prisoner, together with an elder brother. During his captivity, he was ordered by a British officer to perform some menial service, which he promptly refused, and for this refusal was “severely wounded with the sword which the Englishman disgraced.” He was educated for the bar, and commenced practice at Nashville, Tennessee, but relinquished his legal pursuits to “gain a name in arms.” In the early part of the war of 1812, Congress, having voted to accept fifty thousand volunteers, General Jackson appealed to the militia of Tennessee, when twenty-five hundred enrolled their names, and presented themselves to Congress, with General Jackson at their head. They were accepted, and ordered to Natchez, to watch the operations of the British in lower Mississippi. Not long after, he received orders from headquarters to disband his men and send them to their homes. To obey, he foresaw, would be an act of great injustice to his command, and reflect disgrace on the country, and he resolved to disobey. He accordingly broke up his camp, and returned to Nashville, bringing all his sick with him, whose wants on the way he relieved with his private means, and there disbanded his troops in the midst of their homes.

He was soon called to the field once more, and his commission marked out his course of duty on the field of Indian warfare. Here for years he labored, and fought, and diplomatized, with the most consummate wisdom and undaunted courage. It was about this time that the treaty of the “Hickory Ground” occurred, which gave him the familiar sobriquet of “Old Hickory.”

The crowning glory of his whole military career was the battle of New Orleans; which will ever occupy one of the brightest pages in American

history.

At the close of the war he returned to his home in Nashville; but in 1818 was again called on by his country to render his military services in the expulsion of the Seminoles. His conduct during this campaign has been both bitterly condemned and highly applauded. An attempt in the House of Representatives to inflict a censure on the old hero for the irregularities of this campaign, after a long and bitter debate, was defeated by a large majority.

In 1828, and again in 1832, General Jackson was elected to fill the Presidential chair; thus occupying that elevated position for eight successive years. He then retired to his hospitable mansion ("the Hermitage"), near Nashville, "loaded with wealth and honors bravely won," where he continued to realize all the enjoyments that are inseparable from a well-spent life, until death translated him to those higher rewards, which "earth can neither give nor take away." He died June 8, 1845, and his last hours were soothed by a trustful reliance on the Savior of the world for salvation.



WILLIAM HENRY HARRISON.

*Election for the Eleventh Term, commencing March 4, 1829,
and terminating March 3, 1833.*

A	STATES.	PRESID'T.		VICE PRESID'T.		
		B	C	D	E	F
9	Maine	1	8	1	8	
8	New Hampshire		8		8	
15	Massachusetts		15		15	

A	STATES.	PRESID'T.		VICE PRESID'T.		
		B	C	D	E	F
4	Rhode Island		4		4	7
8	Connecticut		8		8	
7	Vermont		7		7	
36	New York	20	16	20	16	
8	New Jersey		8		8	
28	Pennsylvania	28		28		
3	Delaware		3		3	
11	Maryland	5	6	5	6	
24	Virginia	24		24		
15	North Carolina	15		15		
11	South Carolina	11		11		
9	Georgia	9		2		
14	Kentucky	14		14		
11	Tennessee	11		11		
16	Ohio	16		16		
5	Louisiana	5		5		
3	Mississippi	3		3		
5	Indiana	5		5		
3	Illinois	3		3		
5	Alabama	5		5		
3	Missouri	3		3		
261	Whole No. of Electors	178	83	171	83	7
	Majority 131					

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
 (B) = Andrew Jackson, of Tennessee.
 (C) = John Quincy Adams, of Massachusetts.
 (D) = John C. Calhoun, of South Carolina.
 (E) = Richard Rush, of Pennsylvania.
 (F) = William Smith, of South Carolina.

Andrew Jackson took the oath of office, as President, and entered upon his duties March 4, 1829.

John C. Calhoun took the oath of office, as Vice-President, and presided in the Senate March 4, 1829.

A series of unfortunate political and social occurrences soon led to a rupture of that cordiality which had formerly existed between these two distinguished individuals, the consequences of which were peculiarly disastrous to the political aspirations of Mr. Calhoun, who was never afterwards regarded with much favor beyond the immediate limits of his own State.

NOTE.—It was during this administration that the doctrine of State's rights was so strongly urged by Calhoun, and to this period may be dated the origin of the great rebellion of 1861.

*Election for the Twelfth Term, commencing March 4, 1833,
and terminating March 3, 1837.*

A	STATES.	PRESIDENT.				VICE-PRESIDENT.				
		B	C	D	E	F	G	H	J	K
10	Maine	10				10				
7	New Hampshire	7				7				
14	Massachusetts		14				14			
4	Rhode Island		4				4			
8	Connecticut		8				8			
7	Vermont				7					7
42	New York	42				42				
8	New Jersey	8				8				
30	Pennsylvania	30						30		
3	Delaware		3				3			
10	Maryland	5	5			5	5			
23	Virginia	23				23				
15	North Carolina	15				15				
11	South Carolina			11					11	
11	Georgia	11				11				
15	Kentucky		15				15			
15	Tennessee	15				15				
21	Ohio	21				21				
5	Louisiana	5				5				
4	Mississippi	4				4				

A	STATES.	PRESIDENT.				VICE-PRESIDENT.				
		B	C	D	E	F	G	H	J	K
9	Indiana	9				9				
5	Illinois	5				5				
7	Alabama	7				7				
4	Missouri	4				4				
288	Whole No. of Electors	221	49	11	7	191	49	30	11	7
	Majority 145									

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = Andrew Jackson, of Tennessee.

(C) = Henry Clay, of Kentucky.

(D) = John Floyd, of Virginia.

(E) = William Wirt, of Maryland.

(F) = Martin Van Buren, of New York.

(G) = John Sergeant, of Pennsylvania.

(H) = William Wilkins, of Pennsylvania.

(J) = Henry Lee, of Massachusetts.

(K) = Amos Ellmaker, of Pennsylvania.

Andrew Jackson, re-elected President, took the oath of office, and continued his duties, March 4, 1833.

Martin Van Buren, having been elected Vice-President, took the oath of office, and attended in the Senate, March 4, 1833.

Early in June, 1833, the President left Washington on a tour through the Northern States, and was everywhere received with an enthusiasm that evinced the cordial approval of his administration by the people. One of his first measures, on returning to the seat of government, was the removal of the public moneys from the United States Bank, for which act he encountered the most virulent hostility of a small majority of the Senate, who passed resolutions censuring his course. But this injustice has not been perpetuated; for on the 16th of January, 1837, these partisan resolutions were expunged from the records by order of a handsome majority.

MARTIN VAN BUREN,

THE EIGHTH PRESIDENT OF THE UNITED STATES,

Was born in the flourishing town of Kinderhook, New York, September 5, 1782, and early received the best education that could then be obtained in the schools in his immediate vicinity. Having sufficiently prepared himself for the study of law, he entered the office of Francis Sylvester, in his native town, where he remained about six years. But law did not engross his whole time: he found leisure occasionally to peer into the mysteries of political economy, and finally arrived at the conclusion that his chances for fame and fortune were at least equal in the arena of politics to any thing he might accomplish by a strict adherence to legal pursuits. Fully impressed with this idea, he early set about cultivating what little popularity could be gained in his limited sphere, and so won upon the confidence of his neighbors and friends as to be appointed, while yet in his *teens*, a delegate to a convention in his native county, in which important political measures were to be acted upon.

In 1808, he was appointed Surrogate of Columbia County, the first public office he ever held; and in 1812 and 1816 he was elected to the State Senate, in which body he became a distinguished leader of the Madison party, and one of its most eloquent supporters.

In 1821, he was elected to the United States Senate, in which he held his seat for nearly eight years, and became remarkable not only for his close attention to business, but also for his devotion to the great principles of the Democratic party.

In 1828, he was elected Governor of his native State, and entered upon the duties of that office, on the first of January, 1829; but he filled the gubernatorial chair for only a few weeks. In March following, when General Jackson was elevated to the Presidency, he tendered Mr. Van Buren the post of Secretary of State, which was accepted. At the expiration of two years he resigned his seat in the Cabinet, and was immediately appointed minister to England; but when his nomination was submitted to the Senate (June 25, 1831) it was rejected by the casting vote of the Vice-President (Mr. Calhoun), and, of course, he was recalled. As his friends attributed his rejection to personal and political rancor, it only served to raise Mr. Van Buren in the estimation of his political adherents,

and the result was that, in May following, he was nominated, with great unanimity, for the Vice-Presidency, by the Democratic Convention, at Baltimore. His triumphant election was regarded not merely as a high compliment to himself, but as a wholesome rebuke to his opponents.

In 1836, he was put in nomination for the chief magistracy, to which he was elected, by a large majority, over General Harrison; but, at the next Presidential election, the tables were turned, and he only received sixty votes out of two hundred and ninety-four.

After his defeat, he returned to Kinderhook, where he remained some time, and then visited Europe, with one of his sons, whose restoration to health was the principal object of his journey. Not long after his return he consented to become once more a candidate for the Presidency, and, in 1848, received the nomination of the Free-soil party, but did not secure a single electoral vote.

*Election for the Thirteenth Term, commencing March 4, 1837,
and terminating March 3, 1841.*

A	STATES.	PRESIDENT.					VICE-PRESIDENT.			
		B	C	D	E	F	G	H	J	K
10	Maine	10					10			
7	New Hampshire	7					7			
14	Massachusetts				14			14		
4	Rhode Island	4					4			
8	Connecticut	8					8			
7	Vermont		7					7		
42	New York	42					42			
8	New Jersey		8					8		
30	Pennsylvania	30					30			
3	Delaware		3					3		
10	Maryland		10						10	
23	Virginia	23								23
15	North Carolina	15					15			
11	South Carolina					11			11	
11	Georgia			11					11	
15	Kentucky		15					15		
15	Tennessee			15					15	
21	Ohio		21					21		
5	Louisiana	5					5			
4	Mississippi	4					4			

A	STATES.	PRESIDENT.					VICE-PRESIDENT.			
		B	C	D	E	F	G	H	J	K
9	Indiana		9					9		
5	Illinois	5					5			
7	Alabama	7					7			
4	Missouri	4					4			
3	Arkansas	3					3			
3	Michigan	3					3			
294	Whole No. of Electors	170	73	26	14	11	147 ^[5]	77	47	23
	Majority 148									

COLUMN HEADINGS:

- (A)** = No. of Electors from each State.
- (B)** = Martin Van Buren, of New York.
- (C)** = Wm. H. Harrison, of Ohio.
- (D)** = Hugh L. White, of Tennessee.
- (E)** = Daniel Webster, of Massachusetts.
- (F)** = Willie P. Mangum, of North Carolina.
- (G)** = Rich'd M. Johnson, of Kentucky.
- (H)** = Francis Granger, of New York.
- (J)** = John Tyler, of Virginia.
- (K)** = William Smith, of Alabama.

Martin Van Buren, elected President, took the oath of office, and entered upon his duties, March 4, 1837.

Richard M. Johnson, elected Vice-President, took the oath of office, and attended in the Senate, March 4, 1837.

Urged by the unprecedented financial embarrassments which were experienced in every branch of industry, and especially by the mercantile class, Mr. Van Buren's first measure was to convene a special meeting of Congress early in September, '37, which continued in session forty days, but accomplished very little. A bill authorizing the issue of \$10,000,000 in treasury notes was passed; but the Independent Treasury bill (the great financial measure of the administration) was then rejected, although afterwards (in 1840) adopted.

WILLIAM HENRY HARRISON,

THE NINTH PRESIDENT OF THE UNITED STATES,

Was born in Charles City County, Virginia, February 9, 1773, and was educated for the medical profession at Hampden Sydney College. He graduated at a time when our north-western frontier was suffering much from the neighboring Indians, and, believing that he could be of greater service in repelling the savage invaders than in pursuing his studies, he accepted an ensign's commission from President Washington, and joined the army. He was promoted to a lieutenancy in 1792, and his skill and bravery were highly commended by General Wayne, under whose command he was engaged in several actions. After the bloody battle of Miami Rapids, he was rewarded with the rank of captain, and immediately placed in command of Fort Washington. In 1797, he resigned his commission for the purpose of accepting the office of Secretary of the North-west Territory, from which he was elected a delegate to Congress in 1799.

When a territorial government was formed for Indiana, he was appointed the first Governor, and continued in that office till 1813. To his civil and military duties he added those of Commissioner and Superintendent of Indian Affairs; and, in the course of his administration, he concluded thirteen important treaties with the different tribes. On the 7th of November, 1811, he gained the celebrated battle of Tippecanoe, the news of which was received throughout the country with a burst of enthusiasm. During the war of 1812, he was made commander of the North-western army of the United States, and he bore a conspicuous part in the leading events in the campaign of 1812-13—the defense of Fort Meigs, and the victory of the Thames. In 1814, he was appointed, in conjunction with his companions in arms, Governor Shelby and General Cass, to treat with the Indians in the North-west, at Greenville; and, in the following year, he was placed at the head of a commission to treat with various other important tribes.

In 1816, he was elected a member of Congress from Ohio, and, in 1828, he was sent minister plenipotentiary to the republic of Colombia. On his return, he took up his residence at North Bend, on the Ohio, where he lived upon his farm, in comparative retirement, till 1836, when he became a candidate for the Presidency; and, although defeated on the first trial, four years afterward he was elected by a large majority, and inaugurated in 1841. But he did not long survive this crowning honor, as he died on the 4th of April, just one month after entering upon his duties. His funeral obsequies were performed on the 7th, and an immense concourse assembled to pay their testimony of respect. Funeral services and processions also took place in most of the principal cities throughout the country. As General Harrison was the first President who died while in office, his successor, Mr. Tyler, recommended that the 14th of May be observed as a day of fasting and prayer, and accordingly it was so observed.

*Election for the Fourteenth Term, commencing March 4, 1841,
and terminating March 3, 1845.*

A	STATES.	PRESID'T.		VICE-PRESID'T.			
		B	C	D	E	F	G
10	Maine	10		10			
7	New Hampshire		7		7		
14	Massachusetts	14		14			
4	Rhode Island	4		4			
8	Connecticut	8		8			
7	Vermont	7		7			
42	New York	42		42			
8	New Jersey	8		8			
30	Pennsylvania	30		30			
3	Delaware	3		3			
10	Maryland	10		10			
23	Virginia		23		22		1
15	North Carolina	15		15			
11	South Carolina		11			11	
11	Georgia	11		11			
15	Kentucky	15		15			
15	Tennessee	15		15			
21	Ohio	21		21			

A	STATES.	PRESID'T.		VICE-PRESID'T.			
		B	C	D	E	F	G
5	Louisiana	5		5			
4	Mississippi	4		4			
9	Indiana	9		9			
5	Illinois		5		5		
7	Alabama		7		7		
4	Missouri		4		4		
3	Arkansas		3		3		
3	Michigan	3		3			
294	No. of Electors	234	60	234	48	11	1
	Majority 148						

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = Wm. H. Harrison, of Ohio.

(C) = Martin Van Buren, of New York.

(D) = John Tyler, of Virginia.

(E) = Rich'd M. Johnson, of Kentucky.

(F) = L. W. Tazewell, of Virginia.

(G) = James K. Polk, of Tennessee.

William H. Harrison, elected President, took the oath of office, and entered upon his duties, March 4, 1841.

John Tyler, elected Vice-President, took the oath of office, and attended in the Senate, March 4, 1841.

Soon after his inauguration, President Harrison issued a proclamation, convening Congress for an extra session on the 31st of May, to consider "sundry weighty and important matters, chiefly growing out of the state of the revenue and finances of the country." But he did not live to submit his remedial plans—dying, after a very brief illness, on the 4th of April, exactly one month after coming into office. He was the first President who had died during his official term, and a messenger was immediately dispatched with a letter, signed by all the members of the Cabinet, conveying the melancholy intelligence to the Vice President, then at Williamsburg, Va. By extraordinary means he reached Washington at five o'clock on the morning

of the 6th, and at twelve o'clock the Heads of Departments waited upon him, to pay their official and personal respects. After signifying his deep feeling of the public calamity sustained by the death of President Harrison, and expressing his profound sensibility of the heavy responsibilities so suddenly devolved upon himself, he made known his wishes that the several Heads of Departments would continue to till the places which they then respectively occupied, and his confidence that they would afford all the aid in their power to enable him to carry on the administration of the government successfully. Mr. Tyler afterwards took and subscribed the following oath of office:

“I do solemnly swear, that I will faithfully execute the office of President of the United States, and will, to the best of my ability, preserve, protect, and defend the Constitution of the United States.

JOHN TYLER.

“APRIL 6, 1841.”

Pursuant to the proclamation of President Harrison, Congress met on the 31st of May, and continued in session until the 13th of September. On the 27th of July a bill for the establishment of “The Fiscal Bank of the United States,” passed the Senate by a vote of 26 to 23, and was concurred in by the House of Representatives on the 6th of August—128 to 91. President Tyler, however, returned the bill on the 16th, with his objections, and it was lost for lack of a constitutional majority. But the friends of a national bank were not to be deterred from their purpose by a single repulse: another bill (about the same in substance) was immediately hurried through both Houses, under the title of “The Fiscal Corporation of the United States,” but this shared the fate of its predecessor.

A Senate bill for the establishment of a uniform system of bankruptcy throughout the United States, was concurred in by the House on the 18th of August, and became a law; but, meeting with very general condemnation, it was soon after repealed.

A bill was also passed at this extra session for the distribution of the proceeds of the sales of the public lands among the several States, in proportion to population.

In 1842 an important treaty, adjusting the north-eastern boundary of the United States, was negotiated at Washington between Mr. Webster, on the part of this country, and Lord Ashburton, on the part of Great Britain.

During the last year of Mr. Tyler's administration much excitement prevailed on the proposed annexation of Texas to the Union, which was strongly resisted at the North, on the ground that the South and southern institutions would thereby gain increased power in the national councils. A treaty of annexation, signed by the President, was rejected by the Senate, but measures were taken by which Texas was admitted the year following.

JOHN TYLER,

THE SUCCESSOR OF GENERAL HARRISON AS PRESIDENT,

Was born at Williamsburg, Virginia, March 29, 1790, and at the age of twelve years entered William and Mary's College, where he graduated with distinguished merit five years afterward. Few have commenced life at so early a period as Mr. Tyler—he having been admitted to the bar when only nineteen, and elected to the Virginia Legislature before attaining his twenty-second year. In 1816, he was sent to Congress; in 1825, elected Governor of Virginia; and in 1827, became United States Senator; in which capacity he firmly supported the administration of General Jackson—voting against the tariff bill of 1828, and against rechartering the United States Bank. Notwithstanding this last vote, the friends of the bank, presuming upon his well-known conservatism, at the special session of Congress called by his predecessor, introduced a bill for the establishment of the “Fiscal Bank of the United States,” which passed both Houses by small majorities, and which Mr. Tyler felt bound to veto. But this did not dishearten the friends of the measure, who modified and rechristened their financial plan, which, under the name of “Fiscal Corporation of the United States,” again passed both houses of Congress, and was again vetoed by the President. Of course, a large portion of the party that elected him were greatly dissatisfied with his course, and their denunciation of his alleged faithlessness were “loud and deep.” To add to the embarrassments which were accumulating around him, all the members of his Cabinet, with the exception of Mr. Webster, resigned their places; but even this implied rebuke did not shake his integrity of purpose. An equally efficient phalanx of talent was called to his aid, and he had the satisfaction of seeing that his views were indorsed by a large number of leading statesmen. It has often been asserted that Mr. T. had pledged himself to sustain the financial schemes of the bank and its friends; but this has always been denied, and circumstances certainly warrant the conclusion that the assertion is unfounded. So gross and bitter were the assaults made upon him, that he felt called upon to defend himself from their violence; and, after declaring his determination to do his duty, regardless of party ties, he said, “I appeal from the vituperation of the

present day to the pen of impartial history, in confidence that neither my motives nor my acts will bear the interpretation which, for sinister motives, has been placed upon them.” On the expiration of his official term, he retired to his estate at Williamsburg.

JAMES KNOX POLK,

THE TENTH PRESIDENT OF THE UNITED STATES,

Was born at Mecklenberg, North Carolina, November 2, 1795, and there received the rudiments of his early education. In 1806, his father removed to Nashville, Tennessee, taking his family with him, and here it was that Mr. Polk pursued those preliminary studies which were requisite to qualify him for the legal profession. After due preparation, he entered the office of Hon. Felix Grundy, under whose able instruction he made such rapid progress, that he was admitted to practice in 1820. His duties at the bar did not prevent him from taking part in the political affairs of the day; and in this sphere his comprehensive views and zealous devotion to Democracy soon secured him a widely-extended popularity, which resulted in his election to the Legislature of Tennessee, in 1823. In 1825, while yet in his thirtieth year, he was chosen a member of Congress, in which body he remained fourteen years—being honored with the Speakership for several sessions. So well satisfied were his constituents with his congressional course, that he was elected Governor by a large majority, but some questions of local policy subsequently defeated his reelection.

In 1844, he was unexpectedly nominated for the office of President of the United States by the Democratic Convention at Baltimore; and, having received sixty-five electoral votes more than his rival candidate, Mr. Clay, he was inaugurated on the 4th of March, 1845.

Soon after Mr. Polk assumed the reins of government, the country became involved in a war with Mexico, which was little more than a series of victories wherever the American banner was displayed, and which resulted in important territorial acquisitions. The ostensible ground for this war, on the part of Mexico, was the admission of Texas into the Union, which was one of the first acts of Mr. Polk's administration. The Mexicans, however, paid dearly for asserting their frivolous claim to Texas as a revolted province, and the prompt and energetic course pursued by Mr. Polk was sanctioned and sustained by a large majority of the people.



JOHN TYLER.

But notwithstanding the advantageous issue of the war, the acquisition of Texas, and the satisfactory settlement of several vexed questions of long standing, Mr. Polk was not nominated for a second term—various extraneous matters leading to the selection of another candidate. Perhaps it was fortunate for the country and for himself that he was permitted to retire to the more congenial enjoyment of private life; for his health had become very much impaired, and he did not long survive after reaching his home in Nashville. He died June 15, 1849.

*Election for the Fifteenth Term, commencing March 4, 1845,
and terminating March 3, 1849.*

A	STATES.	PRES'T.		V. PRES'T.	
		B	C	D	E
9	Maine	9		9	
6	New Hampshire	6		6	
12	Massachusetts		12		12

A	STATES.	PRES'T.		V. PRES'T.	
		B	C	D	E
4	Rhode Island		4		4
6	Connecticut		6		6
6	Vermont		6		6
36	New York	36		36	
7	New Jersey		7		7
26	Pennsylvania	26		26	
3	Delaware		3		3
8	Maryland		8		8
17	Virginia	17		17	
11	North Carolina		11		11
9	South Carolina	9		9	
10	Georgia	10		10	
12	Kentucky		12		12
13	Tennessee		13		13
23	Ohio		23		23
6	Louisiana	6		6	
6	Mississippi	6		6	
12	Indiana	12		12	
9	Illinois	9		9	
9	Alabama	9		9	
7	Missouri	7		7	
3	Arkansas	7		7	
5	Michigan	5		5	
275	Whole No. of Electors	170	105	170	105
	Majority 138				

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = James K. Polk, of Tennessee.

(C) = Henry Clay, of Kentucky.

(D) = George M. Dallas, of Pennsylvania.

(E) = T. Frelinghuysen, of New Jersey.

James K. Polk took the oath of office, as President, and entered upon his duties March 4, 1845.

George M. Dallas took the oath of office, as Vice-President, and attended in the Senate, March 4, 1845.

The most important incidents of Mr. Polk's administration were the admission of Texas and the consequent war with Mexico, the latter of which resulted in extending our territorial boundaries to the Pacific Ocean, embracing regions of incalculable value.

ZACHARY TAYLOR,

THE ELEVENTH PRESIDENT OF THE UNITED STATES,

Was born in Orange County, Virginia, November 24, 1790, and, after receiving an indifferent education, passed a considerable portion of his boyhood amid the stirring scenes which were being enacted at that time on our western border. In 1808, he was appointed a lieutenant in the United States infantry, and subsequently was promoted to a captaincy for his efficient services against the Indians. Soon after the declaration of war, in 1812, he was placed in command of Fort Harrison, which he so gallantly defended with a handful of men against the attack of a large body of savages, as to win the brevet rank of major. So familiar did he become with the Indian character, and with the mode of warfare of that wily foe, that his services at the West and South were deemed indispensable in the subjugation and removal of several hostile tribes. While effecting these desirable objects, he was occasionally rewarded for his toils and sacrifices by gradual promotion, and in 1840 attained the rank of brigadier-general. At the commencement of the troubles with Mexico, in 1845, he was ordered to occupy a position on the American side of the Rio Grande, but not to cross that river unless attacked by the Mexicans. He was not, however, allowed to remain long in repose: the enemy, by attacking Fort Brown, which he had built on the Rio Grande, opposite Matamoras, soon afforded him an opportunity to display his skill and valor, and gloriously did he improve it. The brilliant battles of Palo Alto and Resaca de la Palma, where he contended successfully against fearful odds, were precursors to a series of victories which have few parallels in military annals. The attack on Matamoras, the storming of Monterey, the sanguinary contest at Buena Vista, and the numerous skirmishes in which he was engaged, excited universal admiration; and on his return home, after so signally aiding to “conquer a peace” with Mexico, he was everywhere received with the most gratifying demonstrations of respect and affection. In 1848, General Taylor received the nomination of the Whig party for the office of President of the United States, and, being elected, was inaugurated the year following. But the cares and responsibilities of this position were greater than his

constitution could endure, hardened as it had been both in Indian and civilized warfare. After the lapse of little more than a year from the time he entered upon his new career, he sunk under its complicated trials, and his noble spirit sought refuge in a more congenial sphere, July 9, 1850.

*Election for the Sixteenth Term, commencing March 4, 1849,
and terminating March 3, 1851.*

A	STATES.	PRES'T.		V. PRES'T.	
		B	C	D	E
9	Maine		9		9
6	New Hampshire		6		6
12	Massachusetts	12		12	
4	Rhode Island	4		4	
6	Connecticut	6		6	
6	Vermont	6		6	
36	New York	36		36	
7	New Jersey	7		7	
26	Pennsylvania	26		26	
3	Delaware	3		3	
8	Maryland	8		8	
17	Virginia		17		17
11	North Carolina	11		11	
9	South Carolina		9		9
10	Georgia	10		10	
12	Kentucky	12		12	
13	Tennessee	13		13	
23	Ohio		23		23
6	Louisiana	6		6	
6	Mississippi		6		6
12	Indiana		12		12
9	Illinois		9		9
9	Alabama		9		9
7	Missouri		7		7
3	Arkansas		3		3
5	Michigan		5		5
3	Florida	3		3	
4	Texas		4		4

A	STATES.	PRES'T.		V. PRES'T.	
		B	C	D	E
4	Iowa		4		4
4	Wisconsin		4		4
290	Whole No. of Electors	163	127	163	127
	Majority 146				

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
 (B) = Zachary Taylor, of Louisiana.
 (C) = Lewis Cass, of Michigan.
 (D) = Millard Fillmore, of New York.
 (E) = William O. Butler, of Kentucky.

Zachary Taylor took the oath of office, as President, and entered upon his duties March 4, 1849. He did not, however, long enjoy his honors—death suddenly closing his earthly career, July 9, 1850.

Millard Fillmore took the oath of office, as Vice-President, and entered upon his duties March 4, 1849. Congress being in session at the time President Taylor died, the Vice-President sent a message to both houses on the 10th of July, in which he feelingly announced the melancholy event. On the same day he took the requisite oath, and entered on the execution of the office of President.

Willie P. Mangum, of N. C., President *pro tem* of the Senate, acted as Vice-President, *ex officio*, the remainder of the term.

MILLARD FILLMORE,

THE SUCCESSOR OF GENERAL TAYLOR AS PRESIDENT,

Was born at Summer Hill, Cayuga County, New York, January 7, 1800, and did not enjoy the advantages of any other education than what he derived from the then inefficient common schools of the county. At an early age he was sent into the wilds of Livingston County to learn a trade, and here he soon attracted the attention of a friend, who placed him in a lawyer's office—thus opening a new, and what was destined to be a most honorable and distinguished career. In 1827, he was admitted as an attorney, and two years afterward as counselor in the Supreme Court. Soon attracting attention, he established himself at Buffalo, where his talents and business habits secured him an extended practice.

His first entrance into public life was in January, 1829, when he took his seat as a member of the Assembly from Erie County. At this time he distinguished himself for his untiring opposition to imprisonment for debt, and to this are the people indebted in a great degree for the expunging of this relic of barbarism from the statute book. Having gained a high reputation for legislative capacity, in 1833, he was elected a member of the National House of Representatives; and on the assembling of the Twenty-seventh Congress, to which he was reëlected by a larger majority than was ever given to any person in his district, he was placed in the arduous position of Chairman of the Committee of Ways and Means. The measures which he brought forward and sustained with matchless ability, speedily relieved the government from its existing pecuniary embarrassments. In 1847, he was elected Comptroller of the State of New York by a larger majority than had ever been given to any State officer for many years. In 1848, he was selected as a candidate for Vice-President, General Taylor heading the ticket. On his election to that high office, he resigned his position as Comptroller, and entered upon his duties as President of the United States Senate. The courtesy, ability, and dignity exhibited by him, while presiding over the deliberations of that body, received general commendation. Upon the sudden death of Gen. Taylor, he became

President, and promptly selected a cabinet, distinguished for its ability, patriotism, and devotion to the Union, and possessing, in an eminent degree, the confidence of the country.

After serving out the constitutional term, Mr. Fillmore returned to Buffalo, and again resumed those pursuits which had prepared the way to the elevated position from which he had just retired. He was welcomed home by troops of friends, with whom he still continues to enjoy an unabated popularity.

It should be borne in mind by every aspiring young man, that Mr. Fillmore is entirely indebted to his own exertions for his success in life. From a very humble origin, he attained the highest office in the world, climbing the rugged steep of fame step by step, with indefatigable industry and untiring perseverance, until he at length gained the summit, where he is long likely to enjoy his well-earned position.

FRANKLIN PIERCE,

THE TWELFTH PRESIDENT OF THE UNITED STATES,

Was born at Hillsborough, N. H., November 23, 1804, and early received the advantage of a liberal education. After going through a regular collegiate course at Bowdoin College, which he entered at the age of sixteen, he became a law student in the office of Judge Woodbury, at Portsmouth, whence he was transferred to the law school at Northampton, where he remained two years, and then finished his studies with Judge Parker, at Amherst. Although his rise at the bar was not rapid, by degrees he attained the highest rank as a lawyer and advocate.

In 1829, he was elected to represent his native town in the State Legislature, where he served four years, during the two last of which he held the speakership, and discharged the duties of the office with universal satisfaction.

From 1833 to 1837, he represented his State in Congress, and was then elected to the United States Senate, having barely reached the requisite age to qualify him for a seat in that body.

In 1834, he married Miss Jane Means, daughter of the Rev. Dr. Appleton, formerly President of Bowdoin College, soon after which he removed to Concord, where he still holds a residence. He was reëlected at the expiration of his senatorial term, but resigned his seat the year following, for the purpose of devoting himself exclusively to his legal business, which had become so extensive as to require all his attention.

In 1846, he declined the office of Attorney-General, tendered him by President Polk; but when the war with Mexico broke out, he was active in raising the New England regiments of volunteers; and afterward accepted the commission of Brigadier-General, with which he at once repaired to the field of operations, where he distinguished himself in several hard-fought battles. At Cerro Gordo and Chapultepec he displayed an ardor in his country's cause which extorted praise from his most inveterate political opponents; and on his return home he was everywhere received with

gratifying evidences that his services were held in grateful remembrance by the people.

At the Democratic Convention, held in Baltimore in 1852, after trying in vain to concentrate their votes on a more prominent candidate, that body unexpectedly nominated General Pierce for the office of President of the United States, to which he was elected by an unprecedented majority over his rival, General Scott—receiving 254 votes out of 296. He was duly inaugurated on the 4th of March, 1853, and his administration was more remarkable for its futile attempts to reconcile conflicting interests, than for the achievement of any particular measure of great public utility. However, it will better become his future than his present biographer to “speak of him as he is; nor aught extenuate, nor aught set down in malice.”

*Election for the Seventeenth Term, commencing March 4, 1853,
and terminating March 3, 1857.*

A	STATES.	PRES'T.		V. PRES'T.	
		B	C	D	E
8	Maine	8		8	
5	New Hampshire	5		5	
13	Massachusetts		13		13
4	Rhode Island	4		4	
6	Connecticut	6		6	
5	Vermont		5		5
35	New York	35		35	
7	New Jersey	7		7	
27	Pennsylvania	27		27	
3	Delaware	3		3	
8	Maryland	8		8	
15	Virginia	15		15	
10	North Carolina	10		10	
8	South Carolina	8		8	
10	Georgia	10		10	
12	Kentucky		12		12
12	Tennessee		12		12
23	Ohio	23		23	
6	Louisiana	6		6	

A	STATES.	PRES'T.		V. PRES'T.	
		B	C	D	E
7	Mississippi	7		7	
13	Indiana	13		13	
11	Illinois	11		11	
9	Alabama	9		9	
9	Missouri	9		9	
4	Arkansas	4		4	
6	Michigan	6		6	
3	Florida	3		3	
4	Texas	4		4	
4	Iowa	4		4	
5	Wisconsin	5		5	
4	California	4		4	
296	Whole No. of Electors	254	42	254	42
	Majority 149				

COLUMN HEADINGS:

- (A) = No. of Electors from each State.
- (B) = Franklin Pierce, of New Hampshire.
- (C) = Winfield Scott, of New Jersey.
- (D) = William R. King, of Alabama.
- (E) = Wm. A. Graham, of North Carolina.

Franklin Pierce took the oath of office, as President, and entered upon his duties March 4, 1853.

The oath of office was administered to William R. King by a commission while he was on a visit to Cuba for the benefit of his health; but he died soon after his return home, and Jesse D. Bright, of Indiana, then President of the Senate, acted as Vice-President, *ex officio*, during the remainder of the term.

John P. Hale, of N. H., and George W. Julian, of Ind., were nominated by the "Free Democracy" for President and Vice-President, but they did not receive a single electoral vote.

JAMES BUCHANAN,

THIRTEENTH PRESIDENT OF THE UNITED STATES.

For the high position he so long maintained in the political affairs of this country, Mr. Buchanan is not alone indebted to his early and thorough education, but his entire devotion to whatever he undertook, and his perseverance in surmounting obstacles which would have intimidated less determined minds, had a large share in promoting his advancement. He is of Irish parentage, and was born at Stony Batter, Franklin County, Pennsylvania, April 23, 1791. At the age of seven years, he removed with his father's family to Mercersburg, and there received an education that fitted him for entering Dickinson College, in 1805, where he graduated two years afterward with the highest honors. He then studied law with James Hopkins, of Lancaster, and in 1812 was admitted to the bar, at which he attained a high rank and commanded an extensive practice.

In 1814, he commenced political life as a member of the Pennsylvania State Legislature, and in 1820 was sent as a Representative to Congress, where he remained for ten years—at the expiration of which he declined a re-nomination.

In 1831, he was appointed minister to Russia by President Jackson, of whom he was always the consistent friend and supporter, and he negotiated a commercial treaty which proved of great advantage to American commerce.

In December, 1834, having been elected to the United States Senate, he took his seat in that body, and continued one of its most efficient members until 1845, when he accepted the office of Secretary of State, under Mr. Polk. He held this responsible place until the expiration of Mr. Polk's term of service, when he returned home to repose awhile. But he did not, by any means, become an idle spectator in passing events; his letters and speeches show that he was no less vigilant as a private citizen, than as a counselor in the Cabinet, or a Representative and Senator in Congress.

On the accession of Mr. Pierce to the Presidency, in 1853, Mr. Buchanan was appointed minister to England, with which country questions were then pending that required great prudence and discrimination for their satisfactory adjustment. In his intercourse with the British diplomatists he was not only discreet, but displayed sound sense, courtly forbearance, a just assertion of our rights, and the true dignity of the American character. So entirely unexceptionable was his whole course while abroad, that, on his return to this country, in April, 1856—he landed in New York on the sixty-fifth anniversary of his birthday—he was received with an enthusiasm seldom accorded to political men.

In June, 1856, Mr. Buchanan was nominated by the Democratic Convention at Cincinnati, as a candidate for the Presidency; and although there were powerful political elements arrayed against him in the succeeding campaign, he was triumphantly elected to that responsible and honorable office.

His administration was attended with unusual difficulties—difficulties which it would seem he was not fully able to meet. The troubles in Kansas, arising from the repeal of the Missouri Compromise, and the opposition made to his views touching the admission of Kansas with the Lecompton Constitution, by the Douglas wing of the Democratic party, were matters of sore vexation to him, and tended greatly to unpopularize the latter part of his public life. But these were considerations of small moment as compared to the embarrassment which the Government suffered in consequence of the treacherous intrigues of some of the members of his Cabinet. His Secretary of War and Secretary of the Treasury, afterward so conspicuous in the great Rebellion, were particularly instrumental in crippling the pecuniary and military resources of the country, and turning them to the benefit of the South. When treason began to assume a threatening attitude, Buchanan declared against the right of secession, but at the same time denied the right of coercion by the Government. This, perhaps, is the most inconsistent, inexplicable position ever taken by any of the nation's chief rulers. On the 4th of March, 1861, Mr. Buchanan retired from the Presidency, leaving to his successor the highly perplexing task of setting to right the machinery of a government crippled and weakened in all its parts, and fully ripe for the most gigantic civil war known to history.



JAMES KNOX POLK.

It was, at one time, presumed by many that Mr. Buchanan was not only encouraging the rebellion by his weak, indecisive policy toward armed traitors, and by winking at the thieving proceedings of some of his Cabinet officers, but that he was himself leagued with the leaders of the secession movement, and secretly acted in unison with them.

While it is true that the unhindered appropriation of millions of treasure to the furtherance of rebellious schemes, and the large deposit of choice arms made in Southern arsenals, would indicate an affiliation of the President with the chief rebels of the South, yet there has never been adduced any direct proof of such affiliation; and nothing said or done by Mr. Buchanan since his retirement shows active sympathy with the Rebellion. There is, however, evidence on every hand of weakness—an element of character he never manifested prior to his executive career—of that negative disposition which will, under circumstances such as

surrounded him during the latter part of his administration, wholly unfit a man for the performance of his duties.

The subject of the present sketch would, doubtless, have been a very good executive at a period when the country was undisturbed by sectional agitation; at a time when there were no conflicting local interests to stir up and embitter South against North. But the exigencies of the period during which he sat at the helm of state demanded a man who could take hold with a strong hand; a man of Jacksonian character, who, with the loftiest political integrity and most devoted loyalty, combined a Napoleonic will; a man who, foreseeing the certain results of the pursuits of a conciliatory course with rebellion, would have given it a decisive blow in its very infancy.

But it seems that Mr. Buchanan proposed to deal with secessionists as an over-fond, weak-minded mother deals with a spoiled child—scolding and coaxing alternately, satisfied to exhibit her authority by the former, and confident that she can reform her fondling by the latter. Perhaps he may be partially excused by some in consideration of the debt of gratitude he felt he owed to the Southern States, for the valuable services they had rendered him in his election. But a truly great executive never allows his feelings to interfere with the performance of duty. The life of the nation was in jeopardy; that grand superstructure, the American Government, whose foundation stones had been cemented by the sacred blood of the Revolutionary sires, whose columns had been reared by the wisest, purest statesmen the world ever saw, and about whose lofty dome the brightest seraphs of Heaven chanted their sweetest lays—that great temple around which clustered the hopes of the liberty-loving world, was threatened with destruction, and there can hardly be any excuse for him who, having the power to save, refused to adopt such decisive measures as were essential to salvation.

It is true that the Southern people had acted a very important part in the election of Mr. Buchanan, but it is very far from being true that a majority of these people were in favor of secession. The great Democratic party was not a party of traitors, either North or South. The masses of the people of the Southern States were by no means desirous of severing their connection with the Government of the United States, as was amply testified in the overwhelming Union majorities given in North Carolina, Tennessee, and other Southern States, even after South Carolina had sloughed off, and all

the preliminary steps had been taken by the leading secessionists toward the formation of a Southern Confederacy. And there is no doubt that had Mr. Buchanan taken hold of the rebellion, while it was in the larva, with that determination to crush it which the great Jackson exhibited when South Carolina proposed her scheme of nullification, it had never seen its winged existence.

Buchanan's administration, in one respect, may possibly yet be productive of good, in that it may serve to impress the people with the importance of selecting a man for the chief magistracy who loves the right and dares to do it.

He only survived the close of the war about three years, as he died on the 1st of June, 1868, in the 77th year of his age.

*Election for the Eighteenth Term, commencing March 4, 1857,
and terminating March 3, 1861.*

A	STATES.	PRESIDENT.			VICE_PRES'T.		
		B	C	D	E	F	G
8	Maine		8			8	
5	New Hampshire		5			5	
13	Massachusetts		13			13	
4	Rhode Island		4			4	
6	Connecticut		6			6	
5	Vermont		5			5	
35	New York		35			35	
7	New Jersey	7			7		
27	Pennsylvania	27			27		
3	Delaware	3			3		
8	Maryland			8			8
15	Virginia	15			15		
10	North Carolina	10			10		
8	South Carolina	8			8		
10	Georgia	10			10		
12	Kentucky	12			12		
12	Tennessee	12			12		
23	Ohio		23			23	
6	Louisiana	6			6		

A	STATES.	PRESIDENT.			VICE_PRES'T.		
		B	C	D	E	F	G
7	Mississippi	7			7		
13	Indiana	13			13		
11	Illinois	11			11		
9	Alabama	9			9		
9	Missouri	9			9		
4	Arkansas	4			4		
6	Michigan		6			6	
3	Florida	3			3		
4	Texas	4			4		
4	Iowa		4			4	
5	Wisconsin ^[6]		5			5	
4	California	4			4		
296	No. of Electors	174	114	8	174	114	8
	Majority 149						

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = James Buchanan, of Pennsylvania.

(C) = John C. Fremont, of New York.

(D) = Millard Fillmore, of New York.

(E) = John C. Breckenridge, of Kentucky.

(F) = William L. Dayton, of New Jersey.

(G) = Andrew J. Donelson, of Tennessee.

James Buchanan took the oath of office, as President, and entered upon his duties, March 4, 1857.

John C. Breckenridge took the oath of office, as Vice-President, and entered upon his duties, March 4, 1857.

ABRAHAM LINCOLN,

THE FOURTEENTH PRESIDENT OF THE UNITED STATES,

Was born in Hardin County, Kentucky, February 12th, 1809. The record of his boyhood and youth, so far as we have been able to trace it, is not distinguished by any thing more remarkable than the usual experience of children of pioneers in a new country. In 1816, he removed with his parents to what is now Spencer County, Indiana. Here he enjoyed the advantages of a little schooling—less than a year, however, in all. Whatever else he afterward learned from books was without the aid of the school-master—the result of his own energy and indomitable perseverance.

In 1832, he served in the Black Hawk war, and, on his return from that service, was nominated for the Illinois Legislature from the county of Macon. In 1834, he was elected to the Legislature, and reëlected in 1836, 1838, and 1840. While in the Legislature, he placed himself on record against slavery; and it is but just to say that the principles which actuated him then are the moving principles of the great party he to-day represents as the executive of the nation.

For many years Mr. Lincoln was a prominent leader of the Whig party in Illinois, and was on the electoral ticket in several Presidential campaigns. In 1844, he canvassed the entire State for Henry Clay, of whom he was a sincere and enthusiastic friend, and exerted himself powerfully for the favorite of his party. In 1846, he was elected to Congress, and took his seat on the first Monday in December, 1847, the only Whig Representative from his State.

In November, 1860, he was elected President of the United States by the party known as Republicans.

On the 11th of February, 1861, he left his home in Springfield, Illinois, and proceeded to Washington, passing *en route* the cities of Toledo, Indianapolis, Cincinnati, Columbus, Steubenville, Pittsburgh, Cleveland, Buffalo, Albany, Poughkeepsie, New York, Trenton, Philadelphia, Harrisburg, and Baltimore—at all of which places, except the last, he was

received with great cordiality, and addressed the people. At Baltimore a plot had been formed to assassinate him; and, in this affair, it seems that some of the most prominent citizens of that place were implicated. But Mr. Lincoln, by prompt, shrewd management, reached Washington uninjured, and on the 4th of March, 1861, was duly inaugurated, and proceeded upon the duties of his office, notwithstanding the threats of Baltimoreans that he never should be installed. In his inaugural address, in view of the threatening attitude assumed by some of the Southern States, in consequence of the accession of a Republican administration, after declaring that there never had been any just cause for the apprehension that such an administration would encroach upon the constitutional rights of any State, he said that he had “no purpose, directly or indirectly, to interfere with the institution of slavery in the States where it existed; that he, as well as every Member of Congress, was sworn to support the whole Constitution, one of the provisions of which is, that ‘no person held to service or labor in one State, under the laws thereof, escaping into another State, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on claim of the party to whom such service or labor may be due;’ that he took his oath to support the Constitution, without any mental reservation; that while he did not then choose to specify particular acts of Congress as proper to be enforced, he did suggest that it would be much safer for all, both in official and private stations, to conform to and abide by all those acts which stand unrepealed than to violate any of them, trusting to find impunity in having them held to be unconstitutional; that he held that, in the contemplation of universal law and of the Constitution, the union of the States is perpetual; that no State could, upon its own mere motion, get out of the Union; that acts of violence within any State or States against the authority of the United States are insurrectionary or revolutionary, and that he should, as the Constitution expressly enjoined upon him, take care that the laws of the Union should be executed in all the States; that while he should perform this duty perfectly, so far as practicable, unless restrained by his rightful masters, the American people, he trusted the declaration so to do would not be regarded as a menace, but only as the express purpose of the Union to maintain itself.”

The inaugural address, while considered as clear and explicit by many, was regarded as very obscure and unsatisfactory by others (the people of the South), and, on the 13th of April, 1861, Messrs. Preston, Stuart, and

Randolph, appointed by the Virginia Convention, were formally received by the President, and presented resolutions requesting that, inasmuch as “great uncertainty prevailed in the public mind as to the policy” to be pursued by the Federal Executive, he should communicate to the Convention the course he intended to take in regard to the “Confederate States.”

To this request the President replied that, while he was sorry that dangerous uncertainty should exist respecting his mode of procedure with the seceded States, he could give no clearer exposition of his policy than was given in his inaugural address, a careful consideration of which he recommended to the Virginia Convention.

Two days after this, Fort Sumter having been reduced by the Confederate Government, and other demonstrations of a revolutionary character having been made, the President issued a proclamation calling for 75,000 volunteers, for three months, to suppress the rebellion, and summoned Congress to assemble in extraordinary session. The call was heartily responded to, and, in a few days, a vastly greater number than had been requested offered themselves to their country. Meantime Washington was placed in a state of defense. Shortly after the commencement of hostilities, a blockade of all the Southern ports was declared. This was directly followed by a blockade of Virginia and North Carolina. On the 3d of May, 1861, the President issued a call for 42,034 additional volunteers for the term of three years. Congress having assembled, he addressed a message to that body, asking that at least 400,000 men and \$400,000,000 be placed at his control, that the work of crushing the rebellion might be expedited. Congress readily complied, granting more men and money than had been asked.

On the 16th of August, 1861, the President issued a proclamation prohibiting all commercial intercourse between the loyal and seceded States. In the latter part of August, he modified a proclamation issued by General Fremont, which declared martial law in the State of Missouri, ordering the confiscation of the property of disloyal persons, and declaring their slaves free. The two latter of these measures Mr. Lincoln declared void. For this act he was blamed by many of his own party at the time.

Passing some other acts of less importance, we next notice the message addressed to Congress on the 6th of March, 1862, by the President,

recommending that the Government coöperate with any State desiring a gradual emancipation of the slaves, by affording it such pecuniary aid as would enable it to “compensate for the inconveniences, public and private, produced by such change of system.” This message was hailed by the radical antislavery party of the country as the initiatory step toward a final and total abolition of slavery; by conservative Union men, with indifference; and by the secessionists as a hostile encroachment upon State rights.

On the 11th of March, 1862, Mr. Lincoln assumed command of the Army and Navy of the United States, ordering a general movement of both, and confining General McClellan to the command of the Department of the Potomac.

April 16th, 1862, he approved and signed an act of Congress, abolishing the institution of slavery in the District of Columbia, which act “recognized and practically applied” the principles of compensation and colonization.

During the month of May, the President issued two proclamations, the one declaring the ports of Port Royal, Beaufort, and New Orleans open for trade, the other repudiating an order issued by General Hunter, emancipating all the slaves in Georgia, Florida, and South Carolina. This act also produced some dissatisfaction. During the years 1862-1863, Mr. Lincoln was actively employed in calling out and furnishing troops, and making important changes in the organization of the army. It was also during this period that he issued his general emancipation proclamations—the first on the 22d day of September, 1862, declaring that all slaves held in any State, or part of a State found in actual rebellion against the authority of the United States on the 1st day of January, 1863, should then and forever thereafter be free; the second, on the 1st of January, 1863, declaring that, in accordance with the first proclamation, slavery is abolished in all the States and counties then in armed rebellion against the Government.

These measures, while they greatly unpopularized the President with certain parties in the Northern and Southern border States, were regarded as the exponents of the true policy by the radicals. His suspension of the writ of *habeas corpus*, in certain cases, September 15th, 1863, also produced considerable stir in political circles.

At the Republican Convention which met at Baltimore, in January, 1864, Mr. Lincoln was re-nominated for the Presidency of the United States—was elected November 8th, and duly inaugurated March 4th, 1865.

The following note of his inaugural address is from an English journal. It speaks for itself:

“On the 4th instant, the day of inaugurating his second term, President Lincoln read a short State paper, which for political weight, moral dignity, and unaffected solemnity has had no equal in our time. His presidency began, he says, with the efforts of both parties to avoid war. ‘To strengthen, perpetuate, and extend the slave interest was the object for which the insurgents would rend the Union by war, while the Government claimed the right to do no more than restrict the territorial enlargement of it.’ Both parties ‘read the same Bible and pray to the same God.’

“The prayer of both can not be answered, that of neither has been answered fully, for the Almighty has his own purposes. Mr. Lincoln goes on to confess for the North its partnership in the original guilt of slavery: ‘Woe unto the world because of its offenses, for it must needs be that offenses come; but woe unto that man by whom the offenses cometh! If we shall suppose American slavery one of the offenses which in the providence of God must needs come, but which, having continued through His appointed time, He now wills to remove, and that He gives to both North and South this terrible war, as was due to those by whom the offense came, we will not discern that there is any departure from those divine attributes which believers in the living God always ascribe to Him. Fondly do we hope, fervently do we pray, that this mighty scourge of war may speedily pass away. Yet, if it be God’s will that it continue till the wealth piled by bondsmen by two hundred and fifty years’ unrequited toil shall be sunk, and till every drop of blood drawn with the lash shall be repaid by another drawn with the sword, as was said three thousand years ago, so still it must be said that the judgments of the Lord are true and righteous altogether. With malice toward none, with charity for all, with firmness in the right, as God gives us to see the light, let us strive on to finish the work we are in, to bind up the nation’s wounds, to care for those who have borne the battle, and for their widows and orphans. And with all this let us strive after a just and lasting peace among ourselves and with all nations.’ No statesman ever uttered words stamped at once with the seal of so deep a wisdom and so

true a simplicity. The ‘village attorney,’ of whom Sir G. C. Lewis and many other wise men wrote with so much scorn, in 1861, seems destined to be one of those ‘foolish things of the world’ which are destined to confound the wise, one of those weak things which shall ‘confound the things that are mighty.’”

The rebel General Lee had surrendered. The war was apparently at an end. Abraham Lincoln, the honored and the great, looked forward to a speedy restoration of the Union. But while the storm lulled, the assassin did his work. J. Wilkes Booth shot Abraham Lincoln on the night of the 13th, and he died April 14th, 1865, honored and lamented by every true American. The world never before beheld such universal sorrow. A nation not merely mourned but was clad in the deepest mourning.

*Election for the Nineteenth Term, commencing March 4, 1861,
and terminating March 3, 1865.*

A	STATES.	PRESIDENT.				VICE-PRESIDENT.			
		B	C	D	E	F	G	H	J
8	Maine	8				8			
5	New Hampshire	5				5			
13	Massachusetts	13				13			
4	Rhode Island	4				4			
6	Connecticut	6				6			
5	Vermont	5				5			
35	New York	35				35			
7	New Jersey	4			3	4			3
27	Pennsylvania	27				27			
3	Delaware		3				3		
8	Maryland		8				8		
15	Virginia			15				15	
10	North Carolina		10				10		
8	South Carolina		8				8		
10	Georgia		10				10		
12	Kentucky			12				12	
12	Tennessee			12				12	
23	Ohio	23				23			
6	Louisiana		6				6		

A	STATES.	PRESIDENT.				VICE-PRESIDENT.			
		B	C	D	E	F	G	H	J
7	Mississippi		7				7		
13	Indiana	13				13			
11	Illinois	11				11			
9	Alabama		9				9		
9	Missouri				9				9
4	Arkansas		4				4		
6	Michigan	6				6			
3	Florida		3				3		
4	Texas		4					4	
4	Iowa	4				4			
5	Wisconsin	5				5			
4	California	4				4			
4	Minnesota	4				4			
3	Oregon	3				3			
315	Whole No. of Electors	180	72	39	12	180	72	39	12
	Majority 157								

COLUMN HEADINGS:

- (A)** = No. of Electors from each State.
- (B)** = Abraham Lincoln, of Illinois.
- (C)** = John C. Breckenridge, of Kentucky.
- (D)** = John Bell, of Tennessee.
- (E)** = Stephen A. Douglas, of Illinois.
- (F)** = Hannibal Hamlin, of Maine.
- (G)** = Joseph Lane, of Texas.
- (H)** = Edward Everett, of Massachusetts.
- (J)** = Herschel V. Johnson, of Georgia.

Abraham Lincoln took the oath of office as President, and entered upon his duties, March 4th, 1861. Hannibal Hamlin took the oath of office as Vice-President, and attended in the Senate as its President, on the 4th of March, 1861. The accession of Mr. Lincoln to the Presidency was made the pretext for the great rebellion of 1861.

*Election for the Twentieth Term, commencing March 4, 1865,
and terminating March 3, 1869.*

A	STATES.	PRESIDENT.		V. PRESIDENT.	
		B	C	D	E
7	Maine	7		7	
5	New Hampshire	5		5	
12	Massachusetts	12		12	
4	Rhode Island	4		4	
6	Connecticut	6		6	
5	Vermont	5		5	
33	New York	33		33	
7	New Jersey		7		7
26	Pennsylvania	26		26	
3	Delaware		3		3
7	Maryland	7		7	
15	Virginia				
5	Western Virginia	5		5	
8	South Carolina				
10	North Carolina				
10	Georgia				
11	Kentucky		11		11
12	Tennessee				
21	Ohio	21		21	
6	Louisiana				
7	Mississippi				
13	Indiana	13		13	
15	Illinois	15		15	
9	Alabama				
11	Missouri	11		11	
4	Arkansas				
8	Michigan	8		8	
3	Florida				
4	Texas				
8	Iowa	8		8	
8	Wisconsin	8		8	
5	California	5		5	

A	STATES.	PRESIDENT.		V. PRESIDENT.	
		B	C	D	E
4	Minnesota	4		4	
3	Oregon	3		3	
3	Nevada	3		3	
3	Kansas	3		3	
331		212	21	212	21

COLUMN HEADINGS:

(A) = No. of Electors from each State.

(B) = Abraham Lincoln, of Illinois.

(C) = Geo. B. McClellan, of Ohio.

(D) = Andrew Johnson, of Tennessee.

(E) = Geo. H. Pendleton, of Ohio.

Virginia, South Carolina, North Carolina, Georgia, Tennessee, Louisiana, Mississippi, Alabama, Arkansas, Florida and Texas, being in rebellion, did not vote for President and Vice-President.

Whole number of Electoral votes cast were 233—for Lincoln and Johnson, 212; for McClellan and Pendleton, 21. Lincoln and Johnson's majority 191, the greatest majority attained since the organization of the Government.

Abraham Lincoln took the oath of office as President and entered upon his duties March 4, 1865.

Andrew Johnson took the oath of office as Vice-President, and attended in the Senate as its President March 4, 1865.

ANDREW JOHNSON

Was born at Raleigh, North Carolina, December 29th, 1808, and is now in his sixtieth year. He lost his father when only four years old. At the age of ten he was apprenticed to a tailor in Raleigh, and served with him an apprenticeship of seven years. His mother was poor, and had been unable to give him any educational advantages; but young Andy, whose unconquerable spirit was not to be restrained by any disadvantages, became stimulated with a desire for knowledge. He acquired the alphabet with no other instructions than those obtained from the journeymen with whom he worked. He learned to read from an old volume of speeches, loaned him by a friend, and thenceforward, after ten hours' work with his goose, needle, and scissors, applied himself with vigor to study for three or four hours each evening. In 1824, having completed his apprenticeship, he went to Laurens Court house, South Carolina, where he worked as journeyman for two years. In 1826, he set out for the West, taking his mother, whom already, at his early age, and with his scanty wages, he was supporting. He made his home at Greenville, Tennessee, where he remained, and commenced business, and where he became a thriving and popular man. With the indefatigable thirst for knowledge which had characterized his early career, he still pursued his studies, and, in the evenings which followed a day of labor, with his wife as instructress, pushed on in the road to knowledge.

He entered early into political life, being elected to the first office he ever held—that of Alderman of the village of Greenville—in 1828. He was reëlected to the same office in 1829. In 1830, he was elected Mayor, and retained that position for three years. In 1835, he was sent to the Legislature, where he chiefly distinguished himself by taking strong grounds against a scheme of internal improvements, which, he argued, was extravagant and useless. The measure was popular, however, and he was defeated in 1837. In 1838, he was a candidate again, and was this time successful. In 1840, he served as Presidential elector for the State at large on the Democratic ticket, and during the campaign rendered efficient service to the party as a stump speaker. In 1841, he was elected to the State

Senate, and, in 1843, at the age of thirty-five, he was elected to Congress, where he held his seat, being four times reëlected, until 1853. During this time he was thoroughly identified with the old Democratic party, and supported all the party measures. In 1853, he was elected Governor, after a very exciting contest, over Gustavus A. Henry. He was reëlected in 1855, over Meredith P. Gentry, the Whig candidate. At the expiration of his Gubernatorial term, in 1857, he was chosen United States Senator by a Democratic majority in the Legislature of Tennessee. In that body he commanded the respect of all his compeers, as an able, eloquent, and patriotic statesman. At the breaking out of the rebellion, Senator Andrew Johnson still proclaimed his allegiance to the United States, and continued to hold his seat in the Senate, though his course subjected him to much unpopularity, and even danger.

When, in the spring of 1862, our army had penetrated Tennessee to Nashville, and the northern and central portions of the State were wrested from rebel control, the President desired the services of a wise and sagacious man, of unquestionable loyalty, to act as Military Governor of that State; and he did not have long to look—Andrew Johnson was at once recognized as the man for the place, and, being commissioned a Brigadier-General, he repaired to Nashville, where he for two years discharged the delicate and responsible duty of his charge with a degree of wisdom and efficiency which challenged general admiration. Under his administration, the rebellion had steadily been losing its hold in Tennessee, and loyalty was as constantly cultivated and developed.

He was nominated for the Vice-Presidency by the Union Convention at Baltimore, June 8th, 1864, and was elected November 8, 1864, and was sworn into office March 4th, 1865.

President Lincoln died April 15. Andrew Johnson was sworn into office as President of the United States, on the same day, by Chief Justice Chase.

Soon after entering upon the duties of his office, he vetoed the Civil Rights Bill, the Constitutional Amendment, the Military Government Bill, and all the important bills passed by Congress; also suspended Edwin M. Stanton, Secretary of War, from office, during the recess of Congress; on the assembling of which, he sent them his reasons for so doing. Upon considering which, they reinstated Secretary Stanton. Whereupon the

President issued an order removing him, and ordering Major-General Thomas, Adjutant-General of the army, to act as Secretary *ad interim*—the same being done without the consent or advice of the Senate—for which and many other acts committed by him, and by Congress deemed unconstitutional, the House did, on the 25th of February, 1868, impeach Andrew Johnson of high crimes and misdemeanors; and he was accordingly tried for the same by the Senate—the result of which trial will be found in the [Impeachment Act](#), on another page.

CHRONOLOGICAL RECORD OF THE REBELLION.

NOVEMBER, 1860—PRESIDENTIAL ELECTION.

Nov. 6.—Each of the four political parties presented its candidate for the Presidency, and the same number for the Vice-Presidency. The Republican party supported Abraham Lincoln, of Illinois, and Hannibal Hamlin, of Maine. One wing of the Democratic party supported S. A. Douglas, of Illinois, and H. V. Johnson, of Georgia; the other wing sustained John C. Breckenridge, of Kentucky, and Joseph Lane, of Oregon. The Old Line Whigs and Know Nothings supported John Bell, of Tennessee, and Edward Everett, of Massachusetts. The result of the popular vote was as follows:

Lincoln and Hamlin received 1,857,610; Douglas and Johnson, 1,365,976; Breckenridge and Lane, 847,553; Bell and Everett, 590,631.

Nov. 7.—The news of Mr. Lincoln's election received at Charleston, South Carolina, with cheers for a Southern Confederacy. The "Palmetto Flag" hoisted on the vessels in the harbor.

Nov. 9.—An attempt to seize the arms in Fort Moultrie.

Nov. 10.—A bill was introduced into the South Carolina Legislature to raise and equip 10,000 men. The Legislature also ordered the election of a convention, to consider the question of secession. Jas. Chester, United States Senator from South Carolina, resigned.

Nov. 11.—Senator Hammond, of South Carolina, resigned.

Nov. 15.—Governor Letcher, of Virginia, called an extra session of the Legislature.

Nov. 18.—Georgia Legislature appropriated \$1,000,000 to arm the State. Major Anderson sent to Fort Moultrie to relieve Colonel Gardner.

Nov. 19.—Governor Moore called an extra session of the Louisiana Legislature.

DECEMBER, 1860.

DEC. 1.—Florida Legislature ordered the election of a convention. Great secession meeting in Memphis.

DEC. 3.—Congress met. The President denied the right of a State to secede, and asserted the right of the General Government to coerce a seceding State.

DEC. 5.—Election of delegates to South Carolina Convention took place. The successful candidates were secessionists.

DEC. 10.—Howell Cobb, Secretary of the Treasury, resigned. Senator Clay, of Alabama, resigned. The Louisiana Legislature ordered the election of a convention, and appropriated \$500,000 to arm the State.

DEC. 13.—An extra session of the Cabinet was held to consider the question of reinforcing Fort Moultrie; the President opposed it, and reinforcements were not sent.

DEC. 14.—General Cass, Secretary of State, resigned.

DEC. 17.—South Carolina Convention assembled.

DEC. 18.—The Crittenden Compromise introduced in the United States Senate.

DEC. 19.—Governor Hicks, of Maryland, refused to receive the Mississippi Commissioner.

DEC. 20.—South Carolina Convention adopted a secession ordinance; the vote unanimous.

DEC. 22.—The Crittenden Compromise voted down in the Senate committee of Thirteen.

DEC. 24.—The people of Pittsburg stop the shipment of ordnance from the arsenal at that place to Southern forts. Governor Moore called an extra session of the Alabama Legislature.—Election of members of the Alabama Convention took place; the majority for secession was over 50,000.—South Carolina members of Congress resigned.

DEC. 26.—Major Anderson left Fort Moultrie and took possession of Fort Sumter. He had with him only 111 men. South Carolina

Commissioners arrived in Washington. The President refused to receive them.

DEC. 27.—Revenue cutter, William Aiken, surrendered to the South Carolina authorities.

DEC. 28.—South Carolina seized the Government property in Charleston, took possession of Castle Pinckney and Fort Moultrie.

DEC. 29.—John B. Floyd, Secretary of War, resigned.

DEC. 31.—South Carolina sent Commissioners to the slave States to make arrangements for a Southern Confederacy.

JANUARY, 1861.

JAN. 2.—Governor Ellis, of North Carolina, took possession of Fort Macon. Georgia troops seized Forts Pulaski and Jackson, and the United States arsenal at Savannah.

JAN. 4.—Governor Moore, of Alabama, seized Fort Morgan, and the United States arsenal at Mobile. Fast-day, by proclamation of the President.

JAN. 7.—State Conventions of Alabama and Mississippi, Legislatures of Virginia and Tennessee, assembled.

JAN. 8.—Jacob Thompson, Secretary of the Interior, resigned. Fort Johnson at Wilmington, and Caswell at Oak Island, seized by North Carolina.

JAN. 9.—The steamer Star of the West fired on by rebel batteries in Charleston harbor, and driven back. Mississippi Convention passed secession ordinance by vote of 84 to 15.

JAN. 10.—Florida Convention adopted an ordinance of secession by a vote of 62 to 7. Florida seized Fort McRae.

JAN. 11.—Alabama seceded; vote in Convention, ayes, 61; noes, 39. P. B. Thomas, Secretary of the Treasury, resigned, and was succeeded by John A. Dix, of New York. The Governor of Louisiana seized Forts Phillip and Jackson, on the Mississippi below New Orleans, the United States arsenal at Baton Rouge, and Forts Pike and Macomb, on Lake Ponchartrain.

JAN. 13.—Florida troops took possession of the Pensacola Navy Yard and Fort Barancas. Lieutenant Slemmer, in command of Fort Pickens, refused to obey Commodore Armstrong's order to surrender the fort to the Florida troops, and thus saved that important place to the Union.

JAN. 16.—The Legislature of Arkansas called a convention. Colonel Hayne, of South Carolina, demanded of the President the surrender of Fort Sumter, which was refused. The Missouri Legislature voted to hold a convention.

JAN. 18.—The Legislature of Virginia appropriated \$1,000,000 for the defense of the State.

JAN. 19.—Georgia adopted a secession ordinance by vote of 208 to 89.

JAN. 21.—Members of Congress from Alabama resigned. Jefferson Davis resigned his place in the Senate.

JAN. 23.—Georgia members of Congress resigned.

JAN. 24.—The rebels seized the U. S. arsenal at Augusta Georgia.

JAN. 26.—Louisiana Legislature passed secession ordinance by vote of 113 to 17.

JAN. 30.—North Carolina Legislature submitted the convention question to the people. This was the first instance of the will of the people being consulted in regard to the question of secession. The revenue cutters Cass, at Mobile, and McLelland, at New Orleans, surrendered to the rebel authorities.

FEBRUARY, 1861.

FEB. 1.—Texas Convention passed an ordinance of secession by vote of 166 to 7, to be submitted to the people. The Louisiana authorities seized the Mint and Custom House at New Orleans.

FEB. 4.—Delegates from the seceded States met at Montgomery, Alabama, to organize a Confederate Government. Peace Congress met at Washington; Ex-President Tyler was chosen President.

FEB. 8.—The U. S. arsenal at Little Rock surrendered to Arkansas.

FEB. 9.—Jefferson Davis and A. H. Stephens elected Provisional President and Vice-President of the Southern Confederacy.

FEB. 13.—The electoral vote counted. Abraham Lincoln received 180 votes, Stephen A. Douglas 12, John C. Breckenridge 72, and John Bell 39.

FEB. 19.—Fort Kearney, Kansas, seized by the rebels.

FEB. 23.—General Twiggs surrendered government property in Texas, valued at \$1,200,000, to the rebels.

MARCH, 1861.

MARCH 1.—General Twiggs expelled from the army. Peace Congress adjourned.

MARCH 2.—Revenue cutter Dodge surrendered to the rebels at Galveston, Texas.

MARCH 4.—The ordinance of secession passed by the Texas Convention and submitted to the people, having been adopted by a majority of about 40,000, the Convention declared the State out of the Union.

MARCH 5.—General Beauregard took command of the troops at Charleston.

MARCH 6.—Fort Brown, on the Rio Grande, was surrendered by special agreement. The Federal troops evacuated the fort and sailed for Key West and Tortugas.

MARCH 28.—Vote of Louisiana on secession made public. For secession, 20,448; against it, 17,926.

MARCH 30.—Mississippi Convention ratified the Confederate Constitution by a vote of 78 to 70.

APRIL, 1861.

APRIL 3.—South Carolina Convention ratified the Confederate Constitution by a vote of 114 to 16.

APRIL 4.—Virginia Convention, by a vote of 89 to 45, refused to submit an ordinance of secession to the people.

APRIL 7.—All intercourse between Fort Sumter and Charleston stopped by order of Beauregard. The steamer Atlantic sailed from New York with troops and supplies.

APRIL 8.—The Federal Government notified the South Carolina authorities that provisions would be sent to Major Anderson by force, if necessary. The State Department refused to recognize the Confederate States Commissioners.

APRIL 11.—Troops are stationed in Washington, and the oath of fidelity administered to the men. The rebel Commissioners left Washington. General Beauregard demanded the surrender of Fort Sumter. Major Anderson refused.

BOMBARDMENT OF FORT SUMTER.

APRIL 12.—The rebels had constructed batteries on Morris Island, Sullivan Island and Cumming's Point, besides occupying Fort Moultrie; they had also built a powerful floating battery, all of which were employed in the attack on Sumter. Fort Moultrie opened fire at four o'clock in the morning. Fort Sumter did not reply until seven o'clock. The fire was kept up with vigor by both sides. Major Anderson had under his command 111 men, including officers, musicians and laborers. The Legislature appropriated \$500,000 to arm the State. Fort Pickens reinforced.

APRIL 13.—The bombardment of Fort Sumter continued; early in the day the officers' quarters were fired by a shell; by noon most of the wood work was on fire; Sumter's fire was almost silenced when General Wigfall came with a flag of truce, and arrangements were made for evacuating the fort. The terms were that the garrison should take all its individual and company property, that they should march out with their side arms in their own way, at their own time, and that they should salute their flag and take it with them.

APRIL 14.—Major Anderson and his men sailed for New York. Governor Yates, of Illinois, called an extra session of the Legislature, to meet April 22.

APRIL 15.—The President issued a proclamation commanding all persons in arms against the Government to disperse within twenty days; also calling for 75,000 volunteers. The New York Legislature authorized the raising of \$3,000,000 for their equipment and support. The President called an extra session of Congress, to meet July 4th.

APRIL 16.—The Governors of Kentucky, Virginia, Tennessee and Missouri, refused to furnish troops Under the President's proclamation.—The Confederate Government called for 32,000 men.

APRIL 17.—Virginia Convention adopted secession ordinance in secret session by a vote of 60 to 53, to be submitted to the people on the fourth Thursday of May. Forces were sent to seize the U. S. Arsenal at Harper's Ferry, and the Gosport Navy Yard. All the military power of the State was placed under the control of the President of the Southern Confederacy. Jefferson Davis issued a proclamation, offering letters of marque and reprisal to all who wished to engage in privateering.

APRIL 18.—U. S. Arsenal at Harper's Ferry destroyed by Lieutenant Jones, to prevent it falling into the hands of the enemy. Colonel Cake, with 400 men of the 25th Pennsylvania regiment, arrived in Washington. These were the first troops to enter the city for its defense.

APRIL 19.—Steamer Star of the West seized by the rebels at Indianola, Texas. The 6th Massachusetts regiment, while passing through Baltimore, was attacked by a mob; two soldiers were wounded. The troops fired upon the mob, killing eleven and wounding many. President Lincoln issued a proclamation declaring the ports of South Carolina, Florida, Georgia, Mississippi, Louisiana and Texas, in a state of blockade. Maryland, Delaware and Pennsylvania, added to the military department of Washington, and placed under the command of General Patterson. City Council of Philadelphia appropriated \$1,000,000 to equip the volunteers and support their families.

APRIL 20.—The Governor of North Carolina seized the Branch Mint at Charlotte. Several bridges on the Northern Pennsylvania Railroad destroyed by Maryland rebels, to prevent the passage of troops to Washington. The U. S. Arsenal at Liberty, Mo., seized by the secessionists and the arms distributed among the surrounding counties. The Gosport Navy Yard destroyed by General McCauley, to keep it from the rebels; the war vessels

Delaware, Pennsylvania, Columbia, Germantown, Merrimac, Raritan, Dolphin and United States, were scuttled and set on fire; the Cumberland was towed out. The 4th Massachusetts regiment arrived at Fortress Monroe. A special meeting of the Pennsylvania Legislature called for the 30th, by proclamation of Governor Curtin.

APRIL 21.—Federal Government took possession of the Philadelphia and Baltimore Railroad. Senator Andrew Johnson, of Tennessee, mobbed at Lynchburg, Va.

APRIL 22.—U. S. Arsenal at Fayetteville, N. C., seized by the rebels. Arkansas seized the Arsenal at Napoleon.

APRIL 24.—Fort Smith, Arkansas, seized by the rebels under Senator Boland. Cairo, Illinois, occupied by Union troops.

APRIL 25.—Major Sibly surrendered 450 U. S. troops to the rebel Colonel Van Dorn, at Saluria, Texas. A company of Illinois volunteers, acting under the authority of the Government, removed 22,000 stand of arms from the Arsenal at St. Louis to Springfield, Illinois. Governor Letcher proclaims Virginia a member of the Southern Confederacy.

APRIL 27.—The steamer Aelmick, loaded with powder and munitions of war for the South, seized at Cairo. The blockade extended to the ports of North Carolina and Virginia. All officers of the army were required to take the oath of allegiance.

APRIL 29.—The Indiana Legislature appropriated \$500,000 to arm the State. The Maryland House of Delegates voted against secession, 63 to 13. Governor Harris, of Tennessee, seized bonds and money in the Collector's hands at Nashville, belonging to the Federal Government. Three steamships seized at New Orleans by order of Governor Moore, of Louisiana.

MAY, 1861.

MAY 1.—North Carolina Legislature passed a bill calling a State Convention, to meet on the 20th of May. The Legislature of Tennessee passed an act, in secret session, authorizing the Governor to form a league with the Southern Confederacy.

MAY 3.—Governor Letcher called out the militia to defend Virginia. President Lincoln called for 42,000 three years' volunteers; 22,000 troops for the regular army, and 18,000 seamen. Fourteen companies of Kentucky volunteers offered their services to the Secretary of War, notwithstanding the Governor's refusal. Connecticut Legislature appropriated \$2,000,000 for military purposes.

MAY 4.—General McClellan placed in command of the Department of Ohio, comprising the States of Ohio, Indiana and Illinois. Union meetings were held in Preston county, Va., and at Wheeling, Va.

MAY 5.—General Butler took possession of the Relay House, Maryland.

MAY 6.—Arkansas Convention passed an ordinance of secession, by vote of 69 to 1. Tennessee Legislature adopted secession ordinance in secret session, to be submitted to a vote of the people on the 8th of June.

MAY 10.—A mob attacked the Home Guard at St. Louis; the Guard fired on the rioters, killing seven. A rebel force of 800 men, under Gen. Frost, surrendered to Captain (afterwards General) Lyon, at St. Louis.

MAY 11.—The mob made another attack on the Home Guard in St. Louis. Blockade of Charleston, S. C., established by the steamer Niagara.

MAY 13.—A Convention composed of delegates from 35 counties, met at Wheeling, Virginia, to consider the policy of forming a new State.

MAY 14.—A schooner loaded with arms for the rebels, also a large number of guns in Baltimore, seized by the forces under General Butler. The ship Argo, with a cargo of tobacco valued at \$150,000, captured by the U. S. gunboat Quaker City.

MAY 16.—A bridge on the Baltimore and Ohio Railroad destroyed. General Scott ordered the fortification of Arlington Heights.

MAY 17.—Secession spies arrested in Washington by order of General Scott. Adams Express Company prohibited from carrying packages or letters south of Washington. Rebels commence fortifying Harper's Ferry.

MAY 18.—Military Department of Virginia created, comprising Eastern Virginia, North and South Carolina; headquarters at Fortress Monroe, commander General Butler.

MAY 19.—Rebel batteries at Sewell's Point attacked by U. S. steamers. Two schooners with rebel troops on board captured by the U. S. steamer Freeborn.

MAY 20.—Telegraphic dispatches throughout the North seized by order of the Government. North Carolina secession ordinance adopted. Governor Magoffin proclaimed the neutrality of Kentucky.

MAY 22.—Fortifications of Ship Island destroyed to keep them from the enemy.

MAY 24.—Thirteen thousand troops crossed the Potomac into Virginia. Alexandria occupied by Federal troops. Colonel Ellsworth shot by Jackson; the murderer was instantly killed. Arlington Heights occupied by Union troops.

MAY 25.—Union troops destroyed seven bridges and five miles of railroad from Alexandria to Leesburg.

MAY 26.—Western Virginia gave a large majority in favor of the Union. The port of New Orleans was blockaded by the sloop of war Brooklyn. All postal service in the seceded States suspended.

MAY 31.—The steamers Freeborn and Anacosta engage the rebel batteries at Acquia Creek.

JUNE, 1861.

JUNE 1.—Lieutenant Tompkins, with 47 men, attacked the rebels at Fairfax Court House, killing Captain Marr and several others. Union loss two killed. The steamers Freeborn and Anacosta engage the batteries at Acquia Creek the second time. Skirmish at Williamsport, Maryland, between the rebels and a company of Home Guards.

JUNE 3.—Colonel Kelly defeated the rebels at Phillippi, Va., killing 15; Colonel Kelly was severely wounded. Hon. S. A. Douglas died at Chicago. General Beauregard arrived and assumed command of the Confederate forces at Manassas Junction, Va. The voluntary contributions in the Northern States to carry on the war amounted to over \$32,000,000.

JUNE 6.—Harriet Lane attacked the batteries at Pig Point, near Fortress Monroe. A company of rebel cavalry, captured at Alexandria, Va., take the oath of allegiance.

BATTLE OF BIG BETHEL.

JUNE 10.—Three regiments of Union troops, under the command of General Pierce, were defeated with a loss of 16 killed, among them Major Winthrop, and 41 wounded.

JUNE 11.—Skirmish at Romney, Va. Wheeling Convention met.

JUNE 14.—Rebels evacuated Harper's Ferry, after destroying all available property; the armory machinery was taken to Richmond.

JUNE 15.—Brig Perry arrived at New York with the privateer Savannah, captured June 4th.

JUNE 17.—Wheeling Convention unanimously declared Western Virginia independent of the rebel portion of the State. A train of cars with 275 Ohio volunteers, under the command of Colonel Schenck, was fired into from a masked battery near Vienna, Va.; 8 were killed and 12 wounded. General Lyon defeated the rebels at Boonville, Mo., with a loss of about 30 killed and 50 wounded; Union loss 2 killed and 9 wounded.

JUNE 10.—A skirmish took place at Cole Camp, Mo., between a body of secessionists and a company of Home Guards; the latter were defeated with a loss of 10 killed, 20 wounded and 30 prisoners. A detachment of U. S. Regulars captured a number of rebels with their arms and ammunition, at Liberty, Mo.

JUNE 20.—Union Convention elected Frank D. Pierpont Governor of Virginia. General McClellan assumed command in person of the army in Western Virginia.

JUNE 23.—Forty-eight locomotives belonging to the Baltimore and Ohio Railroad, valued at \$400,000, were destroyed by the rebels.

JUNE 24.—The U. S. gunboat Pawnee attacked the rebel battery at Mathias Point. A spy arrested at Washington with a full detail of the number of the troops and batteries, and the best plan of attack on the city.

JUNE 26.—The President acknowledged the Wheeling government of Virginia.

JUNE 27.—George P. Kane, Marshal of Baltimore police, arrested by General Banks and sent to Fort McHenry. The steamers Pawnee, Resolute and Freeborn, made a second attack on the rebel battery at Mathias Point; Captain Ward, commanding the Federal force, was killed.

JUNE 29.—The rebel privateer Sumter escaped from New Orleans. The rebels made a dash at Harper's Ferry, destroying several boats and a railroad bridge.

JULY, 1861.

JULY 2.—General Patterson defeated the Confederates at Falling Water, Va.; Union loss 3 killed and 10 wounded.

JULY 3.—A rebel company of 94 men captured at Neosho, Missouri.

JULY 4.—Rebels seized the Louisville and Nashville Railroad. Congress met in extra session

BATTLE OF CARTHAGE, MO.

JULY 5.—Confederates were commanded by Governor Jackson, the Federal troops, numbering 1,600, by Colonel Sigel. Colonel Sigel retreated to Springfield; Union loss 13 killed and 31 wounded.



ZACHARY TAYLOR.

JULY 6.—General Fremont appointed to the command of the Western Department, consisting of the State of Illinois, and the States and territories west of the Mississippi, and east of the Rocky Mountains. Headquarters at St. Louis. 45 men belonging to the 3d Ohio regiment, cut their way through an ambuscade near Buchanan, Virginia.

JULY 10.—Skirmish at Laurel Hill, Virginia, rebels defeated. Union loss, 2 killed and 2 wounded.

JULY 11.—The following Senators were expelled from the U. S. Senate: J. M. Mason, R. M. Hunter, of Virginia; T. L. Clingham and Thomas Bragg, of North Carolina; L. T. Wigfall and J. U. Hemphill, of Texas; C. B. Mitchell and W. K. Sebastian, of Arkansas; and A. O. F. Nicholson, of Tennessee.

BATTLE OF RICH MOUNTAIN.

JULY 12.—The Federal troops, under command of Colonel Rosecrans, defeated the enemy under Colonel Pegram. The rebels lost their wagons, guns, camp equipage, and about 800 prisoners, besides 150 killed and wounded.

JULY 13.—The Confederates under General Garnett were defeated at Carrick's Ford, Virginia. The rebel General Garnett was killed. Union loss was 2 killed and 10 wounded.

BATTLE OF SCREYTOWN, VA.—The Federals under Colonel Lowe, were defeated with a loss of 9 killed and 40 wounded and missing.

JULY 15.—Skirmish at Bunker Hill, Virginia. The rebel cavalry under Colonel Stuart, made the attack, but were defeated.

JULY 16.—Skirmish at Millville, Missouri, and at Barboursville, Virginia. Tilgham, a negro, killed three of a rebel prize crew on the S. J. Warring, and brought the vessel into New York. President Lincoln authorized to call the militia and accept the services of 500,000 men.

FIGHT AT BLACKBURN FORD.

JULY 18.—The Federal troops under command of General Tyler made the attack, but after three hours' fighting were ordered back to Centerville; their loss was 19 killed and 64 wounded and missing. The Department of Maryland created, and General John A. Dix placed in command. Headquarters at Baltimore.

JULY 19.—General Banks superseded General Patterson. Headquarters in the field.

JULY 20.—The Confederate Congress met at Richmond.

BATTLE OF BULL RUN.

JULY 21.—The Army of the Potomac, 45,000 strong, under the command of Brigadier-General McDowell, left its camp near Washington, July 17. The army was formed in five divisions. General Tyler commanded the 1st division, Colonel Hunter the 2d, Colonel Heintzelman the 3d, Colonel Runyon the 4th, and Colonel Miles the 5th. Colonel Runyon's division remained in the rear, between Centerville and Fairfax, and took no part in the battle. The enemy, in numbers about equal to the attacking force, occupied a position at Manassas naturally strong, and made doubly so by art. The battle was commenced on Sunday morning by the Union troops and was fought skilfully and bravely; the enemy were driven from a portion of their works, and the chances were decidedly in favor of the Federals; but the arrival of the rebel General Johnson with large reinforcements, turned the scale; at the same time a panic seized upon the troops, and they commenced a shameful and disorderly retreat towards Washington. The Federal loss was 481 killed, 104 wounded, and 1,216 missing. The rebel loss, according to General Beauregard, was 269 killed, and 1,483 wounded.

JULY 22.—General McClellan took command of the Army of the Potomac. Three Months Volunteers began to return home.

JULY 24.—Fort Fillmore, New Mexico, treacherously surrendered to the enemy by Major Lynde, U. S. A. All the arms and supplies were delivered up, and the soldiers released on parole.

JULY 25.—General Rosecrans assumed command of the army in Western Virginia.

JULY 31.—City Council of Cincinnati appropriated \$23,000 to aid in relieving the families of volunteers from Hamilton county, Ohio.

AUGUST, 1861.

AUG. 1.—The rebels retreated from Harper's Ferry to Leesburg.

AUG. 2.—General Lyon defeated the Confederates at Dug Spring, Missouri. Union loss was 8 killed at 30 wounded. The vessels engaged in a contraband trade with the rebels of Virginia and North Carolina were destroyed in Pocomoke Sound

AUG. 3.—Congress passed a bill for raising \$20,000,000 by direct taxation and the Confiscation bill.

AUG. 5.—Commodore Alden bombarded Galveston, Texas.

AUG. 6.—The extra session of Congress closed.

AUG. 7.—The village of Hampton, Virginia, destroyed by the rebels. The privateer York burned by the U. S. Gunboat Union, crew taken prisoners.

BATTLE OF WILSON CREEK, MO.

AUG. 10.—General Lyon, with 5,000 Missouri, Iowa and Kansas troops, attacked a Confederate force double that of his own at Wilson Creek, near Springfield, Missouri. After a hard fight of six hours, General Lyon being killed, the Union troops, under the command of Colonel Sigel and Major Sturgis, retired to Springfield. The enemy did not pursue. Union loss was 223 killed, and 1,012 wounded and missing. General McCulloch, commanding the rebels, reported 265 killed, and 800 wounded.

AUG. 12.—President Lincoln appointed the 30th of September as a fast day.

AUG. 14.—General Fremont declared martial law in St. Louis.

AUG. 15.—Jefferson Davis ordered all Northern men to leave the South in forty days.

AUG. 16.—General Wool took command at Fortress Monroe.

AUG. 21.—Colonel Doherty with 300 Illinois troops, dispersed a rebel force at Charleston, Missouri. Union loss 1 killed and 6 wounded.

AUG. 26.—The 7th Ohio regiment, 900 strong, were surprised at Summerville, Virginia, while at breakfast, by the rebels, under General Floyd, but fought their way out, with a loss of 6 officers. The Hatteras expedition sailed.

AUG. 28.—Fort Clark, on the coast of North Carolina, captured.

AUG. 29.—Fort Hatteras surrendered to the Union forces. Rebel loss was 48 killed, 51 wounded, and 691 prisoners. The Federals lost none.

AUG. 30.—Fort Morgan, at Ocracoke Inlet, abandoned by the Confederates.

SEPTEMBER, 1861.

SEPT. 1.—Kentucky Legislature met. Union majority in the Senate, 16; in the House, 52. Fight at Boonville, Virginia; the rebels were defeated and the town destroyed. Union loss 6 wounded.

SEPT. 4.—Confederates under General Polk, took possession of Columbus, Kentucky. The rebels attempted to cross the Potomac at Great Falls, but were repulsed.

SEPT. 6.—General Grant took possession of Paducah, Ky.

BATTLE OF CARNIFEX FERRY.

SEPT. 10.—General Rosecrans with 4,500 troops, attacked the rebels under Floyd, in their intrenched camp at Gauley river, near Carnifex Ferry. After several hours' fighting, darkness put an end to the contest. During the night Floyd retreated, burning the bridge over Gauley river. The Federal loss was 15 killed and 70 wounded. A naval engagement took place on the Mississippi between the U. S. gunboats Conestoga and Lexington, and two Confederate boats, assisted by a battery at Lucas Bend. The battery was silenced, and the boats driven to Columbus.

SEPT. 11.—President Lincoln modified General Fremont's emancipation proclamation.

SEPT. 12.—Fight at Cheat Mountain. Colonel J. A. Washington, proprietor of Mount Vernon, was killed. Union loss, 9 killed and 12 wounded.

SEPT. 17.—Accident on the Ohio and Mississippi railroad, near Huron, Indiana. About 100 of the 19th Illinois regiment were killed or wounded. Skirmish between the 3d Iowa regiment and a band of Confederates at Blue Mills, Missouri. The Federal troops were compelled to fall back, but receiving reinforcements, rallied, when the rebels retreated. Union loss, 12 killed and 85 wounded.

SEPT. 18.—Colonel Frank Blair arrested by order of General Fremont. Maryland Legislature closed by Provost Marshal. Secession members sent to Fort McHenry.

SEPT. 19.—Governor Morehead, Rueben Merrit, and M. A. Barr, arrested in Louisville, Kentucky, for treason.

BATTLE OF LEXINGTON, MO.

SEPT. 20.—Colonel Mulligan, with 2,460 men, occupying the town of Lexington, Missouri, was attacked by a greatly superior force of the enemy, and after four days was compelled to surrender. During the siege the whole Union loss was 39 killed and 120 wounded.

SEPT. 21.—John C. Breckinridge fled from Frankfort, Kentucky, and joined the rebels. General Lane defeated a rebel force at Papinsville, Missouri. Federal loss 17 killed.

OCTOBER, 1861.

OCT. 1.—The propeller Fanny captured by the rebels at Chicamacomico.

OCT. 2.—Fight at Chapmanville, Virginia, between Colonel Enyartz, Kentucky volunteers, and a party of Confederates. The latter were defeated and 47 of them taken prisoners. Union loss 4 killed and 8 wounded.

OCT. 3.—General Reynolds made an armed reconnaissance of the enemy's position at Greenbriar. After driving in the rebel pickets and capturing three cannon, General Reynolds returned to Cheat Mountain, having lost 8 killed and 32 wounded. The Confederates evacuated Lexington, Missouri.

OCT. 4.—A large force of rebels under Colonel Barlow attacked the 20th Indiana regiment in their camp at Chicamacomico. The Federals retreated, leaving the wounded in the hands of the enemy.

OCT. 5.—The steamer Monticello shelled the rebels under Bartow, and drove them to their boats.

OCT. 6.—Fight at Flemington, Kentucky, between the Home Guard and a band of rebels. The latter were defeated.

OCT. 7.—The rebel iron-clad steamer, Merrimac, made its first appearance within sight of Fortress Monroe.

OCT. 9.—Confederates made an attack on Santa Rosa Island, but were defeated. Union loss was 13 killed and 21 wounded. Colonel Geary, with 400 Pennsylvania troops, crossed the Potomac at Harper's Ferry, and captured 21,000 bushels of wheat.

OCT. 11.—Rebel steamer Theodore escaped from Charleston, South Carolina, with Mason and Slidell on board.

OCT. 15.—Jeff. Thompson, with a force of 600 men, captured a guard of 50, stationed at Big River Bridge, near Potosi, Missouri, and destroyed the bridge.

OCT. 16.—A small Union force under Major White recaptured Lexington, Missouri.

OCT. 21.—Fight at Fredericktown, Missouri. The Confederates defeated. Union loss 6 killed and about 60 wounded.

BATTLE OF BALL'S BLUFF.

OCT. 21.—Union forces engaged numbered 1,900, commanded by Colonel Baker. General Stone failed to cross the Potomac to support Colonel Baker. After a severe fight, in which Colonel Baker was killed, the Federals retreated. Union loss was 223 killed, 266 wounded, and 455 prisoners, including 100 wounded.

BATTLE OF WILD CAT, KY.

OCT. 21.—General Zollicoffer, with 6,000 Confederates, attacked the Unionists at Camp Wild Cat, Laurel county, Kentucky, and was repulsed by the forces under General Schoep. Union loss 4 killed and 21 wounded.

OCT. 22.—Skirmish at Buffalo Mills, Missouri. Rebels lost 17 killed and 90 prisoners.

OCT. 25.—General Kelley defeated the enemy, at Romney, Virginia.

OCT. 26.—Gallant charge of Major Zagoni, with 150 of Fremont's body guard on a large force of rebels near Springfield, Missouri. The enemy was routed with a loss of 106 killed and 27 prisoners. Union loss 52 killed and wounded.

OCT. 26.—General Lane captured a rebel transportation train near Butler, Missouri.

OCT. 29.—The second naval expedition, consisting of 80 vessels, and 15,000 men, sailed from Fortress Monroe. The naval force was commanded by Commodore Dupont; the land forces were commanded by General Sherman.

NOVEMBER, 1861.

Nov. 1.—General Scott resigned as commander-in-chief of the armies of the United States. General McClellan was appointed in his place. General Benham defeated the rebels at Gauley Bridge, Virginia.

Nov. 2.—General Hunter superceded John C. Fremont in the command of the Western Department. The Confederate schooner Bermuda ran the blockade at Savannah.

PORT ROYAL.

Nov. 7.—The naval and military forces under the command of Commodore Dupont and General Sherman, captured Forts Walker and Beauregard, at Port Royal entrance. They also took possession of the town of Beaufort and Hilton Island. The Union loss was 8 killed and 25 wounded.

BATTLE OF BELMONT.

General Grant, with a force of 2,800, attacked a rebel camp at Belmont, Missouri, driving the enemy out and destroying the camp, and taking a quantity of arms; but reinforcements arriving at Columbus, the Federals

were compelled to retreat; their loss was 84 killed, 288 wounded, and 235 missing.

Nov. 8.—Five rebel boats made an attack on Fort Hatteras, but were repulsed.

Nov. 10.—The rebels attack the town Guyandotte, Virginia, killing some of the Union men, but were driven off.

Nov. 11.—Guyandotte burned by the Unionists. General Halleck takes command of the Western Department.

Nov. 15.—The United States Frigate San Jacinto arrived at Fortress Monroe with Mason and Slidell, the rebel commissioners to Europe.

Nov. 18.—Confederate Congress met.

Nov. 21.—The United States vessel Santee captured the privateer Royal Yacht, off Galveston, Texas.

Nov. 23.—Fort Pickens and the U. S. war vessels Niagara and Colorado, bombarded the rebel fortifications at Pensacola. Port of Warrenton burnt.

Nov. 26.—Sharp skirmish at Hunter's Hill, Virginia. Union loss 28 killed and wounded.

Nov. 27.—General McClellan directed the observance of the Sabbath in all the camps of the U. S. Army.

Nov. 29.—Skirmish at Warsaw, Missouri; a portion of the town destroyed.

Nov. 30.—Fight at Salem, Missouri. Rebels defeated with a loss of 39 killed and wounded.

DECEMBER, 1861.

Dec. 3.—Congress met.

Dec. 4.—John C. Breckinridge expelled from the United States Senate.

Dec. 5.—Engagement between the rebel gunboats and the Federal vessels, at Cape Hatteras. According to the reports of the Secretaries of War

and Navy, the Union forces numbered 640,537 volunteers, 20,334 regular soldiers, and 22,000 seamen.

DEC. 9.—The Confederate Congress passed a bill admitting Kentucky into the Southern Confederacy. Freestone Point, Virginia, shelled by the National gunboats; the rebel batteries were silenced, and the buildings containing stores were destroyed.

DEC. 13.—Engagement at Camp Alleghany, Virginia, in which General Milroy defeated the rebels under Colonel Johnson. Union loss, 21 killed and 107 wounded.

FIGHT AT MUNFORDSVILLE, KY.

DEC. 17.—The Union force engaged was a portion of the 32d Indiana (German) regiment; the Confederates were commanded by General Hindman; battle drawn. Union loss 10 killed and 17 wounded. General Pope captured 360 secessionists at Osceola, Missouri.

DEC. 18.—General Pope captured 1,300 rebels, a number of horses and wagons, and 1,000 stand of arms, at Millford, Missouri. Union loss 2 killed and 17 wounded. Stone fleet sunk in Charleston harbor.

DEC. 20.—Battle of Drainsville, Virginia, in which the rebels were defeated by the Union troops under General McCall. Union loss 7 killed and 61 wounded.

DEC. 27.—Mason and Slidell surrendered to the British Minister.

DEC. 28.—A fight took place at Mount Zion, Boone county, Missouri. The Confederates were dispersed with considerable loss in killed, wounded and prisoners. Union loss 3 killed and 11 wounded.

JANUARY, 1862.

JAN. 1.—Mason and Slidell left Fort Warren, for England, in the British steamer Rinaldo. Cannon fight at Fort Pickens. General Stevens advances from Beaufort to the mainland, and with the assistance of the gunboats, captured the Coosaw batteries. Union loss 2 killed and 8 wounded.

JAN. 4.—General Milroy defeated the rebels at Huntersville, Virginia, and captured \$80,000 worth of stores.

JAN. 7.—Rebels defeated at Romney. A force of 300 Union troops sent by General Milroy, captured a large quantity of stores in Tucker county, Virginia.

JAN. 8.—General Palmer defeated the rebels at Silver Creek, Missouri. Union loss 4 killed and 18 wounded.

JAN. 10.—Colonel Garfield defeated the rebels under Humphrey Marshall, at Prestonburg, Ky.

JAN. 11.—The Burnside expedition sailed from Fortress Monroe. Naval engagement on the Mississippi between the Union steamers Essex and St. Louis, and four rebel boats; the latter were compelled to seek protection under the batteries at Columbus. Simon Cameron resigned his position as Secretary of War, and E. M. Stanton appointed in his place.

MILL SPRING, KY.

JAN. 19.—This battle was fought between 3,000 Union troops under General Schoep, and rebels under General Zollicoffer. The enemy were defeated and General Zollicoffer killed. Union loss, 39 killed and 127 wounded.

FEBRUARY, 1862.

FEB. 3.—The Federal Government decided that the crews of the captured privateers were to be considered as prisoners of war.

FEB. 5.—Jesse D. Bright expelled from the United States Senate.

FEB. 6.—Commodore Foote, with 7 gunboats, attacked Fort Henry, on the Tennessee river. After fighting an hour and a half, the rebel commander, General Tilghman, made an unconditional surrender.

FEB. 7.—The expedition under General Burnside and Commodore Goldsborough reached Roanoke Island, and commenced the attack on the rebel fortifications.

ROANOKE ISLAND.

FEB. 8.—General Burnside captured the six forts on Roanoke Island, taking about 3,000 small arms and destroying all the Confederate fleet, except two vessels. Union loss was 50 killed and 212 wounded. 2,500 prisoners and a large quantity of ammunition were captured.

FEB. 9.—General C. P. Stone arrested and sent to Fort Lafayette.

FEB. 10.—Elizabeth City, N. C., surrendered to General Burnside. The Federal gunboats ascended the Tennessee river as far as Florence, Alabama, capturing three and destroying six rebel boats.

FORT DONELSON.

FEB. 13.—General Curtis took possession of Springfield, Mo. Fort Donelson invested, and the bombardment commenced.

FEB. 14.—Commodore Foote attacked Fort Donelson with the gunboats, but was compelled to withdraw.

FEB. 15.—The attack on Fort Donelson renewed by the land forces under General Grant, numbering 40,000. Bowling Green evacuated by the rebels.

FEB. 16.—General Buckner made an unconditional surrender of Fort Donelson and the troops under his command. Between 12,000 and 15,000 prisoners, 40 cannon, and a large amount of stores were captured. Union loss was 321 killed, 1,046 wounded and 150 missing. Skirmish at Independence, Mo.

FEB. 18.—General Curtis drove the rebels across the Arkansas line, capturing a number of prisoners and army stores.

FEB. 21.—The Union troops occupied Clarksville, Tennessee. Desperate fight at Fort Craig, New Mexico, between the Union troops under Colonel Canby, and the Texans. The Federals were defeated with a loss of 62 killed and 162 wounded.

FEB. 22.—Jefferson Davis inaugurated President, and A. H. Stephens Vice-President of the Southern Confederacy.

FEB. 24.—Nashville, Tennessee, occupied by the Union troops.

FEB. 27.—Columbus evacuated by the Confederates.

MARCH, 1862.

MARCH 1.—Fight at Pittsburgh Landing between two Union gunboats and a rebel battery.

MARCH 4.—Brunswick, Ga., Fort Clinch, Fernandina and St. Mary's, Fla., were captured by Commodore Dupont. Andrew Johnson appointed Military Governor of Tennessee.

BATTLE OF PEA RIDGE.

MARCH 6.—The Confederates under Van Dorn, Price, and McCulloch, attacked General Curtis at Pea Ridge, Arkansas. The Union army numbered about 12,000.

MARCH 7.—The battle of Pea Ridge renewed, lasting all day.

MARCH 8.—The battle of Pea Ridge ended in the total defeat of the enemy. Union loss was 212 killed and 926 wounded. The rebel steamers Merrimac, Jamestown and Yorktown, attacked the Federal fleet at Hampton Roads, destroying the Cumberland and the Congress, and damaging several other vessels. The Federal loss, in addition to the vessels, was 201 killed and 108 wounded.

MARCH 9.—Duel of the Ironsides in Hampton Roads. After three hours' fighting the Merrimac was towed under the protection of the battery at Sewall's Point, and never renewed the contest. The Monitor was uninjured.

MARCH 11.—General McClellan took command of the Army of the Potomac; General Fremont of the Mountain Department, and General Halleck of the Department of the Mississippi. Manassas occupied by Union troops.

MARCH 12.—Commodore Dupont took possession of Jacksonville, Florida. The rebels driven from their works at Paris, Tennessee.

MARCH 13.—The Confederates evacuated their works at New Madrid, Mo., in such haste as to leave 25 pieces of artillery, and a large quantity of military stores, valued at \$1,000,000.

MARCH 14.—General Burnside attacked the rebels in their fortifications at Newbern, N. C. After a fight of four hours, the enemy retreated, leaving a large quantity of ammunition, provisions and stores in the hands of the victors. The Union loss was 91 killed and 466 wounded.

MARCH 16.—Commodore Foote commenced the attack on Island No. 10. Rebels defeated at Cumberland Mountain, Ky.

MARCH 18.—Rebel fortifications at Acquia Creek evacuated. Confederates defeated at Salem, Ark.

BATTLE OF WINCHESTER, VA.

MARCH 23.—The Union force engaged was a part of General Shield's army, and numbered about 8,000, commanded by Colonel Kimball. The fight commenced at ten o'clock in the morning, and lasted until three o'clock in the afternoon. The rebels were finally defeated, and retreated to Strasburgh, leaving their dead and wounded upon the field. The Union loss was 103 killed and 440 wounded.

MARCH 28.—Fight at Pigeon Ranch, New Mexico, between 3,000 Union troops under Colonel Hough, and 1,100 Texans. The battle was a drawn one.

MARCH 31.—Colonel Buford dispersed the rebels at Union City, Tennessee.

APRIL, 1862.

APRIL 6.—The rebels under Generals Johnson and Beauregard, attacked General Grant's army at Pittsburgh Landing. The Union forces were driven back to the river and a number of prisoners captured.

APRIL 7.—The battle of Shiloh renewed. General Buell arrived during the night with reinforcements. The battle lasted throughout the day with varied success, but the rebels were finally defeated and driven to their

fortifications at Corinth. The Federal loss was 1,614 killed, 7,721 wounded and 3,956 missing. The rebel General Johnson was killed.

APRIL 8.—Island No. 10 captured, 5,000 prisoners, 100 siege guns, 24 pieces of field artillery, 5,000 stands of small arms, 2,000 hogsheads of sugar and a large quantity of clothing, tents and ammunition.

APRIL 11.—Fort Pulaski, commanding the entrance to Savannah, surrendered after a bombardment of thirty hours. General Mitchell occupied Huntsville, Ala., taking 200 prisoners, 15 locomotives and a large number of cars. The rebel iron-clad Merrimac makes her second appearance in Hampton Roads, destroying three small vessels. Congress passed the bill abolishing slavery in the District of Columbia.

APRIL 12.—The enemy attacked General Milroy at Monterey, Virginia, but were repulsed. General Mitchell captured 2,000 prisoners at Chattanooga.

APRIL 18.—The rebels attacked General Smith's division at Yorktown, but were repulsed. Bombardment of Forts Jackson and Phillip, on the Mississippi below New Orleans, commenced.

APRIL 19.—Fight between General Burnside's troops and the enemy, near Elizabeth City, N. C. The latter were defeated. Union loss 11 killed. General Reno, with 2,000 Union troops, defeated the enemy at Camden, N. C. Union loss 14 killed and 99 wounded.

APRIL 24.—The Union fleet having removed the obstructions in the Mississippi, passed Forts Jackson and St. Phillip on its way to New Orleans.

APRIL 25.—Commodore Farragut arrived at New Orleans and took possession of the city. Fort Macon, Georgia, surrendered after a bombardment of eleven hours. General C. F. Smith died at Savannah, Tenn.

APRIL 28.—Forts Jackson and St. Phillip surrendered. In the capture of New Orleans the rebels lost, in addition to the forts, 13 gunboats, among them the ram Manassas and the iron-clad Louisiana.

APRIL 29.—General Mitchell defeated the rebels at Bridgeport, Alabama.

MAY, 1862.

MAY 3.—The rebels evacuated Yorktown, Jamestown, and Mulberry and Gloucester Islands, leaving ammunition, camp equipage and 100 guns behind.

BATTLE OF WILLIAMSBURGH, VA.

MAY 5.—The troops were commanded by Generals Hancock and Hooker. The rebels were defeated, and retreated in the night toward Richmond. Union loss 200 killed and 700 wounded. General Dumont attacked Morgan's cavalry at Lebanon, Tenn., killed 66 and took 183 prisoners. Union loss 10 killed, and 26 wounded and missing.

WEST POINT, VA.

MAY 7.—Generals Franklin and Sedgewick, with a force of 20,000 men, were attacked by General Lee. The rebels were defeated. Union loss about 300 killed and wounded.

MAY 8.—General Milroy attacked the enemy at McDowell's, Va. After a fight of five hours General Milroy was forced to withdraw. Federal loss 29 killed and about 200 wounded.

MAY 9.—The rebels evacuated Pensacola, and destroyed the Navy Yard.

MAY 10.—The Federal forces took possession of Norfolk, Va. The result of this movement was the destruction of the iron-clad Merrimac and the capture of a number of guns and a large amount of ammunition. Gosport Navy Yard destroyed by the rebels. Gunboat fight on the Mississippi, near Fort Wright; the rebels were repulsed, losing two vessels.

MAY 12.—Natchez, Mississippi, surrendered to Commodore Farragut.

MAY 16.—The Union gunboats repulsed at Fort Darling.

MAY 17.—Rebels driven across the Chickahominy, at Bottom Bridge.

MAY 23.—The rebel Colonel Heath attacked the Federal troops at Lewisburgh, Va. After an hour's fighting the rebels were defeated. Union loss 14 killed and wounded.

MAY 24.—Colonel Kenley, commanding the Federal troops at Front Royal, Va., was attacked by a large force of the enemy and defeated with a heavy loss.

MAY 25.—General Banks defeated at Winchester, Va., and driven across the Potomac.

MAY 27.—Confederates defeated at Hanover, Va. Union loss 35 killed and 220 wounded.

MAY 29.—Rebels evacuated Corinth, Miss.

MAY 30.—Union troops took possession of Corinth.

BATTLE OF FAIR OAKS.

MAY 31.—The rebels, under General Johnson, attacked the left wing of the Army of the Potomac, commanded by General Casey, at Fair Oaks. Union forces were driven back.

JUNE, 1862.

JUNE 1.—Battle of Fair Oaks was renewed, resulting in the repulse of the rebels. Union loss 890 killed and 4,844 wounded.

JUNE 4.—Confederates abandoned their works at Fort Wright, on the Mississippi.

JUNE 6.—Gunboat engagement on the Mississippi, near Memphis. Seven rebel boats were destroyed or captured. After the naval battle Memphis surrendered to the Union troops. Skirmish near Harrisonburg, Virginia; the rebel General Ashby killed.

JUNE 8.—Battle of Cross Keys, Va., between General Fremont's army and the Confederate army, commanded by General Jackson. The latter were defeated.

JUNE 16.—Fight on James Island, near Charleston, S. C. Federals defeated with a loss of 85 killed, 172 wounded and 128 missing.

JUNE 17.—Colonel Fitch destroyed a rebel battery at St. Charles, Ark. 125 were killed by an explosion on one of the Federal gunboats.

JUNE 18.—Union troops occupied Cumberland Gap.

RICHMOND, VA.

JUNE 26.—General Pope assigned to the command of the Army of Virginia. Commencement of the six days' fight before Richmond. The rebels attacked McClellan's right wing at Mechanicsville. The day closed, battle undecided.

JUNE 27.—Bombardment of Vicksburg commenced. General Fremont relieved of his command. Battle before Richmond renewed; the Federals were driven back; loss heavy on both sides. White House evacuated by the Union troops.

JUNE 28.—Incessant fighting all day between the right wing of the Union army on the Chickahominy, and the left wing of the rebels; the enemy were repulsed. In the evening the Unionists were ordered to fall back.

JUNE 29.—Battle before Richmond renewed by an attack on the Union forces at Peach Orchard; the rebels were driven back, but late in the evening made another attack at Savage's Station. The fight continued until nine at night. The Union wounded fell into the hands of the enemy.

JUNE 30.—Battle of White Oak Swamp; heavy loss on both sides. General McClellan continues his retreat towards James river. In the afternoon the gunboats opened fire on the enemy, who were also subsequently charged by General Heintzelman's corps and routed, leaving 2,000 prisoners in the hands of the Unionists.

JULY, 1862.

JULY 1.—Battle of Malvern Hill, and last of the Richmond battles. The rebels were repulsed at every point. The Union loss during the six days' fighting before Richmond was 1,561 killed, 7,701 wounded and 5,958 missing. President Lincoln calls for 300,000 additional volunteers.

JULY 7.—Skirmish at Bayou Cache, Ark., between a portion of General Curtis's army and the rebels under General Pike; the latter were defeated.

Skirmish at Jasper, Ala.; Federals defeated.

JULY 9.—Hamilton, North Carolina, captured by the Federal troops.

JULY 11.—The rebel General Morgan entered Glasgow, Kentucky, and issued a proclamation calling upon the Kentuckians to rise. General Halleck appointed commander of all the land forces of the United States.

JULY 13.—Fight at Murfreesboro, Tenn.; Union troops surrendered; \$30,000 worth of commissary stores captured, and a number of prisoners taken. General Morgan captured Lebanon, Ky., burned part of the town and robbed the Bank.

JULY 17.—The rebels under Morgan captured Cynthiana, Ky., and burned several railroad bridges.

JULY 18.—A band of rebels entered the town of Newburgh, Ind., and destroyed some hospital stores, took 250 stand of arms and retreated across the Ohio. The traitor, General Twiggs, died.

JULY 19.—Severe skirmish at Memphis, Tenn.; Union loss 6 killed and 32 wounded.

JULY 21.—John S. Phelps appointed Military Governor of Arkansas.

JULY 22.—The siege of Vicksburg abandoned. The rebels destroyed a quantity of commissary stores at Florence, Ala., and burned all the cotton in the place.

JULY 28.—Rebels defeated at Moore's Hill, Mo.; Union loss 10 killed and 30 wounded.

AUGUST, 1862.

AUG. 3.—The rebel General Jeff. Thompson defeated near Memphis, Tenn. General Halleck ordered General McClellan to evacuate the Peninsula of Virginia.

AUG. 4.—The Secretary of War ordered a draft of 300,000 men. The rebel ram Arkansas destroyed by her crew.

AUG. 5.—General Robert McCook murdered by the rebels, while wounded and riding in an ambulance. The Confederate General J. C.

Breckinridge made an unsuccessful attack on Baton Rouge, La. Union loss was 56 killed and 175 wounded and missing.

BATTLE OF CEDAR MOUNTAIN.

AUG. 10.—Confederates under General Jackson crossed the Rapidan river, and attacked General Banks at Cedar Mountain. The contest was short but severe. General Banks held his position, while the enemy fell back two miles, and did not renew the fight. The Union army numbered 7,000; their loss was 450 killed, 660 wounded, and 290 prisoners.

AUG. 16.—General McClellan evacuated Harrison's Landing.

AUG. 19.—General Wright placed in command of the Department of the Ohio. Colonel Rodney Mason surrendered Clarksville, Tenn., to an inferior force, without firing a gun.

AUG. 25.—Confederates made an unsuccessful attack on Fort Donelson.

AUG. 26.—The rebel General Ewell drove the Union troops from Manassas.

AUG. 27.—General Pope finding his right turned by General Ewell, fell back towards Warrenton, when he was joined by General Hooker; overtaking the rebels under Ewell at Haymarket a severe fight ensued, terminating in the defeat of the enemy. The Federal gunboats destroy the rebel works at City Point, Va.

BATTLE OF GAINSVILLE, OR GROVETON, VA.

AUG. 29.—The battle was opened by General Sigel early in the morning. At 10 A. M. both wings of the Union army were hard pressed and the situation became very critical, when Generals Reno and Kearney arrived with reinforcements. The fight continued until 6 P. M., when the enemy retired.

BATTLE OF RICHMOND, KY.

AUG. 30.—The Confederates made the attack at 6 A. M. The Union troops under General Manson were defeated with a loss of about 200 killed, 700 wounded, and 2,000 prisoners. Rebels defeated at Bolivar, Tenn.

SECOND BATTLE OF BULL RUN.

AUG. 30.—The Federal forces under General Pope defeated.

AUG. 31.—Bayou Sara, La., destroyed by the U. S. gunboat Essex.

SEPTEMBER, 1862.

SEPT. 1.—Fight at Britton's Lane, Tenn.; rebels retired leaving their dead on the field. Union loss 5 killed, 78 wounded, and 92 missing.

FIGHT AT CHANTILLY, VA.

SEPT. 1.—The Union troops were commanded by Generals Hooker, Reno and Kearney. The rebels retired leaving their dead and wounded on the field. This was the last fight in which General Pope's army was engaged. In the five battles fought since August 26, the Army of Virginia had lost about 1,000 killed, 6,000 wounded, and 2,000 prisoners. The Union troops evacuated Lexington, Ky.

SEPT. 2.—General McClellan appointed to the command of the troops for the defense of Washington.

SEPT. 5.—Confederates began crossing the Potomac into Maryland.

SEPT. 6.—The rebels made an attack on the Union garrison at Washington, N. C.; were repulsed. Union loss 8 killed and 36 wounded. Colonel Lowe recaptured Clarksville, Tenn.

SEPT. 7.—General Banks assigned to the command of the fortifications in and around Washington. General McClellan took the field at the head of the Army of the Potomac.

SEPT. 12.—Fight at Middletown, Md. Union loss, 80 killed and wounded.

BATTLE OF SOUTH MOUNTAIN, MD.

SEPT. 14.—General McClellan overtook the enemy at South Mountain, Md. A general engagement took place. The fight was severe and the loss heavy on both sides, the Unionists losing 443 killed and 1,806 wounded. General Reno was among the killed. The rebels retreated towards the Potomac.

SEPT. 15.—Harper's Ferry surrendered, after two days' fighting, to the enemy, with all the garrison, consisting of 8,000 men. The rebels attempted to destroy the Green river bridge, on the Louisville and Nashville R. R., but were defeated.

SEPT. 16.—Munfordsville, Ky., captured by the rebels; about 4,000 taken prisoners.

BATTLE OF ANTIETAM, MD.

SEPT. 17.—The battle was fought on Antietam Creek, near Sharpsburg, Md., and began early in the morning and continued until evening. Armies each numbering nearly 100,000 men. The battle was fought with great determination. During the night the Confederates retreated, leaving 3,500 prisoners, 39 stand of colors, and 13 guns in the hands of the victors. The Union loss was 2,010 killed, 9,416 wounded, and 1,043 missing. Cumberland Gap evacuated by the Federals.

SEPT. 18.—Confederates recrossed the Potomac into Virginia, having been in Maryland two weeks. The rebels evacuated Harper's Ferry.

SEPT. 19.—General Rosecrans commenced an attack on the rebel forces at Iuka, Miss.

SEPT. 20.—Confederates evacuated the place during the night. The Union loss was 135 killed and 527 wounded.

SEPT. 21.—General McCook recaptured Munfordsville, Ky.

SEPT. 22.—President Lincoln's Emancipation Proclamation issued.

SEPT. 27.—Fight at Augusta, Ky. The Union garrison, 120 strong, surrendered after a gallant defense. Their loss was 9 killed, 15 wounded and

the rest prisoners.

SEPT. 29.—General Nelson was shot by General Jeff. C. Davis at Louisville, Ky.

OCTOBER, 1862.

BATTLE OF CORINTH, MISS.

OCT. 3.—The rebels under Price and Van Dorn attacked the Union troops and drove them into the town.

OCT. 4.—Battle of Corinth renewed. The Confederates were defeated with heavy loss. The Union loss was 315 killed and 1,802 wounded.

OCT. 6.—The Confederates attacked General Palmer's brigade at Lavergne, Tenn., but were defeated. Union loss, 5 killed and 13 wounded and missing.

BATTLE OF PERRYVILLE, KY.

OCT. 8.—The advance of Buell's army was attacked at Perryville, Ky., by a superior force of the enemy under Generals Jackson and Perrell. The Confederates retreated during the night. Union loss was over 3,000 killed and wounded.

OCT. 10.—The rebel cavalry under General Stuart entered Chambersburg, Penn., and captured a quantity of small arms and clothing.

OCT. 18.—The rebel General Morgan occupied Lexington, Kentucky.

OCT. 19.—The Confederate General Forrest defeated near Gallatin, Tenn.

OCT. 22.—Rebel salt works in Florida destroyed. General Blunt defeated the rebels at Maysville, Ark., capturing all their artillery. Fight at Pocotaligo, S. C. The Federals attempted to gain possession of the Charleston and Savannah railroad, but were repulsed with a loss of 30 killed and 180 wounded.

OCT. 27.—Fight at Labadieville, La.; rebels defeated; Union loss, 17 killed and 74 wounded.

OCT. 28.—General Herron defeated the rebels near Fayetteville, Arkansas.

OCT. 30.—General Rosecrans assumed command of the Army of the Cumberland. General Mitchell died at Port Royal, South Carolina.

NOVEMBER, 1862.

Nov. 5.—General McClellan relieved of the command of the Army of the Potomac, and General Burnside put in his place.

Nov. 11.—General Ransom defeated the rebels under Woodward, near Garrettsburg, Kentucky. Under the cartel the following officers were exchanged: U. S. officers—Brigadier Generals, 3, Colonels, 18, Lieutenant Colonels, 19, Captains, 431, Lieutenants, 545; Confederate officers—Colonels, 27, Lieutenant Colonels, 17, Captains, 467, Lieutenants, 1,085. About 24,000 privates were also exchanged, leaving a balance due the United States of 6,000 privates.

Nov. 16.—President Lincoln enjoined on the United States forces the orderly observance of the Sabbath.

Nov. 17.—A cavalry fight took place near Kingston, North Carolina. The enemy was driven from his position and his barracks destroyed.

Nov. 22.—All political State prisoners released.

BATTLE OF CANE HILL, ARK.

Nov. 28.—The Union army, numbering 1,000 men, was commanded by General Blunt. The rebels were defeated, with a heavy loss, and retreated to Van Buren.

DECEMBER, 1862.

DEC. 1.—An expedition sent from Suffolk, Va., recaptured the Pittsburg Battery, which had been taken from the Union army on the Peninsula.

DEC. 2.—Skirmish near Charleston, Va. Rebels defeated, losing 70 killed and wounded and 145 prisoners.

DEC. 6.—General Banks' expedition sailed for New Orleans.

BATTLE OF PRAIRIE GROVE, ARK.

DEC. 7.—The Union army was commanded by Generals Blunt and Herron. The rebels were defeated with heavy loss, and retreated during the night. The Union loss was 495 killed and 500 wounded. The rebel General Morgan captured the 104th Illinois, the 106th and 108th Ohio, and a number of the 2d Indiana cavalry, at Hartsville, Tenn. Unionists lost, besides prisoners, 55 killed.

DEC. 11.—The city of Fredericksburg bombarded by the Union troops, under cover of which they crossed the Rappahannock.

BATTLE OF FREDERICKSBURG, VA.

DEC. 13.—Confederate works were attacked by the Union troops in three divisions, under Sumner, Hooker and Franklin, but were repulsed. Federals lost 1,512 killed, 6,000 wounded, and 100 prisoners. General Foster left Newbern, N. C., for the purpose of destroying the railroad at Goldsboro'. He came up with the enemy at Southwest creek; after a short engagement, they retired to Kingston, where they were again attacked and driven from their position with a loss of 11 pieces of artillery and 400 prisoners. Severe skirmish at Zurich, Va.; rebels defeated and part of their force captured. An expedition under Commodore Parker destroyed the rebel salt works, also five schooners and two sloops in Mob Jack Bay.

DEC. 16.—General Burnside's army removed to the north side of the Rappahannock. General Foster defeated the rebels at White Hall, N. C.

DEC. 17.—The Union troops occupied Baton Rouge, La. General Foster defeated the rebels at Goldsboro', N. C. destroying the railroad bridge.

DEC. 19.—The rebels recaptured Holly Springs, Miss., taking the garrison prisoners, and destroying a large quantity of ammunition, commissary stores and cotton.

DEC. 21.—General Carter left Kentucky for the purpose of destroying two important railroad bridges in East Tennessee. The expedition was successful.

DEC. 23.—The Confederates attacked General Sigel at Dumfries, Va., but were repulsed.

SECOND ATTACK ON VICKSBURG.

DEC. 27.—General Sherman attacked the advanced works of the enemy about 6 miles from Vicksburg, at the same time the gunboats attacked the rebel batteries on Haines' Bluff.

DEC. 28.—The Federals drive the rebels from the first and second lines of defense and advanced to within two and a half miles of Vicksburg. General Blunt entered Van Buren, Ark., capturing four steamboats laden with provisions.

DEC. 29.—The Confederates attacked General Sherman with their whole force, and drove him back to the first lines of defense.

BATTLE OF MURFREESBORO', OR STONE RIVER.

DEC. 31.—Skirmishing had been going on for two days, but to-day the engagement became general. The Union army numbered 45,000 men, under General Rosecrans. The main attack of the rebels was made on General Rosecrans' right, commanded by General McCook. The division was driven back four miles, and lost 26 guns; but reinforcements being sent from the left and center, the enemy was in turn repulsed and the lost ground regained. The iron-clad steamer, Monitor, foundered on the coast of South Carolina. West Virginia admitted into the Union as a State.

JANUARY, 1863.

JAN. 1.—General Sullivan defeated the rebels under Van Dorn, at Hunt's Cross Roads, near Lexington, Tenn. Early in the morning of January 1st a rebel force of 3,000 men under the command of General Magruder, made an attack on the Union troops numbering 300, at Galveston, Texas. At the

same time the rebel batteries and two rebel steamers attacked the blockading fleet. The fight lasted several hours, resulting in the capture of the troops on land and the steamer Harriet Lane. The U. S. vessel Westfield got aground, and was destroyed to prevent its falling into the hands of the enemy. The explosion took place prematurely, before Commodore Renshaw had left, and he perished with his vessel.

JAN. 3.—Since the hard battle of December 31st, fighting had been going on between the two armies at Murfreesboro'. The Confederates made an attack on the Federal lines Jan. 1st, and another Jan. 2d, but were repulsed in both cases. On the night of Jan. 3d, they commenced their retreat. The following is the official statement of the Union loss at the battle of Stone River: killed 1,697, wounded 6,425, and 3,550 missing. The Federal army withdrew from before Vicksburg. The Union loss in the second attack on Vicksburg was about 600 killed, 1,500 wounded and 1,000 missing.

JAN. 7.—The Confederates made an attack on Springfield, Mo., where a large quantity of army stores had been deposited. The place was bravely defended by General Brown and the rebels defeated. Union loss 17 killed.

ARKANSAS POST.

JAN. 10.—The attack was commenced Saturday night by the Mississippi Squadron, under Admiral Porter. On the following day the land forces under General McClelland, joined in the fight, and before night all the fortifications were taken. About 7,000 prisoners, and a large quantity of ammunition were captured. The Union loss was about 200 killed and wounded. Two rebel iron-clad vessels made an attack on the blockading fleet at Charleston, South Carolina. The Mercedita and Keystone were severely injured, and the inner line of blockaders driven off for a time, but the outer line of vessels were not disturbed and the blockade was not interrupted.

JAN. 12.—Three Federal transports on the Cumberland river were captured by the enemy. The gunboat Slidel, which was in company surrendered without firing a gun.

JAN. 14.—Fight at Bayou Teche, La., a number of rebels were captured, and the rebel gunboat Cotton, destroyed.

JAN. 20.—The Morning Light and Velocity, blockading Sabine City, Texas, were both captured by the rebels. A few days after, the Morning Light was destroyed to prevent its recapture by the Federals.

THIRD ATTACK ON VICKSBURG.

JAN. 22.—After the capture of Arkansas Post, General McClelland returned to Vicksburg and resumed the siege of that place. Work was also resumed on the canal across the point opposite Vicksburg.

JAN. 27.—The iron-clad Montauk, and three wooden gunboats, made an attack on Fort McAllister, at the mouth of the Ogeechee river near Savannah, Ga., but failed.

JAN. 28.—General Burnside relieved of the command of the army of the Potomac, and General Hooker appointed in his place. General Sumner and General Franklin were relieved from duty in the army of the Potomac.

JAN. 31.—The Confederate General Pryor made an attack on the Union troops under General Peck, at Blackwater, Va. The rebels were repulsed. The fighting resulted in a Union loss of 24 killed and 80 wounded. Skirmish at Rover, Tenn., rebels were defeated with a loss of 12 killed and 300 wounded.

FEBRUARY, 1863.

FEB. 1.—The gunboats made another attack on Fort McAllister, but were unsuccessful.

FEB. 2.—The Federal ram Queen of the West, ran the blockade at Vicksburg, but was captured a few days after by the rebels. Stokes' Tennessee cavalry and one Kentucky regiment attacked a rebel camp near Middletown, Tenn., dispersing the enemy and captured the camp.

FEB. 13.—The iron-clad Indianola ran the blockade at Vicksburg, and was captured by the rebels.

FEB. 18.—The gunboats commenced the bombardment of Vicksburg, but without accomplishing anything.

FEB. 26.—A train of 28 cars on the L. & N. R. R., captured by the rebels at Woodburn, Ky., and destroyed.

FEB. 27.—The rebel steamer Nashville, while attempting to run the blockade, got aground near Fort McAllister, and was destroyed by the blockading fleet.

MARCH, 1863.

MARCH 5.—Five regiments of infantry, two of cavalry, and one battery, under the command of Colonel Coburn, were attacked by a superior force of rebels under Van Dorn, at Thompson's Station, near Franklin, Tenn. The unequal contest resulted unfortunately to the Union cause. The Federal loss was 120 killed, and 1,206 taken prisoners.

MARCH 7.—General Minty attacked a rebel cavalry force at Unionville, Tenn., capturing their wagons, horses and tents, and about 60 prisoners.

MARCH 9.—A band of rebel cavalry passed through the Union lines, entered Fairfax, Va., and captured General Stoughton and a few privates.

MARCH 13.—The Confederates made an unsuccessful attempt to recapture Newbern, N. C. Commodore Farragut's fleet attempted to pass the rebel batteries at Port Hudson, but only a part of the vessels succeeded. The Mississippi got aground and was destroyed.

MARCH 17.—Two hundred cavalry under command of General Averill, crossed the Rappahannock, near Kelly's Ford, where but a single horseman could cross at once, and in the face of a most terrible fire from rifle pits and sharpshooters, charged the rebels in their intrenchments, killing or capturing nearly the whole force. They then encountered Stuart's cavalry, and after a desperate hand-to-hand encounter, of five hours, routed them with great slaughter, capturing 80 prisoners.

MARCH 20.—John Morgan with 4,000 men was totally defeated near Milton, Tenn., by Colonel Hall, with 1,400 mounted men. The negro brigade took Jacksonville, Florida. Major-General Burnside appointed to command the Department of the Ohio.

MARCH 22.—Rebels under Clarke, captured Mt. Sterling, Ky.

MARCH 28.—The rebel steamer Iris, captured by the U. S. steamer Stellin 30 miles north of Charleston, S. C.

APRIL, 1863.

APRIL 1.—Two hundred and fifty of Jenkins' rebel cavalry attacked Point Pleasant. An expedition from Murfreesboro' under General Hazen, attacked a rebel camp near Woodbury, killing and wounding 20, capturing 30 prisoners, 50 horses and a lot of mules and wagons; the rebels were 600 strong, and under the command of Colonel Smith.

APRIL 6.—General Mitchell with 300 cavalry dashed into a rebel camp near Nashville, on a sabre charge, capturing 5, killing 15, and capturing all their tents, arms, horses and equipments.



MILLARD FILLMORE.

ATTACK ON CHARLESTON.

APRIL 7.—The Federal fleet was composed of nine iron-clad vessels, under the command of Commodore Dupont. The fight began in the afternoon of April 7th, and lasted about two hours. Keokuk was so badly damaged that she sunk in a few hours. Several other vessels were temporarily disabled. The fleet was then withdrawn.

APRIL 10.—General Van Dorn's forces attacked General Granger at Franklin, Tenn., and were driven back with loss.

APRIL 17.—General Banks' command left Baton Rouge, fought three battles, two on land and one on Grand Lake, capturing 2,000 prisoners. Our loss was 700. Six vessels of Porter's fleet ran by the rebel batteries at Vicksburg.

APRIL 18.—Fayetteville, Ark., attacked by 3,000 rebels, with four pieces of artillery; Union forces numbered but 2,000. The rebels were repulsed. Our loss was 5 killed and 17 wounded.

APRIL 22.—The ram Queen of the West, was captured in Grand Lake, with Captain Fuller and all her officers and crew, numbering 90. General McClellan's staff disbanded. A small mounted force under Colonel Wilder, attacked McMinnville, Tenn., at 1 o'clock, A. M., surprised the rebel force under Grigsby, destroyed the railroad depot and bridges, and an immense quantity of cotton and army supplies, capturing 300 prisoners. Banks occupied Opelousas and Washington, Miss. The Baltimore and Ohio R. R. destroyed between Cumberland and Grafton. The advance guard of Marmaduke's army, under command of Colonel Newton, was surprised—the entire regiment being either killed or captured by the Union forces under Vandever.

APRIL 30.—Colonel Mulligan repulsed by the rebels at Fairmont, Western Virginia, and the B. & O. R. R. bridges blown up at Fairmont and Cheat river.

MAY, 1863.

MAY 1.—General Carter with 5,000 men crossed the Cumberland, below Somerset, Ky., and attacked the rebel forces at Monticello, under Pegram, driving them from the field. Rebels lost 66 men. Marmaduke's forces driven out of Missouri by Vandever.

BATTLE OF PORT GIBSON.

Grant defeated General Bowen with a loss of 1,550 men and 5 pieces of artillery.

GRIERSON'S RAID.

MAY 2.—On the morning of the 17th of April, 1863, the 6th and 7th Illinois cavalry, 900 strong, under command of Colonel Grierson, of the 6th Illinois, (together with 6 pieces of artillery,) set out from Lagrange, Tennessee, and pursuing in the main a Southerly course, marched through the center of Mississippi, destroying as they went, railroads, bridges, cars, locomotives, and stores of all kinds, belonging to the rebels, in immense quantities. Traveling on an average 40 miles a day, they reached Baton Rouge, Louisiana, on the evening of the 2d of May. They had traveled nearly 800 miles in 16 days, and traversed 17 counties. At several points the enemy made great attempts to capture them but failed. They brought into Baton Rouge over 1,000 horses and a large number of cattle; 500 negroes followed them.

FREDERICKSBURG.

MAY 3.—The second attempt to capture the rebel fortifications at Fredericksburg, Va., was made by the Army of the Potomac, under General Hooker, and failed. The army commenced marching April 27th, the main body crossing the Rappahannock at Kelley's Ford, about 20 miles northwest of Fredericksburg, then marching south, crossed the Rapidan, and took their position at Chancellorville, about 10 miles west of Fredericksburg. Severe skirmishing took place on Friday and Saturday, May 1st and 2d; but the main battle was fought on Sunday, May 3d, resulting in the defeat of the Federal troops. In the meantime General Sedgwick had crossed the Rappahannock and occupied Fredericksburg. He, too, was defeated, and compelled to retire to the northern bank of the river. Hooker's army recrossed the river on the night of May 5th. The loss on each side was about 15,000 killed, wounded and prisoners.

STONEMAN'S RAID.

While the fight was going on near Fredericksburg, General Stoneman, with a large cavalry force, crossed the Rapidan east of Orange Court House, and made a bold and partially successful raid into the enemy's country. A portion of the railroad between Gordonsville and Charlottesville was destroyed, and considerable damage done to the Virginia Central, and

Richmond and Fredericksburg R. R. Large quantities of provisions were destroyed at different points.

MAY 5.—Vallandigham arrested by order of General Burnside, at his residence in Dayton, Ohio. Office of the Dayton Journal destroyed by the mob. Suffolk, Va., abandoned by the rebel troops, and fortifications destroyed. Alexandria, La., captured by Admiral Porter. 100 prominent secessionists of St. Louis sent South.

MAY 8.—Colonel Streight's command of 1,700 men captured by Forrest's cavalry, two miles from Cedar Bluff, Ga., after severe fighting. The rebel General Van Dorn killed by Dr. Peters, in Manny county, Tennessee.

MAY 9.—Colonel Jacobs, with Kentucky cavalry, attacked and routed a guerrilla force near Horse Shoe Bend, on the Cumberland river; killed a number, took 8 prisoners and destroyed their camp.

MAY 10.—The rebel General Stonewall Jackson died at Richmond, Va., of wounds and pneumonia.

MAY 11.—The Buell Court of Inquiry adjourned, after a session of 165 days.

MAY 12.—General McPherson, of Grant's command, attacked Raymond, Miss., and took the town after a hard fight of two hours. The enemy lost 76 killed, 639 wounded, and 186 prisoners.

BATTLE OF JACKSON, MISS.

MAY 13.—Grant defeated Joseph S. Johnson and captured Jackson, Miss., with 7 cannon, and large quantities of military stores, besides 400 prisoners. The State Capitol was destroyed by fire. Colonel W. K. Breckenridge, with only 55 men of the 1st Union Tennessee cavalry, attacked twice their number of rebels at Linden, Tennessee, and captured 43 officers and privates, 50 horses, and a quantity of other property.

MAY 15.—A severe fight near Suffolk, Va., in which the rebel detachment was defeated. Faulkner's rebel cavalry defeated near Holly Springs, Miss.

BATTLE OF BAKER'S CREEK, MISS.

Between the rebel army under Lieut. General Pemberton, and the Union forces under General Grant, occurred at Baker's Creek, Miss., on the 15th of May. About 25,000 men were engaged upon each side. The rebels met with a disastrous defeat, losing 2,600 in killed and wounded, 2,000 men prisoners, and 29 pieces of artillery.

BATTLE OF BIG BLACK RIVER.

MAY 17.—Grant again attacked Pemberton at Big Black River bridge, and defeated him with a total loss of 2,600 men and 17 cannon.

MAY 24.—Austin, Mississippi, burned by Colonel Ellet's Marine brigade.

MAY 25.—Vallandigham delivered to the rebels at Murfreesboro', Tenn. Rebel Navy Yard destroyed at Yazoo City.

MAY 28.—The gunboat Cincinnati sunk by the rebel batteries near Vicksburg. She went down with her flag flying. 25 men were killed and wounded, and 15 drowned.

MAY 29.—An immense train consisting of 600 wagons, 3,000 horses and mules, 1,500 head of cattle, and 6,000 negroes, arrived from the Teche country, within General Banks' lines.

JUNE, 1863.

JUNE 1.—General Hunter removed from the command of the Department of the South. General Gilmore succeeds him.

JUNE 3.—Colonel Montgomery, of the 2d South Carolina (colored) regiment, made a most brilliant raid at the head of 200 men. He passed up the Coosaw river, landing in full view of two rebel regiments, who fled from the spot. He then penetrated 25 miles into the interior, and on his return brought away 725 negroes, a fine lot of blooded horses and other property, valued at \$600,000.

JUNE 11.—Forrest with 5,000 cavalry and two batteries of artillery, attacked the Union cavalry at Triune, Tenn., under command of Colonel R. B. Mitchell. The rebels were defeated, losing 21 killed and 70 wounded and prisoners. Six of Mitchell's men were killed. The notorious blockade runner, Herald, was sunk at midnight by a broadside from our blockading fleet off Charleston.

JUNE 14.—General Ewell defeated General Milroy at Winchester, Virginia, with a loss of 2,000 men, and drove him to Harper's Ferry.

JUNE 17.—The rebel ram, Atlanta, was decoyed into Wilmington Waters, off the coast of South Carolina, and captured after a brief fight, by the Weehawken, commanded by Captain John Rodgers. A division of our cavalry under Colonel Kilpatrick, encountered General Fitzhugh Lee's cavalry brigade, consisting of five regiments, with artillery, near Aldie, Va., and a desperate hand-to-hand encounter followed, ending in a hasty retreat on the part of the rebel forces. 100 prisoners were captured.

JUNE 21.—General McClelland removed by Grant, and General Ord put in his place.

JUNE 23.—Rebels under Johnston attacked Osterhaus' division on Big Black River, Mississippi, and were defeated with great slaughter.

JUNE 24.—Rosecrans advanced from Murfreesboro'. Liberty Gap taken by Willich's brigade, with a loss of 75 killed and wounded. Hoover's Gap taken by Colonel Wilder's mounted brigade, with a loss of 53 killed and wounded.

JUNE 25.—Another fight at Liberty Gap, between a rebel division under Claiborne, and Willich, Wilder and Carter's brigades. Our loss, 40 killed and 100 wounded, that of the rebels much greater. The rebels fled in disorder.

JUNE 26.—Rear Admiral Foote died in New York City. Colonel Wilder's brigade destroyed the Deckert bridge, in the rear of Bragg, between Tullahoma and Chattanooga.

JUNE 28.—General Hooker was relieved of his command of the Army of the Potomac, at his own request, and General Meade succeeds him.

JULY, 1863. BATTLE OF GETTYSBURG, PENN.

JULY 1.—In the latter part of June the rebel army, under General Lee, invaded Pennsylvania. On the 1st of July they were attacked by General Meade near Gettysburg, and after a three days' battle, driven from the field, leaving 5,000 killed and wounded in our hands. Meade took 20,000 prisoners. Missouri passed the Ordinance of Emancipation. Rosecrans drove Bragg from Tullahoma.

JULY 4.—General Prentice, with 3,500 men, defeated 18,000 rebels under Holmes at Helena, Ark. Union loss less than 100; that of the rebels 2,400, including 1,600 prisoners.

VICKSBURG.

JULY 4.—The siege of Vicksburg by the Union army under Grant, commenced May 18, and was pressed forward with almost unprecedented vigor until July 4, when Pemberton surrendered to General Grant 27,000 prisoners, 132 cannon, and 50,000 stand of arms.

JULY 5.—John Morgan captured Lebanon, Kentucky, with 100 prisoners.

PORT HUDSON.

JULY 8.—In the month of May General Banks invested Port Hudson. Two grand attacks were made by land and water on the 27th of May and 14th of June, in which portions of the enemy's works were taken. At last, on the 8th of July, the commander, Major-General Gardner, surrendered with 7,000 prisoners, 60 cannon, and 10,000 stand of arms.

MORGAN'S RAID.

JULY 8.—Morgan, with 5,000 cavalry and 4 pieces of artillery, crossed the Ohio river into Harrison county, Indiana, and marched rapidly through the southern part of the State into Ohio, committing numerous depredations. On the 18th he was overtaken by the troops under Colonels Hobson and Judah, near Pomeroy, who captured all his artillery and 1,300 prisoners. With a mere fragment of his command he retreated to Columbiana county, where, on the 20th, he surrendered to General Shackleford.

JULY 17.—General Sherman attacked Jackson, Miss., routed Johnson and occupied the city. Large stores were captured, and also 40 locomotives, and all the rolling stock of the 3 railroads. General Ransom occupied Natchez. A large quantity of ammunition, 13 cannon, 2,000 head of cattle, and 4,000 hogsheads of sugar fell into his hands. A severe fight occurred on Elk creek, Ark., between General Blunt with 2,400 Union troops, and General Tooper, with 5,000 rebels, in which the former were victorious. Union loss 40, that of the rebels 184.

JULY 20.—A cavalry expedition sent out by General Foster, struck the Wilmington and Weldon railroad at Rocky Mount, N. C., burnt the long bridge over Tar river, tore up two miles of track, destroyed the depot, a large cotton factory, a valuable supply train, and 5,000 bales of rebel cotton. A cavalry force under Colonel Tolland, of the 34th Ohio mounted infantry, burned Wytheville, Va., after a severe fight, taking 3 cannon, 700 stand of arms, and 120 prisoners. Our loss was 65, including the brave Colonel Tolland; that of the rebels 75 killed and many wounded.

JULY 22.—Colonel Wilder, of Rosecrans' advance, shelled Chattanooga. Brashear City, La., recaptured by the Union gunboat Sachem.

JULY 23.—A gallant fight occurred near Manassas Gap, in which 800 men of General Spinola's brigade, utterly routed twice their number of Georgia and North Carolina troops, with 17 cannon.

JULY 23.—Kentucky again invaded. A small detachment of Union troops at Richmond, under Colonel Sanders, badly cut up by 2,000 rebels under Colonel Pegram, and compelled to retreat to Lexington. Kit Carson, with a part of the 1st New Mexico regiment, defeated the Navajoe Indians in a severe fight beyond Fort Canby.

JULY 31.—The Union forces in Kentucky, under Colonel Saunders, thoroughly routed the rebel troops under Scott and Pegram.

AUGUST, 1863.

AUGUST 2.—A severe though indecisive cavalry fight occurred at Culpeper, Va., between Buford and Stuart, in which 100 prisoners were captured by the Union troops.

AUGUST 17.—The rebels having collected an immense quantity of stores at Grenada, Mississippi, General Hurlbut sent out an expedition under the command of Lieut. Col. Phillips, of the 9th Illinois Mounted Infantry, to destroy them. Leaving Lagrange, Tenn., on the 13th, Col. Phillips attacked the rebel forces at Grenada, consisting of 2,000 men, under command of General Slimmer, and drove them in confusion from the place. He then destroyed all the ordnance and commissary stores, burnt the depot and machine shop, tore up the railroad track and destroyed 57 locomotives, and more than 400 cars.

AUGUST 20.—The town of Lawrence, Kansas, was surprised in the middle of the night by 300 guerillas, who had collected in Cass county, Mo., under the leadership of Quantrill. The town was set on fire and 182 buildings burned to the ground, and \$2,000,000 worth of property destroyed. 191 persons were killed, many of whom were helpless women and children; 581 were wounded, many of them mortally. After the departure of the guerillas, the citizens organized under General James H. Lane and pursued them to their headquarters at Grand River, Mo., where they scattered in various directions. About 80 of the murderers were killed.

AUGUST 22.—Colonel Woodson's cavalry made a successful onslaught upon numerous guerilla bands in Arkansas, capturing Jeff. Thompson with his entire staff. General Blunt, with 4,500 men, attacked General Cooper, with 11,000 rebel troops, in the Indian Territory, and compelled him to retreat to Red River.

AUGUST 29.—The rebel army in Arkansas, under General Price, severely pushed by the Union forces under General Steele. Steele's advance, under General Davidson, drove 3,000 rebels, under Marmaduke, out of Brownsville, and across the Arkansas river.

SEPTEMBER, 1863.

SEPT. 1.—General Blunt defeated the rebel forces in Arkansas under Cooper and Cobell, and captured Fort Smith. The rebels evacuated Little Rock.

SEPT. 4.—Burnside occupied Knoxville, Tenn., and was hailed with delight by the inhabitants.

SEPT. 8.—A land and naval force under the command of General Franklin, made an attack on the rebel fortifications at Sabine City, Texas, but were repulsed with a loss of two small boats.

SEPT. 9.—General Crittenden's Division of Rosecrans' army, entered Chattanooga.

SEPT. 10.—General Burnside captured Cumberland Gap, with 2,000 prisoners and 14 pieces of artillery, under the command of Major-General Frazer. General Steele took possession of Little Rock, Ark.

CHICKAMAUGA.

SEPT. 19.—The battle was commenced by General Bragg in the morning and continued all day.—At night both armies occupied nearly the same position that they did in the morning. On the next day the battle was renewed by the rebels and lasted until dark. The Union army was defeated and driven back to Chattanooga. The Federal loss was about 1,800 killed and 9,500 wounded, and 2,500 prisoners.

OCTOBER, 1863.

OCT. 9.—Wheeler's rebel cavalry, which had come north of the Tennessee river, for the purpose of cutting Rosecrans' communications, was defeated with considerable loss, at Farmington, Tenn., and again near Shelbyville.

OCT. 20.—The Departments of the Cumberland and Mississippi were consolidated and placed under the command of General Grant. General Rosecrans removed and General Thomas appointed in his place.

NOVEMBER, 1863—CHATTANOOGA.

Nov. 25.—The rebel army under Bragg was badly whipped near Chattanooga, losing about 6,000 prisoners, and 52 guns. The Union loss was between 3,000 and 4,000 in killed and wounded.

DECEMBER, 1863.

DEC. 4.—General Longstreet commenced the siege of Knoxville, November 17th. On the 29th there was a severe fight, in which the Confederates were defeated. This, with the defeat of Bragg, at Chattanooga, compelled Longstreet to raise the siege. He retreated toward Virginia, pursued by Burnside's forces; while another army under General Foster, started from Cumberland Gap to cut off their retreat.

FEBRUARY, 1864.

FEB. 1.—The Union outposts near Newburn were attacked by a strong force and fell back in good order, with but little loss.

FEB. 9.—A large number of prisoners, including Colonel Streight, escaped from Libby Prison, Richmond.

FEB. 15.—General W. T. Sherman, with his command, arrived at Meridian, Miss., on his great raid into the heart of the enemy's country. After accomplishing his object in destroying railroads and stores, he returned to Vicksburg with immense booty.

FEB. 20.—The advance into Florida of the Union forces, about 5,000 strong, under General Seymour, was repulsed near Olustee, with a loss of 1,200. Rebel loss about the same.

FEB. 22.—A heavy reconnoitering force sent out from Chattanooga by General Grant, met and defeated the enemy at Tunnel Hill.

MARCH, 1864.

MARCH 8.—General Grant was formally presented, by the President, with his commission as Lieutenant-General, and on the 12th was assigned to the command of the armies of the United States.

MARCH 15.—The Union forces under General A. J. Smith, captured Fort De Russey, La., on Red river, with 325 prisoners, 12 pieces of artillery, 2,000 barrels of powder, with an immense amount of ammunition and stores.

MARCH 25.—About 5,000 rebels under Forrester, captured Paducah, Ky., and fired the place. Union loss, 12 killed and 40 wounded; rebel loss,

150 killed.

MARCH 28.—The 54th Illinois regiment attacked by Coles county copperheads, at Charleston, Ill.

APRIL, 1864.

APRIL 8.—The advance of General Banks' expedition up Red river, under the direction of General Stone, was repulsed near Shreveport, La.; but on the following day our men defeated the enemy. Our loss was about 2,000 and the enemy's the same.

APRIL 12.—General Forrest overpowered the Union forces at Fort Pillow, compelled them to surrender, and immediately after commenced an indiscriminate massacre of our wounded soldiers, both colored and white—not excepting women and children who had taken refuge in the fort.

APRIL 17 and 18.—At Plymouth, N. C., the rebel ram and a battery sunk three Union gunboats.

APRIL 23.—The Governors of Ohio, Illinois, Iowa, Wisconsin and Indiana offer to raise for the General Government 85,000 men for one hundred days.

APRIL 26.—Government accept service of one hundred day men, and appropriated \$20,000,000 for their payment.

MAY, 1864.

MAY 5.—Draft ordered in Massachusetts, New Jersey, Ohio, Minnesota, Kentucky and Maryland.

MAY 6.—General Grant crossed the Rapidan, and Lee fell back toward Richmond.

MAY 7.—Grant still advances driving Lee's forces before him.

MAY 8.—Sherman occupied Dalton.

MAY 9.—After 3 days' hard fighting Lee's forces retreated, leaving 3,000 killed and 10,000 wounded on the field, in possession of the Union army.

BATTLE AT SPOTTSYLVANIA COURT HOUSE.

MAY 12.—Union troops victorious. They capture 4,000 prisoners and 25 pieces of artillery.

MAY 13.—General Sheridan, with cavalry, reached the rear of the enemy, near Hanover Junction, breaking two railroads, capturing several locomotives, and destroying Lee's depot for supplies at Beaver Dam, containing over 1,000,000 rations.

MAY 15.—Sherman forced Johnson to evacuate Resaca, after two days' fighting.

MAY 23.—Army of the Potomac flanked the rebels, under Lee, and forced them to evacuate their fortifications near Spottsylvania Court House. John Morgan enters Kentucky with 4,000 men.

MAY 27.—Grant crossed the Pamunkey, and occupied Hanover town.

MAY 30.—Grant reached Mechanicsville.

JUNE, 1864.—BATTLE OF COAL HARBOR.

JUNE 3.—In which the rebels are routed with heavy loss.

JUNE 5.—Sherman flanked Johnson and captured Ackworth Station.

JUNE 7.—General Hunter defeats the rebel General Jones, near Staunton, Va.

UNION CONVENTION AT BALTIMORE.

JUNE 8.—Abraham Lincoln and Governor Andrew Johnson were nominated for President and Vice-President. Morgan defeated by General Burbridge, near Lexington, Ky.

JUNE 11.—Morgan demanded of Governor Bramlette the surrender of Frankfort, which the Governor refused.

JUNE 12.—General Hancock drove the rebels from Bottom Bridge at the point of the bayonet.

JUNE 15.—General Smith attacked with a force of 15,000 men.

JUNE 20.—Rebels strongly reinforced by Lee.

JUNE 23.—Rebels attack Wright and Hancock, capturing 3 full regiments, after which they are repulsed.

JUNE 27.—Sherman made an unsuccessful attack on the enemy's position, losing from 2,000 to 3,000 men.

JUNE 28.—Left wing of Grant's army take possession of the Weldon railroad.

JUNE 30.—Secretary Chase resigned, and Hon. Wm. P. Fessenden was appointed to fill the vacancy.

JULY, 1864.

JULY 10.—Rebels invade Maryland. The Union forces under General Wallace, defeated at the Monocacy river.

JULY 13 and 15.—The rebels under General Forrest, defeated in 5 different battles near Pontotoc, Mo.

JULY 17.—The rebel army was driven within the fortifications at Atlanta.

JULY 20.—The enemy assaulted General Sherman's lines 3 times, but were repulsed each time with severe loss. General Averill defeated the enemy near Winchester, Va.

JULY 22.—A great battle was fought before Atlanta, resulting in the complete defeat of the Confederates.

JULY 25.—General Crook overtook the rebels retreating from the Maryland raid, and recaptured a large amount of stores. After severe fighting on the 23d and 24th July, General Averill is compelled to fall back to Harper's Ferry.

JULY 30.—A mine containing 6 tons of powder, under a rebel fort at Petersburg, was exploded, destroying the fort and garrison.

AUGUST, 1864.

AUGUST 5.—Commodore Farragut's fleet passed Forts Morgan and Gaines. The rebel ram Tennessee was captured, and several other vessels destroyed. Shortly after Fort Gaines surrendered and Fort Powell was evacuated.

AUGUST 7.—General Averill defeated the enemy at Morefield, Virginia.

AUGUST 15.—The rebel General Wheeler repulsed at Dalton, Georgia.

AUGUST 18.—The Weldon railroad seized by General Grant.

AUGUST 23.—Fort Morgan surrendered.

AUGUST 25.—General Hancock, who held the Weldon railroad south of Reams' station, was attacked several times, but repulsed the enemy each time.

SEPTEMBER, 1864.

SEPT. 1.—General Sherman defeated the enemy at Jonesboro, Georgia.

SEPT. 2.—The Federal troops took possession of Atlanta.

SEPT. 5.—The rebel General John Morgan was killed near Greenville, Tenn.

SEPT. 7.—A force of 2,000 rebels defeated at Readyville, Tennessee.

SEPT. 19.—General Sheridan gained a complete victory over the enemy in the Shenandoah valley.

SEPT. 22.—The battle at Fisher's Hill was fought, resulting in the defeat of the rebel army.

SEPT. 28.—General Grant advanced his lines on the north side of the James river to within 7 miles of Richmond. The rebels under General Price invade Missouri.

OCTOBER, 1864.

OCT. 5.—The rebels attack Allatoona, Ga., but were repulsed with severe loss.

OCT. 7.—The pirate vessel Florida captured by the U. S. steamer Wachusett.

OCT. 8.—The rebels in the Shenandoah valley are again defeated by Sheridan.

OCT. 19.—General Sheridan gained his fourth victory over the rebels under Early, at Cedar creek, Va.

OCT. 23.—The rebel General Price defeated at Blue river, Missouri.

OCT. 28.—General Blunt defeated the rebels under Price, at Neosho, Mo.

OCT. 30.—General Hood made three attacks on Decatur, Ala., but was repulsed each time.

NOVEMBER, 1864.

Nov. 3.—The rebel ram Albemarle destroyed by Lieutenant Cushing. The Confederate army under Hood, attempted to cross the Tennessee, but were repulsed by the Federal army, under General Sherman.

Nov. 8.—The Presidential election took place. Lincoln and Johnson received 212, McClellan and Pendleton 21 electoral votes.

Nov. 16.—General Sherman left Atlanta, and began his march through Georgia, to Savannah.

Nov. 30.—The rebel army under General Hood, attacked the Union troops under General Schofield, at Franklin, Tenn., but were repulsed with great loss.

DECEMBER, 1864.

DEC. 13.—Fort McAllister captured by Gen. Sherman's army.

DEC. 16.—General Thomas defeated the enemy at Nashville, Tenn., with heavy loss, capturing a large number of guns and prisoners.

DEC. 20.—The rebels under General Breckinridge defeated in South-Western Virginia, and the salt works destroyed.

DEC. 21.—General Sherman entered the city of Savannah, capturing 150 cannon, 30,000 bales of cotton, and a large amount of munitions of war.

DEC. 29.—Hood's army crossed the Tennessee river, thus ending the Tennessee campaign.

JANUARY, 1865.

JAN. 3.—Massachusetts ratified Constitutional Amendment.

JAN. 8.—General Butler removed from the command of the army of the James, and is succeeded by General Ord.

JAN. 11.—The garrison at Beverly, Va., was attacked by a rebel force under General Rosser. The town and a large portion of the force defending it, were captured.

JAN. 16.—Fort Fisher, near Wilmington, N. C., captured with all its equipments.

JAN. 20.—Rebels evacuate Corinth.

JAN. 21.—Peace rumors.

JAN. 27.—Rebel incendiaries set fire to the city of Savannah.

FEBRUARY, 1865.

FEB. 1.—Illinois ratified the Constitutional Amendment.

FEB. 2.—Maryland, Michigan, New York and Rhode Island, ratified the Constitutional Amendment.

FEB. 4.—Illinois Black Laws repealed.

FEB. 7.—Maine ratified the Constitutional Amendment.

FEB. 12.—General Sherman occupied Branchville, S. C.

FEB. 13.—Indiana ratified the Constitutional Amendment.

FEB. 17.—Louisiana ratified the Constitutional Amendment. General Sherman's victorious columns entered Columbia, S. C., and burned the city.

FEB. 18.—Charleston, S. C., evacuated and taken possession of by General Gilmore. Great amount of valuable property destroyed, six thousand bales of cotton. Ammunition stored in the railroad depot exploded, and many lives were lost. General Gilmore hoisted the old flag over Fort Sumter.

FEB. 19.—Fort Anderson, N. C. taken.

FEB. 21.—Wisconsin ratified the Constitutional Amendment. Fort Armstrong, N. C., taken.

FEB. 22.—Wilmington captured.

MARCH, 1865.

MARCH 2.—General Sheridan fought and captured the rebel General Early, with 1,800 men, between Staunton and Charlottesville.

MARCH 10.—General Bragg attacked General Cox near Kingston, N. C., but was defeated. General Sherman occupied Fayetteville, N. C.

MARCH 12.—Mobile attacked.

MARCH 13.—General Schofield occupied Kingston.

MARCH 16.—Rebel General Hardee defeated at Averysboro', North Carolina.

MARCH 17.—Rebel Congress adjourned, *sine die*.

MARCH 19.—Rebel General Johnson defeated at Bentonville, North Carolina.

MARCH 25.—Rebels attack General Grant and got soundly whipped.

APRIL, 1865.

APRIL 3.—Richmond taken.

APRIL 9.—General Lee surrendered. Mobile captured.

APRIL 12.—Salisbury, N. C., captured. Mobile captured by General Canby, 1,000 prisoners, 150 cannon, 3,000 bales of cotton. Columbus, Ga.,

captured.

APRIL 13.—Raleigh, N. C., captured. Governor Vance taken prisoner.

APRIL 14.—President Lincoln assassinated. Secretary Seward stabbed. Arkansas ratified the Constitutional Amendment.

APRIL 15.—President Lincoln died about 7 o'clock, A. M.

APRIL 16.—Andrew Johnson took the oath and was declared President of the United States.

APRIL 26.—General Johnson surrendered. The war is over.

APRIL 27.—Booth, the murderer of President Lincoln shot and captured. Dead.

MAY, 1865.

MAY 8.—Subscriptions to 7-30 loan \$6,183,000.

MAY 9.—Subscriptions to 7-30 loan \$15,165,300.

MAY 10.—Jefferson Davis captured at Irwinville, 75 miles south-west of Macon, Ga., by the 4th Michigan cavalry, under Colonel Pritchard, of General Wilson's command. Also, his wife, mother, Postmaster-general Regan, Colonel Harrison, Private Secretary, Colonel Johnson and other military characters. Subscription to 7-30 loan \$17,410,100.

MAY 11.—Subscription to 7-30 loan \$15,411,800.

MAY 12.—Subscription to 7-30 loan \$13,762,100.

MAY 13.—Subscriptions to 7-30 loan \$30,451,950. Total for one week \$98,000,000.

MAY 19.—Rebel Governor Watts, of Alabama, arrested.

MAY 21.—Rebel Governor Letcher, of Virginia, arrested.

MAY 24.—Grand review of General Sherman's army at Washington. Jefferson Davis indicted for treason.

MAY 26.—Kirby Smith surrendered. The last armed rebel organization has succumbed.

MAY 31.—Rebel General Hood and staff surrendered.

Pay of Officers of the U. S., Civil and Military.

EXECUTIVE DEPARTMENT.

President	\$25,000	per	annum
Private Secretary	2,500	”	”
Private Secretary to sign Patents	1,500	”	”
Vice-President	8,000	”	”

HEADS OF DEPARTMENTS.

Secretary of State	\$8,000	per	annum
Secretary of the Treasury	8,000	”	”
Secretary of War	8,000	”	”
Secretary of the Navy	8,000	”	”
Secretary of the Interior	8,000	”	”
Postmaster-General	8,000	”	”
Attorney-General	8,000	”	”

LEGISLATIVE DEPARTMENT.

Speaker of House of Representatives, (mileage, 20 cents per mile.)	\$8,000	per	annum
U. S. Senators, Members of Congress, and Delegates from Territories	5,000	”	”

JUDICIARY, (SUPREME COURT OF U. S.)

Chief Justice	\$6,500	per	annum
Associate Justices, [8 in number] (Court meets first Monday in December)	6,000	”	”

MINISTERS AND DIPLOMATIC AGENTS

OF THE UNITED STATES
IN FOREIGN COUNTRIES—
ENVOYS EXTRAORDINARY AND
MINISTERS PLENIPOTENTIARY.

Minister to Great Britain	\$17,500	per	annum
Minister to Russia	12,000	”	”
Minister to France	17,500	”	”
Minister to Spain	12,000	”	”
Minister to Prussia	12,000	”	”
Minister to Austria	12,000	”	”
Minister to Italy	12,000	”	”
Minister to China	12,000	”	”
Minister to Mexico	12,000	”	”
Minister to Brazil	12,000	”	”
Minister to Chili	10,000	”	”
Minister to Peru	10,000	”	”
Minister to Nicaragua	7,000	”	”

MINISTERS RESIDENT.

Minister in Portugal	\$7,500	per	annum
Minister in Belgium	7,500	”	”
Minister in Netherlands	7,500	”	”
Minister in Denmark	7,500	”	”
Minister in Sweden and Norway	7,500	”	”
Minister in Switzerland	7,500	”	”
Minister in Pontif States	7,500	”	”
Minister in Turkey	7,500	”	”
Minister in Japan	7,500	”	”
Minister in Costa Rica	7,500	”	”
Minister in Guatemala	7,500	”	”
Minister in Honduras	7,500	”	”
Minister in Salvador	7,500	”	”
Minister in New Granada	7,500	”	”
Minister in Venezuela	7,500	”	”
Minister in Ecuador	7,500	”	”
Minister in Argentine Confederation	7,500	”	”
Minister in Hawaiian Islands	7,500	”	”

WAR DEPARTMENT.

Secretary of War	\$8,000	per	annum
Assistant Secretary of War	3,000	"	"
Second Assistant Secretary of War	3,000	"	"
Commander-in-Chief	5,340	"	"
Adjutant-General	3,594	"	"
Assistant Adjutant-General	2,532	"	"
Second Assistant Adjutant-General	1,956	"	"
Third Assistant Adjutant-General	1,956	"	"
Fourth Assistant Adjutant-General	1,956	"	"
Chief Clerk Adjutant-General's Bureau	1,800	"	"
Inspector General	2,532	"	"
Judge Advocate General	2,532	"	"
Deputy Judge Advocate	1,956	"	"
Quartermaster General	3,594	"	"
Deputy Quartermaster General	2,244	"	"
Assistant Quartermaster	2,532	"	"
Chief Clerk Quartermaster's Bureau	1,800	"	"
Chief Engineer	3,594	"	"
Assistant Engineer	1,596	"	"
Chief Clerk of Engineer Bureau	1,800	"	"
Provost Marshal General	—		
Surgeon General	3,594	"	"
Assistant Surgeon General	2,532	"	"
Chief Clerk Surgeon General's Bureau	1,800	"	"
Chief of Ordnance	3,594	"	"
Assistant Chief of Ordnance	1,554	"	"
Chief Clerk of Ordnance Bureau	1,800	"	"
Paymaster General	2,740	"	"
Deputy Paymaster General	2,144	"	"
Additional Paymaster	1,950	"	"
Chief Clerk Paymaster General's Bureau	1,800	"	"
Commissary General of Subsistence	2,532	"	"
Assistant Commissary General	1,956	"	"
Second Assistant Commissary General	1,956	"	"
Chief Clerk Commissary General's Bureau	1,800	"	"

GENERAL OFFICERS.

Lieutenant-General	\$720 00	per	month
Aids-de-camp and military secretary to Lieutenant-General, each	170 00	"	"
Major-General	445 00	"	"
Senior Aid-de-camp to General-in-Chief	163 00	"	"
Aid-de-camp, in addition to pay, etc., of Lieutenant or Captain	24 00	"	"
Brigadier-General	299 50	"	"
Aid-de-camp, in addition to pay, etc., as Lieutenant	11 00	"	"

ADJUTANT-GENERAL'S DEPARTMENT.

Adjutant-General—Brigadier-General	\$407 50	per	month
Assistant Adjutant-General—Colonel	211 00	"	"
Assistant Adjutant-General—Lt. Colonel	187 00	"	"
Assistant Adjutant-General—Major	163 00	"	"
Judge Advocate General—Colonel	211 00	"	"
Judge Advocate—Major	163 00	"	"
Division Major	163 00	"	"

INSPECTOR GENERAL'S DEPARTMENT.

Inspector General—Colonel	\$211 00	per	month
Assistant Inspector General—Major	163 00	"	"

SIGNAL DEPARTMENT.

Signal Officer—Colonel	\$211 00	per	month
------------------------	----------	-----	-------

PAY DEPARTMENT.

Paymaster General	\$288 33	per	month
Deputy Paymaster General	187 00	"	"
Paymaster	163 00	"	"

OFFICERS OF THE CORPS OF ENGINEERS,
TOPOGRAPHICAL ENGINEERS, AND
ORDNANCE DEPARTMENT.

Chief of Ordinance—Brigadier-General	\$407 50	per	month
Colonel	211 00	”	”
Lieutenant Colonel	187 00	”	”
Major	163 00	”	”
Captain	129 50	”	”
First Lieutenant	112 83	”	”
Second Lieutenant	112 83	”	”
Brevet Second Lieutenant	112 83	”	”

OFFICERS OF MOUNTED DRAGOONS,
CAVALRY, RIFLEMEN, AND
LIGHT ARTILLERY.

Colonel	\$211 00	per	month
Lieutenant Colonel	187 00	”	”
Major	163 00	”	”
Captain	129 50	”	”
First Lieutenant	112 83	”	”
Second Lieutenant	112 83	”	”
Brevet Second Lieutenant	112 83	”	”

QUARTERMASTER’S DEPARTMENT.

Quartermaster General—Brigadier General	\$407 50	per	month
Assistant Quartermaster General—Colonel	211 00	”	”
Deputy Quartermaster General—Lt. Colonel	187 00	”	”
Quartermaster—Major	163 00	”	”
Assistant Quartermaster—Captain	129 50	”	”

SUBSISTENCE DEPARTMENT.

Commissary General of Subsistence— Brigadier General	\$299 50	per	month
Assistant Commissary General—Lt. Colonel	187 00	”	”
Commissary of Subsistence—Major	163 00	”	”

Commissary of Subsistence—Captain	129 50	”	”
Assistant Commissary of Subsistence, in addition to pay, etc., as Lieutenant	11 00	”	”

MEDICAL DEPARTMENT.

Surgeon General—Brigadier General	\$299 50	per month	
Assistant Surgeon General	211 00	”	”
Medical Inspector General	211 00	”	”
Medical Inspector	187 00	”	”
Surgeons of ten years' service	199 00	”	”
Surgeons of less than ten years' service	163 00	”	”
Assistant Surgeons of ten years' service	165 50	”	”
Assistant Surgeons of five years' service	129 50	”	”
Assistant Surgeons of less than five years' service	112 83	”	”
Adjutant, Regimental Quartermaster, and Regimental Commissary, in addition to pay of Lieutenant, each	10 00	”	”

OFFICERS OF ARTILLERY AND INFANTRY.

Colonel	\$194 00	per month	
Lieutenant Colonel	170 00	”	”
Major	151 00	”	”
Captain	118 50	”	”
First Lieutenant	108 50	”	”
Second Lieutenant	103 50	”	”
Brevet Second Lieutenant	103 50	”	”
Adjutant, in addition to pay, etc., of Lieut	10 00	”	”
Regimental Quartermaster, in addition to pay, etc., of Lieutenant	10 00	”	”

PAY OF NON-COMMISSIONED OFFICERS, PRIVATES, ETC.—CAVALRY.

Sergeant-Major	\$21 00	per month	
----------------	---------	-----------	--

Quartermaster Sergeant	21 00	”	”
Chief Bugler	21 00	”	”
First Sergeant	20 00	”	”
Sergeant	17 00	”	”
Saddler Sergeant	21 00	”	”
Commissary Sergeant	21 00	”	”
Hospital Steward	30 00	”	”
Corporal	14 00	”	”
Bugler, or Trumpeter	13 00	”	”
Farrier and Blacksmith	15 00	”	”
Private	13 00	”	”
Veterinary Surgeon	75 00	”	”
African under-cooks	10 00	”	”

ORDNANCE.

Sergeant	\$34 00	per month	
Corporal	20 00	”	”
Wagoner	14 00	”	”
Saddler	14 00	”	”
Private—first class	17 00	”	”
Private—second class	16 00	”	”

ARTILLERY AND INFANTRY.

Sergeant-Major	\$21 00	per month	
Quartermaster Sergeant	21 00	”	”
Commissary Sergeant	21 00	”	”
First Sergeant	20 00	”	”
Sergeant	17 00	”	”
Hospital Steward	30 00	”	”
Corporal	14 00	”	”
Artificer, Artillery	15 00	”	”
Private	13 00	”	”
Principal Musician	21 00	”	”
Musician	12 00	”	”
African under-cooks	10 00	”	”

SAPPERS AND MINERS, AND PONTOONIERS.

Sergeant	\$34 00	per month	
Corporal	20 00	"	"
Private—first class	17 00	"	"
Private—second class	16 00	"	"
Musician	12 00	"	"
African under-cooks	10 00	"	"

BRIGADE BANDS.

Leader	\$45 00	per month	
Four of the Band	34 00	"	"
Eight of the Band	17 00	"	"
Four of the Band	20 00	"	"

MISCELLANEOUS.

Medical Cadets	\$30 00	"	"
Hospital Steward—first class	22 00	"	"
Matron	6 00	"	"
Female nurses	40 cents per day.		

PAY OF THE NAVY OF THE UNITED STATES.

REAR ADMIRALS—ACTIVE LIST.

When at sea	\$5,000	per	annum
When on shore duty	4,000	”	”
On leave, or waiting orders	3,000	”	”
On Retired List	2,000	”	”

COMMODORES—ACTIVE LIST.

When at sea	\$4,000	per	annum
When on shore duty	2,800	”	”
On leave, or waiting orders	2,100	”	”
On Retired List	1,600	”	”

COMMANDERS—ACTIVE LIST.

When at sea	\$2,800	per	annum
When on shore duty	2,240	”	”
On leave, or waiting orders	1,680	”	”
On Retired List	1,400	”	”

LIEUTENANT COMMANDERS—ACTIVE LIST.

When at sea	\$2,343	per	annum
When on shore duty	1,875	”	”
On leave, or waiting orders	1,500	”	”
On Retired List	1,300	”	”

LIEUTENANTS—ACTIVE LIST.

When at sea	\$1,875	per	annum
When on shore duty	1,500	”	”
On leave, or waiting orders	1,200	”	”
On Retired List	1,000	”	”

MASTERS—ACTIVE LIST.

When at sea	\$1,500	per	annum
When on shore duty	1,200	”	”
On leave, or waiting orders	960	”	”
On Retired List	800	”	”

ENSIGNS—ACTIVE LIST.

When at sea	\$1,200	per	annum
When on shore duty	960	”	”
On leave, or waiting orders	768	”	”
On Retired List	500	”	”
Midshipmen	500	”	”
Fleet Surgeons	3,300	”	”

SURGEONS.

For second five years after date of commission	\$2,400 per annum
---	-------------------

RETIRED SURGEONS.

Surgeons ranking with commanders	\$1,100 per annum
Surgeons ranking with lieutenants	1,000 ” ”

RETIRED PASSED AND ASSISTANT SURGEONS.

Passed	\$850 per annum
Assistant	650 ” ”

PASSED ASSISTANT SURGEONS.

On duty at sea	\$1,500 per annum
On other duty	1,400 ” ”
On leave, or waiting orders	1,100 ” ”

ASSISTANT SURGEONS.

On duty at sea	\$1,250	per annum
On other duty	1,050	" "
On leave, or waiting orders	800	" "

PAYMASTERS.

On duty at sea—for four five years after date of commission	\$2,900	per annum
--	---------	-----------

PAYMASTERS RETIRED.

Ranking with Captains	\$1,300	per annum
Ranking with Commanders	1,100	" "
Ranking with Lieutenants	1,000	" "

ASSISTANT PAYMASTERS.

On duty at sea—after five years from date of commission	\$1,500	per annum
On leave, or waiting orders	800	" "

CHAPLAINS,

To be paid as Lieutenants.

PROFESSORS OF MATHEMATICS.

On duty	\$1,800	per annum
On leave, or waiting orders	960	" "

BOATSWAINS, GUNNERS, CARPENTERS, AND SAILMAKERS.

On duty at sea—for first three years' sea service from date of appointment.	\$1,000	per annum
For twelve years' service and upwards	1,450	" "
On leave, or waiting orders—for twelve years' sea service and upwards	1,000	" "



FRANKLIN PIERCE.

CHIEF ENGINEERS.

On duty—for first five years after date of commission	\$1,800 per annum
After fifteen years from date of commission	2,600 " "
On leave, or waiting orders, after fifteen years from date of commission	1,500 " "

FIRST ASSISTANT ENGINEERS.

On duty	\$1,500	per annum
On leave, or waiting orders	900	" "

SECOND ASSISTANT ENGINEERS.

On duty	\$1,000	per annum
On leave, or waiting orders	750	" "

NAVY AGENT.

Commission not to exceed	\$3,000	per annum
Navy Agent at San Francisco	4,000	" "
Temporary Navy Agents		
Naval Storekeepers		

Officers of the Navy on Foreign Stations	\$1,500	per annum
Engineer-in-Chief	3,000	" "
Naval Constructors	2,600	" "
" " when not on duty	1,800	" "
Secretaries to commanders of squadrons	1,500	" "
Clerks to commanders of squadrons and commanders of vessels	500	" "
At Navy Yards—Boston and New York	1,200	" "
At Navy Yard—Washington	1,200	" "
At Navy Yards—Portsmouth, N. H., and Philadelphia	1,200	" "
At Navy Yard—Mare Island	1,500	" "

YEOMEN.

In ships-of-the-line	\$45 00	per month
In frigates	40 00	" "
In sloops	30 00	" "
In smaller vessels	24 00	" "

ARMORERS.

In ships-of-the-line	\$30 00	per month
----------------------	---------	-----------

In frigates	25 00	”	”
In sloops	20 00	”	”

MATES.

Master's (Acting)	\$40 00	per month	
Boatswains	25 00	”	”
Gunners	25 00	”	”
Carpenters	25 00	”	”
Sailmakers	20 00	”	”
Armorers	20 00	”	”

Masters-at-Arms	25 00	”	”
Ship's Corporals	20 00	”	”
Coxswains	24 00	”	”
Quartermasters	24 00	”	”
Quarter Gunners	20 00	”	”

CAPTAINS.

Of forecastle	\$24 00	per month	
Of tops	20 00	”	”
Of afterguard	20 00	”	”
Of hold	20 00	”	”
Coopers	20 00	”	”
Painters	20 00	”	”

STEWARDS.

Ship's	\$30 00	per month	
Officers'	20 00	”	”
Surgeons', where ship's complement is 400 and over	40 00	”	”
Surgeons', where ship's complement is 200 and under 400	33 00	”	”
Surgeons', where ship's complement is under 200	25 00	”	”
Paymaster's, where ship's complement is 240 and over	33 00	”	”
Assistant Paymaster's, where complement is			

100 and over	33 00	”	”
Assistant Paymaster's, where complement is under 100	30 00	”	”

NURSES.

Where complement is less than 200, one nurse	\$14 00	per month
Where complement is over 200, two nurses, each	14 00	” ”

COOKS.

Ship's	\$24 00	per month
Officer's	20 00	” ”

MUSICIANS.

Masters of the Band	\$20 00	per month
First class	15 00	” ”
Second class	12 00	” ”

Seamen	\$18 00	per month
Ordinary Seamen	14 00	” ”
Landsmen	12 00	” ”
Boys	8-9 00	” ”

FIREMEN.

First class	\$30 00	per month
Second class	25 00	” ”
Coal Heavers	18 00	” ”

MARINE CORPS.

Colonel Commandant	\$3,186 00	per annum
Paymaster, with rank of Major	2,154 00	” ”
Adjutant and Inspector, with rank of Major	2,154 00	” ”
Quartermaster, with rank of Major	2,154 00	” ”
Assistant Quartermaster, with rank of Captain	1,752 00	” ”
Colonel	2,529 00	” ”
Lieutenant Colonel	2,239 50	” ”

Major

2,010 00 ” ”

NOTE.—By a late act of Congress, the monthly pay of private soldiers has been increased three dollars, that of non-commissioned officers being proportionately advanced. And a tax of five per cent. was imposed on the salaries of commissioned officers, thus, indirectly reducing their pay.

SCHEDULE OF STAMP DUTIES.

	Stamp Duties.
<i>Acknowledgment</i> of deeds	exempt.
<i>Affidavit</i>	5 cts.
" in suits or legal proceedings	exempt.
<i>Agreement</i> or Appraisement, (for each sheet, or piece of paper on which the same is written)	5 cts.
<i>Assignment</i> or transfer of mortgage, lease, or policy of insurance, the same duty as the original instrument.	
" of patent right	5 cts.
<i>Bank Checks</i> , drafts or orders, &c., at sight or on demand	2 cts.
<i>Bills of Exchange</i> , (Foreign,) drawn in, but payable out of, the United States, each bill of three or more, must be stamped.	
For every bill of each set, where the sum made payable does not exceed one hundred dollars, or the equivalent thereof in any foreign currency in which such bills may be expressed, according to the standard of value fixed by the United States	2 cts.
For every additional hundred dollars, or fractional part thereof in excess of one hundred dollars	2 cts.
(Foreign,) drawn in, but made payable out of, the United States, (if drawn singly or in duplicate,) pay the same duty as Inland Bills of Exchange.	
[The acceptor or acceptors of any Bill of Exchange, or order for the payment of any sum of money drawn, or purporting to be drawn, in any foreign country, but payable in the United States, must, before paying or accepting the same, place	

	thereon a stamp indicating the duty.]	
<i>Bills of Exchange</i> , (Inland,) draft or order, payable otherwise than at sight or on demand, and any promissory note, whether payable on demand or at a time designated, (except bank notes issued for circulation, and checks made and intended to be, and which shall be, forthwith presented for payment,) for a sum not exceeding one hundred dollars		5 cts.
For every additional \$100, or fractional part thereof		5 cts.
[The warrant of attorney to confess judgment on a note or bond is exempt from stamp duty, if the note or bond is properly stamped.]		
<i>Bills of Lading</i> , of vessels for ports of the United States or British North America		exempt.
” or receipt for goods, to any foreign port		10 cts.
<i>Bill of Sale</i> of any vessel, or part thereof, when the consideration does not exceed five hundred dollars		50 cts.
” exceeding \$500, and not exceeding \$1,000		\$1 00
” exceeding \$1,000, for each \$500, or fractional part thereof		50 cts.
” of personal property, (other than ship or vessel)		5 cts.
<i>Bond</i> , personal, for the payment of money. (See <i>Mortgage</i> .)		
” official		\$1 00
” for indemnifying any person for the payment of any sum of money, where the money ultimately recoverable thereupon is \$1,000 or less		50 cts.
” Where the money recoverable exceeds \$1,000, for every additional \$1,000, or fractional part thereof		50 cts.
<i>Bonds</i> —County, city, and town bonds, railroad and other corporation bonds, and scrip, are subject to stamp duty. (See <i>Mortgage</i> .)		
” of any description, other than such as are		

	required in legal proceedings, and such as are not otherwise charged in this Schedule	25 cts.
<i>Certificates</i>	of deposit in bank, sum not exceeding one hundred dollars	2 cts.
”	of deposit in bank, sum exceeding one hundred dollars	5 cts.
”	of stock in an incorporated company	25 cts.
”	general	5 cts.
”	of record upon the instrument recorded	exempt.
”	of record upon the book	exempt.
”	of weight or measurement of animals, coal, wood, or other articles, except weighers’ and measurers’ returns	exempt.
”	of a qualification of a Justice of the Peace, Commissioner of Deeds, or Notary Public	5 cts.
”	of search of records	5 cts.
”	that certain papers are on file	5 cts.
”	that certain papers can not be found	5 cts.
”	of redemption of land sold for taxes	5 cts.
”	of birth, marriage and death	5 cts.
”	of qualification of school teachers	5 cts.
”	of profits of an incorporated company for a sum not less than \$10 and not exceeding \$50	10 cts.
”	exceeding \$50, and not exceeding \$1,000	25 cts.
”	exceeding \$1,000, for every additional \$1,000, or fractional part thereof	25 cts.
”	of damage, or otherwise, and all other certificates or documents issued by any port warden, marine surveyor, or other person acting as such	25 cts.
<i>Certified Transcripts</i>	of judgments, satisfaction of judgments, and all papers recorded or on file.	5 cts.
	[N. B.—As a general rule, every certificate which has, or may have, a legal value in any court of law or equity, will require a stamp duty of 5 cts.]	
<i>Charter party</i> ,	or letter, memorandum, or other writing	

between the captain, owner, or agent of any ship, vessel, or steamer, and any other person, relating to the charter of the same, if the registered tonnage of said ship, vessel, or steamer does not exceed one hundred and fifty tons	\$1 00
” exceeding one hundred and fifty tons, and not exceeding three hundred tons	3 00
” exceeding three hundred tons, and not exceeding six hundred tons	5 00
” exceeding six hundred tons	10 00
<i>Check, draft, or order for the payment of any sum of money exceeding \$10, drawn upon any person other than a bank, banker, or trust company, at sight or on demand</i>	2 cts.
<i>Contract. (See Agreement.)</i>	
” Broker’s	16 cts.
<i>Conveyance, deed, instrument, or writing, whereby lands, tenements, or other realty sold, shall be conveyed, the actual value of which does not exceed \$500</i>	50 cts.
” exceeding \$500, and not exceeding \$1,000	\$1 00
” for every additional \$500, or fractional part thereof in excess of \$1,000	50 cts.
<i>Endorsement of any negotiable instrument</i>	exempt.
<i>Entry of any goods, wares, or merchandise at any custom house, either for consumption or warehousing, not exceeding one hundred dollars in value</i>	25 cts.
” exceeding one hundred dollars, and not exceeding five hundred dollars in value	50 cts.
” exceeding five hundred dollars in value	\$1 00
” for the withdrawal of any goods or merchandise from bonded warehouse	50 cts.
<i>Gaugers’ returns, if for quantity not exceeding 500 gallons, gross</i>	exempt.
” exceeding 500 gallons	”
<i>Insurance, (Marine, Inland, and Fire,) where the consideration</i>	

paid for the insurance, in cash, premium notes, or both, does not exceed \$10	10 cts.
(Marine, Inland, and Fire,) exceeding \$10, and not exceeding \$50	25 cts.
” (Marine, Inland, and Fire,) exceeding \$50,	50 cts.
<i>Insurance</i> , (Life,) when the amount insured does not exceed \$1,000	25 cts.
” (Life,) exceeding \$1,000, and not exceeding \$5,000	50 cts.
” (Life,) exceeding \$5,000	\$1 00
” (Life,) limited to injury to persons while traveling	exempt.
<i>Lease</i> of lands or tenements, where rent does not exceed \$300 per annum	50 cts.
” exceeding \$300, for each additional \$200, or fractional part thereof in excess of \$300	50 cts.
” perpetual, subject to a stamp duty as a “conveyance,” the stamp duty to be measured by resolving the annual rental into a capital sum.	
” clause of guaranty of payment of rent, incorporated or indorsed, five cents additional.	
<i>Manifest</i> for custom house entry or clearance of the cargo of any ship, vessel, or steamer for a foreign port, if the registered tonnage of such ship, vessel, or steamer does not exceed 300 tons	\$1 00
” exceeding 300 tons, and not exceeding 600 tons	3 00
” exceeding 600 tons	5 00
<i>Measurer’s Returns</i> , if for quantity not exceeding one thousand bushels	exempt.
” exceeding one thousand bushels	”
<i>Mortgage</i> , trust deed, bill of sale, or personal bond for the payment of money exceeding \$100, and not exceeding \$500	50 cts.
” exceeding \$500, for every additional \$500, or fractional part thereof in excess of \$500	50 cts.
<i>Pawners’ Checks</i> .	5 cts.
<i>Pension Papers</i> .—Powers of attorney, and all other papers relating to applications for bounties, arrearages	

of pay, or pensions, or to receipt thereof	exempt.
<i>Passage Ticket</i> from the United States to a foreign port,	
costing not more than \$35	50 cts.
” from the United States to a foreign port, costing more than \$35, and not exceeding \$50	\$1 00
” for every additional \$50, or fractional part thereof in excess of \$50	\$1 00
<i>Power of Attorney</i> to sell or transfer stock, or collect dividends thereon	25 cts.
” to vote at election of incorporated company	10 cts.
” to receive or collect rents	25 cts.
” to sell, or convey, or rent, or lease real estate	\$1 00
” for any purpose	50 cts.
<i>Probate of Will</i> , or letters of administration, where the value of both real and personal estate does not exceed \$2,000	\$1 00
” for every additional \$1,000, or fractional part thereof in excess of \$2,000	50 cts.
” bonds of executors, administrators, guardians, and trustees, are each subject to a stamp duty of	\$1 00
” certificate of appointment	5 cts.
<i>Protest</i> upon bill, note, check, or draft	25 cts.
<i>Promissory Note</i> .—(See <i>Bills of Exchange</i> , Inland.)	
” deposit note to mutual insurance companies, when policy is subject to duty	exempt.
” renewal of, subject to same duty as an original note.	
<i>Quit Claim Deed</i> , to be stamped as a conveyance, except when given as a release of a mortgage by the mortgagee to the mortgagor, in which case it is exempt.	
<i>Receipt</i> for the payment of any sum of money or debt due exceeding \$20, or for the delivery of any property	2 cts.
” for satisfaction of any mortgage or judgment or decree of any court	exempt.
<i>Sheriff’s</i> return on writ or other process	exempt.
<i>Trust Deed</i> , made to secure a debt, to be stamped as a mortgage.	

”	conveying estate to uses, to be stamped as conveyance.	
	<i>Warehouse Receipt</i> for any goods, wares, or merchandise not otherwise provided for, deposited or stored in any public or private warehouse, not exceeding \$500 in value	exempt.
”	exceeding \$500, and not exceeding \$1,000	”
”	exceeding \$1,000, for every additional \$1,000, or fractional part thereof in excess of \$1.000	”
”	for any goods, &c. not otherwise provided for, stored or deposited in any public or private warehouse or yard	”
	<i>Writs and Legal Documents:</i>	
	Writ, or other original process by which suit is commenced in any court of record, either of law or equity	50 cts.
	Writ, or other original process issued by a court not of record, where the amount claimed is \$100 or over	50 cts.
	Upon every confession of judgment or cognovit for \$100, or over, except in cases where the tax for a writ has been paid	50 cts.
	Writs, or other process on appeals from justices’ courts, or other courts of inferior jurisdiction, to a court of record	50 cts.
	Warrant of distress, when the amount of rent claimed does not exceed \$100	25 cts.
	Warrant of distress when amount exceeds \$100	50 cts.
	Writs, summons, and other process issued by a justice of the peace, police or municipal court, of no greater jurisdiction than a justice of the peace in the same State	exempt.
	Writs, and other process in any criminal or other suits commenced by the United States in any State	exempt.
	Official documents, instruments, and papers issued or used by officers of the United States Government	exempt.

GENERAL REMARKS.

Revenue stamps may be used indiscriminately upon any of the matters or things enumerated in Schedule B, except proprietary and playing card stamps, for which a special use has been provided.

Postage stamps can not be used in payment of the duty chargeable on instruments.

It is the duty of the maker of an instrument to affix the stamp thereto and to cancel the same in the manner required by law. Proper cancellation is essential.

Under the provisions of section 158, an instrument subject to stamp duty, but issued without a stamp or with an insufficient one, may be so stamped by the Collector as to be as valid to all intents and purposes (*except as against rights acquired in good faith before such stamping and the recording of the instrument, if a record be required*) as if properly stamped when made or issued. Such an instrument, issued at a time when and in a place where no collection district was established, may be stamped by the party who issued it or by any party having an interest therein at any time prior to January 1, 1867, and the legal effect of the stamp thus affixed will be the same as though affixed by the Collector. When originals are lost the necessary stamps may be affixed to copies.

Suits are commenced in many States by other process than writ, viz.: summons, warrant, publication, petition, etc., in which cases, these, as the original processes, severally require stamps.

The jurat of an affidavit, taken before a Justice of the Peace, Notary Public, or other officer duly authorized to take affidavits, is held to be a certificate, and subject to a stamp duty of five cents, except when taken in suits or legal proceedings.

Certificates of Loan, in which there shall appear any written or printed evidence of an amount of money to be paid on demand, or at a time designated, are subject to stamp duty as "Promissory Notes."

When two or more persons join in the execution of an instrument, the stamp to which the instrument is liable under the law may be affixed and cancelled by either of them; and "when more than one signature is affixed

to the same paper, one or more stamps may be affixed thereto representing the whole amount of the stamp required for such signature.”

No stamp is required on any warrant of attorney accompanying a bond or note when such bond or note has affixed thereto the stamp or stamps denoting the duty required; and whenever any bond or note is secured by mortgage, but one stamp duty is required on such papers, such stamp duty being the highest rate required for such instruments, or either of them. In such case a note or memorandum of the value or denomination of the stamp affixed should be made upon the margin or in the acknowledgment of the instrument which is not stamped.

THE CIVIL RIGHTS BILL.

An Act to protect all persons in the United States in their civil rights, and furnish the means of their vindication.

Be it enacted, &c., That all persons born in the United States and not subject to any foreign power, excluding Indians, not taxed, are hereby declared to be citizens of the United States; and such citizens of every race and color, without regard to any previous condition of slavery or involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall have the same right in every State and Territory in the United States to make and enforce contracts; to sue, be parties, and give evidence; to inherit, purchase, lease, sell, hold, and convey real and personal property; and to full and equal benefit of all laws and proceedings for the security of person and property as is enjoyed by white citizens, and shall be subject to like punishment, pains, and penalties, and to none other, any law, statute ordinance, regulation, or custom, to the contrary notwithstanding.

SEC. 2. That any person who, under color of any law, statute, ordinance, regulation, or custom, shall subject, or cause to be subjected, any inhabitant of any State or Territory to the deprivation of any right secured or protected by this act, or to different punishment, pains, or penalties on account of such person having at any time been held in a condition of slavery or involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, or by reason of his color or race, than is prescribed for the punishment of white persons, shall be deemed guilty of a misdemeanor, and, on conviction, shall be punished by fine not exceeding one thousand dollars, or imprisonment not exceeding one year, or both, in the discretion of the court.

SEC. 3. That the district courts of the United States, within their respective districts, shall have, exclusively of the courts of the several States, cognizance of all crimes and offences committed against the

provisions of this act, and also, concurrently with the circuit courts of the United States, of all causes, civil and criminal, affecting persons who are denied or cannot enforce in the courts or judicial tribunals of the State or locality where they may be any of the rights secured to them by the first section of this act; and if any suit or prosecution, civil or criminal, has been or shall be commenced in any State court against any such person, for any cause whatsoever, or against any officer, civil or military, or other person, for any arrest or imprisonment, trespasses, or wrongs done or committed by virtue or under color of authority derived from this act or the act establishing a bureau for the relief of freedmen and refugees, and all acts amendatory thereof, or for refusing to do any act upon the ground that it would be inconsistent with this act, such defendant shall have the right to remove such cause for trial to the proper district or circuit court in the manner prescribed by the “Act relating to *habeas corpus* and regulating judicial proceedings in certain cases,” approved March three, eighteen hundred and sixty-three, and all acts amendatory thereof. The jurisdiction in civil and criminal matters hereby conferred on the district and circuit courts of the United States shall be exercised and enforced in conformity with the laws of the United States, so far as such laws are suitable to carry the same into effect; but in all cases where such laws are not adapted to the object, or are deficient in the provisions necessary to furnish suitable remedies and punish offences against law, the common law, as modified and changed by the constitution and statutes of the State wherein the court having jurisdiction of the cause, civil or criminal, is held, so far as the same is not inconsistent with the Constitution and laws of the United States, shall be extended to and govern said courts in the trial and disposition of such cause, and, if of a criminal nature, in the infliction of punishment on the party found guilty.

SEC. 4. That the district attorneys, marshals, and deputy marshals of the United States, the commissioners appointed by the circuit court and territorial courts of the United States, with power of arresting, imprisoning, or bailing offenders against the laws of the United States, the officers and agents of the Freedmen’s Bureau, and every other officer who may be specially empowered by the President of the United States, shall be, and they are hereby, specially authorized and required, at the expense of the United States, to institute proceedings against all and every person who shall violate the provisions of this act, and cause him or them to be arrested

and imprisoned, or bailed, as the case may be, for trial before such court of the United States or territorial court as by this act has cognizance of the offence. And with a view to affording reasonable protection to all persons in their constitutional rights of equality before the law, without distinction of race or color, or previous condition of slavery or involuntary servitude, except as a punishment for crime, whereof the party shall have been duly convicted, and to the prompt discharge of the duties of this act, it shall be the duty of the circuit courts of the United States and the superior courts of the Territories of the United States, from time to time, to increase the number of commissioners, so as to afford a speedy and convenient means for the arrest and examination of persons charged with a violation of this act. And such commissioners are hereby authorized and required to exercise and discharge all the powers and duties conferred on them by this act, and the same duties with regard to offences created by this act, as they are authorized by law to exercise with regard to other offences against the laws of the United States.

SEC. 5. That it shall be the duty of all marshals and deputy marshals to obey and execute all warrants and precepts issued under the provisions of this act, when to them directed; and should any marshal or deputy marshal refuse to receive such warrant or other process when tendered, or to use all proper means diligently to execute the same, he shall, on conviction thereof, be fined in the sum of one thousand dollars, to the use of the person upon whom the accused is alleged to have committed the offence. And the better to enable the said commissioners to execute their duties faithfully and efficiently, in conformity with the Constitution of the United States and the requirements of this act, they are hereby authorized and empowered, within their counties respectively, to appoint, in writing, under their hands, any one or more suitable persons, from time to time, to execute all such warrants and other process that may be issued by them in the lawful performance of their respective duties; and the persons so appointed to execute any warrant or process as aforesaid shall have authority to summon and call to their aid the bystanders or the *posse comitatus* of the proper county, or such portion of the land and naval forces of the United States, or of the militia, as may be necessary to the performance of the duty with which they are charged, and to insure a faithful observance of the clause of the Constitution which prohibits slavery, in conformity with the provisions of this act; and said

warrants shall run and be executed by said officers anywhere in the State or Territory within which they are issued.

SEC. 6. That any person who shall knowingly and wilfully obstruct, hinder or prevent any officer, or other person charged with the execution of any warrant or process issued under the provisions of this act, or any person or persons lawfully assisting him or them, from arresting any person for whose apprehension such warrant or process may have been issued, or shall rescue or attempt to rescue such person from the custody of the officer, other person or persons, or those lawfully assisting as aforesaid, when so arrested pursuant to the authority herein given and declared, or shall aid, abet, or assist any person so arrested as aforesaid, directly or indirectly, to escape from the custody of the officer or other person legally authorized as aforesaid, or shall harbor or conceal any person for whose arrest a warrant or process shall have been issued as aforesaid, so as to prevent his discovery and arrest after notice or knowledge of the fact that a warrant has been issued for the apprehension of such person, shall, for either of said offences, be subject to a fine not exceeding one thousand dollars, and imprisonment not exceeding six months, by indictment and conviction before the district court of the United States for the district in which said offence may have been committed, or before the proper court of criminal jurisdiction, if committed within any one of the organized Territories of the United States.

SEC. 7. That the district attorneys, the marshals, their deputies, and the clerks of the said district and territorial courts shall be paid for their services the like fees as may be allowed to them for similar services in other cases; and in all cases where the proceedings are before a commissioner, he shall be entitled to a fee of ten dollars in full for his services in each case, inclusive of all services incident to such arrest and examination. The person or persons authorized to execute the process to be issued by such commissioners for the arrest of offenders against the provisions of this act shall be entitled to a fee of five dollars for each person he or they may arrest and take before any such commissioner as aforesaid, with such other fees as may be deemed reasonable by such commissioner for such other additional services as may be necessarily performed by him or them, such as attending at the examination, keeping the prisoner in custody, and providing him with food and lodging during his detention, and until the final determination of

such commissioner, and in general for performing such other duties as may be required in the premises; such fees to be made up in conformity with the fees usually charged by the officers of the courts of justice within the proper district or county, as near as may be practicable, and paid out of the treasury of the United States on the certificate of the judge of the district within which the arrest is made, and to be recoverable from the defendant as part of the judgment in case of conviction.

SEC. 8. That whenever the President of the United States shall have reason to believe that offences have been, or are likely to be committed against the provisions of this act within any judicial district, it shall be lawful for him, in his discretion, to direct the judge, marshal, and district attorney of such district to attend at such place within the district, and for such time as he may designate, for the purpose of the more speedy arrest and trial of persons charged with a violation of this act; and it shall be the duty of every judge or other officer, when any such requisition shall be received by him, to attend at the place and for the time therein designated.

SEC. 9. That it shall be lawful for the President of the United States, or such person as he may empower for that purpose, to employ such part of the land or naval forces of the United States, or of the militia, as shall be necessary to prevent the violation and enforce the due execution of this act.

SEC. 10. That upon all questions of law arising in any cause under the provisions of this act, a final appeal may be taken to the Supreme Court of the United States.

The Bill passed in the Senate over the President's veto by the vote of 33 yeas to 15 nays, and in the House by 122 yeas to 41 nays.

CONSTITUTIONAL AMENDMENT.

The Amendment proposed to the Constitution, June 8, 1866.

ARTICLE XIV.

SECTION 1. All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law, nor deny to any person within its jurisdiction the equal protection of the laws.

SEC. 2. Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice-President of the United States, representatives in Congress, the executive and judicial officers of a State, or the members of the legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years of age, and citizens of the United States, or in any way abridged, except for participation in rebellion or other crime, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.

SEC. 3. No person shall be a senator or representative in Congress, or elector of President and Vice-President, or hold any office, civil or military, under the United States, or under any State, who, having previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any State legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or

comfort to the enemies thereof. But Congress may, by a vote of two-thirds of each house, remove such disability.

SEC. 4. The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; but all such debts, obligations and claims shall be held illegal and void.

SEC. 5. The Congress shall have power to enforce, by appropriate legislation, the provisions of this article.

The Amendment passed the Senate by a vote of 33 yeas to 11 nays; and the House by a vote of 138 yeas to 36 nays.

THE MILITARY GOVERNMENT BILL.

AN ACT for the More Efficient Government of the Rebel States.

WHEREAS, No legal State government, or adequate protection for life, or property, now exists in the rebel States of Virginia, North Carolina, South Carolina, Georgia, Alabama, Louisiana, Florida, Texas, and Arkansas; and,

WHEREAS, It is necessary that peace and good order should be enforced in said States until loyal and republican State governments can be established; therefore,

Be it enacted, etc., That said rebel States shall be divided into military districts, and made subject to the military authority of the United States, as hereinafter prescribed; and for that purpose Virginia shall constitute the first district; North Carolina and South Carolina the second district; Georgia, Alabama, and Florida the third district; Mississippi and Arkansas the fourth district; Louisiana and Texas the fifth district.

SEC. 2. That it shall be the duty of the President to assign to the command of each of said districts an officer of the army, not below the rank of brigadier-general, and to detail a sufficient military force to enable such officer to perform his duties and enforce his authority within the district to which he is assigned.

SEC. 3. That it shall be the duty of each officer assigned, as aforesaid, to protect all persons in their rights of person and property; to suppress insurrection, disorder, and violence, and to punish, and cause to be punished, all disturbers of the public peace, and criminals; and to this end he may allow loyal civil tribunals to take jurisdiction of and try offenders; or, when in his judgment it may be necessary, for the trial of offenders, he shall have power to organize military commissions or tribunals for that

purpose; and all interference under color of State authority with the exercise of military authority under this act shall be null and void.

SEC. 4. That all persons put under military arrest by virtue of this act shall be tried without unnecessary delay, and no cruel or unusual punishment shall be inflicted, and no sentence of any military commission or tribunal, hereby authorized, affecting the life or liberty of any person, shall be executed until it is approved by the officer in command of the district; and the laws and regulations for the government of the army shall not be affected by this act, except in so far as they may conflict with its provisions.

SEC. 5. That when the people of any one of said rebel States shall have formed a constitutional government, in conformity with the Constitution of the United States in all respects, framed by a convention of delegates elected by the persons who may vote upon the ratification or rejection thereof, as hereinafter provided; and when said constitution, so framed, shall have been ratified by a majority of the male citizens of said State, twenty-one years old and upward, of whatever race, color, or previous condition of servitude, who may have been resident in said State for one year previous to the day of voting on the question of ratifying such constitution, except such as may be disfranchised for participating in the rebellion, or for felony at common law; and when such constitution shall provide that the elective franchise shall be enjoyed by all such persons that have the qualifications herein stated, and shall have been submitted to Congress for examination, and Congress shall have approved the same; and when said State, by a vote of its legislature elected under said constitution, shall have adopted the amendment to the Constitution of the United States, proposed by the Thirty-ninth Congress, and known as article fourteen, and when said article shall become a part of the Constitution of the United States, such State shall be declared entitled to representation in Congress, and senators and representatives shall be admitted thereupon, on their taking the oath prescribed by the law; and then and thereafter the preceding sections of this bill shall be inoperative in said State.

SEC. 6, (proposed by Mr. Doolittle,) provides that the penalty of death shall not be inflicted by the military power without the approval of the President.

SEC. 7. (Shellabarger's amendment.) That until the people of said rebel States shall, by law, be admitted to representation in the Congress of the United States, the civil governments that may exist therein shall be deemed provisional only, and shall be in all respects subject to the paramount authority of the United States, which may at any time abolish, modify, control, and supersede the same, and in all elections to any office under such provisional governments all persons shall be entitled to vote, and none others, who are entitled to vote under the provisions of the fifth section of this act, and no person shall be eligible to any office under such provisional governments who would be disqualified from holding office under the provisions of the third article of said Constitutional Amendment.

SUPPLEMENT TO THE MILITARY GOVERNMENT BILL.

Passed at the First Session of the Fortieth Congress.

AN ACT supplementary to an act entitled, “An act to provide for the more efficient government of the rebel States,” passed March second, eighteen hundred and sixty-seven, and to facilitate restoration.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That before the first day of September, eighteen hundred and sixty-seven, the commanding general in each district defined by an act entitled, “An act to provide for the more efficient government of the rebel States,” passed March second, eighteen hundred and sixty-seven, shall cause a registration to be made of the male citizens of the United States, twenty-one years of age and upward, resident in each county or parish in the State or States included in his district, which registration shall include only those persons who are qualified to vote for delegates by the act aforesaid, and who shall have taken and subscribed the following oath or affirmation: “I, ———, do solemnly swear, (or affirm,) in the presence of Almighty God, that I am a citizen of the State of ———; that I have resided in said State for ——— months next preceding this day, and now reside in the county of ———, or the parish of ———, in said State, (as the case may be;) that I am twenty-one years old; that I have not been disfranchised for participation in any rebellion or civil war against the United States, nor for felony committed against the laws of any State or of the United States; that I have never been a member of any State legislature, nor held any executive or judicial office in any State, and afterward engaged in insurrection or rebellion against the United States, or given aid or comfort to the enemies thereof; that I have never taken an oath as a member of Congress of the United States, or as an officer of the United States, or as a member of any State legislature, or as an

executive or judicial officer of any State, to support the Constitution of the United States, and afterward engaged in insurrection or rebellion against the United States, or given aid or comfort to the enemies thereof; that I will faithfully support the Constitution and obey the laws of the United States, and will, to the best of my ability, encourage others so to do, so help me God;" which oath or affirmation may be administered by any registering officer.

SEC. 2. *And be it further enacted*, That after the completion of the registration hereby provided for in any State, at such time and places therein as the commanding general shall appoint and direct, of which at least thirty days' public notice shall be given, an election shall be held of delegates to a convention for the purpose of establishing a constitution and civil government for such State loyal to the Union, said convention in each State, except Virginia, to consist of the same number of members as the most numerous branch of the State legislature of such State in the year eighteen hundred and sixty, to be apportioned among the several districts, counties, or parishes of such State by the commanding general, giving to each representation in the ratio of voters registered as aforesaid as nearly as may be. The convention in Virginia shall consist of the same number of members as represented the territory now constituting Virginia in the most numerous branch of the legislature of said State in the year eighteen hundred and sixty, to be apportioned as aforesaid.

SEC. 3. *And be it further enacted*, That at said election the registered voters of each State shall vote for or against a convention to form a constitution therefor under this act. Those voting in favor of such a convention shall have written or printed on the ballots by which they vote for delegates, as aforesaid, the words, "For a convention;" and those voting against such a convention shall have written or printed on such ballots the words, "Against a convention." The persons appointed to superintend said election, and to make return of the votes given thereat, as herein provided, shall count and make return of the votes given for and against a convention; and the commanding general to whom the same shall have been returned shall ascertain and declare the total vote in each State for and against a convention. If a majority of the votes given on that question shall be for a convention, then such convention shall be held as hereinafter provided; but if a majority of said votes shall be against a convention, then no such

convention shall be held under this act: *Provided*, That such convention shall not be held unless a majority of all such registered voters shall have voted on the question of holding such convention.

SEC. 4. *And be it further enacted*, That the commanding general of each district shall appoint as many boards of registration as may be necessary, consisting of three loyal officers or persons, to make and complete the registration, superintend the election, and make return to him of the votes, list of voters, and of the persons elected as delegates, by a plurality of the votes cast at said election; and upon receiving said returns, he shall open the same, ascertain the persons elected as delegates, according to the returns of the officers who conducted said election, and make proclamation thereof; and if a majority of the votes given on that question shall be for a convention, the commanding general, within sixty days from the date of election, shall notify the delegates to assemble in convention, at a time and place to be mentioned in the notification; and said convention, when organized, shall proceed to frame a constitution and civil government according to the provisions of this act, and the act to which it is supplementary; and when the same shall have been so framed, said constitution shall be submitted by the convention for ratification to the persons registered under the provisions of this act, at an election to be conducted by the officers or persons appointed or to be appointed by the commanding general, as hereinbefore provided, and to be held after the expiration of thirty days from the date of notice thereof, to be given by said convention; and the returns thereof shall be made to the commanding general of the district.

SEC. 5. *And be it further enacted*, That if, according to said returns, the constitution shall be ratified by a majority of the votes of the registered electors qualified as herein specified, cast at said election, at least one-half of all the registered voters voting upon the question of such ratification, the president of the convention shall transmit a copy of the same, duly certified, to the President of the United States, who shall forthwith transmit the same to Congress, if then in session, and if not in session, then immediately upon its next assembling; and if it shall moreover appear to Congress that the election was one at which all the registered and qualified electors in the State had an opportunity to vote freely and without restraint, fear, or the influence of fraud, and if the Congress shall be satisfied that such

constitution meets the approval of a majority of all the qualified electors in the State, and if the said constitution shall be declared by Congress to be in conformity with the provisions of the act to which this is supplementary, and the other provisions of said act shall have been complied with, and the said constitution shall be approved by Congress, the State shall be declared entitled to representation, and senators and representatives shall be admitted therefrom, as therein provided.

SEC. 6. *And be it further enacted*, That all elections in the States mentioned in the said “Act to provide for the more efficient government of the rebel States,” shall, during the operation of said act, be by ballot; and all officers making the said registration of voters and conducting said elections shall, before entering upon the discharge of their duties, take and subscribe the oath prescribed by the act approved July second, eighteen hundred and sixty-two, entitled, “An act to prescribe an oath of office:” *Provided*, That if any person shall knowingly and falsely take and subscribe any oath in this act prescribed, such person so offending, and being thereof duly convicted, shall be subject to the pains, penalties, and disabilities which by law are provided for the punishment of the crime of willful and corrupt perjury.

SEC. 7. *And be it further enacted*, That all expenses incurred by the several commanding generals, or by virtue of any orders issued, or appointments made, by them, under or by virtue of this act, shall be paid out of any moneys in the treasury not otherwise appropriated.

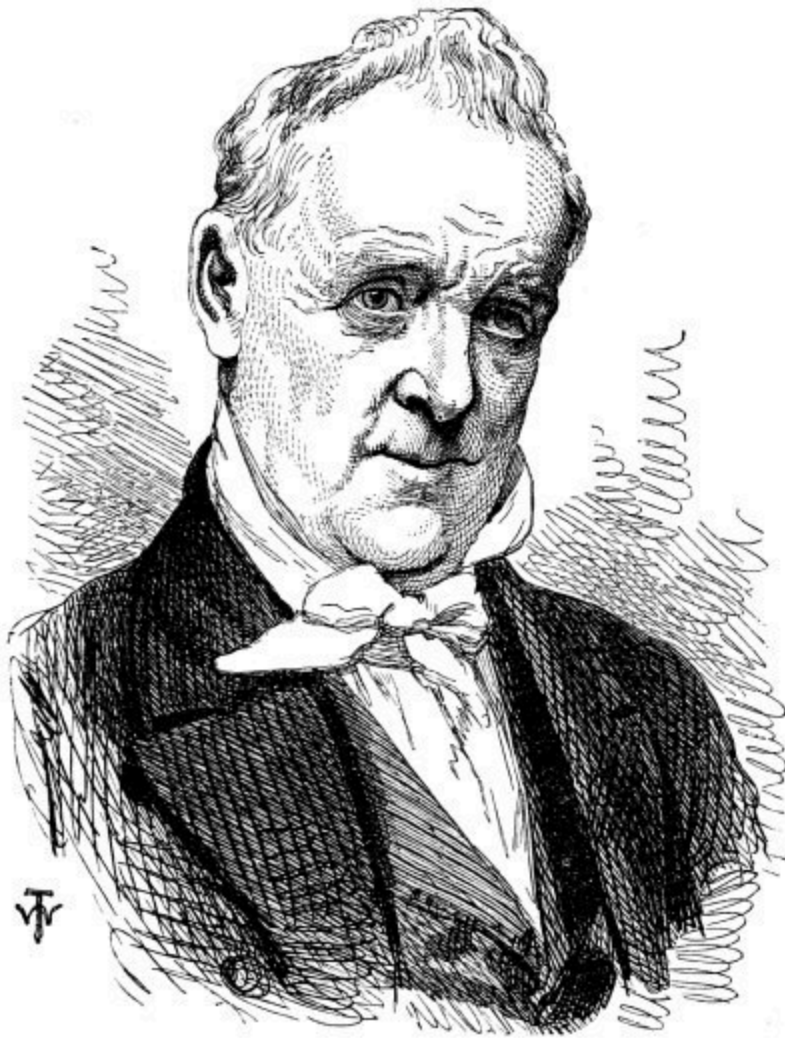
SEC. 8. *And be it further enacted*, That the convention for each State shall prescribe the fees, salary, and compensation to be paid to all delegates and other officers and agents herein authorized or necessary to carry into effect the purposes of this act not herein otherwise provided for, and shall provide for the levy and collection of such taxes on the property in such State as may be necessary to pay the same.

SEC. 9. *And be it further enacted*, That the word “article,” in the sixth section of the act to which this is supplementary, shall be construed to mean “section.”

SCHUYLER COLFAX,
Speaker of the House of Representatives.

B. F. WADE,
President of the Senate *pro tempore*.

After the election which was held early in February, 1868, upon the ratification of a new Constitution for the State of Alabama, the law was so amended by Congress that a majority of the votes cast (instead of a majority of the registered voters) should be required to ratify or reject State constitutions in the seceded States.



JAMES BUCHANAN.

HISTORY OF THE NATIONAL BANKS.

DIGEST OF THE LAW, ETC.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That there shall be established in the Treasury Department a separate Bureau, the chief officer of which shall be denominated the Comptroller of the Currency, who shall be under the general direction of the Secretary of the Treasury.

SEC. 5. That associations for carrying on the business of banking may be formed by any number of persons, not less in any case than five, who shall enter into articles of association, which shall specify in general terms the object for which the association is formed, and may contain any other provisions, not inconsistent with the provisions of this act, which the association may see fit to adopt for the regulation of the business of the association and the conduct of its affairs, which said articles shall be signed by the persons uniting to form the association, and a copy of them forwarded to the Comptroller of the Currency, to be filed and preserved in his office.

SEC. 6. That the persons uniting to form such an association shall, under their hands, make an organization certificate, which shall specify—

First. The name assumed by such association, which name shall be subject to the approval of the Comptroller.

Second. The place where its operations of discount and deposit are to be carried on, designating the State, Territory, or District, and also the particular county and city, town or village.

Third. The amount of its capital stock, and the number of shares into which the same shall be divided.

Fourth. The names and places of residence of the shareholders, and the number of shares held by each of them.

Fifth. A declaration that said certificate is made to enable such persons to avail themselves of the advantages of this act.

The said certificate shall be acknowledged before a judge of some court of record or a notary public, and such certificate, with the acknowledgment thereof authenticated by the seal of such court or notary, shall be transmitted to the Comptroller of the Currency, who shall record and carefully preserve the same in his office. Copies of such certificate, duly certified by the Comptroller, and authenticated by his seal of office, shall be legal and sufficient evidence in all courts and places within the United States, or the jurisdiction of the Government thereof, of the existence of such association, and of every other matter or thing which could be proved by the production of the original certificate.

SEC. 7. That no association shall be organized under this act, with a less capital than one hundred thousand dollars, nor in a city whose population exceeds fifty thousand persons, with a less capital than two hundred thousand dollars: *Provided*, That banks with a capital of not less than fifty thousand dollars may, with the approval of the Secretary of the Treasury, be organized in any place, the population of which does not exceed six thousand inhabitants.

SEC. 8. That every association formed, pursuant to the provisions of this act, shall, from the date of the execution of its organization certificate, be a body-corporate, but shall transact no business except such as may be incidental to its organization and necessarily preliminary, until authorized by the Comptroller of the Currency to commence the business of banking. Such association shall have power to adopt a corporate seal, and shall have succession by the name designated in its organization certificate, for the period of twenty years from its organization, unless sooner dissolved according to the provisions of its articles of association, or by the act of its shareholders owning two-thirds of its stock, or unless the franchise shall be forfeited by a violation of this act; by such name it may make contracts, sue and be sued, complain and defend, in any court of law and equity as fully as natural persons; it may elect or appoint directors, and by its board of directors appoint a president, vice-president, cashier, and other officers, define their duties, require bonds of them, and fix the penalty thereof, dismiss said officers or any of them at pleasure, and appoint others to fill their places, and exercise under this act all such incidental powers as shall

be necessary to carry on the business of banking by discounting and negotiating promissory notes, drafts, bills of exchange, and other evidences of debt; by receiving deposits; by buying and selling exchange, coin, and bullion; by loaning money on personal security; by obtaining, issuing, and circulating notes according to the provisions of this act; and its board of directors shall also have power to define and regulate by by-laws, not inconsistent with the provisions of this act, the manner in which its stock shall be transferred, its directors elected or appointed, its officers appointed, its property transferred, its general business conducted, and all the privileges granted by this act to associations organized under it shall be exercised and enjoyed; and its usual business shall be transacted at an office or banking-house located in the place specified in its organization certificate.

SEC. 9. That the affairs of every association shall be managed by not less than five directors, one of whom shall be the president. Every director shall, during his whole term of service, be a citizen of the United States; and at least three-fourths of the directors shall have resided in the State, Territory, or District in which such association is located one year next preceding their election as directors, and be residents of the same during their continuance in office. Each director shall own, in his own right, at least ten shares of the capital stock of the association of which he is a director.

SEC. 11. That in all elections of directors, and in deciding all questions at meetings of shareholders, each shareholder shall be entitled to one vote on each share of stock held by him. Shareholders may vote by proxies duly authorized in writing; but no officer, clerk, teller, or book-keeper of such association shall act as proxy; and no shareholders, whose liability is past due and unpaid, shall be allowed to vote.

SEC. 12. That the capital stock of any association formed under this act shall be divided into shares of one hundred dollars each, and be deemed personal property and transferable on the books of the association; and every person becoming a shareholder by such transfer shall, in proportion to his shares, succeed to all the rights and liabilities of the prior holder of such shares, and no change shall be made in the articles of association by which the rights, remedies, or security of the existing creditors of the association shall be impaired. The shareholders of each association formed under the provisions of this act, and of each existing bank or banking association that

may accept the provisions of this act, shall be held individually responsible, equally and ratably, and not one for another, for all contracts, debts, and engagements of such association to the extent of amount of their stock therein at the par value thereof, in addition to the amount invested in such shares; except that shareholders of any banking association now existing under State laws, having not less than five millions of dollars of capital actually paid in, and a surplus of twenty per centum on hand, both to be determined by the Comptroller of the Currency, shall be liable only to the amount invested in their shares; and such surplus of twenty per centum shall be kept undiminished, and be in addition to the surplus provided for in this act; and if at any time there shall be a deficiency in said surplus of twenty per centum, the said banking association shall not pay any dividends to its shareholders until such deficiency shall be made good; and in case of such deficiency, the Comptroller of the Currency may compel said banking association to close up its business and wind up its affairs under the provisions of this act. And the Comptroller shall have authority to withhold from an association his certificate authorizing the commencement of business, whenever he shall have reason to suppose that the shareholders thereof have formed the same for any other than the legitimate objects contemplated by this act.

SEC. 13. That it shall be lawful for any association formed under this act, by its articles of association to provide for an increase of its capital from time to time, as may be deemed expedient, subject to the limitations of this act: *Provided*, That the maximum of such increase in the articles of association shall be determined by the Comptroller of the Currency; and no increase of capital shall be valid until the whole amount of such increase shall be paid in, and notice thereof shall have been transmitted to the Comptroller of the Currency, and his certificate obtained specifying the amount of such increase of capital stock, with his approval thereof, and that it has been duly paid in as part of the capital of such association. And every association shall have power, by the vote of shareholders owning two-thirds of its capital stock, to reduce the capital of such association to any sum not below the amount required by this act in the formation of associations: *Provided*, That by no such reduction shall its capital be brought below the amount required by this act for its outstanding circulation, nor shall any such reduction be made until the amount of the proposed reduction has been

reported to the Comptroller of the Currency and his approval thereof obtained.

SEC. 14. That at least fifty per centum of the capital stock of every association shall be paid in before it shall be authorized to commence business; and the remainder of the capital stock of such association shall be paid in installments of at least ten per centum each on the whole amount of the capital as frequently as one installment at the end of each succeeding month from the time it shall be authorized by the Comptroller to commence business; and the payment of each installment shall be certified to the Comptroller, under oath, by the president or cashier of the association.

SEC. 16. That every association, after having complied with the provisions of this act, preliminary to the commencement of banking business under its provisions, and before it shall be authorized to commence business, shall transfer and deliver to the Treasurer of the United States, any United States registered bonds bearing interest to an amount not less than thirty thousand dollars nor less than one-third of the capital stock paid in, which bonds shall be deposited with the Treasurer of the United States, and by him safely kept in his office until the same shall be otherwise disposed of, in pursuance of the provisions of this act; and the Secretary of the Treasury is hereby authorized to receive and cancel any United States coupon bonds, and to issue in lieu thereof registered bonds of like amount, bearing a like rate of interest, and having the same time to run; and the deposit of bonds shall be, by every association, increased as its capital may be paid up or increased, so that every association shall at all times have on deposit with the Treasurer registered United States bonds to the amount of at least one-third of its capital stock actually paid in: *Provided*, That nothing in this section shall prevent an association that may desire to reduce its capital or to close up its business and dissolve its organization from taking up its bonds upon returning to the Comptroller its circulating notes in the proportion hereinafter named in this act, nor from taking up any excess of bonds beyond one-third of its capital stock, and upon which no circulating notes have been delivered.

SEC. 17. That whenever a certificate shall have been transmitted to the Comptroller of the Currency, as provided in this act, and the association transmitting the same shall notify the Comptroller that at least fifty per centum of its capital stock has been paid in as aforesaid, and that such

association has complied with all the provisions of this act as required to be complied with before such association shall be authorized to commence the business of banking, the Comptroller shall examine into the condition of such association, ascertain especially the amount of money paid in on account of its capital, the name and place of residence of each of the directors of such association, and the amount of the capital stock of which each is the bona fide owner, and generally whether such association has complied with all the requirements of this act to entitle it to engage in the business of banking; and shall cause to be made and attested by the oaths of a majority of the directors and by the president or cashier of such association, a statement of all the facts necessary to enable the Comptroller to determine whether such association is lawfully entitled to commence the business of banking under this act.

SEC. 19. That all transfers of United States bonds which shall be made by any association under the provisions of this act shall be made to the Treasurer of the United States in trust for the association, with a memorandum written or printed on each bond, and signed by the cashier or some other officer of the association making the deposit, a receipt therefor to be given to said association, or by the Comptroller of the Currency, or by a clerk appointed by him for that purpose, stating that it is held in trust for the association on whose behalf such transfer is made, and as a security for the redemption and payment of any circulating notes that may have been or may be delivered to such association. No assignment or transfer of any such bonds by the Treasurer shall be deemed valid or of binding force and effect unless countersigned by the Comptroller of the Currency. It shall be the duty of the Comptroller of the Currency to keep in his office a book in which shall be entered the name of every association from whose accounts such transfer of bonds is made by the Treasurer, and the name of the party to whom such transfer is made; and the par value of the bonds so transferred shall be entered therein; and it shall be the duty of the Comptroller, immediately upon countersigning and entering the same, to advise by mail the association from whose account such transfer was made of the kind and numerical designation of the bonds and the amount thereof so transferred.

SEC. 21. That upon the transfer and delivery of bonds to the Treasurer, as provided in the foregoing section, the association making the same shall

be entitled to receive from the Comptroller of the Currency circulating notes of different denominations, in blank, registered and countersigned, as hereinafter provided, equal in amount to ninety per centum of the current market value of the United States bonds so transferred and delivered, but not exceeding ninety per centum of the amount of said bonds at the par value thereof, it bearing interest at a rate not less than five per centum per annum; and the amount of such circulating notes to be furnished to each association shall be in proportion to its paid-up capital, as follows, and no more: To each association whose capital shall not exceed five hundred thousand dollars, ninety per centum of such capital; to each association whose capital exceeds five hundred thousand dollars, but does not exceed one million dollars, eighty per centum of such capital; to each association whose capital exceeds one million dollars, but does not exceed three millions of dollars, seventy-five per centum of such capital; to each association whose capital exceeds three millions of dollars, sixty per centum of such capital. And that one hundred and fifty millions of dollars of the entire amount of circulating notes authorized to be issued shall be apportioned to associations in the States, in the District of Columbia, and in the Territories, according to representative population, and the remainder shall be apportioned by the Secretary of the Treasury among associations formed in the several States, in the District of Columbia, and in the Territories, having due regard to the existing banking capital, resources, and business of such State, District, and Territory. (Act as amended and approved, March 3, 1865.)

SEC. 22. That the entire amount of notes for circulation to be issued under this act shall not exceed three hundred millions of dollars. In order to furnish suitable notes for circulation, the Comptroller of the Currency is hereby authorized and required, under the direction of the Secretary of the Treasury, to cause plates and dies to be engraved, in the best manner, to guard against counterfeiting and fraudulent alterations, and to have printed therefrom, and numbered, such quantity of circulating notes, in blank, of the denominations of one dollar, two dollars, three dollars, five dollars, ten dollars, twenty dollars, fifty dollars, one hundred dollars, five hundred dollars, and one thousand dollars, as may be required to supply, under this act, the associations entitled to receive the same; which notes shall express upon their face that they are secured by United States bonds, deposited with the Treasurer of the United States by the written or engraved signatures of

the Treasurer and Register, and by the imprint of the seal of the Treasury; and shall also express upon their face the promise of the association receiving the same to pay on demand, attested by the signatures of the president or vice-president and cashier. And the said notes shall bear such devices and such other statements, and shall be in such form as the Secretary of the Treasury shall, by regulation, direct: *Provided*, That not more than one-sixth part of the notes furnished to an association shall be of a less denomination than five dollars, and that after specie payments shall be resumed no association shall be furnished with notes of a less denomination than five dollars.

SEC. 23. That after any such association shall have caused its promise to pay such notes on demand to be signed by the president or vice-president, and cashier thereof, in such manner as to make them obligatory promissory notes, payable on demand, at its place of business, such association is hereby authorized to issue and circulate the same as money; and the same shall be received at par in all parts of the United States in payment of taxes, excises, public lands, and all other dues to the United States, except for duties on imports; and also for all salaries and other debts and demands owing by the United States to individuals, corporations, and associations within the United States, except interest on the public debt, and in redemption of the national currency. And no such association shall issue post notes or any other notes to circulate as money than such as are authorized by the foregoing provisions of this act.

SEC. 24. That it shall be the duty of the Comptroller of the Currency to receive worn-out or mutilated circulating notes issued by any such banking association, and also, on due proof of the destruction of any such circulating notes, to deliver in place thereof to such association other blank circulating notes to an equal amount. And such worn-out or mutilated notes, after a memorandum shall have been entered in the proper books, in accordance with such regulations as may be established by the Comptroller, as well as all circulating notes which shall have been paid or surrendered to be canceled, shall be burned to ashes in the presence of four persons, one to be appointed by the Secretary of the Treasury, one by the Comptroller of the Currency, one by the Treasurer of the United States, and one by the association, under such regulations as the Secretary of the Treasury may prescribe. And a certificate of such burning, signed by the parties so

appointed, shall be made in the books of the Comptroller, and a duplicate thereof forwarded to the association whose notes are thus cancelled.

SEC. 26. That the bonds transferred to and deposited with the Treasurer of the United States, as hereinbefore provided, by any banking association for the security of its circulating notes, shall be held exclusively for that purpose, until such notes shall be redeemed, except as provided in this act; but the Comptroller of the Currency shall give to any such banking association powers of attorney to receive and appropriate to its own use the interest on the bonds which it shall have so transferred to the Treasurer; but such powers shall become inoperative whenever such banking association shall fail to redeem its circulating notes as aforesaid. Whenever the market or cash value of any bonds deposited with the Treasurer of the United States, as aforesaid, shall be reduced below the amount of the circulation issued for the same, the Comptroller of the Currency is hereby authorized to demand and receive the amount of such depreciation in other United States bonds at cash value, or in money, from the association receiving said bills, to be deposited with the Treasurer of the United States as long as such depreciation continues. And said Comptroller, upon the terms prescribed by the Secretary of the Treasury, may permit an exchange to be made of any of the bonds deposited with the Treasurer by an association for other bonds of the United States authorized by this act to be received as security for circulating notes: *Provided*, that the remaining bonds which shall have been transferred by the banking association offering to surrender circulating notes shall be equal to the amount required for the circulating notes not surrendered by such banking association, and that the amount of bonds in the hands of the Treasurer shall not be diminished below the amount required to be kept on deposit with him by this act: *And provided*, That there shall have been no failure by such association to redeem its circulating notes, and no other violation by such association of the provisions of this act, and that the market or cash value of the remaining bonds shall not be below the amount required for the circulation issued for the same.

SEC. 27. That it shall be unlawful for any officer acting under the provisions of this act to countersign or deliver to any association, or to any other company or person, any circulating notes contemplated by this act, except as hereinbefore provided, and in accordance with the true intent and meaning of this act.

SEC. 28. That it shall be lawful for any such association to purchase, hold, and convey real estate as follows:

First. Such as shall be necessary for its immediate accommodation in the transaction of its business.

Second. Such as shall be mortgaged to it in good faith by way of security for debts previously contracted.

Third. Such as shall be conveyed to it in satisfaction of debts previously contracted in the course of its dealings.

Fourth. Such as it shall purchase at sales under judgments, decrees, or mortgages held by such association, or shall purchase to secure debts due to said association.

Such association shall not purchase or hold real estate in any other case or for any other purpose than as specified in this section. Nor shall it hold the possession of any real estate under mortgage, or hold the title and possession of any real estate purchased to secure any debts due to it for a longer period than five years.

SEC. 29. That the total liabilities to any association, of any person, or of any company, corporation, or firm for money borrowed, including in the liabilities of a company or firm the liabilities of the several members thereof, shall at no time exceed one-tenth part of the amount of the capital stock of such association actually paid in: *Provided*, That the discount of bona fide bills of exchange drawn against actually existing values, and the discount of commercial or business paper actually owned by the person or persons, corporation, or firm negotiating the same shall not be considered as money borrowed.

SEC 30. That every association may take, receive, reserve, and charge on any loan or discount made, or upon any note, bill of exchange, or other evidences of debt, interest at the rate allowed by the laws of the State or Territory where the bank is located, and no more, except that where by the laws of any State a different rate is limited for banks of issue organized under State laws, the rate so limited shall be allowed for associations organized in any such State under this act. And when no rate is fixed by the laws of the State or Territory, the bank may take, receive, reserve, or charge a rate not exceeding seven per centum, and such interest may be taken in

advance, reckoning the days for which the note, bill, or other evidence of debt has to run. And the knowingly taking, receiving, reserving, or charging a rate of interest greater than aforesaid shall be held and adjudged a forfeiture of the entire interest which the note, bill, or other evidence of debt carries with it, or which has been agreed to be paid thereon. And in case a greater rate of interest has been paid, the person or persons paying the same, or their legal representatives, may recover back, in any action of debt twice the amount of the interest thus paid from the association taking or receiving the same: *Provided*, That such action is commenced within two years from the time the usurious transaction occurred. But the purchase, discount, or sale of a bona fide bill of exchange, payable at another place than the place of such purchase, discount, or sale, at not more than the current rate of exchange for sight drafts, in addition to the interest, shall not be considered as taking or receiving a greater rate of interest.

SEC. 31. That every association in the cities hereinafter named shall, at all times, have on hand, in lawful money of the United States, an amount equal to at least twenty-five per centum of the aggregate amount of its notes in circulation and its deposits; and every other association shall, at all times, have on hand, in lawful money of the United States, an amount equal to at least fifteen per centum of the aggregate amount of its notes in circulation and of its deposits. And whenever the lawful money of any association in any of the cities hereinafter named shall be below the amount of twenty-five per centum of its circulation and deposits, and whenever the lawful money of any other association shall be below fifteen per centum of its circulation and deposits, such association shall not increase its liabilities by making any new loans or discounts, otherwise than by discounting or purchasing bills of exchange payable at sight, nor make any dividend of its profits until the required proportion between the aggregate amount of its outstanding notes of circulation and deposits and its lawful money of the United States shall be restored: *Provided*, That three-fifths of said fifteen per centum may consist of balances due to an association available for the redemption of its circulating notes from associations approved by the Comptroller of the Currency, organized under this act, in the cities of Saint Louis, Louisville, Chicago, Detroit, Milwaukee, New Orleans, Cincinnati, Cleveland, Pittsburg, Baltimore, Philadelphia, Boston, New York, Albany, Leavenworth, San Francisco, and Washington City: *Provided, also*, That clearing-house certificates, representing specie or lawful money specially

deposited for the purpose of any clearing-house association, shall be deemed to be lawful money in the possession of any association belonging to such clearing-house holding and owning such certificate, and shall be considered to be a part of the lawful money which such association is required to have under the foregoing provisions of this section: *Provided*, That the cities of Charleston and Richmond may be added to the list of cities in the national associations, of which other associations may keep three-fifths of their lawful money, whenever, in the opinion of the Comptroller of the Currency, the condition of the Southern States will warrant it. And it shall be competent for the Comptroller of the Currency to notify any association, whose lawful money reserve as aforesaid shall be below the amount to be kept on hand as aforesaid, to make good such reserve; and if such association shall fail for thirty days thereafter, so as to make good its reserve of lawful money of the United States, the Comptroller may, with the concurrence of the Secretary of the Treasury, appoint a receiver to wind up the business of such association, as provided in this act.

SEC. 32. That each association organized in any of the cities named in the foregoing section shall select, subject to the approval of the Comptroller of the Currency, an association in the city of New York, at which it will redeem its circulating notes at par. And each of such associations may keep one-half of its lawful money reserve in cash deposits in the city of New York. And each association, not organized within the cities named in the preceding section, shall select, subject to the approval of the Comptroller of the Currency, an association in either of the cities named in the preceding section, at which it will redeem its circulating notes at par. And every association formed or existing under the provisions of this act shall take and receive at par, for any debt or liability to said association, any and all notes or bills issued by any association existing under and by virtue of this act.

SEC. 35. That no association shall make any loan or discount on the security of the shares of its own capital stock, nor be the purchaser or holder of any such shares, unless such security or purchase shall be necessary to prevent loss upon a debt previously contracted in good faith; and stock so purchased or acquired, shall, within six months from the time of its purchase, be sold or disposed of at public or private sale, in default of

which a receiver may be appointed to close up the business of the association, according to the provisions of this act.

SEC. 36. That no association shall, at any time, be indebted, or in any way liable, to an amount exceeding its capital stock at such time actually paid in and remaining undiminished by losses or otherwise, except on the following accounts; that is to say:

First. On account of its notes of circulation.

Second. On account of moneys deposited with, or collected by, such association.

Third. On account of bills of exchange or drafts drawn against money actually on deposit to the credit of such association, or due thereto.

Fourth. On account of liabilities to its stockholders for dividends and reserved profits.

SEC. 37. That no association shall, either directly or indirectly, pledge or hypothecate any of its notes of circulation, for the purpose of procuring money to be paid in on its capital stock, or to be used in its banking operations, or otherwise; nor shall any association use its circulating notes, or any part thereof, in any manner or form, to create or increase its capital stock.

SEC. 38. That no association or any member thereof, shall, during the time it shall continue its banking operations, withdraw, or permit to be withdrawn, either in forms of dividends or otherwise, any portion of its capital. And if losses shall at any time have been sustained by any such association equal to or exceeding its dividend profits then on hand, no dividend shall be made; and no dividend shall ever be made by any association while it shall continue its banking operations, to an amount greater than its net profits then on hand, deducting therefrom its losses and bad debts. And all debts due to any association on which interest is past due and unpaid for a period of six months, unless the same shall be well secured, and shall be in process of collection, shall be considered bad debt, within the meaning of this act: *Provided*, That nothing in this section shall prevent the reduction of the capital stock of the association under the thirteenth section of this act.

SEC. 39. That no association shall at any time pay out on loans or discounts, or in purchasing drafts or bills of exchange, or in payment of deposits, or in any other mode pay or put in circulation the notes of any bank or banking association which shall not, at any such time, be receivable, at par on deposit and in payment of debts by the association so paying out or circulating such notes, nor shall it knowingly pay out or put in circulation any notes issued by any bank or banking association, which, at the time of such paying out or putting in circulation, is not redeeming its circulating notes in lawful money of the United States.

SEC. 41. And in lieu of all existing taxes, every association shall pay to the Treasurer of the United States, in the months of January and July, a duty of one-half of one per centum each half year from and after the first day of January, eighteen hundred and sixty-four, upon the average amount of its notes in circulation, and a duty of one quarter of one per centum each half year upon the average amount of its deposits, and a duty of one quarter of one per centum each half year, as aforesaid, on the average amount of its capital stock beyond the amount invested in United States bonds. And it shall be the duty of each association, within ten days from the first days of January and July of each year, to make a return under the oath of its president or cashier, to the Treasurer of the United States, in such form as he may prescribe, of the average amount of its notes in circulation, and of the average amount of its deposits, and of the average amount of its capital stock beyond the amount invested in United States bonds, for the six months next preceding said first days of January and July as aforesaid: *Provided*, That nothing in this act shall be construed to prevent all the shares in any of the said associations, held by any person or body-corporate from being included in the valuation of the personal property of such person or corporation in the assessment of taxes imposed by or under State authority at the place where such bank is located, and not elsewhere, but not at a greater rate than is assessed upon other moneyed capital in the hands of individual citizens of such State: *Provided further*, That the tax so imposed under the laws of any State upon the shares of any of the associations authorized by this act shall not exceed the rate imposed upon the shares in any of the banks organized under authority of the State where such association is located: *Provided, also*, That nothing in this act shall exempt the real estate of associations from either State, county, or municipal taxes to the same extent, according to its value, as other real estate is taxed.

SEC. 42. That any association may go into liquidation and be closed by the vote of its shareholders owning two-thirds of its stock. And whenever such vote shall be taken it shall be the duty of the board of directors to cause notice of this fact to be certified, under the seal of the association, by its president or cashier, to the Comptroller of the Currency, and publication thereof to be made for a period of two months in a newspaper, published in the city of New York, and also in a newspaper published in a city or town in which the association is located; and one year after that time the outstanding notes of said association shall be redeemed at the Treasury of the United States, and the said association and the shareholders thereof shall be discharged from all liabilities therefor.

SEC. 44. That any bank incorporated by special law, or any banking institution organized under a general law of any State, may, by authority of this act, become a national association under its provisions, by the name prescribed in its organization certificate; and in such case the articles of association and the organization certificate required by this act may be executed by a majority of the directors of the bank or banking institution; and said certificate shall declare that the owners of two-thirds of the capital stock shall have authorized the directors to make such certificate and to change and convert the said bank or banking institution into a national association under this act. And a majority of the directors, after executing said articles of association and organization certificate, shall have power to execute all other papers, and to do whatever may be required to make its organization perfect and complete as a national association. The shares of any such bank may continue to be for the same amount each as they were before said conversion, and the directors aforesaid may be the directors of the association until others are elected or appointed in accordance with the provisions of this act; and any State bank which is a stockholder in any other bank, by authority of State laws, may continue to hold its stock, although either bank, or both, may be organized under and have accepted the provisions of this act. When the Comptroller shall give to such association a certificate, under his hand and official seal, that the provisions of this act have been complied with, and that it is authorized to commence the business of banking under it, the association shall have the same powers and privileges, and shall be subject to the same duties, responsibilities and rules, in all respects as are prescribed in this act for other associations organized under it, and shall be held and regarded as an association under

this act: *Provided, however,* That no such association shall have a less capital than the amount prescribed for banking associations under this act.

SEC. 45. That all associations under this act, when designated for that purpose by the Secretary of the Treasury, shall be depositaries of public money, except receipts from customs, under such regulations as may be prescribed by the Secretary; and they may also be employed as financial agents of the Government; and they shall perform all such reasonable duties, as depositaries of public moneys and financial agents of the Government, as may be required of them. And the Secretary of the Treasury shall require of the associations thus designated satisfactory security, by the deposit of United States bonds and otherwise, for the safe keeping and prompt payment of the public money deposited with them, and for the faithful performance of their duties as financial agents of the Government: *Provided,* That every association which shall be selected and designated as receiver or depositary of the public money, shall take and receive at par all of the national currency bills, by whatever association issued, which have been paid in to the Government for internal revenue, or for loans or stocks.

SEC. 46. That if any such association shall at any time fail to redeem, in the lawful money of the United States, any of its circulating notes, when payment thereof shall be lawfully demanded during the usual hours of business, at the office of such association, or at its place of redemption aforesaid, the holder may cause the same to be protested, in one package, by a notary public, unless the president or cashier of the association, whose notes are presented for payment, or the president or cashier of the association at the place at which they are redeemable, shall offer to waive demand and notice of the protest, and shall, in pursuance of such offer, make, sign, and deliver to the party making such demand, an admission in writing, stating the time of the demand, the amount demanded, and the fact of the non-payment thereof; and such notary public, on making such protest, or upon receiving such admission, shall forthwith forward such admission or notice of protest to the Comptroller of the Currency, retaining a copy thereof. And after such default, on examination of the facts by the Comptroller, and notice by him to the association, it shall not be lawful for the association suffering the same to pay out any of its notes, discount any notes or bills, or otherwise prosecute the business of banking, except to receive and safely keep money belonging to it, and to deliver special

deposits. *Provided*, That if satisfactory proof be produced to such notary public, that the payment of any such notes is restrained by order of any court of competent jurisdiction, such notary public shall not protest the same; and when the holder of such notes shall cause more than one note or package to be protested on the same day, he shall not receive pay for more than one protest.

SEC. 56. That all suits and proceedings arising out of the provisions of this act, in which the United States or its officers or agents shall be parties, shall be conducted by the district attorneys of the several districts, under the direction and supervision of the Solicitor of the Treasury.

SEC. 57. That suits, actions, and proceedings against any association under this act, may be had in any circuit, district, or territorial court of the United States held within the district in which such association may be established; or in any State, county, or municipal court in the county or city in which said association is located, having jurisdiction in similar cases: *Provided, however*, That all proceedings to enjoin the Comptroller under this act shall be had in a circuit, district, or territorial court of the United States, held in the district in which the association is located.

SEC. 58. That every person who shall mutilate, cut, deface, disfigure, or perforate with holes, or shall unite or cement together, or do any other thing to any bank bill, draft, note, or other evidence of debt, issued by any such association, or shall cause or procure the same to be done, with intent to render such bank bill, draft, note, or other evidence of debt unfit to be reissued by said association, shall, upon conviction, forfeit fifty dollars to the association who shall be injured thereby, to be recovered by action in any court having jurisdiction.

SEC. 61. That it shall be the duty of the Comptroller of the Currency to report annually to Congress at the commencement of its session—

First. A summary of the state and condition of every association from whom reports have been received the preceding year, at the several dates to which such reports refer, with an abstract of the whole amount of banking capital returned by them, of the whole amount of their debts and liabilities, the amount of circulating notes outstanding, and the total amount of means and resources, specifying the amount of lawful money held by them at the

times of their several returns, and such, other information in relation to said associations as, in his judgment may be useful.

SEC. 110. That there shall be levied, collected, and paid a duty of one twenty-fourth of one per centum each month upon the average amount of the deposits of money, subject to payment by check or draft, or represented by certificates of deposit or otherwise, whether payable on demand or at some future day, with any person, bank, association, company or corporation engaged in the business of banking; and a duty of one twenty-fourth of one per centum each month, as aforesaid, upon the average amount of the capital of any bank, association, company or corporation, or person engaged in the business of banking, beyond the amount invested in United States bonds; and a duty of one-twelfth of one per centum each month upon the average amount of circulation issued by any bank, association, corporation, company or person, including as circulation all certified checks and all notes and other obligations circulated or intended to circulate, or to be used as money, but not including that in the vault of the bank, or redeemed and on deposit for said bank, and an additional duty of one-sixth of one per centum each month upon the average amount of such circulation, issued as aforesaid, beyond the amount of ninety per centum of the capital of any such bank, association, corporation, company or person, and upon any amount of such circulation beyond the average amount of the circulation that had been issued as aforesaid by any such bank, association, corporation, company or person, for the six months preceding the first day of July, eighteen hundred and sixty-four. And on the first Monday of August next, and of each month thereafter, a true and accurate return of the amount of circulation, of deposit and of capital, as aforesaid, for the previous month, shall be made and rendered in duplicate by each of such banks, associations, corporations, companies or persons, to the assessor of the district in which any such bank, association, corporation or company may be located, or in which such person may reside, with a declaration annexed thereto, and the oath or affirmation of such person, or the president or cashier of such bank, association, corporation or company, in such form and manner as may be prescribed by the Commissioner of Internal Revenue, that the same contains a true and faithful statement of the amount of circulation, deposits, and capital, as aforesaid, subject to duty as aforesaid, and shall transmit the duplicate of said return to the Commissioner of Internal Revenue, and within twenty days thereafter shall pay to the said

Commissioner of Internal Revenue the duties hereinbefore prescribed upon the said amount of circulation, of deposits and of capital, as aforesaid.

**History of Finances, Loans, Bonds, Legal Tender
Notes of the U. S., etc., from 1841 to the Present Time.**

Acts Authorizing Loans, and Synopsis of same.	
Acts of July 21, 1841, and April 15, 1842.	Authorized a loan of \$12,000,000, bearing interest at a rate not exceeding 6 per cent. per annum, and reimbursable at the will of the Secretary, after six months' notice, or at any time after three years from Jan. 1, 1842. The act of April 15, 1842, authorized the loan of an additional sum of \$5,000,000, and made the amount obtained on the loan, after the passage of this act, reimbursable after six months' notice, or at any time not exceeding twenty years from Jan. 1, 1843. This loan was made for the purpose of redeeming outstanding Treasury notes, and to defray any of the public expenses.
Act of Jan. 28, 1847.	Authorized the issue of \$23,000,000 in Treasury notes, bearing interest at a rate not exceeding 6 per cent. per annum, with authority to borrow any portion of the amount, and issue bonds therefor, bearing interest at a rate not exceeding 6 per cent. and redeemable after Dec. 31, 1867. The 13th section authorized the funding of these notes into bonds of the same description. The act limited the amount to be borrowed or issued in Treasury notes, and funded as aforesaid, to \$23,000,000, but authorized the funding of Treasury notes issued under former acts beyond that amount. The excess of the \$23,000,000 is made up of Treasury notes funded under the 14th section.
Act of March 31, 1848.	Authorized a loan of \$16,000,000, bearing interest at a rate not exceeding 6 per cent. per annum, and reimbursable at any time after twenty years from July 1, 1848. Authority was given to the Secretary to purchase the stock at any time.
Act of Sept. 9, 1850.	Authorized the issue of \$10,000,000 in bonds, bearing 5 per cent. interest, and redeemable at the end of fourteen years, to indemnify the State of Texas for her relinquishment of all claims upon the United States for liability of the debts of Texas, and for compensation for the surrender to the United States of her ships, forts, arsenals, custom-houses, &c., which became the property of the United States at the time of annexation.
Old funded and unfunded debts.	Consisting of unclaimed dividends upon stocks issued before the year 1800, and those issued during the war of 1812.

Acts prior to 1857.	Different issues of Treasury notes.
Act of Dec. 23, 1857.	Authorized an issue of \$20,000,000 in Treasury notes, bearing interest at a rate not exceeding 6 per cent. per annum, and receivable in payment of all public dues, and to be redeemed after the expiration of one year from the date of said notes.
Act of June 14, 1858.	Authorized a loan of \$20,000,000, bearing interest at a rate not exceeding 5 per cent. per annum, and reimbursable, at the option of the Government, at any time after the expiration of fifteen years from Jan. 1, 1859.
Act of June 22, 1860.	Authorized a loan of \$21,000,000, bearing interest at a rate not exceeding 6 per cent. per annum, and reimbursable within a period not beyond twenty years, and not less than ten years, for the redemption of outstanding Treasury notes, and for no other purpose.
Act of Dec. 17, 1860.	Authorized an issue of \$10,000,000 in Treasury notes to be redeemed after the expiration of one year from the date of issue, and bearing such a rate of interest as may be offered by the lowest bidders. Authority was given to issue these notes in payment of warrants in favor of public creditors at their par value, bearing six per cent. per annum.

(A) = Rate of interest.

(B) = Price of emission.

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
Acts of July 21, 1841, and April 15, 1842.	Loan of 1842	20 years	After Dec. 31, 1862.	6 % per annum.	Par.	\$17,000,000	\$8,000,000	\$64,768 68
Act of Jan. 28, 1847.	Loan of 1847	20 years	After Dec. 31, 1867.	6 % per annum.	Par.	23,000,000	28,207,000	7,160,200 00
Act of March 31,	Loan of 1848	20 years	After July 1, 1868.	6 % per annum.	Par.	16,000,000	16,000,000	8,020,941 80
Act of Sept. 9, 1859.	Texas indemnity	15 years	After Dec. 31, 1864	5 % per annum.	Par.	10,000,000	5,000,000	263,000 00
Old funded and unfunded debts.	Old funded debt	Demand	On demand	5 & 6%.	Par.	—	—	113,915 48
Acts prior to 1857.	Treas. notes	—	On demand	1 m. to 6 %	Par.	—	—	104,511 64
Act of Dec. 23, 1857.	Treas. notes	1 year	1 year after date.	5 to 5½%	Par.	20,000,000	—	2,600 00
Act of June 14, 1858.	Loan of 1858	15 years	Dec. 31, '73	5 % per annum.	Par.	20,000,000	20,000,000	20,000,000 00
Act of June 14, 1860.	Loan of 1860	18 years	After Dec. 31, 1870.	5 % per annum.	Par.	21,000,000	7,022,000	7,022,000 00

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
Act of Dec. 17, 1860.	Treas. notes	1 year	1 year after date.	6 and 12 % per annum.	Par.	10,000,000	10,000,000	600 00

Acts Authorizing Loans, and Synopsis of same.

Acts of Feb. 8, 1861.	Authorized a loan of \$25,000,000, bearing interest at a rate not exceeding 6 per cent. per annum, and reimbursable within a period not beyond twenty years, nor less than ten years. This loan was made for the payment of the current expenses, and was to be awarded to the most favorable bidders.
Act of March 2, 1861.	Authorized a loan of \$10,000,000, bearing interest at a rate not exceeding 6 per cent. per annum, and reimbursable after the expiration of ten years from July 1, 1861. In case proposals for the loan were not acceptable, authority was given to issue the whole amount in Treasury notes, bearing interest at a rate not exceeding 6 per cent. per annum. Authority was also given to substitute Treasury notes for the whole or any part of the loans for which the Secretary was by law authorized to contract and issue bonds at the time of the passage of this act, and such Treasury notes were to be made receivable in payment of all public dues, and redeemable at any time within two years from March 2, 1861.
Act of March 2, 1861.	Authorized an issue, should the Secretary of the Treasury deem it expedient, of \$2,800,000, in coupon bonds, bearing interest at the rate of 6 per cent. per annum, and redeemable in twenty years, for the payment of expenses incurred by the Territories of Washington and Oregon in the suppression of Indian hostilities during the years 1855 and 1856.
Acts of July 17, 1861, and August 5, 1861.	Authorized a loan of \$250,000,000, for which could be issued bonds bearing interest at a rate not exceeding 7 per cent. per annum, irredeemable for twenty years, and after that redeemable at the pleasure of the United States; Treasury notes bearing interest at the rate of 7.30 per cent. per annum, payable three years after date, and U. S. notes, without interest, payable on demand, to the extent of \$50,000,000 (increased by act of Feb. 12, 1862, to \$60,000,000), to bonds and Treasury notes, to be issued in such proportions of each as the Secretary may deem advisable. The supplementary act of Aug. 5, 1861, authorized an issue of bonds, bearing 6 per cent. interest per annum, and payable

	at the pleasure of the United States after twenty years from date, which may be issued in exchange for 7.30 Treasury notes, but no such bonds to be issued for a less sum than \$500; and the whole amount of such bonds not to exceed the whole amount of 7.30 Treasury notes issued.
Act of Feb. 25, 1862.	Authorized the issue of \$500,000,000, in 6 per cent. bonds, redeemable after five years, and payable twenty years from date, which may be exchanged for United States notes. Also on
March 3, 1864.	Authorized the issue of not over \$11,000,000 additional of similar bonds, to meet subscriptions already made and paid for.
June 30, 1864.	On hand, unsold in the United States or Europe.
January 28, 1865.	
Act of Feb. 25, 1862.	Authorized the issue of \$150,000,000, in legal-tender U. S. notes; \$50,000,000 of which to be in lieu of demand notes, issued under act of July 17, 1861.
Act of July 11, 1862.	Authorized an additional issue of \$150,000,000, in legal-tender notes; \$35,000,000 of which might be in denominations less than five dollars: \$50,000,000 of this issue to be reserved to pay temporary loans promptly in case of emergency.
Resolution of Congress, January 17, 1863.	Authorized the issue of \$100,000,000, in United States notes, for the immediate payment of the army and navy, such notes to be a part of the amount provided for in any bill that may hereafter be passed by this Congress. (The amount in this resolution is included in the act of March 3, 1863.) (Continued on p. 322.)

(A) = Rate of interest.

(B) = Price of emission.

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
Act of Feb. 8, 1861.	Loan of Feb. 8, 1861.	20 years	After June 1, 1881.	6 % per annum.	Par.	\$25,000,000	\$18,415,000	\$18,415,000 00
Act of March 2, 1861.	Treas'y notes.	2 years 60 days.	2 yrs. after date. 60 days	6 % p. an'm	Par.	22,468,100	22,468,100	3,600 00
						12,896,350	12,896,350	
Act of March 2, 1861.	Oregon war	20 years	After July 1, 1881.	6 % per annum.	Par.	2,800,000	1,090,850	1,016,000 00
Acts of July 17, 1861, and August 5, 1861.	20-year sixes.	20 years	After June 30, 1881.	6 % per annum.	—	—	50,000,000	50,000,000 00
	7-30 notes. (two issues)	3 years	After Aug. 18, 1864. After Sept. 30, 1864.	7-30% per annum.		—	139,999,750	139,315,350 00

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
	Demand notes.	Pay'ble on demand.	Demand	None.	—	—	60,000,000	208,432 00
	20-year sixes.	20 years.	After June 30, 1881.	6 % per annum.	Par.	Exch'ngible for 7-30 Tr'y notes.	—	59,700 00
Act of Feb. 25, 1862. March 3, 1864 June 30, 1864. January 28, 1865.	Five-twenties.	5 or 20 years.	After Ap'l 30, 1867.	6 % per annum	Par.	515,000,000	514,780,500	514,780,500 00
Act of Feb. 25, 1862. Act of July 11, 1862. Resolution of Congress, January 17, 1863.	U. States notes, new issue.	—	—.	None.	Par.	450,000,000	—	371,783,597 00

Acts Authorizing Loans, and Synopsis of same.

Act of March 3, 1863.	A further issue of \$150,000,000, in United States notes, for the purpose of converting the Treasury notes which may be issued under this act, and for no other purpose. And a further issue, if necessary, for the payment of the army and navy, and other creditors of the Government, of \$150,000,000, in United States notes, which amount includes the \$100,000,000 authorized by the joint resolution of Congress, Jan. 17, 1863.
Act of April 12, 1866.	Provided, That of United States notes not more than ten millions of dollars may be retired and canceled within six months from the passage of this act, and thereafter not more than four millions of dollars in any one month: And provided further, That the act to which this is an amendment shall continue in full force in all its provisions, except as modified by this act.
Act of Feb. 25, 1862.	Authorized a temporary loan of \$25,000,000, in United States notes, for not less than thirty days, payable after ten days' notice, at 5 per cent. interest per annum. (This was increased to \$100,000,000 by the following acts.)
Act of March 17, 1862.	Authorized an increase of temporary loans of \$25,000,000, bearing interest at a rate not exceeding 5 per cent. per annum.
Act of July 11, 1862.	Authorized a further increase of temporary loans of \$50,000,000 making the whole amount authorized \$100,000,000.
Act of June 30, 1864.	Authorized the increase of temporary loans to not exceeding \$150,000,000, at a rate not exceeding 6 per cent. per annum.

Act of March 3, 1863.	Authorized a loan of \$300,000,000 for this and \$600,000,000 for the next fiscal year, for which could be issued bonds running not less than ten, nor more than forty years, principal and interest payable in coin, bearing interest at a rate not exceeding 6 per cent. per annum, payable in bonds not exceeding \$100 annually, and on all others semi-annually, the whole amount of bonds, Treasury notes, and United States notes issued under this act not to exceed the sum of 900,000,000. And so much of this act as limits the to the current fiscal year is repealed by act of June 30, 1864, which also repeals the authority to borrow money conferred by section 1, except so far as it may affect \$75,000,000 of bonds already advertised.
Act of June 30, 1864.	
Act of March 3, 1863.	And Treasury notes to the amount of \$400,000,000, not exceeding three years to run, with interest at not over 6 per cent. per annum, principal and interest payable in lawful money, which may be made a legal-tender for their face value, excluding interest, or convertible into United States notes. Secretary may receive gold on deposit, and issue certificates therefor, in sums not less than twenty dollars.
Act of March 3, 1864.	Authorizes the issue of bonds not exceeding \$200,000,000, bearing date March 1, 1864, or any subsequent period, redeemable at the pleasure of the Government after any period not less than five years, and payable at any period not more than forty years from date, in coin, bearing interest not exceeding 6 per cent. yearly, payable on bonds not over \$100 annually, and on all other bonds semi-annually, in coin.
Act of March 1, 1862.	Authorized an issue of certificates of indebtedness, payable one year from date, in settlement of audited claims against the Government. Interest 6 per cent. per annum, payable in gold; and by
Act of March 3, 1863.	Payable in lawful currency on those issued after that date. Amount of issue not specified.
Act of July 17, 1862.	Authorized an issue of notes of the fractional parts of one dollar, receivable in payment of all dues, except customs, less than five dollars, and exchangeable for United States notes in sums not less than five dollars. Amount of issue not specified.

(A) = Rate of interest.

(B) = Price of emission.

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
Act of March 3,								

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
1863. Act of April 12, 1866.								
Act of Feb. 25, 1862. March 17, 1862. July 11, 1862. Act of June 30, 1864.	Tempor'y Loan.	Not less than 30 days.	After ten days' notice.	4, 5, & 6 % per annum.	Par.	\$150,000,000	—	\$20,225,070 00
Act of March 3, 1863. Act of June 30 1864.	Loan of 1863.	—	Af'r June 30, 1881.	6 % per annum.	Prem'm 4.13 per cent.	75,000,000	\$75,000,000	75,000,000 00
Act of March 3, 1863.	Treasury notes.	2 years	2 years after date.	5 % per annum.	Par.	—	211,000,000	1,123,830 00
		1 year.	1 year after date.	5 % per annum.	Par.	400,000,000		
	Gold certificates	—	On dem'd.	—	Par.	Not specified.	—	19,207,520 00
Act of March 3, 1864.	Ten- forties.	10 or 40 years.	Af'r Feb. 28, 1874.	5 % per annum.	Par.	200,000,000	172,770,100	171,409,350 00
	Five- twenties.	5 or 20 years.	Aft'r Oct. 31, 1869.	6 % per annum.	Par.	—	—	3,882,500 00
Act of March 3, 1863.	Certifica's of indebtedness.	1 year.	1 year after date.	6 % per annum.	Par.	Not specified.	—	36,000 00
Act of July 17, 1862.								
	Postal currency.	—	—	—	Par.	Not specified.	—	5,497,534 93

Acts Authorizing Loans, and Synopsis of same.

Act of March 3, 1863.	Authorized an issue not exceeding \$50,000,000, in fractional currency (in lieu of postage or other stamps), exchangeable for United States notes in sums not less than three dollars, and receivable for any dues to the United States less than five dollars, except duties on imports. The whole amount issued, including postage and other stamps issued as currency, not to exceed \$50,000,000. Authority was given to prepare it in the Treasury Department, under the supervision of the Secretary.
--------------------------	---

Act of June 30, 1864.	Authorized an issue in lieu of the issue under acts of July 17, 1862, and March 3, 1863, the whole amount outstanding under all these acts not to exceed \$50,000,000.
Act of June 30, 1864.	Authorized an issue of \$400,000,000 of bonds, redeemable at the pleasure of the Government, after any period not less than five nor more than thirty years, or, if deemed expedient, made payable at any period nor more than forty years from date. And said bonds shall bear an annual interest not exceeding 6 per centum, payable semi-annually in coin. And the Secretary of the Treasury may dispose of such bonds, or any part thereof, and of any bonds commonly known as five-twenties, remaining unsold, on such terms as he may deem most advisable, for lawful money of the United States, or, at his discretion, for Treasury notes, certificates of indebtedness, or certificates of deposit, issued under any act of Congress.
Act of March 3, 1863. Act of June 30, 1864.	Authorizes an issue of Treasury notes, not exceeding three years to run, interest at not over 6 per cent. per annum, principal and interest payable in lawful money. Also, authorizes the issue of, and in lieu of, an equal amount of bonds authorized by the first section, and as a part of said loan, not exceeding \$200,000,000, in Treasury notes of any denomination not less than ten dollars, payable at any time not exceeding three years from date, or, if thought more expedient, redeemable at any time after three years from date, and bearing interest not exceeding the rate of 7 3-10 per centum, payable in lawful money at maturity, or at the discretion of the Secretary, semi-annually; and such of them as shall be made payable, principal and interest, at maturity, shall be a legal-tender to the same extent as United States notes, for their face value excluding interest, and may be paid to any creditor of the United States, at their face value, excluding interest, or to any creditor willing to receive them at par, including interest; and any Treasury notes issued under the authority of this act, may be made convertible, at the discretion of the Secretary of the Treasury, into any bonds issued under the authority of this act, and the Secretary may redeem, and cause to be canceled and destroyed any Treasury notes or United States notes heretofore issued under authority of previous acts of Congress, and substitute in lieu thereof an equal amount of Treasury notes, such as are authorized by this act, or of other United States notes; nor shall any Treasury note bearing interest, issued under this act, be a legal-tender, in payment or redemption of any notes issued by any bank, banking

Act of Jan. 28, 1865.	association, or banker, calculated or intended to circulate as money. Whole amount may be issued in bonds or Treasury notes, at the discretion of the Secretary.
Act of March 3, 1865.	Authorized an issue of \$600,000,000 in bonds or Treasury notes; bonds may be made payable at any period not more than forty years from the date of issue, or may be made redeemable at the pleasure of the Government, at or after any period not less than five years nor more than forty years from date, or may be made redeemable and payable as aforesaid, as may be expressed upon their face, and so much thereof as may be issued in Treasury

(A) = Rate of interest.

(B) = Price of emission.

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
Act of March 3, 1863. June 30, 1864.	Fractional currency.	—	—	—	Par.	\$50,000,000	—	\$22,809,988 59
Act of June 30, 1864.	Five-twenties.	5 or 20 years.	After Oct. 31, 1869.	6 % per annum.	—	—	—	125,561,300 00
Act of March 3, 1863.	Treasury notes.	3 years.	3 years after date.	6 % comp'd int'est.	Par.	Substitute redeemed 5 % notes 400,000,000	\$17,250,000	122,394,480 00
Act of June 30, 1864.	Treasury notes.	3 years.	3 years after date.	6 % comp'd int'est.	—		177,045,770	
	Treasury notes.	3 years.	3 years after date.	6 % comp'd int'est.	—		22,728,390	
	—	—	—	—	—		—	
	7.30 Treas. notes.	3 years.	3 years after August. 15, 1864.	7.30 % p. annum.	Par.	—	234,400,000	
Act of Jan. 28, 1865.								
Act of March 3, 1865.	See p. 327							

Acts Authorizing Loans, and Synopsis of same.

Act of March 3, 1863. (Cont'd.)	notes may be made convertible into any bonds authorized by this act, and be of such denominations, not less than fifty dollars, and bear such dates, and be made redeemable or payable at such periods as the Secretary of the Treasury may deem expedient. The interest on the
------------------------------------	---

	bonds payable semi-annually; on Treasury notes semi-annually, or annually, or at maturity thereof; and the principal or interest, or both, be made payable in coin or other lawful money; if in coin, not to exceed 6 per cent. per annum; when not payable in coin, not to exceed 7 3-10 per cent. per annum. Rate and character to be expressed on bonds or Treasury notes.
Acts of April 12, 1866. amendment to act March 3, 1865.	Authorizes the Secretary of the Treasury, at his discretion, to receive any Treasury notes or other obligations issued under any act of Congress, whether bearing interest or not, in exchange for any description of bonds authorized by the act to which this is an amendment; and also to dispose of any description of bonds authorized by said act, either in the United States or elsewhere, to such an amount, in such manner, States or elsewhere, to such an amount, in such manner, and at such rates as he may think advisable, for lawful money of the United States, or for any Treasury notes, certificates of indebtedness, or certificates of deposit, or other representatives of value, which have been or which maybe issued under any act of Congress, the proceeds thereof to be used only for retiring Treasury notes or other obligations issued under any act of Congress: but nothing herein contained shall be construed to authorize any increase of the public debt.
Acts of July 1, 1862, and July 2, 1864.	Bonds issued to the Union Pacific Railroad Company, in accordance with these acts.
Act of March 2, 1867.	For the purpose of redeeming and retiring any compound interest notes outstanding, the Secretary of the Treasury is authorized to issue temporary loan certificates in the manner prescribed by section four of the act entitled "An act to authorize the issue of United States notes and for the redemption or funding thereof, and for funding the floating debt of the United States," approved February twenty-fifth, eighteen hundred and sixty-two, bearing interest at a rate not exceeding three per centum per annum, principal and interest payable in lawful money on demand; and said certificates of temporary loan may constitute and be held by any national bank holding or owning the same, as a part of the reserve provided for in sections thirty-one and thirty-two of the act entitled "An act to provide a national currency secured by a pledge of

United States bonds, and to provide for the circulation and redemption thereof,” approved June three, eighteen hundred and sixty-four: *Provided*, That not less than two-fifths of the entire reserve of such bank shall consist of lawful money of the United States: *And provided further*, That the amount of such temporary certificates at any time outstanding shall not exceed fifty millions of dollars.

(A) = Rate of interest.

(B) = Price of emission.

	Title.	Length of Loan.	When redeemable.	(A)	(B)	Amount authorized.	Amount issued.	Amount outstanding.
Act of March 3, 1865. (Cont'd)	7.30 Treas. notes, 3 issues.	3 years.	Af'r Aug. 14, 1867.		Par.	\$600,000,000	—	\$488,647,425 00
			Af'r June 14, 1868.	7.3-10 per cent.				
	Five-twenties.	5 or 20 years.	Af'r July 14, 1868.		Par.	—	—	181,427,250 00
			Aft'r Oct. 31, 1870.	6 % per annum.				
Acts of April 12, 1866. amendment to act March 3, 1865.	—	—	Af'r June 30, 1870.	6 % per annum.	Par.	—	—	301,880,250 00
Acts of July 1, 1862. and to act July 2, 1864.	Un. Pacific R. R. Co. bonds.	30 y'rs.	Aft'r Jan. 15, 1895.	6 % per annum.	Par.	—	—	14,762,000 00
Act of March 2, 1867.						—	—	\$2,692,199,215 12

STATISTICAL VIEW OF THE STATES, ETC.

Showing dates of acts creating Territories, and admitting States—Time of holding general elections—Number of Representatives in Congress—Date of general elections in the several States, with number of Representatives and Senators—Terms of office—Times of meeting—Location of capitals, etc.

(A) = No. Members of Congress.

States and Territories.	A	Settled.		Date of Act creating	
		By whom.	Date.	Territory.	State.
Alabama	17	French	1713	Mar. 3, 1817	Mar. 2, 1819
Arkansas	2	French	1670	Mar. 2, 1819	June 15, 1836
California	2	Span'd	1769		Sept. 9, 1850
Connecticut ^[Z]	4	Engl.	1633		
Delaware ^[Z]	1	Swedes	1627		
Florida	1	Span'd	1564	Mar. 3, 1823	Mar. 3, 1845
Georgia ^[Z]	8	Engl.	1733		
Illinois	13	French	1749	Feb. 3, 1809	Dec. 3, 1818
Indiana	11	French	1730	May 7, 1800	Apr. 19, 1816
Iowa	6	Amer.	1835	June 12, 1838	Mar. 3, 1845
Kansas	1	Amer.	1850	May 30, 1854	Jan. 29, 1861
Kentucky	9	Vir'ns	1775		June 1, 1792
Louisiana	4	French	1699	Mar. 26, 1801	Feb. 20, 1811
Maine	5	Engl.	1630		Mar. 15, 1820
Maryland ^[Z]	5	Engl.	1634		
Massachusetts ^[Z]	10	Engl.	1620		
Michigan	6	French	1670	Jan. 11, 1805	Jan. 26, 1837
Minnesota	2	Amer.	1817	Mar. 3, 1849	May 14, 1858
Mississippi	5	French	1716	Apr. 7, 1798	Dec. 10, 1817
Missouri	9	French	1763	Mar. 3, 1805	Mar. 6, 1820
N. Hampshire ^[Z]	3	Engl.	1623		

(A) = No. Members of Congress.

States and Territories.	A	Settled.		Date of Act creating	
		By whom.	Date.	Territory.	State.
New Jersey ^[7]	5	Swedes	1627		
New York ^[7]	31	Dutch	1613		
N. Carolina ^[7]	8	Engl.	1650		
Nevada	1	Amer.	1860	Mar. 2, 1861	Oct. 31, 1864
Nebraska	1	Amer.	1850	May 30, 1854	Mar. 4, 1867
Ohio	19	Va & N. Eng	1788	July 13, 1787	Apr. 30, 1802
Oregon	1	Engl.	1796	Aug. 14, 1848	Feb. 12, 1859
Pennsylvania ^[7]	24	Engl.	1682		
Rhode Island ^[7]	2	Engl.	1631		
S. Carolina ^[7]	6	Engl.	1689		
Tennessee	10	NC & Va	1765	May 26, 1790	June 1, 1796
Texas	2	Span'd	1690		Dec. 29, 1845
Vermont	3	Engl.	1763		Mar. 4, 1791
Virginia ^[7]	13	Engl.	1607		
West Virginia	3	Amer.	—		Dec. 31, 1862
Wisconsin	6	Amer.	1831	Apr. 30, 1836	Aug. 6, 1846
Colorado Ter. ^[8]	1	Amer.	1860	Mar. 2, 1861	
Dakota Ter. ^[8]	1	Amer.	1860	Mar. 2, 1861	
New Mexico T. ^[8]	1	Span'd	1598	Sept. 9, 1850	
Utah Ter. ^[8]	1	Amer.	1847	Sept. 9, 1850	
Washington T. ^[8]	1	Amer.	1848	Mar. 2, 1853	
Columbia, D. of		Md & Va	—	July 10, 1790	

(B) = Number.

(C) = Term. Years.

States and Territories.	Time of holding general elections.	Representatives.	
		B	C
Alabama	1st Mon. Aug.	100	2
Arkansas	1st Mon. Aug.	75	2
California	Tues. after 1st Mon. Sept	36	1
Connecticut	1st Mon. April.	232	1
Delaware	2d Tues. Nov.	21	1
Delaware	2d Tues. Nov.	21	1

(B) = Number.

(C) = Term. Years.

States and Territories.	Time of holding general elections.	Representatives.	
		B	C
Florida	1st Mon. Oct.	40	1
Georgia	1st Mon. Oct. bienn.	150	2
Illinois	Tues. af. 1st Mon. Nov. bienn.	75	2
Indiana	2d Tues. Oct.	100	1
Iowa	2d Tues. Oct.	56	2
Kansas	2d Tues. Nov.	40	2
Kentucky	1st Mon. Aug.	100	2
Louisiana	1st Mon. Nov.	88	2
Maine	2d Mon. Sept.	151	1
Maryland	1st Wed. Nov.	81	2
Massachusetts	Tues. af. 1st Mon. Nov.	240	1
Michigan	Tues. af. 1st Mon. Nov.	74	2
Minnesota	2d Tues. Oct.	42	1
Mississippi	1st Mon. Oct.	92	2
Missouri	1st Mon. Aug.	130	2
N. Hampshire	2d Tues. March.	338	1
New Jersey	Tues. aft. 1st Mon. Nov.	60	1
New York	Tues. aft. 1st Mon. Nov.	128	1
N. Carolina	1st Thurs. Aug.	120	2
Nevada	1st Tu. af. 1st Mon. Nov.	26	1
Nebraska		26	1
Ohio	2d Tues. Oct.	100	2
Oregon	1st Mon. June.	34	2
Pennsylvania	2d Tues. Oct.	100	1
Rhode Island	1st Wed. April.	72	1
S. Carolina	2d Mon. Oct.	124	2
Tennessee	1st Thurs. Aug.	75	2
Texas	1st Mon. Aug.	66	2
Vermont	1st Tues. Sept.	230	1
Virginia	4th Thurs. May.	152	2
West Virginia	4th Thurs. Oct.		
Wisconsin	Tues. aft. 1st Mon. Nov.	97	1
Colorado Ter.		26	1

(B) = Number.

(C) = Term. Years.

States and Territories.	Time of holding general elections.	Representatives.	
		B	C
Dakota Ter.		26	1
New Mexico T.		26	1
Utah Ter.		26	1
Washington T.		18	1
Columbia, D. of			

(D) = Number.

(E) = Term. Years.

(F) = Governor's term of office. Years.

States and Territories.	Senators.		Time of Meeting of Legislatures.	F	State Capitals.
	D	E			
Alabama	33	4	2d Mon. Nov. bienn.	2	Montgomery.
Arkansas	25	4	1st Mon. Nov. bienn.	4	Little Rock.
California	16	2	1st Mon. Jan.	2	Sacramento.
Connecticut	21	1	1st Wed. May.	1	Hartford.
Delaware	9	4	1st Tues. Jan. bienn.	4	Dover.
Florida	19	4	4th Mon. Nov. "	4	Tallahassee.
Georgia	52	2	1st Mon. Nov. "	2	Milledgeville.
Illinois	25	4	2d Mon. Jan. "	4	Springfield.
Indiana	50	4	Th. af. 1st M. Jan. "	4	Indianapolis.
Iowa	30	4	2d Mon. Jan. bienn.	2	Des Moines.
Kansas	25	2	1st Wed. Jan.	2	Lecompton.
Kentucky	38	4	1st Mon. Dec. bienn.	4	Frankfort.
Louisiana	32	4	3d Mon. Jan.	4	Baton Rouge.
Maine	31	1	1st Wed. Jan.	1	Augusta.
Maryland	22	4	1st Wed. Jan. bienn.	4	Annapolis.
Massachusetts	40	1	1st Wed. Jan.	1	Boston.
Michigan	32	2	1st Wed. Jan. bienn.	2	Lansing.
Minnesota	21	2	1st Tu. af. 1st M. Jan.	2	St. Paul.
Mississippi	32	4	1st Mon. Nov. bienn.	2	Jackson.
Missouri	33	4	Last. Mon. Dec. "	4	Jefferson City.
N. Hampshire	12	1	1st Wed. June.	1	Concord.
New Jersey	21	3	2d Tues. Jan.	3	Trenton.

(D) = Number.

(E) = Term. Years.

(F) = Governor's term of office. Years.

States and Territories.	Senators.		Time of Meeting of Legislatures.	F	State Capitals.
	D	E			
New York	32	2	1st Tues. Jan.	2	Albany.
N. Carolina	50	2	3d Mon. Nov. bienn.	2	Raleigh.
Nevada	13	2	12th Dec.	4	Carson.
Nebraska	13	2		4	Omaha.
Ohio	35	2	1st Mon. Jan. bienn.	2	Columbus.
Oregon	16	4	2d Mon. Sept. "	4	Salem.
Pennsylvania	33	3	1st Tues. Jan.	3	Harrisburg.
Rhode Island	32	1	Last Tues. May.	1	Providence.
S. Carolina	46	4	4th Mon. Nov.	2	Columbia.
Tennessee	25	2	1st Mon. Oct. bienn.	2	Nashville.
Texas	21	4	1st Mon. Dec. "	2	Austin.
Vermont	30	1	2d Tues. Oct.	1	Montpelier.
Virginia	50	4	1st Mon. Dec. bienn.	4	Richmond.
West Virginia			20th June.		Wheeling.
Wisconsin	30	2	2d Wed. Jan.	2	Madison.
Colorado Ter.	13	2		4	Denver.
Dakota Ter.	13	2		4	Yankton.
New Mexico T.	13	2		4	Santa Fe.
Utah Ter.	13	2		4	Gt. Salt L. City
Washington T.	9	2		4	Olympia.
Columbia, D. of					Washington.

[U. S. Senators serve 6 years, and each State is entitled to two.]

(Position of Southern States represented as they stood before seceding.)

PLATFORMS OF 1860-1864.

PLATFORM OF THE BRECKINRIDGE PARTY OF 1860.

Resolved, That the platform adopted by the Democratic party at Cincinnati be affirmed, with the following explanatory resolutions:

1. That the government of a territory organized by an act of Congress is provisional and temporary, and during its existence all citizens of the United States have an equal right to settle with their property in the territory, without their rights, either in person or property, being destroyed by congressional or territorial legislation.

2. That it is the duty of the Federal Government, in all its departments, to protect the rights of persons and property in the territories, and wherever else its constitutional authority extends.

3. That when the settlers in a territory, having an adequate population, form a State Constitution, the right of sovereignty commences, and being consummated by their admission into the Union, they stand on an equality with the people of other States, and a State thus organized ought to be admitted into the Federal Union, whether its constitution prohibits or recognizes the institution of slavery.

4. That the Democratic party are in favor of the acquisition of Cuba, on such terms as shall be honorable to ourselves and just to Spain, at the earliest practicable moment.

5. That the enactments of State Legislatures to defeat the faithful execution of the Fugitive Slave Law are hostile in character, subversive of the Constitution, and revolutionary in their effect.

6. That the Democracy of the United States recognize it as an imperative duty of the government to protect the naturalized citizen in all

his rights, whether at home or in foreign lands, to the same extent as its native born citizens.

WHEREAS, One of the greatest necessities of the age, in a political, commercial, postal, and military point of view, is a speedy communication between the Pacific and Atlantic coasts; therefore, be it resolved,

7. That the National Democratic party do hereby pledge themselves to use every means in their power to secure the passage of some bill, to the extent of the Constitutional authority by Congress, for the construction of a railroad to the Pacific Ocean, at the earliest practicable moment.

PLATFORM OF THE DOUGLAS PARTY OF 1860.

Resolved, That we, the Democracy of the Union in Convention assembled, hereby declare our affirmation of the resolutions unanimously adopted and declared as a platform of principles by the Democratic Convention at Cincinnati, in the year 1856, believing that Democratic principles are unchangeable in their nature when applied to the same subject matter, and we recommend as our only further resolutions the following:

That inasmuch as differences of opinion exist in the Democratic party as to the nature and extent of the powers of a Territorial Legislature, and as to the powers and duties of Congress, under the Constitution of the United States, over the institution of slavery in the territories;

Resolved, That the Democratic party will abide by the decision of the Supreme Court of the United States over the institution of slavery in the territories.

Resolved, That it is the duty of the United States to afford ample and complete protection to all its citizens, at home or abroad, and whether native or foreign born.

Resolved, That one of the necessities of the age, in a military, commercial, and postal point of view, is a speedy communication between the Atlantic and Pacific States, and the Democratic party pledge such constitutional enactment as will insure the construction of a railroad to the Pacific coast at the earliest practical period.

Resolved, That the Democratic party are in favor of the acquisition of the Island of Cuba, on such terms as shall be honorable to ourselves and just to Spain.

Resolved, That the enactments of State Legislatures to defeat the faithful execution of the Fugitive Slave Law are hostile in character, subversive to the Constitution, and revolutionary in their effect.

Resolved, That it is in accordance with the Cincinnati Platform, that during the existence of Territorial Governments, the measure of restriction, whatever it may be, imposed by the Federal Constitution on the power of the Territorial Legislature over the subject of the domestic relations, as the same has been or shall hereafter be decided by the Supreme Court of the United States, should be respected by all good citizens, and enforced with promptness and fidelity by every branch of the General Government.

THE REPUBLICAN PLATFORM OF 1860.

Resolved, That we, the delegated representatives of the Republican electors of the United States, in Convention assembled, in the discharge of the duty we owe to our constituents and our country, unite in the following resolutions:

1. That the history of the nation during the last four years has fully established the propriety and necessity of the organization and perpetuation of the Republican party, and that the causes which called it into existence are permanent in their nature, and now, more than ever, demand its peaceful and constitutional triumph.

2. That the maintenance of the principles promulgated in the Declaration of Independence, and embodied in the Federal Constitution, that “all men are created equal; that they are endowed by their Creator with certain inalienable rights, among which are those of life, liberty and the pursuit of happiness, and that Governments are instituted among men to secure the enjoyment of these rights, deriving their just power from the consent of the governed”—are essential to the preservation of our republican institutions, and that the Federal Constitution, the rights of the States, and the union of the States, must and shall be preserved.

3. That to the union of the States this nation owes its unprecedented increase in population, its surprising developments of material resources; its rapid augmentation of wealth; its happiness at home and its honor abroad; and we hold in abhorrence all schemes for disunion, come from whatever source they may; and we congratulate the country that no Republican member of Congress has uttered or countenanced the threats of disunion as often made by the Democratic members of Congress, without rebuke and with applause from their political associates; and we denounce those threats of disunion in case of a popular overthrow of their ascendancy, as denying the vital principles of a free Government, and as an avowal of contemplated treason which it is the imperative duty of an indignant people sternly to rebuke and forever silence.

4. That the maintenance inviolate, of the rights of the States, and especially of each State, to order and control its own domestic institutions according to its own judgment exclusively, is essential to that balance of power on which the perfection and endurance of our political fabric depends; and we denounce the lawless invasion by armed force of the soil of any State or Territory, no matter under what pretext, as one of the gravest of crimes.

5. That the present Democratic Administration has far exceeded our worst apprehensions in the measureless subserviency to the exactions of a sectional interest, as especially evinced in its desperate exertions to force the infamous Lecompton Constitution upon the protesting people of Kansas, construing the relation between master and servant to involve an unqualified property in persons; in its attempted enforcement everywhere, on land and sea, through the intervention of Congress and of the Federal Courts, of the extreme pretensions of a purely local interest; and in its general and unvarying abuse of the power entrusted to it by a confiding people.

6. That the people justly view with alarm the reckless extravagance which pervades every department of the Federal Government. That a return to right economy and accountability is indispensable to arrest the plunder of the public treasury by favored partisans, while the recent startling developments of frauds and corruption at the Federal metropolis show that an entire change of administration is imperatively demanded.

7. That the new dogma that the Constitution of its own force carries slavery into any or all the Territories of the United States, in a dangerous political heresy, at variance with the explicit provisions of that instrument itself, with contemporaneous exposition, and with legislative and judicial precedents, that it is revolutionary in its tendency and subversive of the peace and harmony of the country.

8. That the nominal condition of all the territory of the United States is that of freedom; that as our Republican fathers, when they had abolished slavery in all our national territory, ordained that no person should be deprived of life, liberty or property without due process of law, it becomes our duty by legislation, whenever such legislation is necessary, to maintain this provision of the Constitution against all attempts to violate it; and we deny the authority of Congress, or a Territorial Legislature, or of any individual, to give legal existence to slavery in any Territory of the United States.

9. That we brand the recent re-opening of the African Slave Trade, under the cover of our national flag, aided by perversions of judicial power, as a crime against humanity, and a burning shame to our country and age; and we call upon Congress to take prompt and efficient measures for the total and final suppression of that execrable traffic.

10. That in the recent vetoes by their Federal Governors of the acts of the Legislatures of Kansas and Nebraska, prohibiting slavery in these Territories, we find a practical illustration of the boasted Democratic principles of non-intervention and Popular Sovereignty, embodied in the Kansas-Nebraska bill, and a demonstration of the deception and fraud involved therein.

11. That Kansas should, of right, be immediately admitted as a State under the Constitution recently formed and adopted by her people, and accepted by the House of Representatives.

12. That while providing revenue for the support of the General Government, by duties upon imports, sound policy requires such an adjustment of these imports as to encourage the development of the industrial interests of the whole country, and we commend that policy of National Exchange which secures to the working men liberal wages, agriculture remunerative prices, to merchants and manufacturers an

adequate reward for their skill, labor and enterprise, and to the nation commercial prosperity and independence.

13. That we protest against any sale or alienation to others of the public lands held by actual settlers, and against any view of the free homestead policy, which regards the settlers as paupers or suppliants for public bounty, and we demand the passage by Congress of the complete and satisfactory homestead measure which has already passed the House.

14. That the National Republican party is opposed to any change in our naturalization laws, or any State Legislation, by which the rights of citizenship hitherto accorded to immigrants from foreign lands shall be abridged or impaired, and in favor of giving a full and efficient protection to the rights of all classes of citizens, whether native or naturalized, both at home and abroad.

15. That appropriations by Congress for river and harbor improvements of a national character, is required for the accommodation and security of an existing commerce, or authorized by the Constitution and justified by the obligation of the Government to protect the lives and property of its citizens.

16. That a railroad to the Pacific ocean is imperatively demanded by the interests of the whole country; and that the Federal Government ought to render immediate and efficient aid in its construction, and that preliminary thereto, a daily overland mail should be promptly established.

17. Finally, having thus set forth our distinctive principles and views, we invite the co-operation of all citizens, however differing in other questions, who substantially agree with us, in their affirmance and support.

**PLATFORM OF THE
NATIONAL CONSTITUTIONAL PARTY
OF 1860.**

The Union, the Constitution and the Laws.

**UNION PLATFORM,
ADOPTED AT BALTIMORE**

JUNE 8, 1864.

Resolved, That it is the highest duty of every American citizen to maintain against all its enemies, the integrity of the Union, and the paramount authority of the Constitution and laws of the United States, and that, laying all political opinions aside, we pledge ourselves, as Union men, animated by a common sentiment, and aiming at a common object, to do everything in our power to aid the Government in quelling, by force of arms, the rebellion now raging against its authority, and bringing to the punishment due to their crimes, the rebels and traitors arrayed against it.

Resolved, That we approve the determination of the Government of the United States not to compromise with rebels, or to offer any terms of peace, except such as may be based upon an unconditional surrender of their hostility, &c., and a return to their just allegiance to the Constitution and laws of the United States, and that we call upon the Government to maintain this position, and to prosecute the war with the utmost possible vigor to the complete suppression of the rebellion, in full reliance upon the self-sacrifices, the patriotism, the heroic valor, and the undying devotion of the American people to their country and its free institutions.

Resolved, That slavery was the cause and now constitutes the strength of the rebellion, and that as it must be always and everywhere hostile to the principles of Republican Governments, justice and the national safety demand its utter and complete extirpation from the soil of the Republic, and that we uphold and maintain the acts and proclamations, by which the Government, in its own defence, has aimed a death blow at this gigantic evil. We are in favor, furthermore, of such an amendment to the Constitution, to be made by the people in conformity with its provisions, as shall terminate and forever prohibit the existence of slavery within the limits of the jurisdiction of the United States.

Resolved, That the thanks of the American people are due to the soldiers and sailors of the army and navy, who have periled their lives in defence of their country, and in vindication of the honor of the flag; that the nation owes them some permanent recognition of their patriotism and their valor, and ample and permanent provision for those of their survivors who have received disabling and honorable wounds in the service of their country,

and that the memories of those who have fallen in its defense shall be held in grateful and everlasting remembrance.



ABRAHAM LINCOLN.

Resolved, That we approve and applaud the political wisdom, the unselfish patriotism and unswerving fidelity to the Constitution and the principles of American liberty with which Abraham Lincoln has discharged, under circumstances of unparalleled difficulty, the great duties and responsibilities of the Presidential office; that we approve and endorse, as demanded by the emergency and essential to the preservation of the nation, and as within the Constitution, the measures and acts which he has adopted to defend the nation against its open and secret foes; especially the Proclamation of Emancipation, and the employment, as Union soldiers, of

men heretofore held in slavery, and that we have full confidence in his determination to carry these and all other Constitutional measures, essential to the salvation of the country, into full and complete effect.

Resolved, That we deem it essential to the general welfare, that harmony should prevail in the national councils, and we regard as worthy of public confidence and official trust those only who cordially endorse the principle proclaimed in these resolutions, and which should characterize the administration of the Government.

Resolved, That the Government owes to all men employed in its armies, without distinction of color, the full protection of the laws of war, and any violation of these laws and of the usages of civilized nations in the time of war, by the rebels now in arms, should be made the subject of full and prompt redress.

Resolved, That the foreign immigration, which in the past has added so much to the wealth and development of resources and increase of power to this nation, the asylum of the oppressed of all nations, should be fostered and encouraged by a liberal and just policy.

Resolved, That we are in favor of the speedy construction of the railroad to the Pacific.

Resolved, That the national faith is pledged for the redemption of the public debt and must be kept inviolate; and that for this purpose we recommend economy and rigid responsibilities in the public expenditures, and a vigorous and just system of taxation; that it is the duty of every loyal State to sustain the use of the national currency.

Resolved, That we approve the position taken by the Government, that the people of the United States can never regard with indifference the attempt of European power to overthrow by force, or to supplant by fraud, the institutions of any Republican government on the Western Continent, and that they will view with extreme jealousy, as menacing to the peace and independence of this our country, the efforts of any such power to obtain new footholds for monarchical governments sustained by a foreign military force in near proximity to the United States.

**FREMONT PLATFORM,
ADOPTED AT CLEVELAND,
MAY 31, 1864.**

1. That the Federal Union must be preserved.
2. That the Constitution and laws of the United States must be observed and obeyed.
3. That the rebellion must be suppressed by the force of arms, and without compromise.
4. That the rights of Free Speech, Free Press, and the Habeas Corpus must be held inviolate, save in districts where martial law has been proclaimed.
5. That the rebellion has destroyed slavery, and the Federal Constitution should be amended to prohibit its re-establishment.
6. That the right for asylum, except for crime, and subject to law, is a recognized principle—a principle of American liberty; that any violation of it must not be overlooked, and must not go unrebuked.
7. That the National policy known as the Monroe doctrine has become a recognized principle, and that the establishment of an anti-republican government on this continent by a foreign power can not be tolerated.
8. That the gratitude and support of the nation is due to the faithful soldiers, and the earnest leaders of the Union army and navy, for their heroic achievements and valor in defense of our imperiled country and of civil liberty.
9. That the one term policy for the Presidency adopted by the people is strengthened by the existing crisis, and shall be maintained by constitutional amendments.
10. That the constitution shall be so amended that the President and Vice-President shall be elected by a direct vote of the people.
11. That the reconstruction of the rebellious States belongs to the people through their representatives in Congress, and not to the Executive.

12. That the confiscation of the lands of the rebels and their distribution among the soldiers and actual settlers is a measure of justice; that integrity and economy are demanded at all times in the measures of the government, and that now the want of this is criminal.

NATIONAL DEMOCRATIC PLATFORM OF 1864.

Resolved, That in the future, as in the past, we will adhere with unswerving fidelity to the Union under the Constitution as the only solid foundation of our strength, security and happiness as a people, and as a framework of government equally conducive to the welfare and prosperity of all the States, both Northern and Southern.

Resolved, That this Convention does explicitly declare, as the sense of the American people, that after four years of failure to restore the Union by the experiment of war, during which, under the pretense of military necessity or war power higher than the Constitution, the Constitution itself has been disregarded in every part, and public liberty and private right alike trodden down, and the material prosperity of the country essentially impaired, justice, humanity, liberty and the public welfare demand that immediate efforts be made for a cessation of hostilities with a view to an ultimate convention of the States, or other peaceable means, to the end that at the earliest practical moment peace may be restored on the basis of the Federal Union of the States.

Resolved, That the direct interference of the military authorities of the United States in the recent elections held in Kentucky, Maryland, Missouri and Delaware was a shameful violation of the Constitution, and a repetition of such acts in the approaching election will be held as revolutionary, and resisted with all the means and power under our control.

Resolved, That the aim and object of the Democratic party is to preserve the Federal Union and the rights of the States unimpaired, and they hereby declare that they consider that the administrative usurpation of extraordinary and dangerous powers not granted by the Constitution, the subversion of the civil by military law in States not in insurrection, the arbitrary military arrest, imprisonment, trial and sentence of American citizens in States where the civil law exists in full force, the suppression of freedom of speech and of the press, the denial of the right of asylum, the open and avowed disregard of State rights, the employment of unusual test

oaths, and the interference with, and denial of the right of the people to bear arms in their defense, is calculated to prevent a restoration of the Union and the perpetuation of the Government deriving its just powers from the consent of the governed.

Resolved, That the shameful disregard of the Administration to its duty in respect to our fellow-citizens who now are, and long have been, prisoners of war in a suffering condition, deserves the severest reprobation on the score alike of public policy and common humanity.

Resolved, That the sympathy of the Democratic party is heartily and earnestly extended to the soldiery of our army and sailors of our navy who are and have been in the field and on the sea, under the flag of their country, and in the event of its attaining power, they will receive all the care, protection and regard that the brave soldiers and sailors of the Republic have so nobly earned.

LIEUTENANT-GENERAL ULYSSES S. GRANT,

Was born at Mount Pleasant, Clermont county, Ohio. It seems that the only marked traits of character he exhibited in early boyhood were energy, industry, will. His educational advantages, at this period, were those of the common, country school—no more.

In the year 1839, at the age of seventeen, he entered the United States Military Academy at West Point, from which he graduated on the 30th day of January, 1843. During his stay at this Institution he manifested that untiring industry, close application and unconquerable will which distinguished his boyhood, and which have constituted so conspicuous an element of his military character. It appears, however, that he was never regarded as a genius; and the grade he sustained on the day of graduation—that of 21 in a class of about 42—would not indicate extraordinary advancement in the studies assigned him. But it was remarked by those who conducted him through his Academic course, as it has been by those who have observed his military career, that he never lost an inch of the ground gained at each successive step in his progress. At his graduation it is said he possessed a “practical knowledge of the use of the rifled musket, the field piece, mortar, siege, and sea-coast guns, small sword and bayonet, as well as the construction of field works, and the fabrication of all munitions and *materiel* of war.”

At the close of his Academic course, he entered the United States regular army as a Brevet Second Lieutenant of infantry. At this time, the United States being at peace with all nations, Grant was attached as a Supernumerary Lieutenant to the fourth infantry, then stationed on the frontier in Missouri and Missouri Territory, and engaged in keeping down the Indian tribes that at that time were very troublesome to the early settlers of that region. Here Grant had not been many months when he was ordered, with his regiment, to join the army of General Taylor, in Texas. Soon after this, Corpus Christi, an important port on the Texan shore, was taken possession of by the American army as a base of operations against the

Mexicans, between whom and the United States disputes respecting certain imaginary boundary lines were fast ripening into a war; and it was here that Grant received his commission as full Second Lieutenant of Infantry. This commission dated from the 30th day of September, 1845. On the 8th day of May, 1846, he participated in the battle of Palo Alto, and although not noticed in the official reports, was spoken of by his comrades as having displayed great gallantry. He was likewise engaged in the subsequent brilliant operations of General Taylor along the banks of the Rio Grande. On the 23d of September, 1846, he took part, with great credit to himself, in the splendid affair at Monterey. It is a noteworthy fact that, although Grant's conduct in every one of these engagements was highly meritorious, he remained in the back ground, claiming no honors or promotions, but quietly biding his time.

After the formal declaration of war by the United States, against Mexico, he was transferred to the command of General Scott, and subsequently (March 29, 1847,) participated in the siege of Vera Cruz. Immediately after this affair, he was appointed the Quartermaster of his regiment, which office he retained throughout the Mexican campaign. He was, however, honored with the appointment, on the field, of First Lieutenant, to date from the 8th of September, 1847, for gallant and distinguished voluntary services rendered on that day in the famous battle of Molino del Ray. Congress afterwards wished to confirm the appointment as a mere brevet, but Grant refused to accept it under such circumstances.

On the 13th of September, 1847, he was made Brevet Captain of the regular army for gallant conduct in the battle of Chapultepec, which battle occurred on the preceding day. On the 16th of November, 1847, he was commissioned a First Lieutenant in the fourth regiment of regular infantry, still retaining his brevet rank of Captain.

At the close of the Mexican war, Grant, upon the distribution of his regiment in companies and sections among the various Northern frontier defences, along the borders of the States of Michigan and New York, took command of his company in one of these defences. His regiment having been afterwards consolidated and ordered to the Department of the Pacific, Grant, with his own and some other companies, was sent into Oregon to Fort Dallas. He received his full promotion to Captain of infantry, in August, 1853, and was, shortly afterwards, attached to the Department of

the West; but, not regarding military so favorable to progress as civil life, he resigned his connection with the United States army on the 31st day of July, 1854, after which he resided near the city of St. Louis, Missouri, until the year 1859. Here he resided on a small farm, occupying himself in winter by hauling wood to the Carondelet market, and during the summer in the collection of debts, for which latter business, it is said, he had little capacity.

In the year 1859, he embarked in the leather trade with his father, the firm opening business in the city of Galena, Illinois. Grant continued in the leather business, driving a prosperous trade, up to the breaking out of the Rebellion in 1861, when he offered his services to his country, upon the first call for volunteers, and was appointed by Governor Yates as Commander-in-Chief of the Illinois forces and mustering officer of Illinois volunteers. Desiring active service in the field, he resigned his appointment as mustering officer, and accepted the Colonelcy of the 21st regiment of Illinois volunteers, with a commission dating from June 15, 1861. In August, 1861, Colonel Grant was promoted to the rank of Brigadier General of volunteers, his commission dating from May 17, 1861.

Shortly after this he was appointed commandant of the post at Cairo—which post included the Missouri shore of the Mississippi river, from Cape Girardeau to New Madrid, and the opposite shore, to the point of land on which Cairo stands. This position Grant filled with great ability, checkmating, by his adroit maneuvering, the efforts of the rebels to occupy, permanently, southern Kentucky, and conducting those successful expeditions against Forts Henry and Donelson, which opened the way to the occupation of Western Tennessee.

On the 16th of February, 1862, the day after the surrender of Fort Donelson, he was appointed Major-General of volunteers, and was placed in command of an expedition up the Tennessee river against the rebels in and about Corinth, under command of Johnston and Beauregard. This expedition terminated in the great battle of Shiloh or Pittsburg Landing—which battle, occupying two days, (April 6th and 7th, 1862,) was one of the bloodiest of the war, and resulted in the defeat of the rebels and their retreat upon Corinth.

For the immense slaughter which attended this battle, General Grant was very severely censured by the people, generally, throughout the

Western States.

Soon after this, General Halleck having assumed command of the army before Corinth, and that place having fallen into the hands of the United States forces by evacuation, an important change took place in the army, which resulted in the assignment of General Grant to the District of West Tennessee, and the promotion of General Halleck to the office of General-in-Chief. The former soon after formed the plan of opening the Mississippi river to its mouth. Memphis having been given up to our troops, the chief obstacle in the way of the prosecution of the design were Vicksburg and Port Hudson.

After a series of expeditions and battles, land and naval, in which the courage and fortitude of the Union troops were no less prominently exhibited than the superior engineering powers and unyielding stubbornness of General Grant, Vicksburg was reduced by siege, and was occupied by Grant on the 4th of July, 1863; and directly after this (July 8, 1863) followed the surrender of Port Hudson to General N. P. Banks.

On the 16th of October, 1863, the Departments of the Ohio, of the Cumberland, and of the Tennessee were formed into the Military Division of the Mississippi, under the command of General Grant. The General, however, was not long in this position until, the grade of Lieutenant-General having been revived, he was promoted to that office—which office gave him control of the entire forces of the United States. This appointment was made in February, 1864, and was immediately followed by the most active, thorough preparations for a movement upon Richmond by the Army of the Potomac under the personal command of General Grant, and an expedition against Atlanta under command of General Sherman. After the battles of the Wilderness, Spottsylvania Court House and the siege of Petersburg, Lee's retreat was cut off by the rapid movements which Grant instituted, and on the 9th of April, just one week after the last great battle, the army of Northern Virginia capitulated. Soon after the rebel General Johnston surrendered to General Sherman, on the same terms granted by Grant to Lee, and the great civil war was ended. Grant was appointed Secretary of War *ad interim*, August 12th, 1867, and filled the office with distinction until January 14, 1868, at which time Secretary Stanton was reinstated by Congress. On the 21st of May, 1868, he was unanimously

nominated for the Presidential chair by the Republican Convention, which met at Chicago.

THE TENURE-OF-OFFICE BILL.

(PASSED MARCH 2, 1867.)

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That every person holding any civil office to which he has been appointed by and with the advice and consent of the Senate, and every person who shall hereafter be appointed to any such office, and shall become duly qualified to act therein, is, and shall be entitled to hold such office until a successor shall, in like manner, have been appointed and duly qualified, except as herein otherwise provided: *Provided,* That the Secretaries of State, of the Treasury, of War, of the Navy, and of the Interior, the Postmaster-General, and the Attorney-General shall hold their offices respectively for and during the term of the President by whom they may have been appointed, and for one month thereafter, subject to removal by and with the advice and consent of the Senate.

SEC. 2. That when any officer, appointed as aforesaid, excepting Judges of the United States Courts, shall, during a recess of the Senate, be shown, by evidence satisfactory to the President to be guilty of misconduct in office, or crime, or for any reason shall become incapable or legally disqualified to perform its duties, in such case, and in no other, the President may suspend such officer and designate some suitable person to perform temporarily the duties of such office until the next meeting of the Senate, and until the case shall be acted upon by the Senate, and such person so designated, shall take the oaths and give the bonds required by law to be taken and given by the person duly appointed to fill such office, and in such case it shall be the duty of the President, within twenty days after the first day of such next meeting of the Senate, to report to the Senate such suspension with the evidence and reasons for his actions in the case, and the name of the person so designated to perform the duties of such office. And if the Senate shall concur in such suspension, and advise and consent to the removal of such officer, they shall so certify to the President, who may thereupon remove such officer, and by and with the advice and consent of the Senate, appoint another person to such office. But if the

Senate shall refuse to concur in such suspension, such officer so suspended shall forthwith resume the functions of his office, and the powers of the person so performing its duties in his stead shall cease, and the official salary and emoluments of such officer shall, during such suspension, belong to the person so performing the duties thereof, and not to the officer so suspended: *Provided, however,* That the President in case he shall become satisfied that such suspension was made on insufficient grounds shall be authorized at any time before reporting such suspension to the Senate, as above provided, to revoke such suspension and reinstate such officer in the performance of the duties of his office.

SEC. 3. That the President shall have power to fill all vacancies which may happen during the recess of the Senate by reason of death or resignation, by granting commissions which shall expire at the end of their next session thereafter. And if no appointment by and with the advice and consent of the Senate shall be made to such office so vacant or temporarily filled as aforesaid, during such next session of the Senate, such office shall remain in abeyance without any salary, fees, or emoluments attached thereto until the same shall be filled by appointment thereto by and with the advice and consent of the Senate, and during such time all the powers and duties belonging to such office shall be exercised by such other officer as may by law exercise such powers and duties in case of a vacancy in such office.

SEC. 4. That nothing in this act contained shall be construed to extend the term of any office, the duration of which is limited by law.

SEC. 5. That if any person shall, contrary to the provisions of this act, accept any appointment to, or employment in, any office, or shall hold or exercise, or attempt to hold or exercise any such office or employment, he shall be deemed, and is hereby declared to be guilty of a high misdemeanor, and upon trial and conviction thereof, he shall be punished therefor by a fine not exceeding ten thousand dollars, or by imprisonment not exceeding five years, or both said punishments, in the discretion of the court.

SEC. 6. That every removal, appointment, or employment made, had, or exercised contrary to the provisions of this act, and the making, signing, sealing, countersigning, or issuing of any commission or letter of authority for or in respect to any such appointment or employment, shall be deemed and are hereby declared to be high misdemeanors, and upon trial and

conviction thereof, every person guilty thereof shall be punished by a fine not exceeding ten thousand dollars, or by imprisonment not exceeding five years, or both said punishments in the discretion of the court: *Provided*, That the President shall have power to make out and deliver after the adjournment of the Senate, commissions for all officers whose appointments shall have been advised and consented to by the Senate.

SEC. 7. That it shall be the duty of the Secretary of the Senate, at the close of each session thereof, to deliver to the Secretary of the Treasury, and to each of his assistants, and to each of the auditors, and to each of the comptrollers in the treasury, and to the treasurer and to the register of the treasury, a full and complete list, duly certified, of all the persons who shall have been nominated to and rejected by the Senate during such session, and a like list of all the offices to which nominations shall have been made and not confirmed and filled at such session.

SEC. 8. That whenever the President shall, without the advice and consent of the Senate, designate, authorize, or employ any person to perform the duties of any office, he shall forthwith notify the Secretary of the Treasury thereof, and it shall be the duty of the Secretary of the Treasury thereupon to communicate such notice to all the proper accounting and disbursing officers of his department.

SEC. 9. That no money shall be paid or received from the Treasury, or paid or received from or retained out of any public moneys or funds of the United States, whether in the Treasury or not to or by or for the benefit of any person appointed to or authorized to act in or holding or exercising the duties or functions of any office contrary to the provisions of this act, nor shall any claim, account, voucher, order, certificate, warrant, or other instrument providing for or relating to such payment, receipt, or retention, be presented, passed, allowed, approved, certified, or paid by any officer of the United States or by any person exercising the functions or performing the duties of any office or place of trust under the United States for or in respect to such office or the exercising or performing the functions or duties thereof; and every person who shall violate any of the provisions of this section, shall be guilty of a high misdemeanor, and upon trial and conviction thereof, shall be punished therefor by a fine not exceeding ten thousand dollars, or by imprisonment not exceeding ten years, or both said punishments in the discretion of the court.

IMPEACHMENT OF PRESIDENT JOHNSON.

The events which led to the impeachment of President Johnson, may be briefly stated as follows: On the 21st of February, 1868, the President issued an order to Mr. Stanton, removing him from office as Secretary of War, and another to General Lorenzo Thomas, Adjutant-General of the Army, appointing him Secretary of War *ad interim*, directing the one to surrender and the other to receive, all the books, papers, and public property belonging to the War Department. As these orders fill an important place in the history of the impeachment, we give them here. The order to Mr. Stanton reads:

“By virtue of the power and authority vested in me as President by the Constitution and laws of the United States, you are hereby removed from office as Secretary for the Department of War, and your functions as such will terminate upon the receipt of this communication. You will transfer to Brevet Major-General Lorenzo Thomas, Adjutant-General of the Army, who has this day been authorized and empowered to act as Secretary of War *ad interim*, all records, books, papers, and other public property now in your custody and charge.”

The order to General Thomas reads:

“The Hon. Edwin M. Stanton having been this day removed from office as Secretary for the Department of War, you are hereby authorized and empowered to act as Secretary of War *ad interim*, and will immediately enter upon the discharge of the duties pertaining to that office. Mr. Stanton has been instructed to transfer to you all the records, books, and other public property now in his custody and charge.”

These orders having been officially communicated to the Senate, that body, after an earnest debate, passed the following resolution:

“*Resolved by the Senate of the United States*, That under the Constitution and laws of the United States the President has no power to

remove the Secretary of War and designate any other officer to perform the duties of that office.”



ANDREW JOHNSON.

The President, upon the 24th, sent a message to the Senate, arguing at length that not only under the Constitution, but also under the laws as now existing, he had the right of removing Mr. Stanton and appointing another to fill his place. The point of his argument is: That by a special proviso in the Tenure-of-Office Bill the various Secretaries of Departments “shall hold their offices respectively for and during the term of the President by whom they may have been appointed, and for one month thereafter, subject to removal by and with the advice of the Senate.” The President affirms that Mr. Stanton was appointed not by him, but by his predecessor, Mr. Lincoln, and held office only by the sufferance, not the appointment, of the present Executive; and that therefore his tenure is, by the express reading of the law

excepted from the general provision, that every person duly appointed to office “by and with the advice and consent of the Senate,” etc., shall be “entitled to hold office until a successor shall have been in like manner appointed and duly qualified, except as herein otherwise provided.” The essential point of the President’s argument, therefore, is that, as Mr. Stanton was not appointed by him, he had, under the Tenure-of-Office Bill, the right at any time to remove him; the same right which his own successor would have, no matter whether the incumbent had, by sufferance, not by appointment of the existing Executive, held the office for weeks or even years. “If,” says the President, “my successor would have the power to remove Mr. Stanton, after permitting him to remain a period of two weeks, because he was not appointed by him, I who have tolerated Mr. Stanton for more than two years, certainly have the same right to remove him, and upon the same ground, namely, that he was not appointed by me but by my predecessor.”

In the meantime General Thomas presented himself at the War Department and demanded to be placed in the position to which he had been assigned by the President. Mr. Stanton refused to surrender his post, and ordered General Thomas to proceed to the apartment which belonged to him as Adjutant-General. This order was not obeyed, and so the two claimants to the Secretaryship of War held their ground. A sort of legal by-play then ensued. Mr. Stanton entered a formal complaint before Judge Carter, Chief Justice of the Supreme Court of the District of Columbia, charging that General Thomas had illegally exercised and attempted to exercise the duties of Secretary of War; and had threatened to “forcibly remove the complainant from the buildings and apartments of the Secretary of War in the War Department, and forcibly take possession and control thereof under his pretended appointment by the President of the United States as Secretary of War *ad interim*,” and praying that he might be arrested and held to answer this charge. General Thomas was accordingly arrested, and held to bail in the sum of \$15,000 to appear before the court on the 24th. Appearing on that day he was discharged from custody and bail; whereupon he entered an action against Mr. Stanton for false imprisonment, laying his damages at \$150,000.

On the 22d of February the House Committee on Reconstruction, through its Chairman, Mr. Stevens, presented a brief report, merely stating

the fact of the attempted removal by the President of Mr. Stanton, and closing as follows:

“Upon the evidence collected by the Committee, which is hereafter presented, and in virtue of the powers with which they have been invested by the House, they are of the opinion that Andrew Johnson, President of the United States, should be impeached of high crimes and misdemeanors. They, therefore, recommend to the House the adoption of the following resolution:

“*Resolved*, That Andrew Johnson, President of the United States be impeached of high crimes and misdemeanors.”

After earnest debate, the question on the resolution was adopted, on the 24th, by a vote of 126 to 47. A committee of two members—Stevens and Bingham—were to notify the Senate of the action of the House; and another committee of seven—Boutwell, Stevens, Bingham, Wilson, Logan, Julian, and Ward—to prepare the articles of impeachment. On the 25th (February) Mr. Stevens thus announced to the Senate the action which had been taken by the House:

“In obedience to the order of the House of Representatives we have appeared before you, and in the name of the House of Representatives and of all the people of the United States, we do impeach Andrew Johnson, President of the United States, of high crimes and misdemeanors in office. And we further inform the Senate that the House of Representatives will in due time exhibit particular articles of impeachment against him, to make good the same; and in their name we demand that the Senate take due order for the appearance of the said Andrew Johnson to answer to the said impeachment.”

The Senate thereupon, by a unanimous vote, resolved that this message from the House should be referred to a select Committee of Seven, to be appointed by the chair, to consider the same and report thereon. This Committee subsequently made a report laying down the rules of procedure to be observed on the trial.

On the 29th of February the Committee of the House appointed for that purpose presented the articles of impeachment which they had drawn up. These, with slight modification, were accepted on the 2d of March. They

comprise nine articles, eight of which are based upon the action of the President in ordering the removal of Mr. Stanton, and the appointment of General Thomas as Secretary of War. The general title to the impeachment is:

“Articles exhibited by the House of Representatives of the United States, in the name of themselves and all the people of the United States, against Andrew Johnson, President of the United States, as maintenance and support of their impeachment against him for high crimes and misdemeanors in office.”

Each of the articles commences with a preamble to the effect that the President, “unmindful of the high duties of his office, of his oath of office, and of the requirements of the Constitution that he should take care that the laws be faithfully executed, did unlawfully and in violation of the laws and Constitution of the United States, perform the several acts specified in the articles respectively;” closing with the declaration: “Whereby the said Andrew Johnson, President of the United States, did then and there commit and was guilty of a high misdemeanor in office.” The phraseology is somewhat varied. In some cases the offense charged is designated as a “misdemeanor,” in others as a “crime.” The whole closes thus:

“And the House of Representatives, by protestation, saving to themselves the liberty of exhibiting at any time hereafter any further articles or other accusation or impeachment against the said Andrew Johnson, President of the United States, and also of replying to his answers which he shall make to the articles herein preferred against him, and of offering proof to the same and every part thereof, and to all and every other article, accusation, or impeachment which shall be exhibited by them as the case shall require, do demand that the said Andrew Johnson may be put to answer the high crimes and misdemeanors in office herein charged against him, and that such proceedings, examinations, trials, and judgments may be thereupon had and given as may be agreeable to law and justice.”

The following is a summary in brief of the points in the articles of impeachment, legal and technical phraseology being omitted:

Article 1. Unlawfully ordering the removal of Mr. Stanton as Secretary of War, in violation of the provisions of the Tenure-of-Office Act.—*Article 2.* Unlawfully appointing General Lorenzo Thomas as Secretary of War *ad*

interim.—*Article 3* is substantially the same as *Article 2*, with the addition that there was at the time of the appointment of General Thomas no vacancy in the office of Secretary of War.—*Article 4* charges the President with “conspiring with one Lorenzo Thomas and other persons, to the House of Representatives unknown,” to prevent, by intimidation and threats, Mr. Stanton, the legally-appointed Secretary of War, from holding that office.—*Article 5* charges the President with conspiring with General Thomas and others to hinder the execution of the Tenure-of-Office Act; and, in pursuance of this conspiracy, attempting to prevent Mr. Stanton from acting as Secretary of War.—*Article 6* charges that the President conspired with General Thomas and others to take forcible possession of the property in the War Department.—*Article 7* repeats the charge, in other terms, that the President conspired with General Thomas and others to hinder the execution of the Tenure-of-Office Act, and to prevent Mr. Stanton from executing the office of Secretary of War.—*Article 8* again charges the President with conspiring with General Thomas and others to take possession of the property in the War Department.—*Article 9* charges that the President called before him General Emory, who was in command of the forces in the Department of Washington, and declared to him that a law, passed on the 30th of June, 1867, directing that “all orders and instructions relating to military operations, issued by the President or Secretary of War, shall be issued through the General of the Army, and, in case of his inability, through the next in rank,” was unconstitutional, and not binding upon General Emory; the intent being to induce General Emory to violate the law, and to obey orders issued directly from the President.

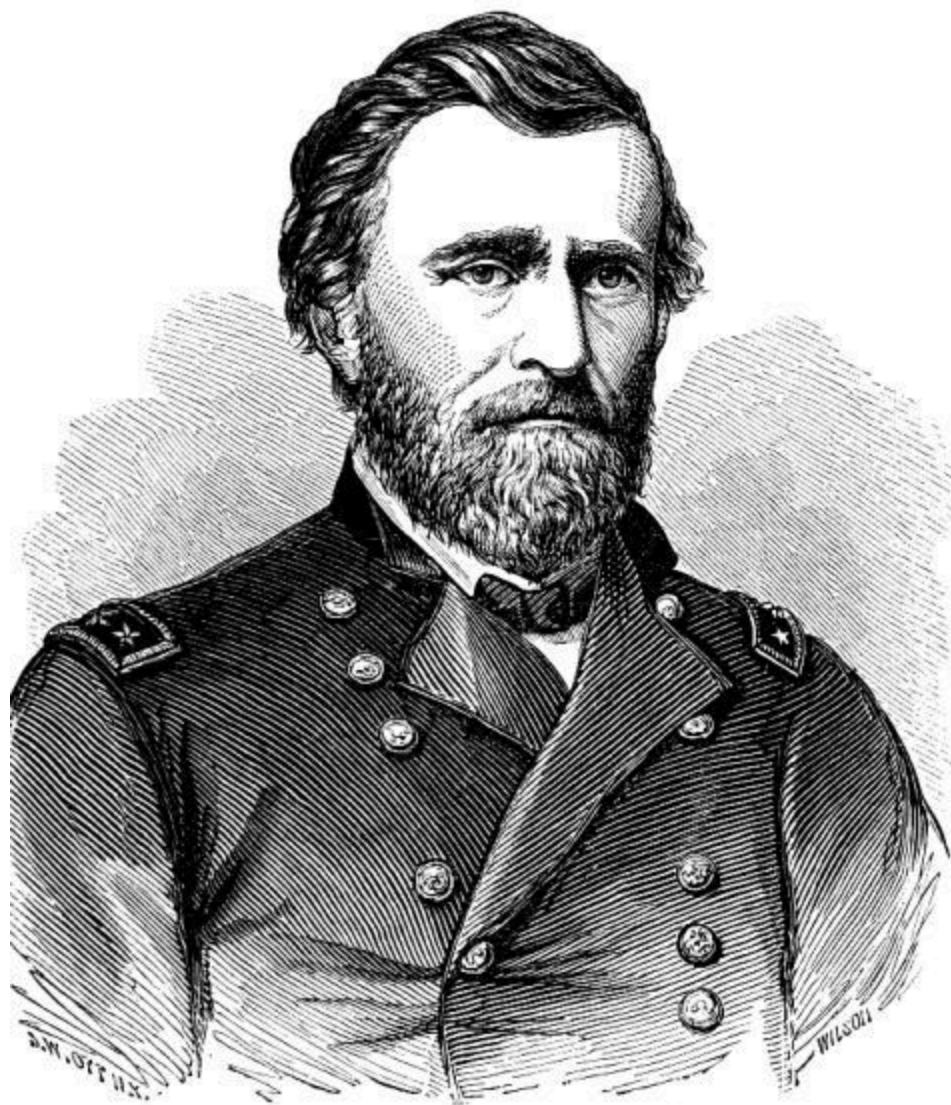
The foregoing articles of impeachment were adopted on the 2d of March, the votes upon each slightly varying, the average being 125 ayes to 40 nays. The question then came up of appointment of managers on the part of the House to conduct the impeachment before the Senate. Upon this question the Democratic members did not vote; 118 votes were cast, 60 being necessary to a choice. The following was the result, the number of votes cast for each elected manager being given: Stevens, of Penn., 105; Butler, of Mass., 108; Bingham, of Ohio, 114; Boutwell, of Mass., 113; Wilson, of Iowa, 112; Williams, of Penn., 107; Logan, of Ill., 106. The foregoing seven Representatives were, therefore, duly chosen as Managers of the Bill of Impeachment. The great body of the Democratic members of the House entered a formal protest against the whole course of proceedings

involved in the impeachment of the President. They claimed to represent “directly or in principle more than one-half of the people of the United States.” This protest was signed by forty-five Representatives.

On the 3d the Board of Managers presented two additional articles of impeachment, which were adopted by the House. The first charges, in substance, that

“The President, unmindful of the high duties of his office and of the harmony and courtesies which ought to be maintained between the executive and legislative branches of the Government of the United States, designing to set aside the rightful authority and powers of Congress, did attempt to bring into disgrace the Congress of the United States and the several branches thereof, to impair and destroy the regard and respect of all the good people of the United States for the Congress and legislative power thereof, and to excite the odium and resentment of all the good people of the United States against Congress and the laws by it enacted; and in pursuance of his said design openly and publicly, and before divers assemblages convened in divers parts thereof to meet and receive said Andrew Johnson as the Chief Magistrate of the United States, did on the 18th day of August, in the year of our Lord 1866, and on divers other days and times, as well before as afterward, make and deliver with a loud voice certain intemperate, inflammatory, and scandalous harangues, and did therein utter loud threats and bitter menaces as well against Congress as the laws of the United States duly enacted thereby.”

To this article are appended copious extracts from speeches of Mr. Johnson. The second article is substantially as follows:



GENERAL ULYSSES S. GRANT.

“The President did, on the 18th day of August, 1866, at the City of Washington, by public speech, declare and affirm in substance that the Thirty-ninth Congress of the United States was not a Congress of the United States, authorized by the Constitution to exercise legislative power under the same, but, on the contrary, was a Congress of only a part of the States, thereby denying and intending to deny that the legislation of said Congress was valid or obligatory upon him, except in so far as he saw fit to approve the same, and did devise and contrive means by which he might prevent Edwin M. Stanton from forthwith resuming the functions of the office of Secretary for the Department of War; and, also, by further

unlawfully devising and contriving means to prevent the execution of an act entitled 'An act making appropriations for the support of the army for the fiscal year ending June 30, 1868, and for other purposes,' approved March 2, 1867; and also to prevent the execution of an act entitled 'An act to provide for the more efficient government of the rebel States,' passed March 2, 1867, did commit and was guilty of a high misdemeanor in office."

On the 4th of March the Senate notified the House that they were ready to receive the Managers of the Impeachment. They appeared, and the articles were formally read. The Senate had meanwhile adopted the rules of procedure. Chief Justice Chase sent a communication to the Senate to the effect that this body, when acting upon an impeachment, was a Court presided over by the Chief Justice, and that all orders and rules should be framed by the Court. On the 5th the Court was formally organized. An exception was taken to the eligibility of Mr. Wade as a member of the Court, on the ground that he was a party interested, since, in the event of the impeachment being sustained, he, as President of the Senate, would become Acting President of the United States. This objection was withdrawn, and Mr. Wade was sworn as a member of the Court. On the 7th the summons for the President to appear was formally served upon him. On the 13th the Court was again formally reopened. The President appeared by his counsel, Hon. Henry Stanbery, of Ohio; Hon. Wm. M. Evarts, of New York; Hon. Wm. S. Groesbeck, of Ohio; Hon. Benjamin R. Curtis, of Massachusetts; Hon. Thomas A. R. Nelson, of Tennessee, who asked for forty days to prepare an answer to the indictment. This was refused, and ten days granted; it being ordered that the proceedings should reopen on the 23d. Upon that day the President appeared by his counsel, and presented his answer to the articles of impeachment. This reply was in substance as follows:

The first eight articles in the Bill of Impeachment, as briefly summed up in our last record, are based upon the action of the President in ordering the removal of Mr. Stanton, and the temporary appointment of General Thomas as Secretary of War. The gist of them is contained in the first article, charging the unlawful removal of Mr. Stanton; for, this failing, the others would fail also. To this article a considerable part of the President's answer is devoted. It is mainly an amplification of the points put forth in the

Message of February 24th, in which he gave his reasons for his orders. The President cites the laws by which this department of the administration was created, and the rules laid down for the duties pertaining to it; prominent among which are: that the Secretary shall “conduct the business of the department in such manner as the President of the United States shall from time to time order and instruct;” and that he should “hold the office during the pleasure of the President;” and that Congress had no legal right to deprive the President of the power to remove the Secretary. He was, however, aware that the design of the Tenure-of-Office Bill was to vest this power of removal, in certain cases, jointly in the Executive and the Senate; and that, while believing this act to be unconstitutional, yet it having been passed over his veto by the requisite majority of two-thirds, he considered it to be his duty to ascertain in how far the case of Mr. Stanton came within the provisions of this law; after consideration, he came to the conclusion that the case did not come within the prohibitions of the law, and that, by that law he still had the right of removing Mr. Stanton; but that, wishing to have the case decided by the Supreme Court, he, on the 12th of August, issued the order merely suspending, not removing, Mr. Stanton, a power expressly granted by the Tenure-of-Office Act, and appointed General Grant Secretary of War *ad interim*. The President then recites the subsequent action in the case of Mr. Stanton; and, as he avers, still believing that he had the constitutional power to remove him from office, issued the order of February 21st, for such removal, designing to thus bring the matter before the Supreme Court. He then proceeds formally to deny that at this time Mr. Stanton was in lawful possession of the office of Secretary of War; and that, consequently, the order for his removal was in violation of the Tenure-of-Office Act; and that it was in violation of the Constitution or of any law; or that it constituted any official crime or misdemeanor.

In regard to the seven succeeding articles of impeachment the President, while admitting the facts of the order appointing General Thomas as Secretary of War *ad interim*, denies all and every of the criminal charges therein set forth. So of the ninth article, charging an effort to induce General Emory to violate the law, the President denies all such intent, and calls attention to the fact that while, for urgent reasons, he signed the bill prescribing that orders to the army should be issued only through the General, he at the same time declared it to be, in his judgment, unconstitutional; and affirms that in his interview with General Emory he

said no more than he had before officially said to Congress—that is, that the law was unconstitutional.

As to the tenth article, the first of the supplementary ones, the President, while admitting that he made certain public speeches at the times and places specified, does not admit that the passages cited are fair reports of his remarks; denies that he has ever been unmindful of the courtesies which ought to be maintained between the executive and legislative departments; but he claims the perfect right at all times to express his views as to all public matters.

The reply to the eleventh article, the second supplementary one, is to the same general purport, denying that he ever affirmed that the Thirty-ninth Congress was not a valid Congress of the United States, and its acts obligatory only as they were approved by him; and denying that he had, as charged in the article, contrived unlawful means for preventing Mr. Stanton from resuming the functions of Secretary of War, or for preventing the execution of the act making appropriations for the support of the army, or that to provide for the more efficient government of the rebel States. In his answer to this article the President refers to his reply to the first article, in which he sets forth at length all the steps, and the reasons therefor, relating to the removal of Mr. Stanton. In brief, the answer of the President to the articles of impeachment is a general denial of each and every criminal act charged in the articles of impeachment.

The counsel for the President then asked for a delay of thirty days after the replication of the managers of the impeachment should have been rendered, before the trial should formally proceed. This was refused, and the managers of the impeachment stated that their replication would be presented the next day: it was that,

“The Senate will commence the trial of the President upon the articles of impeachment exhibited against him on Monday, the 30th day of March, and proceed therein with all dispatch under the rules of the Senate, sitting upon the trial of an impeachment.”

The replication of the House of Representatives was a simple denial of each and every averment in the answer of the President, closing thus:

“The House of Representatives ... do say that the said Andrew Johnson, President of the United States, is guilty of the high crimes and misdemeanors mentioned in the said articles, and that the said House of Representatives are ready to prove the same.”

The trial began, as appointed, on March 30. There being twenty-seven States represented, there were fifty-four Senators, who constituted the Court, presided over by Chief Justice Salmon P. Chase, of Ohio. SENATORS: *California*, Cole, Conness; *Connecticut*, Dixon, Ferry; *Delaware*, Bayard, Saulsbury; *Indiana*, Hendricks, Morton; *Illinois*, Trumbull, Yates; *Iowa*, Grimes, Harlan; *Kansas*, Pomeroy, Ross; *Kentucky*, Davis, McCreery; *Maine*, Fessenden, Morrill (Lot M.); *Maryland*, Johnson, Vickers; *Massachusetts*, Sumner, Wilson; *Michigan*, Chandler, Howard; *Minnesota*, Norton, Ramsay; *Missouri*, Drake, Henderson; *Nebraska*, Thayer, Tipton; *Nevada*, Nye, Stewart; *New Hampshire*, Cragin, Patterson (J. W.); *New Jersey*, Cattell, Frelinghuysen; *New York*, Conklin, Morgan; *Ohio*, Sherman, Wade; *Oregon*, Corbett, Williams; *Pennsylvania*, Buckalew, Cameron; *Rhode Island*, Anthony, Sprague; *Tennessee*, Fowler, Patterson (David); *Vermont*, Edmunds, Morrill (J. S.); *West Virginia*, Van Winkle, Willey; *Wisconsin*, Doolittle, Howe.

Managers for the Prosecution: Messrs. Bingham, Boutwell, Butler, Logan, Stevens, Williams, Wilson.

Counsel for the President: Messrs. Curtis, Evarts, Groesbeck, Nelson, Stanbery.

The following was the order of procedure: The Senate convened at 11 or 12 o'clock, and was called to order by the president of that body, who, after prayer, would leave the chair, which was immediately assumed by the Chief Justice, who wore his official robes. The prosecution was mainly conducted by Mr. Butler, who examined the witnesses, and, in conjunction with the others, argued the points of law which came up. The defense, during the early part of the trial, was mainly conducted by Mr. Stanbery, who had resigned the office of Attorney-General for this purpose, but, being taken suddenly ill, Mr. Evarts took his place. According to the rule at first adopted, the trial was to be opened by one counsel on each side, and summed up by two on each side; but this rule was subsequently modified so

as to allow as many of the managers and counsel as chose to sum up, either orally or by filing written arguments.

THE PROSECUTION.

The whole of the first day (March 30) was occupied by the opening speech of Mr. Butler. After touching upon the importance of the case, and the wisdom of the framers of the Constitution in providing for its possible occurrence, he laid down the following proposition, supporting it by a copious array of authorities and precedents:

“We define, therefore, an impeachable high crime or misdemeanor to be one, in its nature or consequences, subversive of some fundamental or essential principle of government, or highly prejudicial to the public interest, and this may consist of a violation of the Constitution, of law, of an official oath, or of duty, by an act committed or omitted, or, without violating a positive law, by the abuse of discretionary powers from improper motives, or for any improper purpose.”

He then proceeded to discuss the nature and functions of the tribunal before which the trial is held. He asked: “Is this proceeding a trial, as that term is understood, so far as relates to the rights and duties of a court and jury upon an indictment for crime? Is it not rather more in the nature of an inquest?” The Constitution, he urged, “seems to have determined it to be the latter, because, under its provisions, the right to retain and hold office is the only subject to be finally adjudicated; all preliminary inquiry being carried on solely to determine that question, and that alone.” He then proceeded to argue that this body now sitting to determine the accusation, is the Senate of the United States, and not a court. This question is of consequence, he argued, because, in the latter case, it would be bound by the rules and precedents of common law statutes; the members of the court would be liable to challenge on many grounds; and the accused might claim that he could only be convicted when the evidence makes the fact clear beyond reasonable doubt, instead of by a preponderance of the evidence. The fact that in this case the Chief Justice presides, it was argued, does not constitute the Senate thus acting a court; for in all cases of impeachment, save that of the President, its regular presiding officer presides. Moreover, the procedures have no analogy to those of an ordinary court of justice. The

accused merely receives a notice of the case pending against him. He is not required to appear personally, and the case will go on without his presence. Mr. Butler thus summed up his position in this regard:

“A constitutional tribunal solely, you are bound by no law, either statute or common, which may limit your constitutional prerogative. You consult no precedents save those of the law and custom of parliamentary bodies. You are a law unto yourselves, bound only by the natural principles of equity and justice, and that *salus populi suprema est lex*.”

Mr. Butler then proceeded to consider the articles of impeachment. The first eight, he says, “set out, in several distinct forms, the acts of the President in removing Mr. Stanton and appointing General Thomas, differing, in legal effect, in the purposes for which, and the intent with which, either or both of the acts were done, and the legal duties and rights infringed, and the Acts of Congress violated in so doing.” In respect to all of these articles, Mr. Butler says, referring to his former definition of what constituted an impeachable high crime:

“All the articles allege these acts to be in contravention of his oath of office, and in disregard of the duties thereof. If they are so, however, the President might have the power to do them under the law. Still, being so done, they are acts of official misconduct, and, as we have seen, impeachable. The President has the legal power to do many acts which, if done in disregard of his duty, or for improper purposes, then the exercise of that power is an official misdemeanor. For example, he has the power of pardon; if exercised, in a given case, for a corrupt motive, as for the payment of money, or wantonly pardoning all criminals, it would be a misdemeanor.”

Mr. Butler affirmed that every fact charged in the first article, and substantially in the seven following, is admitted in the reply of the President; and also that the general intent to set aside the Tenure-of-Office Act is therein admitted and justified. He then proceeded to discuss the whole question of the power of the President for removals from office, and especially his claim that this power was imposed upon the President by the Constitution, and that it could not be taken from him, or be vested jointly in him and the Senate, partly or in whole. This, Mr. Butler affirmed, was the real question at issue before the Senate and the American people. He said:

“Has the President, under the Constitution, the more than royal prerogative at will to remove from office, or to suspend from office, all executive officers of the United States, either civil, military or naval, and to fill the vacancies, without any restraint whatever, or possibility of restraint, by the Senate or by Congress, through laws duly enacted? The House of Representatives, in behalf of the people, join issue by affirming that the exercise of such powers is a high misdemeanor in office. If the affirmative is maintained by the respondent, then, so far as the first eight articles are concerned—unless such corrupt purposes are shown as will of themselves make the exercise of a legal power a crime—the respondent must go, and ought to go, quit and free.”

This point as to the legal right of the President to make removals from office, which constitutes the real burden of the articles of impeachment, was argued at length. Mr. Butler assumed that the Senate, by whom, in conjunction with the House, the Tenure-of-Office Act had been passed over the veto of the President, would maintain the law to be constitutional. The turning point was whether the special case of the removal of Mr. Stanton came within the provisions of this law. This rested upon the proviso of that law, that—

“The Secretaries shall hold their office during the term of the President by whom they may have been appointed, and for one month thereafter, subject to removal by and with the advice and consent of the Senate.”

The extended argument upon this point, made by Mr. Butler, was to the effect that Mr. Stanton having been appointed by Mr. Lincoln, whose term of office reached to the 4th of March, 1869, that of Mr. Stanton existed until a month later, unless he was previously removed by the concurrent action of the President and Senate. The point of the argument is, that Mr. Johnson is merely serving out the balance of the term of Mr. Lincoln, cut short by his assassination, so that the Cabinet officers appointed by Mr. Lincoln held their places, by this very proviso, during that term and for a month thereafter; for, he argued, if Mr. Johnson was not merely serving out the balance of Mr. Lincoln’s term, then he is entitled to the office of President for four full years, that being the period for which a President is elected. If, continues the argument, Mr. Stanton’s commission was vacated by the Tenure-of-Office Act, it ceased on the 4th of April, 1865; or, if the act had no retroactive effect, still, if Mr. Stanton held office merely under his

commission from Mr. Lincoln, then his functions would have ceased upon the passage of the bill, March 2, 1867; and, consequently, Mr. Johnson, in “employing” him after that date as Secretary of War, was guilty of a high misdemeanor, which would give ground for a new article of impeachment.

After justifying the course of Mr. Stanton in holding on to the secretaryship in opposition to the wish of the President, on the ground that “to desert it now would be to imitate the treachery of his accidental chief,” Mr. Butler proceeded to discuss the reasons assigned by the President in his answer to the articles of impeachment for the attempt to remove Mr. Stanton. These, in substance, were, that the President believed the Tenure-of-Office Act was unconstitutional, and, therefore, void and of no effect, and that he had the right to remove him and appoint another person in his place. Mr. Butler urged that, in all of these proceedings, the President professed to act upon the assumption that the act was valid, and that his action was in accordance with its provisions. He then went on to charge that the appointment of General Thomas as Secretary of War *ad interim*, was a separate violation of law. By the act of February 20, 1863, which repealed all previous laws inconsistent with it, the President was authorized, in case of the “death, resignation, absence from the seat of Government, or sickness of the head of an executive department,” or in any other case where these officers could not perform their respective duties, to appoint the head of any other executive department to fulfill the duties of the office “until a successor be appointed, or until such absence or disability shall cease.” Now, urged Mr. Butler, at the time of the appointment of General Thomas as Secretary of War *ad interim*, Mr. Stanton “had neither died nor resigned, was not sick nor absent,” and, consequently, General Thomas, not being the head of a department, but only of a bureau of one of them, was not eligible to this appointment, and that, therefore, his appointment was illegal and void.

The ninth article of impeachment, wherein the President is charged with endeavoring to induce General Emory to take orders directly from himself, is dealt with in a rather slight manner. Mr. Butler says, “If the transaction set forth in this article stood alone, we might well admit that doubts might arise as to the sufficiency of the proof;” but, he adds, the surroundings are so pointed and significant as to leave no doubt in the mind of an impartial man as to the intents and purposes of the President—these intents being,

according to Mr. Butler, “to induce General Emory to take orders directly from himself, and thus to hinder the execution of the Civil Tenure Act, and to prevent Mr. Stanton from holding his office of Secretary of War.”

As to the tenth article of impeachment, based upon various speeches of the President, Mr. Butler undertook to show that the reports of these speeches, as given in the article, were substantially correct; and accepted the issue made thereupon as to whether they are “decent and becoming the President of the United States, and do not tend to bring the office into ridicule and disgrace.”

After having commented upon the eleventh and closing article, which charges the President with having denied the authority of the Thirty-ninth Congress, except so far as its acts were approved by him, Mr. Butler summed up the purport of the articles of impeachment in these words:

“The acts set out in the first eight articles are but the culmination of a series of wrongs, malfeasances, and usurpations committed by the respondent, and, therefore, need to be examined in the light of his precedent and concomitant acts to grasp their scope and design. The last three articles presented show the perversity and malignity with which he acted, so that the man as he is known may be clearly spread upon record, to be seen and known of all men hereafter.... We have presented the facts in the constitutional manner; we have brought the criminal to your bar, and demand judgment for his so great crimes.”

The remainder of Monday, and a portion of the following day, were devoted to the presentation of documentary evidence as to the proceedings involved in the order for the removal of Mr. Stanton and the appointment of General Thomas. The prosecution then introduced witnesses to testify to the interviews between Mr. Stanton and General Thomas. They then brought forward a witness to show that General Thomas had avowed his determination to take forcible possession of the War Office. To this Mr. Stanbery, for the defense, objected. The Chief Justice decided the testimony to be admissible. Thereupon Senator Drake took exception to the ruling, on the ground that this question should be decided by the Senate—not by the presiding officer. The Chief Justice averred that, in his judgment, it was his duty to decide, in the first instance, upon any question of evidence, and then, if any Senator desired, to submit the decision to the Senate. Upon this

objection and appeal arose the first conflict in the Senate as to the powers of its presiding officer. Mr. Butler argued at length in favor of the exception. Although, in this case, the decision was in favor of the prosecution, he objected to the power of the presiding officer to make it. This point was argued at length by the managers for the impeachment, who denied the right of the Chief Justice to make such decision. It was then moved that the Senate retire for private consultation on this point. There was a tie vote—25 ayes and 25 nays. The Chief Justice gave his casting vote in favor of the motion for consultation. The Senate, by a vote of 31 to 19, sustained the Chief Justice, deciding that “the presiding officer may rule on all questions of evidence and on incidental questions, which decision will stand as the judgment of the Senate for decision, or he may, at his option in the first instance, submit any such question to a vote of the members of the Senate.” In the further progress of the trial the Chief Justice, in most important cases, submitted the question directly to the Senate, without himself giving any decision. Next morning (April 1) Mr. Sumner offered a resolution to the effect that the Chief Justice, in giving a casting vote, “acted without authority of the Constitution of the United States.” This was negatived by a vote of 27 to 21, thus deciding that the presiding officer had the right to give a casting vote. The witness (Mr. Burleigh, delegate from Dakotah), who had been called to prove declarations of General Thomas, was then asked whether, at an interview between them, General Thomas had said any thing as “to the means by which he intended to obtain, or was directed by the President to obtain, possession of the War Department.” To this question Mr. Stanbery objected, on the ground that any statements made by General Thomas could not be used as evidence against the President. Messrs. Butler and Bingham argued that the testimony was admissible, on the ground that there was, as charged, a conspiracy between the President and General Thomas, and that the acts of one conspirator were binding upon the other; and, also, that in these acts General Thomas was the agent of the President. The Senate, by 39 to 11, decided that the question was admissible. Mr. Burleigh thereupon testified substantially that General Thomas informed him that he had been directed by the President to take possession of the War Department; that he was bound to obey his superior officer; that, if Mr. Stanton objected, he should use force, and if he bolted the doors they would be broken down. The witness was then asked whether he had heard General Thomas make any statement to the clerks of the War Office, to the effect

that, when he came into control, he would relax or rescind the rules of Mr. Stanton. To this question objection was made by the counsel of the President on the ground of irrelevancy. The Chief Justice was of opinion that the question was not admissible, but, if any Senator demanded, he would submit to the Senate whether it should be asked. The demand having been made, the Senate, by a vote of 28 to 22, allowed the question to be put, whereupon Mr. Burleigh testified that General Thomas, in his presence, called before him the heads of the divisions, and told them that the rules laid down by Mr. Stanton were arbitrary, and that he should relax them—that he should not hold them strictly to their letters of instruction, but should consider them as gentlemen who would do their duty—that they could come in or go out when they chose. Mr. Burleigh further testified that, subsequently, General Thomas had said to him that the only thing which prevented him from taking possession of the War Department was his arrest by the United States marshal. Other witnesses were called to prove the declarations of General Thomas. Mr. Wilkeson testified that General Thomas said to him that he should demand possession of the War Department, and, in case Mr. Stanton should refuse to give it up, he should call upon General Grant for a sufficient force to enable him to do so, and he did not see how this could be refused. Mr. Karsener, of Delaware, testified that he saw General Thomas at the President's house, told him that Delaware, of which State General Thomas is a citizen, expected him to stand firm; to which General Thomas replied that he was standing firm, that he would not disappoint his friends, but that, in a few days, he would “kick that fellow out,” meaning, as the witness supposed, Mr. Stanton.



SCHUYLER COLFAX.

Thursday, April 2d.—Various witnesses were introduced to testify to the occurrences when General Thomas demanded possession of the War Department. After this General Emory was called to testify to the transactions which form the ground of the ninth article of impeachment. His testimony was to the effect that the President, on the 22d of February, requested him to call; that, upon so doing, the President asked respecting any changes that had been made in the disposition of the troops around Washington; that he informed the President that no important changes had been made, and that none could be made without an order from General Grant, as provided for in an order founded upon a law sanctioned by the President. The President said that this law was unconstitutional. Emory

replied that the President had approved of it, and that it was not the prerogative of the officers of the army to decide upon the constitutionality of a law, and in that opinion he was justified by the opinion of eminent counsel, and thereupon the conversation ended.

The prosecution then endeavored to introduce testimony as to the appointment of Mr. Edmund Cooper, the Private Secretary of the President, as Assistant Secretary of the Treasury, in support of the eighth and eleventh articles of impeachment, which charge the President with an unlawful attempt to control the disposition of certain public funds. This testimony, by a vote of 27 to 22, was ruled out.

The prosecution now, in support of the tenth and eleventh articles of impeachment, charging the President with endeavoring to “set aside the rightful authority of Congress,” offered a telegraphic dispatch from the President to Mr. Parsons, at that time (January 17, 1867) Provisional Governor of Alabama, of which the following is the essential part:

“I do not believe the people of the whole country will sustain any set of individuals in the attempt to change the whole character of our Government by enabling acts in this way, I believe, on the contrary, that they will eventually uphold all who have patriotism and courage to stand by the Constitution, and who place their confidence in the people. There should be no faltering on the part of those who are honest in their determination to sustain the several coördinate departments of the Government in accordance with its original design.”

The introduction of this was objected to by the counsel for the President, but admitted by the Senate, the vote being 27 to 17.

The whole of Friday, and a great part of Saturday, (April 3d and 4th,) were occupied in the examination of the persons who reported the various speeches of the President which form the basis of the tenth article, the result being that the reports were shown to be either substantially or verbally accurate. Then, after some testimony relating to the forms in which commissions to office were made out, the managers announced that the case for the prosecution was substantially closed. The counsel for the President thereupon asked that three working days should be granted them to prepare for the defense. This, after some discussion, was granted by the Senate by a vote of 37 to 9, and the trial was adjourned to Thursday, April 9th.

THE DEFENSE.

The opening speech for the defense, occupying the whole of Thursday, and a part of Friday, was made by Mr. Curtis. Reserving, for a time, a rejoinder to Mr. Butler's argument as to the functions of the Senate when sitting as a Court of Impeachment, Mr. Curtis proceeded to a consideration of the articles of impeachment, in their order, his purpose being "to ascertain, in the first place, what the substantial allegations in each of them are, what is the legal proof and effect of these allegations, and what proof is necessary to be adduced in order to sustain them." The speech is substantially an elaboration of and argument for the points embraced in the answer of the President. The main stress of the argument related to the first article, which, as stated by Mr. Curtis, when stripped of all technical language, amounts exactly to these things:

"First. That the order set out in the article for the removal of Mr. Stanton, if executed, would have been a violation of the Tenure-of-Office Act.

"Second. That it was a violation of the Tenure-of-Office Act.

"Third. That it was an intentional violation of the Tenure-of-Office Act.

"Fourth. That it was in violation of the Constitution of the United States.

"Fifth. That it was intended by the President to be so.

"Or, to draw all these into one sentence, which I hope may be intelligible and clear enough, I suppose the substance of this first article is that the order for the removal of Mr. Stanton was, and was intended to be, a violation of the Constitution of the United States. These are the allegations which it is necessary for the honorable managers to make out in order to support that article."

Mr. Curtis proceeded to argue that the case of Mr. Stanton did not come within the provisions of the Tenure-of-Office Act, being expressly excepted by the proviso that Cabinet officers should hold their places during the term of the President by whom they were appointed, and for one month

thereafter, unless removed by the consent of the Senate. Mr. Stanton was appointed by Mr. Lincoln, whose term of office came to an end by his death. He argued at length against the proposition that Mr. Johnson was merely serving out the remainder of Mr. Lincoln's term. The object of this exception, he said, was evident. The Cabinet officers were to be "the immediate confidential assistants of the President, for whose acts he was to be responsible, and in whom he was expected to repose the gravest honor, trust, and confidence; therefore it was that this act has connected the tenure-of-office of these officers with that of the President by whom they were appointed." Mr. Curtis gave a new interpretation to that clause in the Constitution which prescribes that the President "may require the opinion, in writing, of the principal officer in each of the executive departments upon any subject relating to the duties of their several offices." He understood that the word "their" included the President, so that he might call upon Cabinet officers for advice "relating to the duties of the office of these principal officers, or relating to the duties of the President himself." This, at least, he affirmed, had been the practical interpretation put upon this clause from the beginning. To confirm his position as to the intent of the Tenure-of-Office Act in this respect, Mr. Curtis quoted from speeches made in both houses at the time when the act was passed. Thus, Senator Sherman said that the act, as passed—

"Would not prevent the present President from removing the Secretary of War, the Secretary of the Navy, or the Secretary of State; and, if I supposed that either of these gentlemen was so wanting in manhood, in honor, as to hold his place after the politest intimation from the President of the United States that his services were no longer needed, I certainly, as a Senator, would consent to his removal at any time, and so would we all."

Mr. Curtis proceeded to argue that there was really no removal of Mr. Stanton; he still held his place, and so there was "no case of removal within the statute, and, therefore, no case of violation by removal." But, if the Senate should hold that the order for removal was, in effect, a removal, then, unless the Tenure-of-Office Act gave Mr. Stanton a tenure-of-office, this removal would not have been contrary to the provisions of this act. He proceeded to argue that there was room for grave doubt whether Mr. Stanton's case came within the provisions of the Tenure-of-Office Act, and that the President, upon due consideration, and having taken the best advice

within his power, considering that it did not, and acting accordingly, did not, even if he was mistaken, commit an act “so willful and wrong that it can be justly and properly, and for the purposes of this prosecution, termed a high misdemeanor.” He argued at length that the view of the President was the correct one, and that “the Senate had nothing whatever to do with the removal of Mr. Stanton, whether the Senate was in session or not.”

Mr. Curtis then went on to urge that the President, being sworn to take care that the laws be faithfully executed, must carry out any law, even though passed over his veto, except in cases where a law which he believed to be unconstitutional has cut off a power confided to him, and in regard to which he alone could make an issue which would bring the matter before a court, so as to cause “a judicial decision to come between the two branches of the Government, to see which of them is right.” This, said he, is what the President has done. This argument, in effect, was an answer to the first eight articles of impeachment.

The ninth article, charging the President with endeavoring to induce General Emory to violate the law by receiving orders directly from him, was very briefly touched upon, it being maintained that, as shown by the evidence, “the reason why the President sent for General Emory was not that he might endeavor to seduce that distinguished officer from his allegiance to the laws and Constitution of his country, but because he wished to obtain information about military movements which might require his personal attention.”

As to the tenth article, based upon the President’s speeches, it was averred that they were in no way in violation of the Constitution, or of any law existing at the time when they were made, and were not, therefore, impeachable offenses.

The reply to the eleventh article was very brief. The managers had “compounded it of the materials which they had previously worked up into others,” and it “contained nothing new that needed notice.” Mr. Curtis concluded his speech by saying that—

“This trial is and will be the most conspicuous instance that has ever been, or even can be expected to be found, of American justice or of American injustice; of that justice which is the great policy of all civilized States; of that injustice which is certain to be condemned, which makes

even the wisest man mad, and which, in the fixed and unalterable order of God's providence, is sure to return and plague the inventor."

At the close of this opening speech for the defense, General Lorenzo Thomas was brought forward as a witness. His testimony, elicited upon examination and cross-examination, was to the effect that, having received the order appointing him Secretary of War *ad interim*, he presented it to Mr. Stanton, who asked, "Do you wish me to vacate the office at once, or will you give me time to get my private property together?" to which Thomas replied, "Act your pleasure." Afterward Stanton said, "I don't know whether I will obey your instructions." Subsequently Thomas said that he should issue orders as Secretary of War. Stanton said he should not do so, and afterward gave him a written direction, not to issue any order except as Adjutant-General. During the examination of General Thomas a question came up which, in many ways, recurred upon the trial. He was asked to tell what occurred at an interview between himself and the President. Objection was made by Mr. Butler, and the point was argued. The question was submitted to the Senate, which decided, by a vote of 42 to 10, that it was admissible. The testimony of General Thomas, from this point, took a wide range, and, being mainly given in response to questions of counsel, was, apparently, somewhat contradictory. The substance was that he was recognized by the President as Secretary of War; that, since the impeachment, he had acted as such only in attending Cabinet meetings, but had given no orders; that, when he reported to the President that Mr. Stanton would not vacate the War Department, the President directed him to "take possession of the office;" that, without orders from the President, he had intended to do this by force, if necessary; that, finding that this course might involve bloodshed, he had abandoned this purpose, but that, after this, he had, in several cases, affirmed his purpose to do so, but that these declarations were "merely boast and brag." On the following day General Thomas was recalled as a witness, to enable him to correct certain points in his testimony. The first was the date of an unimportant transaction; he had given it as taking place on the 21st of February, whereas it should have been the 22d. The second was that the words of the President were that he should "take charge," not "take possession" of the War Department. In explanation of the fact that he had repeatedly sworn to the words "take possession," he said that these were "put into his mouth." Finally, General Thomas, in reply

to a direct question from Mr. Butler, said that his testimony on these points was "all wrong."

Lieutenant-General Sherman was then called as a witness. After some unimportant questions, he was asked in reference to an interview between himself and the President which took place on the 14th of January: "At that interview what conversation took place between the President and you in reference to the removal of Mr. Stanton?" To this question objection was made by Mr. Butler, and the point was elaborately argued. The Chief Justice decided that the question was admissible within the vote of the Senate of the previous day; the question then was as to the admissibility of evidence as to a conversation between the President and General Thomas; the present question was as to a conversation between the President and General Sherman. "Both questions," said the Chief Justice, "are asked for the purpose of procuring the intent of the President in the attempt to remove Mr. Stanton." The question being submitted to the Senate, it was decided, by a vote of 28 to 23, that it should not be admitted. The examination of General Sherman was continued, the question of the conversation aforesaid being frequently brought forward, and as often ruled out by the Senate. The only important fact elicited was that the President had twice, on the 25th and 30th of January, tendered to General Sherman the office of Secretary of War *ad interim*.

On Monday, April 13th, after transactions of minor importance, the general matter of the conversations between the President and General Sherman again came up, upon a question propounded by Senator Johnson—"When the President tendered to you the office of Secretary of War *ad interim*, did he, at the very time of making such tender, state to you what his purpose in so doing was?" This was admitted by the Senate, by a vote of 26 to 22. Senator Johnson then added to his question, "If he did, what did he state his purpose was?" This was admitted, by a vote of 25 to 26. The testimony of General Sherman, relating to several interviews, was to the effect that the President said that the relations between himself and Mr. Stanton were such that he could not execute the office of President without making provision to appoint a Secretary of War *ad interim*, and he offered that office to him (General Sherman), but did not state that his purpose was to bring the matter directly into the courts. Sherman said that, if Mr. Stanton would retire, he might, although against his own wishes, undertake to

administer the office *ad interim*, but asked what would be done in case Mr. Stanton would not yield. To this the President replied, "He will make no opposition; you present the order, and he will retire. I know him better than you do; he is cowardly." General Sherman asked time for reflection, and then gave a written answer, declining to accept the appointment, but stated that his reasons were mostly of a personal nature.

On the 14th the Senate adjourned, on account of the sudden illness of Mr. Stanbery. It re-assembled on the 15th, but the proceedings touched wholly upon formal points of procedure and the introduction of unimportant documentary evidence. On the 16th Mr. Sumner moved that all evidence not trivial or obviously irrelevant shall be admitted, the Senate to judge of its value. This was negatived by a vote of 23 to 11.

The 17th was mainly taken up by testimony as to the reliability of the reports of the President's speeches. Mr. Welles, Secretary of the Navy, was then called to testify to certain proceedings in Cabinet Council at the time of the appointment of General Thomas. This was objected to. The Chief Justice decided that it was admissible, and his decision was sustained by a vote of 26 to 23. The defense then endeavored to introduce several members of the Cabinet, to show that, at meetings previous to the removal of Mr. Stanton, it was considered whether it was not desirable to obtain a judicial determination of the unconstitutionality of the Tenure-of-Office Act. This question was raised in several shapes, and its admission, after thorough argument on both sides, as often refused, in the last instance by a decisive vote of 30 to 19. The defense considered this testimony of the utmost importance, as going to show that the President had acted upon the counsel of his constitutional advisers, while the prosecution claimed that he could not plead in justification of a violation of the law that he had been advised by his cabinet, or any one else, that the law was unconstitutional. His duty was to execute the laws, and, if he failed to do this, or violated them, he did so at his own risk of the consequences. With the refusal of this testimony, the case, except the final summings up and the verdict of the Senate, was virtually closed.

The case had been so fully set forth in the opening speeches of Messrs. Butler and Curtis, and in the arguments which came up upon points of testimony, that there remained little for the other counsel except to restate what had before been said.

After the evidence had been closed the case was summed up, on the part of the managers by Messrs. Boutwell, Williams, Stevens, and Bingham in oral arguments, and Mr. Logan, who filed a written argument, and on the part of the President by Messrs. Nelson, Groesbeck, Stanbery, and Evarts. Many of these speeches were distinguished by great brilliancy and power, but, as no new points were presented, we omit any summary.

The Court decided to take a vote upon the articles on Tuesday, the 12th of May, at 12 o'clock, M. A secret session was held on Monday, during which several Senators made short speeches, giving the grounds upon which they expected to cast their votes. On Tuesday the Court agreed to postpone the vote until Saturday, the 16th. Upon that day, at 12 o'clock, a vote was taken upon the eleventh article, it having been determined to vote on that article first. The vote resulted in 35 votes for conviction, and 19 for acquittal.

The question being put to each Senator, "How say you, is the respondent, Andrew Johnson, President of the United States, guilty or not guilty of a high misdemeanor as charged in the article?"—those who responded guilty were Senators Anthony, Cameron, Cattell, Chandler, Cole, Conkling, Conness, Corbett, Cragin, Drake, Edmunds, Ferry, Frelinghuysen, Harlan, Howard, Howe, Morgan, Morrill, of Vermont, Morrill, of Maine, O. P. Morton, Nye, Patterson, N. H. Pomeroy, Ramsey, Sherman, Sprague, Stewart, Sumner, Thayer, Tipton, Wade, Willey, Williams, Wilson, and Yates.

Those who responded not guilty were Senators Bayard, Buckalew, Davis, Dixon, Doolittle, Fessenden, Fowler, Grimes, Henderson, Hendricks, Johnson, M'Creery, Norton, Patterson, of Tennessee, Ross, Saulsbury, Trumbull, Van Winkle, and Vickers.

The Constitution requiring a vote of two-thirds to convict, the President was acquitted on this article. After taking this vote the Court adjourned until Tuesday, May 26th, when votes were taken upon the second and third articles, with precisely the same result as on the eleventh, the vote in each case standing 35 for conviction and 19 for acquittal. A verdict of acquittal on the second, third, and eleventh articles was then ordered to be entered on the record, and, without voting on the other articles, the Court adjourned *sine die*. So the trial was ended, and the President acquitted.

THE CHICAGO PLATFORM, 1868.

The following is the platform as adopted:

“The National Republican Party of the United States, assembled in National Convention, in the city of Chicago, on the 20th day of May, 1868, make the following declaration of principles:

“1. We congratulate the country on the assured success of the reconstruction policy of Congress, as evinced by the adoption, in the majority of the States lately in rebellion, of constitutions securing equal civil and political rights to all; and it is the duty of the Government to sustain those constitutions and to prevent the people of such States from being remitted to a state of anarchy.

“2. The guarantee by Congress of equal suffrage to all loyal men at the South was demanded by every consideration of public safety, of gratitude, and of justice, and must be maintained, while the question of suffrage in all the loyal States properly belongs to the people of those States.

“3. We denounce all forms of repudiation as a national crime, and the national honor requires the payment of the public indebtedness in the utmost good faith to all creditors at home and abroad, not only according to the letter but the spirit of the laws under which it was contracted.

“4. It is due to the labor of the nation that taxation should be equalized and reduced as rapidly as the national faith will permit.

“5. The national debt, contracted, as it has been, for the preservation of the Union for all time to come, should be extended over a fair period for redemption; and it is the duty of Congress to reduce the rate of interest thereon whenever it can be honestly done.

“6. That the best policy to diminish our burden of debt is to so improve our credit that capitalists will seek to loan us money at lower rates of interest than we now pay, and must continue to pay, so long as repudiation, partial or total, open or covert, is threatened or suspected.

“7. The Government of the United States should be administered with the strictest economy, and the corruptions which have been so shamefully nursed and fostered by ANDREW JOHNSON call loudly for radical reform.

“8. We professedly deplore the untimely and tragic death of ABRAHAM LINCOLN, and regret the accession of ANDREW JOHNSON to the Presidency, who has acted treacherously to the people who elected him, and the cause he was pledged to support—who has usurped high legislative and judicial functions—who has refused to execute the laws—who has used his high office to induce other officers to ignore and violate the laws—who has employed his executive powers to render insecure the property, the peace, liberty, and life of the citizen—who has abused the pardoning power—who has denounced the National Legislature as unconstitutional—persistently and corruptly resisted, by every measure in his power, every proper attempt at the reconstruction of the States lately in rebellion—who has perverted the public patronage into an engine of wholesale corruption, and who has been justly impeached for high crimes and misdemeanors, and properly pronounced guilty thereof by the vote of thirty-five Senators.

“9. The doctrine of Great Britain and other European Powers, that because a man is once a subject he is always so, must be resisted at every hazard by the United States as a relic of the feudal times, not authorized by the law of nations, and at war with our national honor and independence. Naturalized citizens are entitled to be protected in all their rights of citizenship as though they were native born; and no citizen of the United States, native or naturalized, must be liable to arrest and imprisonment by any foreign power for acts done or words spoken in this country; and if so arrested and imprisoned it is the duty of the Government to interfere in his behalf.

“10. Of all who were faithful in the trials of the late war there were none entitled to more especial honor than the brave soldiers and seamen who endured the hardships of campaign and cruise, and imperiled their lives in the service of the country. The bounties and pensions provided by the laws for these brave defenders of the nation are obligations never to be forgotten. The widows and orphans of the gallant dead are the wards of the people, a sacred legacy bequeathed to the nation’s protecting care.

“11. Foreign emigration, which in the past has added so much to the wealth, development, and resources, and increase of power to this nation, the asylum of the oppressed of all nations, should be fostered and encouraged by a liberal and just policy.

“12. This Convention declares itself in sympathy with all the oppressed people which are struggling for their rights.”

The following resolutions were also adopted unanimously, and are added to the declaration of principles:

“Resolved, That we highly commend the spirit of magnanimity and forgiveness with which the men who have served in the rebellion, but now frankly and honestly coöperate with us in restoring the peace of the country and reconstructing the Southern State governments upon the basis of impartial justice and equal rights, are received back into the communion of the loyal people. And we favor the removal of the disqualifications and restrictions placed upon the late rebels in the same measure as the spirit of loyalty will direct, and as may be consistent with the safety of the loyal people.

“Resolved, That we recognize the great principles laid down in the immortal Declaration of Independence as the true foundation of Democratic government: and we hail with gladness every effort toward making these principles a living reality on every inch of American soil.”

THE HON. SCHUYLER COLFAX.

Schuyler Colfax, the popular candidate of the National Union Republican party for the office of Vice-President, is a native of New York City. He was born in North Moore Street, March 23, 1823, his father having died but a short time previous. With but limited means, his widowed mother could afford to keep him at school but a short time, and, at the age of ten, he was placed in a mercantile establishment, where he remained for three years, contributing materially from his small salary to the support of both himself and mother. In 1836, he and his mother, in company with others, left their home in this city, and settled in St. Joseph County, Indiana. Shortly after his arrival in the West he was appointed Deputy County Auditor for St. Joseph County, and employed his leisure hours in the study of State law, in which he is said soon to have become an acknowledged expounder. He read law pretty thoroughly during these leisure hours, but not with a view to adopting it as a profession. He had but little idea of what great benefit the information he was then gaining would prove to him in after years. In 1845, he started a weekly journal at South Bend, the county seat of St. Joseph County, called the St. Joseph Valley Register, becoming its sole proprietor and editor. Mr. Lanman, in his Dictionary of Congress, says "he was bred a printer." He never was apprenticed to the printing business, and knew nothing of the practical part of the "art preservative of all arts" until after he had commenced the publication of the Register. With his ready tact and quick perception, however, and great anxiety to economize, for his means were yet very limited, he soon mastered the art sufficiently to "help out of the drag," but he never attained to any great proficiency in the business, his editorial labors, the business of the office, and other duties soon claiming his entire attention. The Register prospered, and soon became a source of profit to its proprietor. It was ably edited, and was a model of courtesy and dignity. Every paragraph, however small, seemed to have passed under the supervision of and to reflect the mind and elevated thoughts of its editor. He continued his connection with this paper until three or four years ago, writing a regular weekly letter for its columns during his first two terms in Congress. It was during the early days of the Register that Mr. Colfax was

laying the foundation for the reputation he has since attained as a debater. A debating club was formed, which held regular weekly meetings during the winter season, and it was a rare occurrence, indeed, to find Mr. Colfax absent from one of these stated gatherings. Politics, the temperance reform, and other subjects were often as ably debated in this society as kindred questions are in many deliberate bodies of much greater pretensions of the present day. The Hon. John D. Defrees, now Superintendent of Government Printing, and for many years editor and proprietor of the Indianapolis Journal, to which Mr. Colfax was also attached as Senate reporter for some time after he commenced the publication of the Register, was also a participant in these debates. They were both Whigs, both ardent and sincere advocates of and believers in the temperance reform, and were, consequently, seldom pitted against each other in these debates. The attachment formed at this early day between those gentlemen still continues with unabated fervor. In 1848, Mr. Colfax was chosen as a delegate, and elected as secretary of the convention which nominated General Taylor for the Presidency. In 1850, he represented St. Joseph County in the convention which framed the present Constitution of Indiana. In this convention he opposed, with all his ability, the adoption of the clause prohibiting free colored men from settling in the State. His opposition to this measure was the cause of his defeat the following year, when nominated for Congress in opposition to Dr. Fitch. But, with all the ability, tact, and shrewdness of this old political wireworker, he only distanced his young competitor two hundred votes in a district which had been strongly democratic for years. In 1852, he was again a delegate to the Whig National Convention. He took an active part in the campaign which followed, speaking often, and writing much. In 1854, he was re-nominated, and elected to Congress, and was, consequently, more active than ever before. His experience as a debater, and familiarity with State and National politics, rendered him an overmatch for his opponents, whom he was always anxious to meet in an open and fair discussion before the people, where he was always certain of a victory. In 1856, he was again nominated for Congress, and reëlected by a handsome majority. His entrance into Congress was in the midst of the great struggle over the Lecompton Constitution. A writer says of his maiden speech in the House: "His first speech in Congress went forth to repel the tide of terror which was sweeping over struggling Kansas, and clearly showed that even then he was one of the best debaters in the lower House." Over 500,000

copies of this speech were printed and circulated—a compliment, perhaps, never before received by any member of Congress. He was first chosen Speaker of the Thirty-eighth Congress, by a vote of 101 to 81. He has been thrice elected to the same position, each time by an increased majority. He was appointed chairman of the Committee on Post-offices and Post-roads, on the organization of the Thirty-seventh Congress, and did much to extend mail facilities throughout the West. He was one of the first advocates, and is still one of the warmest friends of the Pacific Railroad. Indeed, he takes a warm interest in any movement looking to the development of the boundless resources of the great West. It was, doubtless, the interest he feels in this section of the country which induced him to take his celebrated trip “Across the Continent.” His trip was a perilous one, but his welcome at “the other end of the line” was so spontaneous, truly genuine, and heart-felt that it more than repaid him for all the dangers and hardships he passed through. This trip prepared him for one of the most entertaining lectures ever delivered in this country. It has been listened to with rapt attention by the people of almost every city in the North. Pecuniarily, however, it has profited him but little, for, with that liberality which has ever been a marked trait in his character, the entire proceeds of a lecture have as often been donated to some charitable object as they have found their way into his own pocket. He has now served, in succession, fourteen years in the House. He was urged, but he declined to accept a seat in the United States Senate, preferring his presiding chair in the House. As a presiding officer, he is the most popular the House has had since Henry Clay. A writer in Putnam’s Magazine truly observes that Mr. Colfax “Has no eccentricities, but great tact. His talents are administrative and executive rather than deliberative. He would make good appointments, and adopt sure policies. He would make a better President or Speaker of the House than Senator. He knows men well, estimates them correctly, treats them all fairly and candidly. No man will get through his business with you in fewer minutes, and yet none is more free from the horrid *brusqueness* of busy men. There are heart and kindness in Mr. Colfax’s politeness. Men leave his presence with the impression that he is at once an able, honest, and kind man. Political opponents like him personally, as well as his political friends. We have never heard that he has any enemies. The breath of slander has been silent toward his fair, spotless fame. The wife of his youth, after being for a long time an invalid, sank to her final rest several years ago, leaving him

childless. His mother and sister preside at his receptions, which for many years have been, not the most brilliant, but the most popular of any given at the Capital. Socially, Mr. Colfax is frank, lively, jolly. The everlasting I-hood and us-ness of great men are forgotten in his presence. His manners are not quite so familiar as those of Lincoln, but nearly so. They are gentle, natural, graceful, with a bird-like or business-like quickness of thought and motion. But they are very far from the high and mighty style of Sumner, or the judicial coldness of Fessenden, Sherman, and Trumbull. Though manly, they are genial and winning. American mothers believe in Schuyler Colfax. There are more babies named for him than for any public man since Clay.” The intimacy and confidential relations of Mr. Colfax with Mr. Lincoln are well known. They labored hand in hand as brothers in the cause of the Union, holding frequent and protracted interviews on all subjects looking to the overthrow of the rebellion, for there were no divisions between the executive and legislative branches of the Government then as there are now. During the darkest hours of that bloody drama which shall ever remain a reproach upon the people of one section of the nation, they were ever cheerful and hopeful. Confident in the justness of the war waged for the preservation of the Union, and placing a Christian reliance in that Providence which guides and shapes the destiny of nations, great reverses, which caused others to fear and tremble, at times, almost to despair, seemed only to inspire them with greater zeal, and a firmer belief in the ultimate triumph of our cause.

Mr. Colfax is rather under the medium height, with a form firmly and compactly molded. His hair is brown, now slightly sprinkled with gray; eyes blue; forehead high and arching, indicating great perceptive faculties, and deep veneration. His face is open and frank, and as yet unmarked by age. He possesses great vitality, and can endure an extraordinary amount of labor with but little fatigue. This, coupled with his temperate habits, has caused him to wear his age so well that but few persons would place him even at forty. He is yet in the prime and vigor of manhood, with all his cares and responsibilities, as buoyant as most people at thirty.

DEMOCRATIC PLATFORM.

The Democratic party, in National Convention assembled, reposing its trust in the intelligence, patriotism, and discriminating justice of the people, standing upon the Constitution as the foundation and limitation of the powers of the Government and the guarantee of the liberties of the citizen, and recognizing the questions of slavery and secession as having been settled for all time to come by the war or the voluntary action of the Southern States in Constitutional Conventions assembled, and never to be revived or re-agitated, do, with the return of peace, demand:

1. The immediate restoration of all the States to their rights in the Union under the Constitution of the civil Government and the American people.

2. Amnesty for all past political offenses; the regulation of the elective franchise in the States by their citizens.

3. Payment of the public debt of the United States as rapidly as practicable, all money drawn from the people by taxation, except so much as is requisite for the necessities of the Government economically administered being honestly applied to such payment, and where the obligations of the Government do not expressly state upon their face or the law under which they were issued does not provide that they shall be paid in coin they ought, in right and in justice, to be paid in the lawful money of the United States.

4. Equal taxation of every species of property according to the value; reducing Government bonds and other public securities.

5. One currency for the Government and the people, the laborer and the office-holder, pensioner and the soldier, the producer and the bondholder.

6. Economy in the administration of the Government; the reduction of the standing army and navy; the abolition of the Freedmen's Bureau, and all political instrumentalities designed to secure negro supremacy; simplification of the system and discontinuance of inquisitorial modes of assessing and collecting internal revenue, that the burden of taxation may

be equalized and lessened, and the credit of the Government and the currency made good; the repeal of all enactments for enrolling the State militia into a national force in time of peace; and a tariff for revenue upon foreign imports and such equal taxation under the internal revenue laws as will afford incidental protection to domestic manufactures as well, without impairing the revenue, impose the least burden upon and best promote and encourage the great industrial interests of the country.

7. Reform of abuses in the Administration; the expulsion of corrupt men from office; the abrogation of useless offices; the restoration of the rightful authority to and the independence of the Executive and Judicial Departments of the Government; the subordination of the military to the civil power, to the end that the usurpation of Congress and the despotism of the sword may cease.

8. Equal rights and protection for naturalized and native born citizens at home and abroad; the assertion of American nationality, which will command the respect of foreign powers, furnish an example and encouragement to people struggling for national integrity, constitutional liberty, and individual rights; and the maintenance of the rights of naturalized citizens against the absolute doctrine of immutable allegiance and the claims of foreign powers to punish them for alleged crimes committed beyond their jurisdiction. In demanding these measures and reforms, we arraign the radical party for its disregard of right and the unparalleled oppression and tyranny which have marked its career, after the most solemn and unanimous pledge of both houses of Congress to prosecute the war exclusively for the maintenance of the Government and the preservation of the Union under the Constitution. It has repeatedly violated that most sacred pledge under which was rallied that noble volunteer army which carried our flag to victory. Instead of restoring the Union it has, so far as it is in its power, dissolved it, and subjected ten States in time of peace to military despotism and negro supremacy. It has nullified there the right of trial by jury; it has abolished the writ of habeas corpus, that most sacred writ of liberty; it has overthrown the freedom of speech and of the press; it has substituted arbitrary seizures and arrests, military trials, secret star chambers and inquisitions for constitutional tribunals; it has disregarded, in time of peace, the right of the people to be free from search and seizure; it has entered the post-office and telegraph

office, and even the private rooms of individuals and seized there their private papers and letters, without any specification or notice of affidavit, as required by the organic law. It has converted the American Capitol into a bastille; it has established a system of spies and official espionage to which the constitutional monarchies of Europe never dare to resort. It has abolished the right of appeal on important constitutional questions to the supreme judicial tribunals, and threatens to curtail or destroy its original jurisdiction, which is irrevocably vested by the Constitution; while the learned Chief Justice has been subjected to the most atrocious calumnies merely because he would not prostitute his high office to the support of the false and partisan charges against the President. Its corruption and extravagance have exceeded any thing known in history, and by its frauds and monopolies it has nearly doubled the burden of the debt created during the war. It has stripped the President of his Constitutional power of appointment even of his own Cabinet. Under its repeated assaults the pillars of the Government are rocking to their base; and should it succeed in November next, and inaugurate its President, we will meet as a subjected and conquered people amid the ruins of liberty and the scattered fragments of the Constitution; and we do declare and resolve that ever since the people of the United States threw off all subjection to the British crown, the privilege and trust of suffrage have belonged to the several States, and have been granted, regulated, and controlled exclusively by the political power of each State respectively, and any attempt by Congress, on any pretext whatever, to deprive any State of this right, or interfere with this exercise, is a flagrant usurpation of power which can find no warrant in the Constitution, and if sanctioned by the people will subvert our form of Government, and can only end in a single, centralized and consolidated Government, in which the separate existence of the States will be entirely absorbed, and an unqualified despotism then be established in place of a Federal Union of coequal States, and that we regard the reconstruction acts so-called of Congress such usurpations and unconstitutional, revolutionary and void: that our soldiers and sailors who carried the flag of our country to victory against a most gallant and determined foe must ever be gratefully remembered, and all the guarantees given in their favor must be faithfully carried into execution; that the public lands should be distributed widely among the people and should be disposed of either under the preëmption of the homestead lands and sold in reasonable quantities, and to none but

actual occupants, at the price established by the Government. When the grants of the public lands may be allowed necessary for the encouragement of important public improvements, the proceeds of the sale of such lands, and not the lands themselves, should be so applied; that the President of the United States, Andrew Johnson, exercising the power of his high office in resisting the aggressions of Congress on the constitutional rights of the States and the people, is entitled to the gratitude of the whole American people, and on behalf of the Democratic party, we tender him our thanks for his patriotic efforts in that regard.

Upon this platform the Democratic party appeal to every patriot, including all the conservative element, and all who desire to support the Constitution and restore the Union, forgetting all past differences of opinion, to unite with us in the present great struggle for the liberties of the people; and that to all such, to whatever party they may have heretofore belonged, we extend the right hand of fellowship, and hail all such coöperating with us as friends and brothers.

HON. HORATIO SEYMOUR,

The nominee of the Democratic National Convention for the office of President of the United States, is a native of the State of New York, having been born in Onondaga County, some time during the year 1811. He is consequently fifty-seven years of age at the present writing. His father being a gentleman of wealth, Mr. Seymour received an excellent education, and after his graduation engaged in the study of the law. Upon being admitted to the bar, he commenced the practice of his profession in the town of Utica, Oneida County, and soon became a popular lawyer. He did not long pursue this occupation, however. The death of his father made him successor to a large and valuable estate, attention to the interests of which compelled him to abandon all professional and public labors. He never after resumed practice.



HORATIO SEYMOUR.

Mr. Seymour's political predilections were, it may be said, inherited from his ancestors, all or nearly all of whom were and had been Democrats from the first formation of the party. To this political organization the subject of this sketch gave in his adhesion, and has ever since adhered to and been a prominent member of it. He first appeared before the public as a candidate for the suffrages of his fellow-citizens as the Democratic nominee for the office of mayor of the city of Utica. Although that city had been one of the firmest Whig strongholds, he was elected by a fair majority, as much owing, though, to the feeling of dissatisfaction with the opposing candidate, as to his personal popularity. The election took place in 1842, before he had quite attained his thirty-first year. During the same year, he was elected to the lower house of the State Legislature, and served until 1845, when he declined a reëlection. His ability as a legislator brought him considerable

reputation, and had the effect of extending his popularity, which had hitherto been confined to a rather limited extent of territory.

From 1845 to 1850, Mr. Seymour does not appear to have held any political office, although he took an active part in politics, stumping the State for other candidates, and doing all that he could to further the interests and insure the success of the Democracy. During the latter year, however, he had attained to sufficient prominence to warrant his nomination for the office of Governor. His opponent was Washington Hunt, and after a very exciting contest, Mr. Hunt was elected by a majority of 262, in a total of 428,966 votes cast. The balance of the Democratic ticket was elected, and this fact had the effect of temporarily obscuring Mr. Seymour's prospects. Still, he soon recovered from this reverse of fortune, and in 1852, was re-nominated for the same office. As before, his competitor was Mr. Hunt, whom he defeated, after an exciting canvass, by a majority of 24,385, in a total vote of 503,857. This victory added considerably to his popularity, as it was believed to presage a long lease of power to the Democratic party. His administration was distinguished by his veto of the Maine Liquor Law bill, which had passed both houses of the Legislature, and which action on the part of the Governor was regarded at the time as a bold stroke of policy. But it was not fated that the Democratic party should longer remain in power. In 1854, four candidates for gubernatorial honors appeared in the field—Horatio Seymour, regular Democrat; G. C. Bronson, hard shell Democrat; Myron H. Clark, Republican, and D. Ullman, Know-Nothing. The split in the Democratic party resulted in its defeat by a remarkably small majority. Nearly half a million votes were cast, of which Mr. Clark and Mr. Seymour received the highest, the former being elected by 309 majority.

After this defeat, Mr. Seymour returned to private life, nor was his name mentioned again in connection with public offices until 1856, when he was spoken of as one of the possible candidates of the Democracy for the Presidency. The movement, however, came to nothing. He still took an active part in politics, so far as a vigorous support of all Democratic candidates was concerned. When the rebellion broke out, Mr. Seymour took an active part in furthering its suppression, and served as chairman of the War Committee in his county, aiding in forwarding troops to the seat of war. In 1862, he was once more nominated by the Democrats for the office of

Governor, and was elected by a majority of over ten thousand. During his administration he had quite an angry controversy with the general government on the subject of the draft, he claiming that the quota of troops from the southern portion of the State, which gives immense Democratic majorities, was larger in proportion to the voting population, than that of the northern or republican sections. The matter was finally settled by a revision of the draft list. In 1863, the draft riots broke out in New York city, and Mr. Seymour immediately left Albany for that place. Arriving there, he addressed the rioters, urging them to disperse and go home quietly, and promising to do all that he could to stay the execution of the law. At the same time he organized a force of citizens, which he armed and kept on duty, until the arrival of troops from Pennsylvania restored order. In 1864, he was for the fifth time nominated for the office of Governor, and was defeated by Mr. Fenton by a majority of over eight thousand.

Since the close of the war Mr. Seymour has taken an active part in politics, although he has never been a candidate. In personal appearance he is quite dignified, and is said to be a very sociable and hospitable gentleman. As a public speaker he is fluent, eloquent, and argumentative, and wherever he takes the stump he is always received by large crowds. Until a late day of the Convention he positively asserted that he would not accept the nomination of the Democracy for the Presidency, but it is natural to suppose that he will now reconsider this resolution after the unanimous vote by which he was nominated.

GENERAL FRANCIS PRESTON BLAIR, JR.

This gentleman, the Democratic nominee for the Vice-Presidency, is a native of Lexington, Ky., where he was born, in 1821. He received an excellent education at Princeton College, N. J., and, after graduation, returned to his home at St. Louis, Mo., where he soon became actively engaged in politics. He was the political associate of Thomas Benton, and was the first man in Missouri to denounce the institution of slavery in his State. Being elected to the State Legislature, he soon became distinguished for his opposition to all measures tending to benefit slavery, and did much toward revolutionizing public sentiment in St. Louis, where he resided. In 1856, he was elected to Congress as a Republican, and was reëlected by increased majorities in 1858 and 1860. Throughout these years he never ceased his efforts against slavery, and the Kansas Territory difficulty found him an earnest advocate of free-soil doctrines. At the commencement of the Rebellion of 1861, he was among the first to organize troops for the defense of St. Louis and Missouri; and, in conjunction with Captain, afterward General Lyon, raised the forces known as the Missouri Home Guards, one of the most important Union organizations at that eventful period of civil disturbances in that State. He was made commander of the First Regiment, and assisted in the capture of Camp Jackson, St. Louis, on May 10, 1861, which capture was among the first of the severe blows struck at the Rebellion after the fall of Fort Sumter, inasmuch as it was certainly the first important one. Colonel Blair also took part in the battle of Boonville, under General Lyon, on June 17, 1861, during which contest he commanded his regiment. It was at this point that the rebels, under General Price and Governor Jackson, met with their first decided defeat in Missouri. His regiment took a very active part in the battle of Wilson's Creek, where General Lyon was slain, on August 10, 1861, but, in consequence of his having to occupy his seat in the special session of Congress, Colonel Blair was not present during that action.



FRANCIS P. BLAIR, JR.

During the sessions of Congress in 1861-2, Colonel Blair was Chairman of the Committee on Military Affairs, and, as such, did good service to the country. Upon the close of the session he returned to Missouri, and commenced the organization of a regiment of artillery, and afterward, at the request of the Secretary of War, he raised a brigade of infantry, of which he was placed in command, and commissioned a brigadier-general in August, 1862. The brigade became attached to the Fourth Division of the Thirteenth Army Corps, but, subsequently, upon a reconstruction of General Grant's forces, was assigned to the Fifteenth Corps, then commanded by General W. T. Sherman. While under the command of that brilliant officer, General Blair had charge of the First Brigade, of General Steele's division, at the attack upon the defenses in the rear of Vicksburg, on the 29th of December, 1862. During the assaults upon the works, General Blair greatly distinguished himself for his bravery, being the last to leave the heights,

although the main army had been severely repulsed. General Blair commanded his brigade in General Sherman's wing of McClellan's army during the assault upon and capture of Fort Hindman, on the Arkansas River, on the 10th and 11th of January, 1863. For the gallantry he displayed at these last mentioned contests he was promoted to be a major-general of volunteers, with a commission dating from November 29, 1862. During the month of April, 1863, Major-General Blair was placed in command of a division of Sherman's corps, formerly commanded by General David Stuart, who, in consequence of his appointment not having been confirmed by the Senate, had resigned the service. At the head of this division, he took part in all the operations in the vicinity of Vicksburg and in the siege, and further established his character for bravery.

During the remainder of the war General Blair took an active and conspicuous part in nearly all the great battles of the West. His division gained distinction in the attack on and capture of Jackson, Miss., and, on the 2d of October, 1863, General Sherman appointed him to the command of the corps formerly commanded by himself. In his new capacity he again exhibited many high traits of generalship, and, from the advance of the army from the Mississippi to the terrible battles of Missionary Ridge, his corps participated with distinguished valor, and won for its commander considerable reputation. In the early part of 1864, being desirous of taking his seat in Congress, to which he had been elected in 1862, General Blair presented his resignation to Mr. Lincoln, at the request of that gentleman, who urged him to be present and aid in the organization of the House. During the month of March following, he reentered the service, and was placed in command of the Seventeenth Army Corps. Until the war ended he remained in the field, serving under General Sherman in the celebrated campaign to Atlanta and the sea, and winning fresh laurels as a military leader. On the 11th of July, 1865, he bade farewell to his corps at Louisville and retired to private life.

As soon as the war was over and General Blair perceived that the people of the South were honestly disposed to abide the result of the conflict in good faith, he urged a liberal and generous treatment of the ex-rebels. At first he continued his connection with the republican party, and endeavored to change its course in his State to a policy of conservatism. The Legislature of Missouri had passed a law disfranchising all who participated in or gave

aid and comfort to the Rebellion, and another law requiring all the citizens of the State to take a test oath. Both of these measures were opposed by General Blair as proscriptive and unconstitutional. He urged that, the war being over, there was no need of any further rigor toward the men who had engaged in rebellion, and regarded it as dangerous to the peace and prosperity of the State to deprive them of the right to vote. With regard to the test oath, he absolutely refused to subscribe to it, and, upon presenting himself at the polls in St. Louis, his vote was refused for that reason. For this act he brought a suit before the courts for the purpose of testing the constitutionality of the law. The case is now before the Supreme Court of the United States, and is not yet decided. Gradually General Blair severed his connection with the Republican party, after having been a member of that organization from its incipency. When the present reconstruction laws of Congress were passed, he denounced them as despotic, revolutionary, and unconstitutional, and declared that the people of the South would not be in the wrong if they resisted their execution. He opposed, with great earnestness, the policy of universal negro suffrage as a disgrace and an outrage upon the people, and, in a recent letter, declared that the first duty of a Democratic President, if elected, would be to overthrow the present radical governments in the South, and restore the States to the rule of the whites. This declaration of his has been severely commented upon by the radical organs, while, from its boldness, the Democratic papers have scarcely ventured to offer an opinion.

General Blair's military reputation has gained him considerable popularity in the West, and particularly among the late Union soldiers in that section of the country. His recent adhesion to the Democratic party and his bitter opposition to negro suffrage created for a time considerable surprise when his views were made known, they being regarded as singular when compared with his former denunciations of slavery and the Democracy. Indeed, nothing could more fully exemplify what revolutions sometimes occur in politics and men's opinions than his unanimous and enthusiastic nomination.

Footnotes:

[1] This clause has been repealed and annulled by the 12th amendment.

[2] This ordinance was drawn up before the Constitution was formed.

[3] This battle resulted in the destruction of the Pequod tribe.

[4] Kaskaskia, the first capital of Illinois, is located on Kaskaskia River, and is the present site of Vandalia.

[5] Elected by the Senate.

[6] When the Electoral votes were being counted, in Joint Convention of the Senate and House of Representatives, objections were made to including the votes of Wisconsin, because the electors did not meet until the day after that prescribed by law. The President of the Convention stated that he merely announced that James Buchanan had been elected President of the United States, without any reference to the contested votes, and declined expressing an opinion on the subject.

[7] One of the original thirteen States of the Union.

[8] Delegates from Territories who may speak on Territorial questions, but have no vote.

Transcriber's Notes:

Deprecated spellings or archaic words were not corrected.

The illustrations have been moved so that they do not break up paragraphs and so that they are next to the text they illustrate.

Typographical and punctuation errors have been silently corrected.

*** END OF THE PROJECT GUTENBERG EBOOK THE VOTER'S
TEXT BOOK ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.